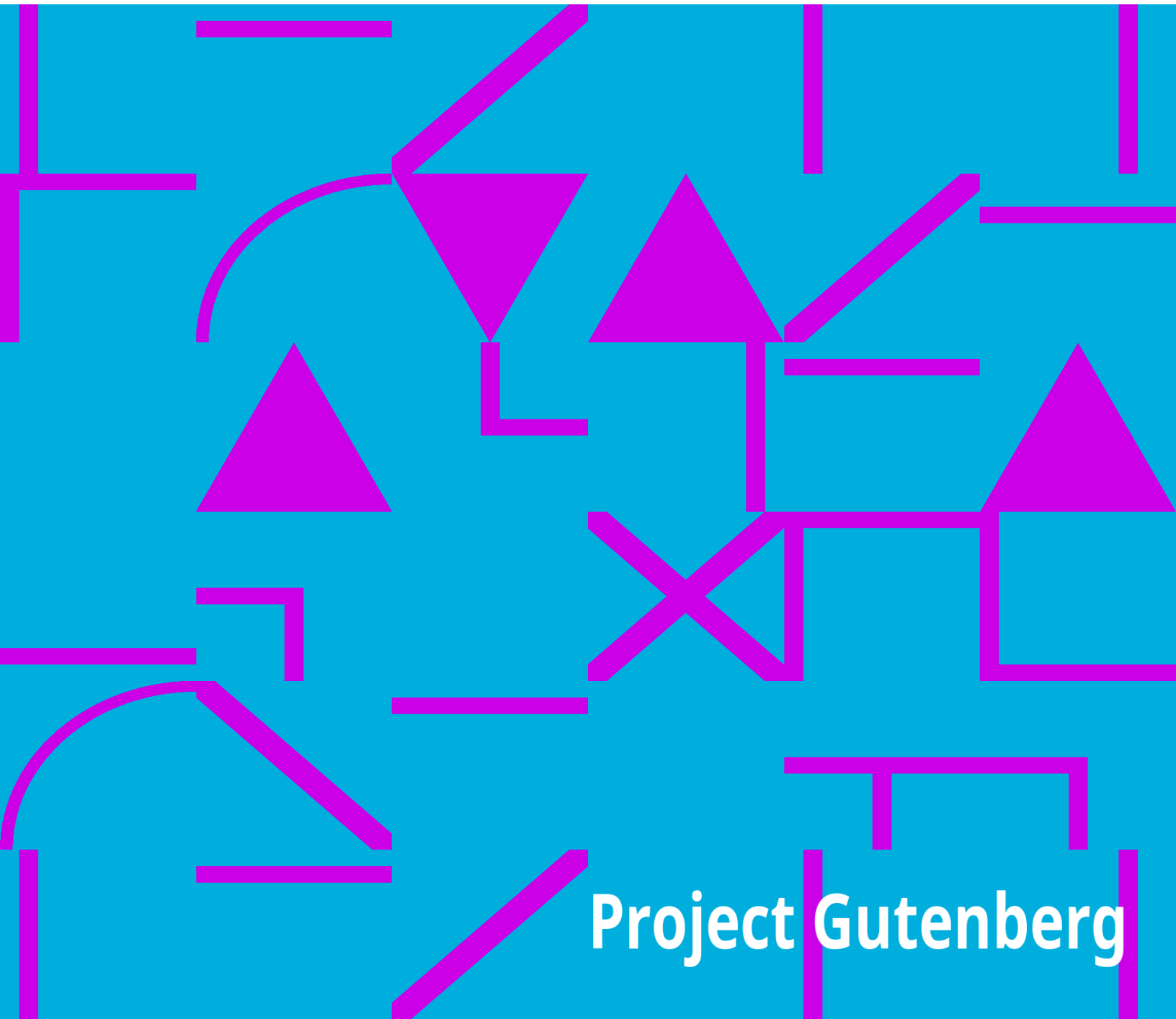


Ten Thousand a-Year. Volume 2.

Samuel Warren



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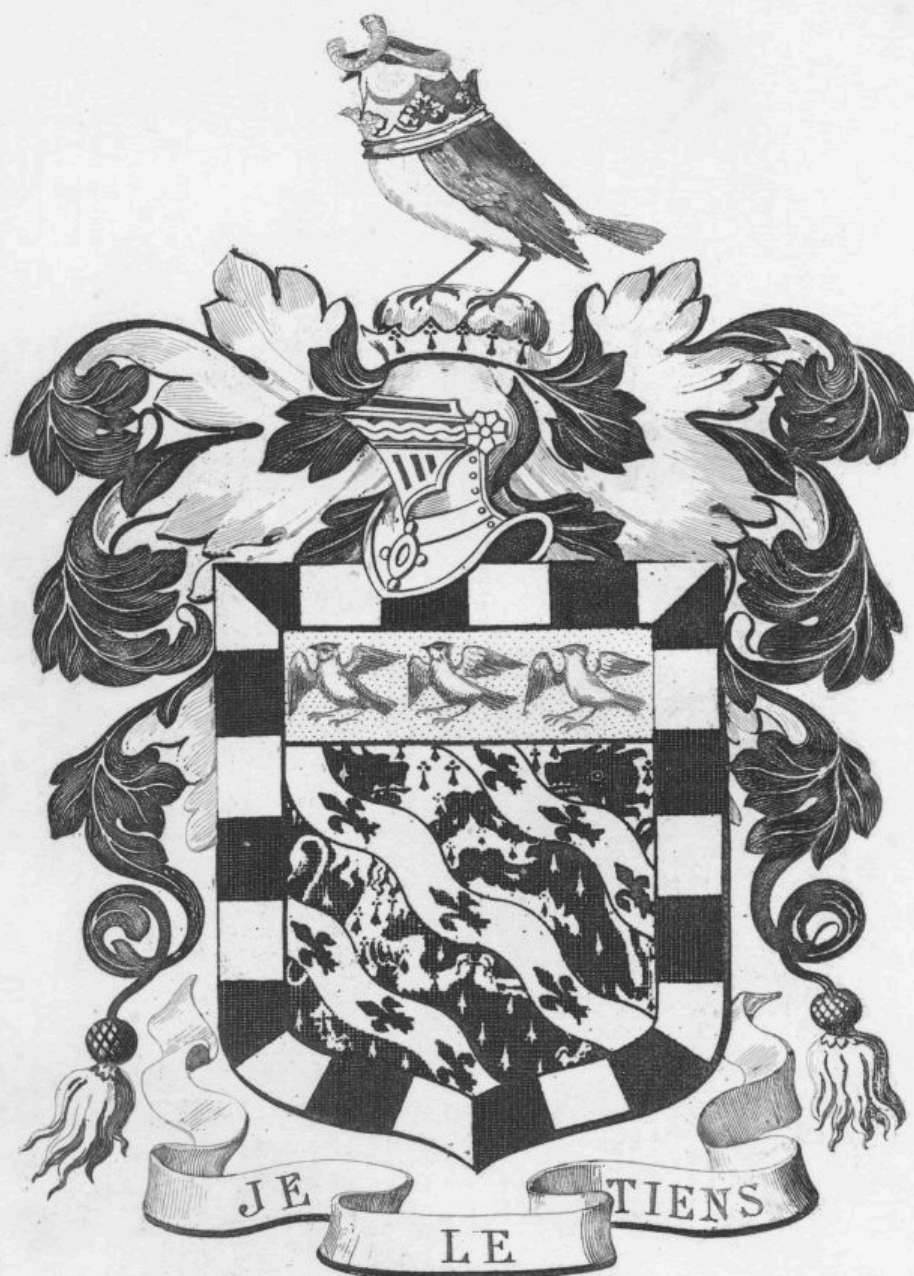
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THOUSAND A-YEAR. VOLUME 2. ***

TEN THOUSAND A-YEAR.

VOL. II.





*The Crest and Coat of Arms of
Tittlebat Titmouse Esq M. P
according to the description of
Sir Gorgeous Tintack, Garter King at Arms.*

TEN
THOUSAND A-YEAR.

BY
SAMUEL WARREN, F.R.S.

VOL. II.

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TEN THOUSAND A-YEAR.

CHAPTER I.

"The Attorney-General did his work very fairly, I thought—eh, Lynx?" said Mr. Subtle, as arm-in-arm with Mr. Lynx, he quitted the Castle-gates, each of them on his way to their respective lodgings, to prepare for the next day's work.

"Yes—he's a keen hand, to be sure: he's given us *all* work enough; and I must say, it's been a capital set-to between you! I'm *very* glad you got the verdict!"

"It wouldn't have done to be beaten on one's own dung-hill, as it were—eh? By the way, Lynx, that was a good hit of yours about the erasure—I ought, really, if it had occurred to me at the time, to have given you the credit of it—'twas entirely yours, Lynx, I must say."

"Oh, no!"—replied Lynx, modestly. "It was a mere accident my lighting on it; the merit was, the use you made of it!"

"To think of ten thousand a-year turning on that same trumpery erasure!"——

"But are you sure of our verdict on that ground, Mr. Subtle? Do you think Lord Widdrington was right in rejecting that deed?"^[1]

"Right? to be sure he was! But I own I got rather uneasy at the way the Attorney-General put it—that the estate had once been vested, and could not be subsequently de-vested by an alteration or blemish in the instrument evidencing the passing of the estate—eh? that was a good point, Lynx."

"Ay, but as Lord Widdrington put it—that could be only where the defect was proved to exist after a complete and valid deed had been once established."

"True—true; that's the answer, Lynx; here, you see, the deed is disgraced in the first instance; no proof, in fact, that it ever *was* a deed—therefore, mere waste paper."

"To be sure, *possession* has gone along with the deed"——

"Possession gone along with it!—What then?—That is to say, the man who has altered it, to benefit himself and his heirs, keeps it snugly in his own chest—and then that is of itself to be sufficient to"——

"Ay—but what I'm afraid of, is this: that the presumption of forgery arising from the alteration, is overcome by the presumption to the contrary, arising from long-continued and consistent possession!—On the other hand, however, it is certainly a general rule that the party producing an instrument must account for the appearance of erasure or alteration, to encounter the presumption of fraud!—I must say *that* seems good sense enough!"...

"It's really been a very interesting cause," said Mr. Subtle.

"Very. Some capital points—that of Mortmain's on the stamp act"——

"Pish, Lynx! there's nothing in it! I meant the cause itself has been an interesting one—uncommonly."

Mr. Subtle suddenly paused and stood still. "God bless my soul, Lynx—I've made a blunder!"

"Eh!"

"Yes—by Jove, a blunder! Never did such a thing since I've led a cause before!"

"A blunder? Impossible!—What is it?" inquired Lynx, briskly, pricking up his ears.

"It will be at least thirty or forty pounds out of our client's pocket. I forgot to ask Widdrington for the certificate for the costs of the special jury. I protest I never did such a thing before—I'm quite annoyed—I hate to *overlook* anything."

"Oh! is that all?" inquired Lynx, much relieved—"then it's all right! While you were speaking to Mr. Gammon, immediately after the verdict had been given, I turned towards Quicksilver to get him to ask for the certificate—but he had seen a man with the new 'Times' containing the Division on the Catholic claims, and had set off after him—so I took the liberty, as you seemed very earnestly talking to Mr. Gammon, to name it to the judge—and it's all right."

"Capital!—Then there isn't a single point missed!—And in a good two days' fight that's something."

"D'ye think we shall keep the verdict, and get its fruits?"

"We shall keep the verdict, I've no doubt; there's nothing in Widdrington's notes that we need be afraid of—but of course the Aubreys will put us to bring another ejectment, perhaps several."

"Yes—certainly—there *must* be a good deal of fighting before such a property as Yatton changes hands," replied Lynx, with a complacent air; for he saw a few pleasant pickings in store for him. "By the way," he continued, "our client's a sweet specimen of humanity, isn't he?"

"Faugh! odious little reptile! And did you ever in all your life witness such a scene as when he interrupted me in the way he did?"

"Ha, ha! Never! But, upon my honor, what an exquisite turn you gave the thing—it was worth more than called it forth—it was admirable."

"Pooh—Lynx!" said Mr. Subtle, with a gratified air; "knack—mere knack—nothing more. My voice trembled—eh?—at least so I intended."

"Upon my soul, I almost believed you were for the moment overcome, and going to shed tears."

"Ah, ha, ha!—Delightful! I was convulsed with inward laughter! *Shed tears!!* Did the bar take it, Lynx?" inquired Mr. Subtle; for though he hated display, he loved *appreciation*, and by competent persons. "By the way, Lynx, the way in which you've got up the whole case does you vast credit—that opinion of yours on the evidence was—upon my word—the most masterly"—here he suddenly ceased and squeezed his companion's arm, motioning him thereby to silence. They had come up with two gentlemen, walking slowly, and conversing in a low tone, but with much earnestness of manner. They were, in fact, Mr. Aubrey and Lord De la Zouch. Mr. Subtle and Mr. Lynx crossed over to the other side of the narrow street, and quickened their pace, so as soon to be out of sight and hearing of the persons they seemed desirous of avoiding. Mr. Subtle was, indeed, unable to bear the sight of the man whom his strenuous and splendid exertions during the last two days had tended to strip of his all—to thrust from the bright domain of wealth, prosperity, distinction, into—as it were—outer darkness—the outer darkness of poverty—of destitution.

"It's rather a nuisance for the Aubreys— isn't it?" quoth the matter-of-fact Lynx.

"It's quite frightful!"—replied Mr. Subtle, in a tone of voice and with a manner which showed how deeply he felt what he uttered. "And it's not only what Mr. Aubrey will lose, but what he will be liable to—the mesne profits—sixty thousand pounds."

"Oh!—you think, then, that we can't go beyond the *statute of limitations*?—Eh?—is that so clear?" Mr. Subtle looked sharply at Lynx, with an expression it would be difficult to describe. "Well"—continued the impenetrable Lynx—"at all events, I'll look into it." He felt about as much *sentiment* in the matter as a hog eating acorns would feel interest in the antiquity of the oak from which they fell, and under whose venerable shade he was munching and stuffing himself.

"By the way, Lynx—aren't you with me in *Higson and Mellington*?"

"Yes—and it stands first for to-morrow morning!"

"I've not opened my papers, and—why, we've a consultation fixed for ten o'clock to-night! What's it all about?"

"It's *libel* against a newspaper editor—the POMFRET COCKATRICE; and our client's a clergyman. They've slandered him most abominably: they say he entered the church as a wholesale dealer in tithes—and as to religion—is an unbeliever and hypocrite!"

"Ay, ay?—that sounds a little like substantial damages!—Do they *justify*?"
[\[2\]](#)

"No—they've pleaded not guilty only."

"Who leads for the defender?"

"Mr. Quicksilver."

"Oh!—very well. We must have the consultation to-morrow morning, at the Robing-room—ten minutes before the sitting of the court. I'm rather tired to-night." With this the great leader shook hands with his modest, learned, laborious junior—and entered his lodgings.

As soon as Titmouse had been ejected from the court, in the summary way which the reader will recollect, merely on account of his having, with some

slight indecorum, yielded to the mighty impulse of his agitated feelings, he began to cry bitterly, wringing his hands, and asking every one about him if they thought he could get in again, because it was "*his case*" that was going on. His eyes were red and swollen with weeping; and his little breast throbbed violently as he walked to and fro from one door of the court to the other. "Oh, gents, will you get me in again?" said he, in passionate tones, approaching two gentlemen, who, with a very anxious and oppressed air, were standing together at the outside of one of the doors—in fact, Lord De la Zouch and Mr. Aubrey; and they quickly recognized in Titmouse the gentleman whose claims were being at that instant mooted within the court. "Will you get me in? You seem such *respectable* gents—'Pon my soul I'm going mad! It's my case that's going on! I'm Mr. Titmouse"——

"We have no power, sir, to get you in," replied Lord De la Zouch, haughtily: so coldly and sternly as to cause Titmouse involuntarily to shrink from him.

"The court is crowded to the very door, sir—and we really have no more right to be present in court, or get others into court, than you have," said Mr. Aubrey, with mildness and dignity.

"Thank you, sir! Thank you!" quoth Titmouse, moving with an apprehensive air away from Lord De la Zouch, towards Mr. Aubrey, "Know quite well who you are, sir! 'Pon my solemn soul, sir, sorry to do all this; but law's law, and right's right, all the world over!"

"I *desire* you to leave us, sir," said Lord De la Zouch, with irrepressible sternness; "you are very intrusive. How can we catch a syllable of what is going on while you are chattering in this way?" Titmouse saw that Mr. Aubrey looked towards him with a very different expression from that exhibited by his forbidding companion, and would perhaps have stood his ground, but for a glimpse he caught of a huge, powdered, broad-shouldered footman, in a splendid livery, one of Lord De la Zouch's servants, who, with a great thick silver-headed cane in his hand, was standing at a little distance behind, in attendance on the carriage, which was in the Castle-yard. This man's face looked so ready for mischief, that Titmouse slowly walked off. There were a good many standers-by, who seemed all to look with dislike and distrust at Titmouse. He made many ineffectual attempts to persuade the doorkeeper, who had assisted in his extrusion, to readmit him; but the incorruptible janitor was proof against a sixpence—even against a shilling;

and at length Titmouse gave himself up to despair, and thought himself the most miserable man in the whole world—as very probably, indeed, he was: for consider what a horrid interval of suspense he had to endure, from the closing of Mr. Subtle's speech, till the delivery of the verdict. But at length, through this portentous and apparently impenetrable cloud burst the rich sunlight of success.

"Mr. Titmouse!—Mr. Titmouse!—Mr. Tit"——

"Here! Here I am! Here!"—exclaimed the little wretch, jumping off the window-seat on which he had been sitting for the last hour in the dark, half-stupefied with grief and exhaustion. The voice which called him was a blessed voice—a familiar voice—the voice of Mr. Gammon; who, as soon as the jury had begun to come back, on some pretence or other had quitted his seat between Quirk and Snap, in order, if the verdict should be for the plaintiff, to be the very first to communicate it to him. In a moment or two Mr. Gammon had grasped both Mr. Titmouse's hands. "My dear, dear Mr. Titmouse, I congratulate you! You are victorious! God grant you long life to enjoy your good fortune! God bless you, Titmouse!" He wrung Titmouse's hands—and his voice trembled with the intensity of his emotions! Mr. Titmouse had grown very white, and for a while spoke not, but stood staring at Mr. Gammon, as if hardly aware of the import of his communication.

"No—but—is it so? Honor bright?" at length he stammered.

"It is indeed! My long labors are at length crowned with success!—Hurrah, hurrah, Mr. Titmouse!"

"I've really *won*? It a'n't a joke or a dream?" inquired Titmouse, with quickly increasing excitement, and a joyous expression bursting over his features, which became suddenly flushed.

"A joke?—the best you'll ever have. A dream?—that will last your life. Thank God, Mr. Titmouse, the battle's ours; we've defeated all their villany!"

"Tol de rol! Tol de rol! Tol de lol, lol, lol, rido!—Ah," he added in a loud truculent tone, as Lord De la Zouch and Mr. Aubrey slowly passed him—"done for you now—'pon my life!—turned the tables!—*that* for you!" said he, snapping his fingers; but I need hardly say that he did so with

perfect impunity, as far as those two gentlemen were concerned, who were so absorbed with the grievous event which had just happened, as scarcely to be aware of their being addressed at all.

"Aubrey, it's against you—all is lost; the verdict is for the plaintiff!" said Lord De la Zouch, in a hurried agitated whisper, as he grasped the hand of Mr. Aubrey, whom he had quitted for an instant to hear the verdict pronounced. Mr. Aubrey for some moments spoke not.

"God's will be done!" at length said he, in a low tone, or rather in a faint murmur. More than a dozen gentlemen, who came crowding out, grasped his hand with fervent energy.

"God bless you, Aubrey! God bless you!" said several voices, their speakers wringing his hands with great vehemence as they spoke.

"Let us go"—said Lord De la Zouch, putting Mr. Aubrey's arm in his own, and leading him away from a scene of distressing excitement, too powerful for his exhausted feelings.

"I am nothing of a fatalist," said Mr. Aubrey, after a considerable pause, during which they had quitted the Castle-gates, and his feelings had recovered from the shock which they had just before suffered;—"I am nothing of a fatalist, but I ought not to feel the least surprise at this issue, for I have long had a settled conviction that such *would* be the issue. For some time before I had the least intimation of the commencement of these proceedings, I was oppressed by a sense of impending calamity"——

"Well, that may be so; but it does not follow that the mischief is finally *done*."

"I am certain of it!—But, dear Lord De la Zouch, how much I owe to your kindness and sympathy!" said Mr. Aubrey, with a slight tremor in his voice.

"We are at this moment, Aubrey, firmer friends than we ever were before. So help me Heaven! I would not lose your friendship for the world; I feel it a greater honor than I am worthy of—I do, indeed," said Lord De la Zouch, with great emotion.

"There's a great gulf between us, though, Lord De la Zouch, as far as worldly circumstances are concerned—you a peer of the realm, I a beggar!"

"Forgive me, Aubrey, but it is idle to talk in that way; I am hurt beyond measure at your supposing it possible that under any circumstances"——

"Believe me, I feel the full value of your friendship—more valuable at this moment than ever!"

"That a serious calamity has fallen upon you is certain;—which of us, indeed, is safe from such a calamity? But who would bear it with the calm fortitude which *you* have already evinced, my dear Aubrey?"

"You speak very kindly, Lord De la Zouch; I trust I shall play the man, now that the time for playing a man's part has come," said Mr. Aubrey, with an air of mingled melancholy and resolution. "I feel an inexpressible consolation in the reflection, that I cannot charge myself with anything unconscientious; and, as for the future, I put my trust in God. I feel as if I could submit to the will of Heaven with cheerfulness"——

"Don't speak so despondingly, Aubrey"——

"Despondingly?" echoed Mr. Aubrey, with momentary animation—"Despondingly? My dear friend, I feel as if I were indeed entering a scene black as midnight—but what is it to the *valley of the shadow of death*, dear Lord De la Zouch, which is before all of us, and at but a little distance! I assure you I feel no vain-glorious confidence; yet I seem to be leaning on the arm of an unseen but all-powerful supporter!"

"You are a hero, my dear Aubrey!" exclaimed Lord De la Zouch, with sudden fervor.

"And that support will embrace those dearer to me than life—dearer—far—far"——He ceased; his feelings quite overcame him, and they walked on for some time in silence. Soon afterwards they parted—for Lord De la Zouch perceived that his unfortunate companion wished to be alone. He wrung Mr. Aubrey's hands in silence; and having turned in the direction of his hotel, Mr. Aubrey made for his lodgings. The streets were occupied by passengers, some returning from the Castle after the great trial of the day; others standing here and there, in little knots, conversing as he passed them; and he felt conscious that the subject of their thoughts and conversation was himself and his fallen fortunes. Several deep-drawn sighs escaped him, as he walked on, the herald of such dismal tidings, to those whom he loved; and he felt but for that which supported him from within, as it were, a fallen

angel, so far as concerned this world's honors and greatness. The splendors of human pomp and prosperity seemed rapidly vanishing in the distance. In the temporary depression of his spirits, he experienced feelings somewhat akin to those of the heart-sickened exile, whose fond eyes are riveted upon the mosques and minarets of his native city, glittering in the soft sunlight of evening, where are the cherished objects of all his tenderest thoughts and feelings; while his vessel is rapidly bearing him from it, amid the rising wind, the increasing and ominous swell of the waters, the thickening gloom of night—*whither?* The Minster clock struck ten as he passed one of the corners of the vast majestic structure, gray-glistening in the faint moonlight. The melodious chimes echoed in his ear, and smote his subdued soul with a sense of peculiar solemnity and awe; they forced upon him a reflection upon the transient littleness of earthly things. Then he thought of those dear beings who were awaiting his return, and a gush of grief and tenderness overflowed his heart, as he quickened his steps, with an inward and fervent prayer that Heaven would support them under the misfortune which had befallen them. As he neared the retired row of houses where his lodgings were situated, he imagined that he saw some one near the door, as if on the look-out for his approach; and who, as he drew nearer, suddenly entered them, and closed the door. This was a person whom Mr. Aubrey did not at all suspect—it was his worthy friend Dr. Tatham; who, unable to quit Yatton in time to hear the trial, had early that morning mounted his horse, and after a long and hard ride, reached York soon after Mr. Aubrey had set off for the Castle. Though many of the county people then in York were aware that Mrs. and Miss Aubrey were also there, a delicate consideration for their exquisitely distressing situation restrained them from intruding upon their privacy, which had been evidently sought for by the species of lodgings which Mr. Aubrey had engaged. On the second day, the excellent Dr. Tatham had been their welcome and instructive guest, scarce ever leaving them; Mr. Aubrey's groom bringing word, from time to time, from his master, how the trial went on. Late in the evening, urged by Kate, the doctor had gone off to the Castle, to wait till he could bring intelligence of the final result of the trial. He had not been observed by Mr. Aubrey amid the number of people who were about; and had at length fulfilled his mission, and been beforehand with Mr. Aubrey in communicating the unfortunate issue of the struggle. The instant that Mr. Aubrey had set his foot within the

door, he was locked in the impassioned embrace of his wife and sister. None of them spoke for some moments.

"Dearest Charles!—we've heard it all—we know it all!" at length they exclaimed in a breath. "Thank God, it is over at last—and we know the worst!—Are you well, dearest Charles?" inquired Mrs. Aubrey, with fond anxiety.

"Thank God, my Agnes, I am well!" said Mr. Aubrey, much excited—"and thank God that the dreadful suspense is at an end; and also for the fortitude, my sweet loves, with which you bear the result. And how are *you*, my excellent friend?" continued he, addressing Dr. Tatham, and grasping his hands; "my venerable and pious friend—how it refreshes my heart to see you! as one of the chosen ministers of that God whose creatures we are, and whose dispensations we receive with reverent submission!"

"God Almighty bless you all, my dear friends!" replied Dr. Tatham, powerfully affected. "Believe that all this is from HIM! He has wise ends in view, though we see not nor comprehend them! *Faint not when you are rebuked of Him! If ye faint in the day of adversity, your strength is small!* But I rejoice to see your resignation!"—Aubrey, his wife, and sister, were for a while overcome with their emotions.

"I assure you all," said Aubrey, "I feel as if a very mountain had been lifted off my heart! How blessed am I in such a wife and sister!" A heavenly smile irradiated his pale features—and he clasped his wife, and then his sister, in his arms. They wept as they tenderly returned his embrace.

"God," said he, "that gave us all, has taken all: why should we murmur? He will enable us, if we pray for His assistance, to bear with equanimity our present adversity, as well as our past prosperity! Come, Agnes! Kate! play the woman!"

Dr. Tatham sat silent by; but the tears ran down his cheeks. At length Mr. Aubrey gave them a general account of what had occurred at the trial—and which, I need hardly say, was listened to in breathless silence.

"Who is that letter from, love, lying on the table?" inquired Mr. Aubrey, during a pause in the conversation.

"It's only from Johnson—dearest!—to say the children are quite well," replied Mrs. Aubrey. The ruined parents, as if by a common impulse, looked

unutterable things at each other. Then the mother turned deadly pale; and her husband tenderly kissed her cold cheek; while Kate could scarcely restrain her feelings. The excitement of each was beginning to give way before sheer bodily and mental exhaustion; and Dr. Tatham, observing it, rose to take his departure. It was arranged that the carriage should be at the door by eight o'clock in the morning, to convey them back to Yatton—and that Dr. Tatham should breakfast with them, and afterwards accompany them on horseback. He then took his departure for the night, with a very full heart; and those whom he had left, soon afterwards retired for the night; and having first invoked the mercy and pity of Heaven, sank into slumber and brief forgetfulness of the perilous position in which they had been placed by the event of the day.

Somewhat different was the mode in which the night was spent by the victorious party. Gammon, as has been seen, was the first to congratulate Titmouse on his splendid success. The next was old Quirk—who, with a sort of conviction that he should find Gammon beforehand with him—bustled out of court, leaving Snap to pay the jury, settle the court-fees, collect the papers, and so forth. Both Quirk and Snap (as soon as the latter was at liberty) exhibited a courtesy towards Titmouse which had a strong dash of reverence in it, such as was due to the possessor of ten thousand a-year; but Gammon exhibited the tranquil matter-of-fact confidence of a man who had determined to be, and indeed knew that he *was*, the entire master of Titmouse.

"I—wish you'd call a coach, or something of that sort, gents.—I'm devilish tired—I am, 'pon my soul!" said Mr. Titmouse, yawning, as he stood on the steps between Quirk and Gammon, waiting for Snap's arrival. He was, in fact, almost beside himself—bursting with excitement; and could not stand still for a moment. Now he whistled loudly, and boldly; then he hummed a bar or two of some low comic song; and repeatedly drew on and off his damp gloves, with an air of petulant impetuosity. Now he ran his hand through his hair with careless grace; and then, with arms folded on his breast for a moment, looked eagerly, but with a would-be languid air, at two or three elegant equipages, which, one by one, with their depressed and disappointed occupants, rolled off. At length, Lord Widdrington, amid a sharp impetuous cry of "Make way for the judge there—make way for my Lord!" appeared in his robes, (holding his three-cornered hat in his hand,)

with a wearied air; and passing close by Titmouse, was honored by him with a very fine bow indeed—his Lordship not being, however, in the least aware of the fact—as he passed on to his carriage. The steps were drawn up; the door was closed; and amid a sharp blast of trumpets, the carriage drove slowly off, preceded and followed by the usual attendants. All this pomp and ceremony made a very deep impression upon the mind of Titmouse. "Ah," thought he, with a sudden sigh of mingled excitement and exhaustion—"who knows but *I* may be a judge some day? It's a devilish pleasant thing, I'm sure! What a fuss he must make wherever he goes! 'Pon my life, quite delightful!" As there was no coach to be had, Mr. Titmouse was forced to walk home, arm-in-arm with Mr. Quirk and Mr. Gammon, and followed, at a little distance, by a knot of persons, acquainted with his name and person, and feeling towards him a strange mixture of emotions—dislike, wonder, contempt, admiration. Goodness gracious! that strange little gentleman was now worth, it was said, ten thousand a-year; and was squire of Yatton!! Old Quirk shook Titmouse's hand with irrepressible enthusiasm, at least a dozen times on their way to the inn; while Gammon now and then squeezed his arm, and spoke, in an earnest tone, of the difficulties yet to be overcome. On reaching the inn, the landlady, who was standing at the door, and had evidently been on the look-out for her suddenly distinguished guest, received him with several profound courtesies, and eager and respectful inquiries about his health, as he had had no luncheon—and asking what he would be pleased to have for his supper. She added, moreover, that fearing his former bedroom might not have been to his mind, she had changed it, and he would that night sleep in the very best she had.

"We must make a night on 't, eh?" quoth Mr. Quirk, with an excited air. His partners assented to it, as did Mr. Titmouse; and cold beef, sausages, fowl, ham, beefsteaks, and mutton-chops, were ordered to be in readiness in half an hour's time. Soon afterwards Mr. Titmouse followed the chambermaid to his new bedroom.

"This is the room we always give to quality folk—when we get them," said she, as she set his candle on the drawers, and looked round the apartment with a little triumph.

"Ah—yes!—'pon my soul—quite right—always do your best for quality!—Lovely gal—eh?" Here he chuckled her under the chin, and seemed disposed

to imprint a kiss upon her cheek; but, with a "Lord sir—that's not the way quality folks behave!" she modestly withdrew. Titmouse, left alone, first threw himself on the bed; then started off, and walked about; then sat down; then danced about; then took off his coat; then threw himself on the bed again; hummed, whistled, and jumped up again—in a sort of wild ecstasy, or delirium. In short, it was plain that he was not master of himself. In fact, his little mind was agitated by the day's event, like as would be a small green puddle by the road-side, for a while, on a stone being suddenly flung into it by a child. While Messrs. Quirk and Snap were, after their sort, as excited as was even Mr. Titmouse himself, Gammon, retiring to his bedroom, and ordering thither pens, ink, and paper, sat down and wrote the following letter:—

"York, 5th April, 18—.

"MY DEAR SIR,—The very first leisure moment I have, I devote to informing you, as one of the most intimate friends of our highly respected client, Mr. Titmouse, of the brilliant event which has just occurred. After a most severe and protracted struggle of two days, (the Attorney-General having come down special on the other side,) the jury, many of them the chief gentlemen of the county, have within this last hour returned a verdict in favor of our friend, Mr. Titmouse—thereby declaring him entitled to the whole of the estates at Yatton, (ten thousand a-year rent-roll, at least,) and, by consequence, to an immense accumulation of bygone rents, which must be made up to him by his predecessor, who, with all his powerful party, and in spite of the unscrupulous means resorted to to defeat the ends of justice, is dismayed beyond expression at the result of this grand struggle—unprecedented in the annals of modern litigation. The result has given lively satisfaction in these parts—it is plain that our friend Mr. Titmouse will very soon become a great *lion* in society.

"To you, my dear sir, as an early and valued friend of our interesting client, I sit down to communicate the earliest intelligence of this most important event; and I trust that you will, with our respectful compliments, communicate the happy news to your amiable family—who, I am persuaded, must ever feel a warm interest in our client's

welfare. He is now, naturally enough, much excited with his extraordinary good fortune, to which we are only too proud and happy to have contributed by our humble, but strenuous and long-continued exertions. He begs me to express his cordial feelings towards you, and to say that, on his return to town, Satin Lodge will be one of the very first places at which he will call. In the mean time, I beg you will believe me, my dear sir, with the best compliments of myself and partners, yours most sincerely,

"OILY GAMMON.

"THOMAS TAG-RAG, ESQ.
&c. &c. &c."

"That, I think, will about do"—quoth Gammon to himself, with a thoughtful air, as, having made an exact copy of the above letter, he sealed it up and directed it. He then came down-stairs to supper, having first sent the letter off to the post-office. What a merry meal was that same supper! Mr. Titmouse, Mr. Quirk, and Mr. Snap, ate almost to bursting; Gammon was more abstinent—but, overpowered by the importunities of his companions, he took a far greater quantity than usual of the bouncing bottled porter, the hard port, and fiery sherry, which his companions drank as if they had been but water. Then came in the spirits—with hot water and cold; and to these all present did ample justice; in fact, it was very hard for any one to resist the other's entreaties. Mr. Gammon in due time felt himself *going*—but seemed as if, on such an occasion, he had no help for it. Every one of the partners, at different stages of the evening, made—*more suo*—a speech to Titmouse, and proposed his health; who, of course, replied to each, and drank the health of each. Presently old Quirk sang a comic song, in a very dismal key; and then he and Snap joined in a duet called, "*Handcuff v. Halter*;" at which Gammon laughed heartily, and listened with that degree of pleased attention, which showed that he had resolved, for once at least, to abandon himself to the low enjoyment of the passing hour. Then Titmouse began to speak of what he should do, as soon as he had "touched the shiners"—his companions entering into all his little schemes with a sort of affectionate enthusiasm. At length old Mr. Quirk, after by turns laughing, crying, singing, and talking, leaned back in his chair, with his half-emptied tumbler of brandy and water in his hand, and fell fast asleep. Gammon also, in spite of all he could do, began—the deuce take it!—to feel and exhibit

the effects of a hasty and hearty meal, and his very unusual potations, especially after such long abstinence and intense anxiety as he had experienced during the previous two days. He had intended to have seen all his companions under the table; but he began gradually to feel a want of control over himself, his thoughts, and feelings, which a little disquieted him, as he now and then caught glimpses of the extent to which it was proceeding. "*In vino veritas*," properly translated, means—that when a man is fairly under the influence of liquor, you see a strong manifestation of his real character. The vain man is vainer; the voluble, more voluble; the morose, more morose; the passionate, more passionate; the detractor, more detracting; the sycophant, more sycophantic, and so forth. Now Mr. Gammon was a cold, cautious, long-headed schemer, and as the fumes of liquor mounted up into his head, they did but increase the action and intensity of those qualities for which, when sober, he was so pre-eminently distinguished; only that there was a half-conscious want of coherency and subordination. The impulse and the habit were present; but there seemed also a strange disturbing force: in short—what is the use of disguising matters?—Mr. Gammon was getting very drunk; and he felt very sorry for it—but it was too late. In due time the dismal effort *not to appear drunk*, ceased—a vast relief! Silent and more silent he became; more and more observant of the motions of Snap and Titmouse; more and more complicated and profound in his schemes and purposes; and at length he felt as if, by some incomprehensible means, he were attempting to take *himself* in— inveigling himself: at which point, after a vain attempt to understand his exact position, with reference to himself, he slowly, but *rather* unsteadily, rose from his chair; looked with an unsettled eye at Titmouse for nearly a minute; a queer smile now and then flitted across his features; and he presently rang the bell. Boots having obeyed the summons, Gammon with a turbid brain and cloudy eye followed him to the door, with a most desperate but unavailing effort to walk thither steadily. Having reached his room, he sat down with a sort of suspicion that he had said or done something to commit himself. Vain was the attempt to wind up his watch; and at length he gave it up, with a faint curse. With only one stocking off, conceiving himself to be undressed, after trying four or five times ineffectually to blow out his candle, he succeeded, and got into bed; his head, however, occupying the place assigned to his feet. He lay asleep for about half an hour—and then experienced certain insupportable

sensations. He was indeed miserable beyond description; and lost all thoughts of what would become of Titmouse—of Quirk and Snap—in his own most desperate indisposition.

"I say, Snap," quoth Titmouse, with a grin, and putting his finger to his nose, as soon as Gammon had quitted the room in the manner above described—"Mr. Quirk a'n't much company for us just now, eh? Shall we go out and have some fun?"

"Walk will do us good—yes. Go where you like, Titmouse," replied Snap, who, though young, was a thoroughly seasoned vessel, and could hold a great deal of drink without seeming, or really being, much the worse for it. As for Titmouse, happily for him! (seeing that he was so soon to have the command of unlimited means, unless indeed the envious fates should in the mean time interpose to dash the brimful cup from his eager lips,) he was becoming more and more accustomed to the effects of drink; which had, up to the moment I am speaking of, had no other effect than to elevate his spirits up to the pitch of indefinite daring and enterprise. "'Pon my life, Snap, couldn't we stand another tumbler—eh? Warm us for the night air?" "What shall it be?" quoth Snap, ringing the bell—"whiskey?"

"Devil knows, and devil cares!" replied Mr. Titmouse, recklessly; and presently there stood before the friends two steaming tumblers of what they had ordered. Immediately after disposing of them, the two gentlemen, quite *up to the mark*, as they expressed it—each with a cigar in his mouth—sallied forth in quest of adventures. Titmouse felt that he had now become a gentleman; and his tastes and feelings prompted him to pursue, as early as possible, a gentlemanly line of conduct—particularly in his amusements. It was now past twelve; and the narrow old-fashioned streets of York, silent and deserted, formed a strong contrast to the streets of London at the same hour, and seemed scarcely to admit of much sport. But sport our friends were determined to have; and the night air aiding the effect of their miscellaneous potations, they soon became somewhat excited and violent. Yet it seemed difficult to get up a *row*—for no one was visible in any direction. Snap, however, by way of making a beginning, suddenly shouted "Fire!" at the top of his voice, and Titmouse joined him; when having heard half a dozen windows hastily thrown up by the dismayed inhabitants whom the alarming sounds had aroused from sleep, they scampered off at their top speed. In another part of the town they yelled, and whistled, and crowed

like cocks, and mewed like cats—the last two being accomplishments in which Titmouse was very eminent—and again took to their heels. Then they contrived to twist a few knockers off doors, pull bells, and break a few windows; and while exercising their skill in this last branch of the night's amusement, Titmouse, in the very act of aiming a stone which took effect in the middle of a bedroom window, was surprised by an old watchman waddling round the corner. He was a feeble asthmatic old man; so Snap knocked him down at once, and Titmouse blew out the candle in his lantern, which he then jumped upon and smashed to pieces, and knocked its prostrate owner's hat over his eyes. Snap, on some strange unaccountable impulse, wrested the rattle out of the poor creature's hand, and sprang it loudly. This brought several other old watchmen from different quarters; and aged numbers prevailing against youthful spirit—the two gentlemen, after a considerable scuffle, were overpowered and conveyed to the cage. Snap having muttered something about demanding to look at the *warrant*, and then about an action for malicious arrest and false imprisonment, sank on a form, and then down upon the floor, and fell fast asleep. Titmouse for a while showed a very resolute front, and swore a great many oaths, that he would fight the Boots at the inn for five shillings, if he dared show himself; but all of a sudden, his spirit collapsed, as it were, and he sank on the floor, and was grievously indisposed for some hours. About nine o'clock, the contents of the cage—viz. Snap, Titmouse, two farmers' boys who had been caught stealing cakes, an old beggar, and a young pickpocket—were conveyed before the Lord Mayor to answer for their several misdeeds. Snap was wofully crestfallen. He had sent for the landlord of the inn where they had put up, to come, on their behalf, to the Mansion-house; but he told Quirk of the message he had received. Mr. Quirk, finding that Gammon could not leave his room through severe indisposition—the very first time that Mr. Quirk had ever seen or heard of his being so overtaken—set off, in a very mortified and angry mood, in quest of his hopeful client and junior partner. They were in a truly dismal pickle. Titmouse pale as death, his clothes disordered, and a part of his shirt-collar torn off; Snap sat beside him with a sheepish air, seeming scarce able to keep his eyes open. At him Mr. Quirk looked with keen indignation, but spoke neither to him, nor on his behalf. For Titmouse, however, he expressed great commiseration, and entreated his Lordship to overlook the little misconduct of which he (Titmouse) in a moment of extreme excitement, had been guilty, on

condition of his making amends for the injury, both to person and property, of which he had been guilty. By this time his Lordship had become aware of the names and circumstances of the two delinquents; and after lecturing them very severely, he fined them five shillings a-piece for being drunk, and permitted them to be discharged, on their promising never to offend in the like way again, and paying three pounds by way of compensation to the watchman, and one or two persons whose knockers they were proved to have wrenched off, and windows to have broken. His Lordship had delayed the case of Messrs. Snap and Titmouse to the last; chiefly because, as soon as he had found out who Mr. Titmouse was, it occurred to him that he would make a sort of a little star, at the great ball to be given by the Lady Mayoress that evening. As soon, therefore, as the charge had been disposed of, his Lordship desired Mr. Titmouse to follow him, for a moment, to his private room. There having shut the door, he gently chided Mr. Titmouse for the indiscretion of which he had been guilty, and which was not to have been expected from a gentleman of his consequence in the county. His Lordship begged him to consider the station which he was now called to occupy; and in alluding to the signal event of the preceding day, warmly congratulated him upon it; and, trusted by the way, that Mr. Titmouse would, in the evening, favor the Lady Mayoress and himself with his company at the ball, where they would be very proud of the opportunity of introducing him to some of the gentry of the county, among whom his future lot in life was likely to be cast. Mr. Titmouse listened to all this as if he were in a dream. His brain (the little of it that he had) was yet in a most unsettled state; as also was his stomach. When he heard the words "Lady Mayoress," "ball," "Mansion-house," "gentry of the county," and so forth, a dim vision of splendor flashed before his eyes; and, with a desperate effort, he assured the Lord Mayor that he should be "very uncommon proud to accept the invitation, if he were well enough—but, just then, he was uncommon ill."

His Lordship pressed him to take a glass of water, to revive him and settle his stomach; but Mr. Titmouse declined it, and soon afterwards quitted the room; and leaning on the arm of Mr. Quirk, set off homeward—Snap walking beside him in silence, with a very quaint disconcerted air—not being taken the least notice of by Mr. Quirk. As they passed along, they encountered several of the barristers on their way to court, and others, who recognized Titmouse; and with a smile, evidently formed a pretty accurate

guess as to the manner in which the triumph of the preceding day had been celebrated. Mr. Quirk, finding that Mr. Gammon was far too much indisposed to think of quitting York, at all events till a late hour in the evening, and, indeed, that Titmouse was similarly situated—with a very bad grace consented to their stopping behind; and himself, with Snap—the former inside, the latter outside—having paid most of the witnesses, leaving the remainder, together with their own expenses at the inn, to be settled by Mr. Gammon—set off for town by the two o'clock coach. It was, indeed, high time for them to return; for the oppressed inmates of Newgate were getting wild on account of the protracted absence of their kind and confidential advisers. When they left, both Gammon and Titmouse were in bed. The former, however, began to revive, shortly after the wheels of the coach which conveyed away his respected copartners, and the sound of the guard's horn, had ceased to be heard; and about an hour afterwards he descended from his room, a great deal the better for the duties of the toilet, and a bottle of soda-water with a little brandy in it. A cup of strong tea, and a slice or two of dry toast, set him entirely to rights—and then Gammon—the calm, serene, astute Gammon—was "himself again." Had he said anything indiscreet, or in any way committed himself, over-night?—thought he, as he sat alone, with folded arms, trying to recollect what had taken place. He hoped not—but had no means of ascertaining. Then he entered upon a long and anxious consideration of the position of affairs, since the great event of the preceding evening. The only definite object which he had ever had in view, personally, in entering into the affair, was the obtaining that ascendancy over Titmouse, in the event of his becoming possessed of the magnificent fortune they were in quest of for him, which might enable him, in one way or another, to elevate his own position in society, and secure for himself permanent and solid advantages. In the progress of the affair, however, new views presented themselves to his mind.

Towards the close of the afternoon Titmouse recovered sufficiently to make his appearance down-stairs. Soon afterwards, Gammon proposed a walk, as the day was fine, and the brisk fresh country air would be efficacious in restoring Titmouse to his wonted health and spirits. His suggestion was adopted; and soon afterwards might have been seen, Gammon, supporting on his arm his languid and interesting client Mr. Titmouse, making their way towards the river; along whose quiet and pleasing banks they walked for nearly a couple of hours in close conversation; during which, Gammon,

by repeated and various efforts, succeeded in producing an impression on Titmouse's mind, that the good fortune which seemed now within his reach, had been secured for him by the enterprise, skill, and caution of him, Mr. Gammon, only; who would, moreover, continue to devote himself to Mr. Titmouse's interests, and protect him from the designs of those who would endeavor to take advantage of him. Mr. Gammon also dropped one or two vague hints that his—Titmouse's—continuance in the enjoyment of the Yatton property, would always depend upon the will and power of him, the aforesaid Mr. Gammon; in whose hands were most unsuspected, but potent weapons. And indeed it is not at all impossible that such may prove to be really the case.

What a difference is there between man and man, in temper, and disposition, and intellect! Compare together the two individuals now walking slowly, arm-in-arm, beside the sweet Ouse; and supposing one to have designs upon the other—disposed to ensnare and overreach him—what chance has the shorter gentleman? Compare even their countenances—ah me!—what a difference!

Gammon heard with uneasiness of Titmouse's intention to go to the Lady Mayoress's ball that evening; and, for many reasons, resolved that he should not. In vain, however, did Gammon try to persuade him that he was asked only to be turned into ridicule, for that almost everybody there would be in the interest of the Aubreys, and bitterly opposed to him, Mr. Titmouse; in spite of these and all other representations, Titmouse expressed his determination to go to the ball; on which Gammon, with a good-natured smile, exclaimed, "Well, well!"—and withdrew his opposition. Shortly after their return from their walk, they sat down to dinner; and Gammon, with a cheerful air, ordered a bottle of champagne, of which he drank about a glass and a half, and Titmouse the remainder. That put him into a humor to take more wine, without much pressing; and he swallowed, in rapid succession, a glass of ale, and seven or eight glasses of red-hot port and fiery sherry. By this time, he had forgotten all about the ball, and clamored for brandy and water. Gammon, however, saw that his end was answered. Poor Titmouse was soon reduced to a state of helplessness and insensibility; and within half an hour's time was assisted to his bedroom in a truly deplorable condition! Thus Gammon had the satisfaction of seeing his benevolent design accomplished, although it pained him to think of the temporary

inconvenience occasioned to the unconscious sufferer; who had, however, escaped the devices of those who wished publicly to expose his inexperience; and as for the means which Gammon had resorted to in order to effect his purpose,—why, he may be supposed to have had a remoter object in view, viz. early to disgust him with intemperance.

Alas! how disappointed were the mayor and mayoress, that their queer little lion did not make his appearance in the gay and brilliant scene! How many had they told that he was coming! Their three daughters were almost bursting with vexation and astonishment. They had been disposed to entertain a warmer feeling than that of mere curiosity towards the new owner of an estate worth ten thousand a-year—had drawn lots which of them was first to dance with him; and had told all their friends on which of them the lot had fallen. Then, again, many of the county people inquired from time to time of the chagrined little mayor and mayoress when "Mr. Ticklemouse," "Mr. Tipmouse," "Mr. Tipplebattle," or "whatever his name might be," was coming; full of real curiosity, much tinctured, however, with disgust and contempt, to see the stranger, who had suddenly acquired so commanding a station in the county—so strong a claim to their sympathy and respect! Then, again, there was a very great lion there, exhibiting for a short time only, who also had wished to see the *little* lion, and expressed keen regrets that it was not there according to appointment. The great lion was Mr. Quicksilver, who had stepped in for about half an hour, merely to show himself; and when he heard of the expected arrival of his little client, it occurred to Mr. Quicksilver, who could see several inches beyond by no means a short nose, that Mr. Titmouse had gained a verdict which would very soon make him *patron of the borough of Yatton*—that he probably would not think of sitting for the borough himself, and that a little public civility bestowed upon Mr. Titmouse, by the great Mr. Quicksilver, one of the counsel to whose splendid exertions he was indebted for his all, might be, as it were, *bread thrown upon the waters, to be found after many days*. It was true that Mr. Quicksilver, in a bitter stream of eloquent invective, had repeatedly denounced the system of close and "rotten" boroughs; but his heart, all the while, secretly rebelled; and he knew that a snug little borough was a thing on every account not to be sneezed at. He sat for one himself, though he had also contested several counties; but that was expensive and harassing work; and the seat which he at present occupied, he had paid far too high a price for. He had no objection to the existence of close boroughs

in the abstract; but only to so many of them being in the hands of the opposite party; and the legislature hath since recognized the distinction, and acted upon it. Here, however, was the case of a borough which was going to change hands, and pass from Tory to Whig; and could Mr. Quicksilver fail to watch it with interest? Was he, therefore, to neglect this opportunity of slipping in for Yatton—and the *straw moving*, too, in town—a general election looked for? So Mr. Quicksilver really regretted the absence of the little lion—his little friend and client, Mr. Titmouse.

Thus, and by such persons, and on such grounds, was lamented the absence of Mr. Titmouse from the ball of the Lady Mayoress of York; none, however, knowing the cause which kept him from so select and distinguished an assembly. Mr. Gammon, as soon as he had seen Mr. Titmouse properly attended to, and had expressed an anxious sympathy for him, set out for a walk—a quiet solitary walk round the ancient walls of York. If on a fine night you look up into the sky, and see it gleaming with innumerable stars, and then fix your eye intently, *without wavering*, upon some one star; however vivid and brilliant may be those in its immediate vicinity, they will disappear utterly, and that on which your eye is fixed will seem alone in its glory—sole star in the firmament. Something of this kind happened to Mr. Gammon when on the walls of York—now slowly, then rapidly walking, now standing, then sitting; all the objects which generally occupied his thoughts faded away, before one on which his mind's eye was then fixed with unwavering intensity—the image of Miss Aubrey. The golden fruit that was on the eve of dropping into the hands of the firm—ten thousand pounds—the indefinite and varied advantages to himself, personally, to which their recent successes might be turned, all vanished. What would he not undergo, what would he not sacrifice, to secure the favor of Miss Aubrey? Beautiful being—all innocence, elegance, refinement:—to possess her would elevate him in the scale of being; it would purify his feelings, it would ennoble his nature. What was too arduous or desperate to be undertaken in order to secure a prize so glorious as this? He fell into a long revery, till, roused by a chill gust of night air, he rose from his seat upon one of the niches in the walls;—how lonely, how solitary he felt! He walked on rapidly, at a pace that suited the heated and rapid current of thoughts that passed through his mind.

"No, I have not a chance—not a chance!" at length he thought to himself—"That girl will be prouder in her poverty, than ever she would have been in her wealth and splendor. Who am I?—a partner in the firm of Quirk, Gammon, and Snap; a firm in bad odor with the profession; looking for practice from polluted sources, with a host of miscreants for clients—faugh! faugh! I feel contaminated and degraded! My name even is against me; it is growing into a by-word!—We must push our advantage—they must be driven from Yatton—he, she—all of them; yes, all." He paused for a long time, and a sort of pang passed through his mind. "They are to make way for—Titmouse!—for Titmouse!! And he, too, loves her—*bah!*" He involuntarily uttered this sound fiercely, and aloud. "But stay—he really is in love with Miss Aubrey—that I know;—ah! I can turn it to good purpose; it will give me, by the way, a hold upon the little fool; I will make him believe that through my means he may obtain Miss Aubrey! Misery may make her accessible; I can easily bring myself into contact with them, in their distress; for there are the *mesne profits*—*the mesne profits!* Heavens! how glorious, but how dreadful an engine are *they!* They will help to batter down the high wall of pride that surrounds *them* and *her*; but it will require infinite care and tact in the use of such an engine! I will be all delicacy—gentleness—generosity; I will appear friendly to her, and to her brother; and, if needs must be, why he must be *crushed*. There is no help for it. He looks decidedly, by the way—a man of intellect. I wonder how he bears it—how they all bear it—how *she* bears it! *Beggared beauty*—there's something touching in the very sound! How little they think of the power that is at this moment in my hands!" Here a long interval elapsed, during which his thoughts had wandered towards more practical matters. "If they don't get a rule *nisi*, next term, we shall be in a position to ask them what course they intend to pursue: Gad, they may, if so disposed, hold out for—how very cold it is!"—he buttoned his coat—"and, what have I been thinking of? Really I have been dreaming; or am I as great a fool as Tittlebat?" Within a few minutes' time he had quitted the walls, and descended through one of the turreted gateways, into the town.

CHAPTER II.

When, about seven o'clock on the morning after the delivery of the verdict, which, if sustained, consigned the Aubreys to beggary, they met to partake of a slight and hasty breakfast before setting off for Yatton, the countenances of each bore the traces of great suffering, and also of the efforts made to conceal it. They saluted each other with fervent affection, each attempting a smile—but a smile, how wan and forced! "The moment has arrived, dear Agnes and Kate," said Mr. Aubrey, with a fond air but a firm voice, as his sister was preparing tea, in silence, fearful of looking at either her brother or sister-in-law; "the moment has arrived that is to try what stuff we are made of. If we have any strength, this is the time to show it!"

"I'm sure I thought of you both almost all night long!" replied Miss Aubrey, tremulously. "You have a lion's heart, dear Charles; and yet you are so gentle with us"——

"I should be a poor creature indeed, Kate, to give way just when I ought to play the man. Come, dear Kate, I will remind you of a noble passage from our glorious Shakespeare. It braces one's nerves to hear it!" Then, with a fine impressive delivery, and kindling with excitement as he went on, Aubrey began——

"In the reproof of chance
Lies the true proof of men. The sea being
smooth
How many shallow bauble boats dare sail
Upon her patient breast, making their way
With those of nobler bulk?
But let the ruffian Boreas once enrage
The gentle Thetis, and, anon, behold
The strong-ribb'd bark through liquid
mountains cut,
Bounding between the two moist elements

Like Perseus' horse; where's then the saucy
boat,
Whose weak untimber'd sides but even now
Co-rivall'd greatness? Either to harbor fled,
Or made a toast for Neptune!—Even so,
Doth valor's show, and valor's worth divide,
In storms of fortune."^[3]

'Twas kindly meant of Aubrey; he thought to divert the excited feelings of his wife and sister, and occupy their imagination with the vivid imagery and noble sentiment of the poet. While he repeated the above lines, his sister's eye had been fixed upon him with a radiant expression of resolution, her heart responding to what she heard. She could not, however, speak when he had ceased. For herself she cared not; but when she looked at her brother, and thought of him, his wife, his children, her fortitude yielded before the moving array, and she burst into tears.

"Come, Kate—my own sweet, good Kate!" said he, cheerfully, laying his hand upon hers, "we must keep constant guard against our *feelings*. They will be ever arraying before our eyes the past—the dear, delightful past—happy and beautiful, in mournful contrast with the present, and stirring up, every moment, a thousand secret and tender associations, calculated to shake our constancy. Whenever our eyes *do* turn to the past, let it be with humble gratitude to God for having allowed us all, in this changing world, so long an interval of happiness; such, indeed, as falls to the lot of few. *What! shall we receive good at the hand of God, and shall we not receive evil?*"

"My own Charles!" exclaimed Mrs. Aubrey, rising and throwing her arms round her husband, whose countenance was calm and serene, as was the tone of the sentiments he expressed solemn and elevated. Miss Aubrey was overcome with her stronger feelings, and buried her face in her handkerchief. Shortly afterwards the carriage drew up, and Dr. Tatham also made his appearance on horseback.

"Good-morning! good-morning, my friends," cried he, cheerfully, as he entered, holding forth both his hands; "you can't think how fresh and pleasant the air is! The country for me, at all times of the year! I hate towns! Did you sleep well? I slept like a top all night long;—no, I didn't either, by

the way. Come, come, ladies! On with your bonnets and shawls!" Thus rattled on worthy little Dr. Tatham, in order to prevent anything being said which might disturb those whom he came to see, or cause his own highly-charged feelings to give way. The sight of Mrs. and Miss Aubrey, however, who greeted him in silence as they hastily drew on their bonnets and shawls, overcame his ill-sustained gayety; and before he could bustle back, as he presently did, to the street door, his eyes were obstructed with tears, and he wrung the hand of Mr. Aubrey, who stood beside him, with convulsive energy. They soon set off, and at a rapid pace, Dr. Tatham riding along beside the carriage. Yatton was about twelve miles off. For the first few miles they preserved a tolerable show of cheerfulness; but as they perceived themselves nearing Yatton, it became plainly more and more of an effort for any of them to speak. Dr. Tatham, also, talked to them seldomer through the windows. At one time he dropped considerably behind; at another, he rode as much ahead.

"Oh, Charles, don't you dread to see Yatton?" said Miss Aubrey, suddenly, as they turned a familiar corner of the road. Neither Mr. nor Mrs. Aubrey answered her.

"When you come to the village," said Mr. Aubrey presently, to the postilion, "drive through it, right up to the Hall, as quickly as you can." He was obeyed. As they passed rapidly along with their windows up, none of the wretched party seemed disposed to look through, but leaned back, in silence, in their seats.

"God bless you! God bless you! I shall call in the evening," exclaimed Dr. Tatham; as, having reached the vicarage, he hastily waved his hand, and turned off. Soon they had passed the park gates; when had they entered it before with such heavy hearts—with eyes so dreading to encounter every familiar object that met them? Alas! the spacious park was no longer theirs; not a tree, not a shrub, not a flower, not an inch of ground; the trees all putting forth their fresh green leaves—nothing was theirs; the fine old turreted gateway, too—an object always, hitherto, of peculiar pride and attachment, their hearts seemed to tremble as they rattled under it!

"Courage, my sweet loves! Courage! courage!" exclaimed Mr. Aubrey, grasping each of their hands, and then they burst into tears. Mr. Aubrey felt his own fortitude grievously shaken as he entered the old Hall, no longer his

home, and reflected, moreover—bitterest thought of all—that he had been declared by the law to have been hitherto the wrongful occupant of it; that he must forthwith proceed to "set his house in order," and prepare for a dreadful reckoning with him whom the law had declared to be the true owner of Yatton.

The formal result of the trial at York, was, as has been already intimated, to declare Mr. Titmouse entitled to recover possession of only that insignificant portion of the estates which were occupied by Jacob Jolter; and that, too, only in the event of the first four days of the ensuing term elapsing, without any successful attempt being made to impeach, before the court, the propriety of the verdict of the jury. It is a principle of our English law, that the verdict of a jury is, in general, irreversible and conclusive; but, inasmuch as that verdict may have been improperly obtained—as, for instance, either through the misdirection of the judge, or his erroneous admission or rejection of evidence; or may have no force in point of law by reason of the pleadings of the party for whom it has been given, being insufficient to warrant the court to award its final judgment upon, and in conformity with, such verdict, or by reason of the discovery of fresh evidence subsequently to the trial: therefore the law hath given the party who failed at the trial, till the end of the first four days of the term next ensuing, to show the court why the verdict obtained by his opponent ought to go for nothing, and matters remain as they were before the trial, or a new trial be had. So anxious is our law to afford the utmost scope and opportunity for ascertaining what ought to be its decision, which, when obtained, is, as hath been said, solemnly and permanently conclusive upon the subject; such the effectual and practical corrective of any error or miscarriage in the working of that noble engine—trial by jury. Thus, then, it appears, that the hands of Mr. Titmouse and his advisers were at all events stayed till the first four days of Easter term should have elapsed. During the interval thus afforded to the advisers of Mr. Aubrey, his case, as it appeared upon the notes of his counsel on their briefs, with the indirect assistance and corroboration derived from the short-hand writers' notes, underwent repeated and most anxious examination in all its parts and bearings, by all his legal advisers. It need hardly be said, that every point in the case favorable to their client had been distinctly and fully raised by the Attorney-General, assisted by his very able juniors, Mr. Sterling and Mr. Crystal; and so was it with the counsel of Mr. Titmouse, as, indeed, the result showed.

On subsequent examination, none of them could discover any false step, or any advantage which had been overlooked, or taken inefficiently. Independently of various astute objections taken by the Attorney-General to the reception of several important portions of the plaintiff's evidence, the leading points relied on in favor of Mr. Aubrey were—the impropriety of Lord Widdrington's rejection of the deed of confirmation on account of the erasure in it; the effect of that deed, assuming the erasure not to have warranted its rejection; and several questions arising out of the doctrine of adverse possession, by which alone, it had been contended at the trial, that the claim of the descendants of Stephen Dreddlington had been peremptorily and finally barred. Two very long consultations had been held at the Attorney-General's chambers, attended by Mr. Sterling, Mr. Crystal, Mr. Mansfield, the three partners in the firm of Runnington and Company, Mr. Parkinson, and Mr. Aubrey—who had come up to town specially for the purpose. Greatly to the surprise of all of them, he stated most distinctly and emphatically, that he insisted on no ground of objection being taken against his opponent, except such as was strictly just, equitable, honorable, and conscientious. Rather than defeat him on mere technicalities—rather than avail himself of mere positive rules of law, while the RIGHT, as between the consciences of man and man, was substantially in favor of his opponent—Mr. Aubrey declared, however absurd or Quixotic he might be thought, that he would—if he had them—lose fifty Yattons. *Fiat justitia, ruat cælum*. "You mean to say, Aubrey," interrupted the Attorney-General, mildly, after listening for some time to his friend and client with evident interest, and admiration of his pure and high-minded character—"that it would be unconscientious of you to avail yourself of a fixed and beneficial rule of law, established upon considerations of general equity and utility—such, for instance, as that of adverse possession in order to retain possession, while"——

"Pray, Mr. Attorney-General, if I had lent you five hundred pounds seven or eight years ago, would you set up the *statute of limitations* against me when I asked for re-payment?"

"Excuse me, Aubrey," replied the Attorney-General, with a faint flush upon his handsome and dignified features; "but how idle all this is! One would imagine that we were sitting in a school of casuistry! What are we met for, in the name of common sense? For what, but to prevent the rightful owner

of property from being deprived of it by a trumpery accidental erasure in one of his title-deeds, which time has deprived him of the means of accounting for?" He then, in a very kind way, but with a dash of peremptoriness, requested that the case might be left in their hands, and that they might be given credit for resorting to nothing that was inconsistent with the nicest and most fastidious sense of honor. This observation put an end to so unprecedented an interference; but if Mr. Aubrey supposed that it had had any effect upon the Attorney-General, he was mistaken; for of course that learned and eminent person secretly resolved to avail himself of every means that he could think of, for overturning the verdict, and securing the Aubreys in the possession of Yatton. He at the same time earnestly endeavored to moderate the expectations of his client, declaring that he was by no means sanguine as to the issue; that Lord Widdrington's rulings at *Nisi Prius* were very formidable things—in fact, rarely assailable; and then, again, the senior puisne judge of the court—Mr. Justice Grayley—had been consulted by Lord Widdrington at the trial, and concurred with him in his principal ruling, now sought to be moved against. At the close of the second consultation, on the night of the first day in Easter term, (the Attorney-General intending to move on the ensuing morning,) after having finally gone over the case in all its bearings, and agreed upon the exact grounds of moving—the Attorney-General called back Mr. Runnington for a moment, as he was walking away with Mr. Aubrey, and whispered to him, that it would be very proper to assume at once that the motion failed; and consider the best mode of negotiating concerning the surrender of the bulk of the property, and the payment of the mesne profits.

"Oh! Mr. Aubrey has quite made up his mind to the worst, Mr. Attorney-General."

"Ah, well!" replied the Attorney-General, with a sigh; and about five minutes after Mr. Runnington's departure, the Attorney-General stepped into his carriage, which had been standing for the last hour opposite his chambers. He drove down to the House of Commons, where he almost immediately after delivered a long and luminous speech on one of the most important and intricate questions that had been discussed during the session!

At length arrived the morning of the second day in term. Lord Widdrington was occupied for about a couple of hours in "going through the bar"—*i. e.*

calling on counsel to "move" in their order matters of general business, before taking motions for new trials. About a quarter of an hour before his Lordship had completed the round of the bar, the Attorney-General came into court, and arranged all his books and papers before him; Mr. Subtle sitting next to him, intending to take a note of the grounds on which he moved.

"Does any other gentleman move?" inquired Lord Widdrington, looking over the court. He received no answer.

"Mr. Attorney-General," said he; and the Attorney-General rose——

"If your Lordship pleases," he commenced, slowly rising and bowing—"in a case of DOE on the Demise of TITMOUSE against JOLTER, tried before your Lordship at the last assizes for the county of York, I have humbly to move your Lordship for *a rule to show cause why a nonsuit should not be entered, or why the verdict entered for the plaintiff should not be set aside, and a New Trial had.*" He proceeded to state the facts of the case with great clearness and brevity. In like manner—with perfect simplicity and precision—he stated the various points arising upon the evidence, and the general grounds of law which have been already specified; but I am so grateful to the reader for his patience under the infliction of so much legal detail as was contained in the last chapter of this history, that I shall now content myself with the above general statement of what took place before the court. As soon as he had sat down, the judges consulted together for a minute or two; and then——

"You may take a rule to show cause, Mr. Attorney-General," said Lord Widdrington.

"On all the grounds I have mentioned, my Lord?"

"Yes—on all of them. They are very well worth considering—Mr. Solicitor-General, do you move?"

Up rose, thereupon, the Solicitor-General.

"I shall discharge your rule," whispered Mr. Subtle to the Attorney-General.

"I'm not excessively sanguine,"—whispered the Attorney-General, leaning his head close to Mr. Subtle, and with his hand before his mouth. Then his clerk removed the battery of books which stood before him, together with

his brief; and taking another out of his turgid red bag, the Attorney-General was soon deep in the details of an important shipping case, in which he was going to move when next it came to his turn.

Thus the court had granted a "RULE NISI," as it is called, (*i. e.* it commanded a particular thing to be done—"unless" sufficient "cause" could be thereafter shown to the court why it should not be done,) for either entering a nonsuit, or having a new trial. Now, had this rule been obtained in the present day, nearly two years must have elapsed, owing to the immense and perhaps unavoidable arrear of business, before the other side could have been heard in answer to it. Now, had such been the state of business at the time when the Rule in *Doe d. Titmouse v. Jolter* was moved for, see the practical effect of it: had Mr. Aubrey, instead of the high-minded and conscientious man he undoubtedly was, been a rogue, he might have had the opportunity of getting in nearly twenty thousand pounds, and setting off with it to spend upon the Continent, as soon as he found that the court had decided against him: or, if the tenants should have been served with notice not to pay their rents to any one but Mr. Titmouse—at all events not to Mr. Aubrey—how were Mr. Aubrey and his family to have subsisted during this interval?—and with the possibility that, at the end of some two years, he might be declared to be the true owner of Yatton, and consequently all the while entitled to those rents, &c., the non-payment of which might have entailed upon him the most serious embarrassments! During the same interval, poor Mr. Titmouse, heart-sick with hope deferred, might have taken to liquor, as a solace under his misery, and drunk himself to death before the rule was discharged—or brought his valuable life to a more sudden and abrupt conclusion: which affecting event would have relieved the court from deciding several troublesome points of law, and kept the Aubreys in possession of the Yatton estates. Thus much for some of the incidental effects of the law's delay! At the time, however, concerning which I am writing, it was otherwise.^[4] Shall I be believed when I inform the reader that within ten or twelve days after the rule *nisi*, in the present case, had been moved, "cause was shown" against it, by Mr. Subtle and Mr. Lynx, and very admirably shown against it too. (Mr. Quicksilver, fortunately for the interests of Mr. Titmouse, was absent, attending a great meeting in the City, called by himself to establish a society for the Moral and Intellectual Regeneration of Mankind on the basis of Pure Reason.) The Attorney-General exerted himself to the utmost in support of his rule. He

felt that the court—though scarcely at all interfering during his address—was against him; yet he delivered, perhaps, one of the most masterly arguments that had ever been heard in the place where he was speaking. Mr. Sterling and Mr. Crystal, wisely avoiding the ground so admirably occupied by the Attorney-General, contented themselves with strengthening those positions which appeared to them less fortified by authorities than the others; and then the court said they would take a day or two's time to consider; "less on account," said Lord Widdrington, "of the difficulty of the case, than the magnitude of the interests which would probably be affected by their decision."

"You have them dead with you, Subtle," whispered the Attorney-General, a slight expression of chagrin stealing over his features, as he heard the observation of Lord Widdrington.

"I never doubted it," replied Mr. Subtle, with a confident air. Every day afterwards, from the sitting to the rising of the court, did the anxious Aubrey attend in the King's Bench, to hear the judgment of the court delivered. At length arrived the last day of the term. Soon after the sitting of the court, Lord Widdrington pronounced judgment in two or three cases; but not seeing the Attorney-General (who was engaged before the House of Lords) in his place, delayed giving judgment in the case of "*Doe v. Jolter*." About two o'clock he made his appearance; and shortly afterwards, Lord Widdrington, after disposing of the matter then before the court, said—"There was a case of Doe on the demise of Titmouse against Jolter, in which, early in the term, a rule was obtained by the Attorney-General, calling upon the lessor of the plaintiff to show cause why"—and he proceeded to state the rule, and then to deliver the written unanimous judgment of the court. A clear statement of the facts out of which the questions submitted to the court had arisen, and of those questions themselves, was listened to by Mr. Aubrey in breathless suspense, before he could obtain the faintest intimation of the judgment which the court was about to pronounce. Lord Widdrington went on to dispose, one by one, with painful deliberation and precision, of the several points presented for the decision of the court. One or two were decided in favor of the defendant; but his Lordship added, that it had become unnecessary to do so, in consequence of the answers given by the witnesses to subsequent questions at the trial, and which disposed of the doubts arising on the former ones.

The documentary evidence, subsequently put in, got rid of another difficulty in the early part of the plaintiff's case, and rendered immaterial a question put by the plaintiff's counsel, and strenuously objected to on the part of the defendant, and which the court was of opinion, as had been Lord Widdrington at the trial, ought not to have been allowed. Then, as to the ADVERSE POSSESSION, on which very great stress had been laid by the defendant's counsel, the court was of opinion that none existed; since there had been a *disability*—indeed, a series of disabilities,^[5]—through infancy, coverture, and absence beyond seas, of the various parties through whom the lessor of the plaintiff claimed. Finally, as to the question concerning the ERASURE, the court was of opinion, that the deed in which it occurred had been properly rejected; inasmuch as the erasure was in a clearly material part of the deed, and there were no recitals in the deed by which it could be helped. That it was incumbent upon those proffering the deed in evidence, to account for its altered appearance, although the deed was more than thirty years old, and rebut the presumption of fraud arising therefrom. That the erasure was a clear badge of fraud; and to hold otherwise, would be to open a wide door to frauds of the most extensive and serious description. That there had been no evidence offered to show that the deed had ever been a valid deed; the very first step failed; and, in short, in its then state, it was in contemplation of law *no deed at all*; and, consequently, had been properly rejected. "For all these reasons, therefore," concluded Lord Widdrington, "we are clearly of opinion, that the verdict ought not to be disturbed, and the rule will consequently be DISCHARGED."^[6] As these last words were pronounced, a mist seemed for a moment to intervene between Mr. Aubrey and everything around him; for his thoughts had reverted to Yatton, and the precious objects of his affection who were there, in sickening suspense, awaiting the event which had that moment taken place. The words yet sounding in his excited ears, seemed like the sentence of expulsion from Paradise passed upon our dismayed and heart-broken first parents. Yes, in that solemn region of matter-of-fact and common-place—that *dead sea*—generally speaking—as far as feeling, sentiment, incident, or excitement is concerned, the Court of King's Bench—there sat a man of exquisite sensibility—pure and high-minded—whose feelings were for a while paralyzed by the words which had fallen from the judgment-seat, uttered with a cold, business-like, indifferent air—oh! how horridly out of concert with the anxious and excited tone of him whom, with his lovely

family, they consigned, in fact, to destitution! After remaining for about a quarter of an hour, during which brief interval he resumed the control over his feelings which he had so long and successfully struggled to maintain, he rose, and quitted the court. It was a heavy lowering afternoon—one which seemed to harmonize with the gloomy and desolate mood in which he slowly walked homeward. He encountered many of his friends, on foot, on horseback, and in carriages, on their way down to the Houses of Parliament; the very sight of them, in the morbid state of his feelings, gave him a pang that was indescribable. With *them* matters were the same as they had ever been—as they had till then been with him—and as probably they would be with them to the end of their career; but *he* had been forced, suddenly and forever, to quit the scene of high excitement and proud aspirations!—He heaved many deep sighs, as he exchanged nod after nod with those he met, as he approached Charing Cross. There he encountered Lord C——, the brilliant Foreign Secretary, arm-in-arm with two eloquent and leading members of the Government—all of them evidently in high spirits, on their way down to the House.

"Ah!—Aubrey!—In town?—An age since we met!"—exclaimed they, in a breath, shaking him cordially by the hand.—"You know, of course, that the budget comes on to-night—eh?"——

"I was not aware of it,"—said Mr. Aubrey.

"I assure you," interrupted Lord C——, "our friends will do us great service—very essential service, by being early in their attendance!—You know that Mr. Quicksilver intends to come out against us to-night in great force?—My dear Aubrey, you are going the wrong way!"

"I am not going down to the House to-night!"

"Not going down?—Eh?—My dear Aubrey, you astonish me!—Have you paired off? You can't think how I lament your absence!"

"I am returning to Yorkshire almost immediately."

"But surely you can come for an hour, or so, to-night—eh? Come! The division won't come on till late. Don't let a trifle stand in the way!"

"I would *not* let a trifle stand in the way," replied Mr. Aubrey, in a tone and manner which at once arrested the attention of those whom he was addressing, and suddenly reminded them of what, in their political

eagerness, they had for a moment lost sight of—namely, the perilous position of his private affairs.

"My dear Aubrey, I beg a thousand pardons for intruding such matters upon you," said Lord C——, with sudden earnestness; "but shall we have an opportunity of meeting before you leave town?"

"I fear—*not*;—I set off by the mail to-morrow evening—and have in the mean time much to attend to," said Mr. Aubrey, unable to repress a sigh—and they parted. But for a determination not to yield to a morbid sensibility, he would have got into a hackney-coach, and so have avoided the "troops of friends," the hosts of "old familiar faces," all wending down to the scene in which he had begun so eminently to distinguish himself—but from which he seemed now to be forever excluded. He, therefore, pursued his way on foot. One of those on whom his troubled eye lit, was a well-known figure on horseback—the great Duke of ——, on his way down to the House of Lords, going very slowly, his head inclined on one side, his iron-cast features overspread with an expression of stern thoughtfulness. He did not observe Mr. Aubrey—in fact, he seemed too much absorbed with his own thoughts to observe or recognize anybody; yet he now and then mechanically raised his finger to his hat, in acknowledgment of the obeisances of those who saluted him as he passed. Poor Aubrey sighed; and felt as if circumstances had placed him at an immeasurable distance from the man whom, so lately, he had entertained familiarly at dinner; that there seemed suddenly to exist, as it were, a great and impassable gulf between them.

On reaching his house in Grosvenor Street, his heart fluttered while he knocked and rang; and he seemed to himself to shrink from the accustomed obsequious voice and manner of the powdered menial who admitted him. Having ordered a slight dinner, he repaired to his library. The only letter which had arrived since he had left in the morning, bore the Grilston postmark, and was in the handwriting of Mrs. Aubrey. He opened it with trembling eagerness. It was crossed—the dear familiar handwriting!—from beginning to end, and full of heart-subduing tenderness. Then it had a little enclosure, with a strange, straggling superscription, "To my Papa;" and, on opening it, he read, in similar characters—

"My dear Papa, I love you very very much. Do come home. Mamma sends her love. Your dutiful son,

"CHARLES AUBREY.

"P. S.—Agnes sends her love; she cannot write because she is so little. Please to come home directly.

"CHARLES A., YATTON."

Aubrey saw how it was—that Mrs. Aubrey had either affected to write in her little son's name, or had actually guided his pen. On the outside she had written in pencil—

"Charles says, he hopes that you will answer his letter directly."

Aubrey's lip quivered, and his eyes filled with tears. Putting the letters into his bosom, he rose and walked to and fro, with feelings which cannot be described. The evening was very gloomy. Rain poured down incessantly. He was the only person in that spacious and elegant house, except the servants left in charge of it; and dreary and desolate enough it appeared. He was but its nominal owner—their nominal master! In order to save the post, he sat down to write home—(*home!* his heart sank within him at the thought)—and informed Mrs. Aubrey and his sister of the event for which his previous letters had prepared them; adding that he should set off for Yatton by the mail of the ensuing night, and that he was perfectly well. He also wrote a line or two, in large printed characters, by way of answer to his little correspondent, his son, towards whom—ah!—how his heart yearned! and having despatched his packet, probably the last he should ever frank, he partook of a hasty and slight dinner, and then resigned himself to deep meditation upon his critical circumstances. He was perfectly aware of his precise position, in point of law, namely, that he was safe in the possession of the Yatton property, (with the exception of the trifle which was occupied by Jolter, and had been the object of the action just determined,) till another action should have been brought, directly seeking its recovery; and that by forcing his opponent to bring such action, he might put him to considerable risk of retaining his verdict, and thereby greatly harass him, and ward off, indefinitely, the evil day from himself. By these means he might secure time, possibly also, favorable terms for the payment of the dreadful arrear

of mesne profits, in which he stood indebted to his successor. To this effect he had received several intimations from Mr. Runnington, as upright and conscientious an adviser as was to be found in the profession. But Mr. Aubrey had decided upon his course; he had taken his ground, and intended to maintain it. However sudden and unlooked-for had been the claim set up against him, it had been deliberately and solemnly confirmed by the law of the land; and he had no idea but of yielding to it a prompt and hearty obedience. He resolved, therefore, to waste no time—to fritter away no energy in feeble dalliance with trouble; but to face her boldly. He determined to instruct Mr. Runnington, on the morrow, to write to his opponent's solicitors, informing them that within three weeks' time, the estates at Yatton would be delivered up to their client, Mr. Titmouse, and also to arrange for the quickest possible disposal of his house in Grosvenor Street, and his wines and his furniture, both there and at Yatton. He resolved, moreover, to take forthwith the necessary steps for vacating his seat in Parliament, by applying for the Stewardship of the Chiltern Hundreds; and having determined on these arrangements, consequent upon the adverse decision of the Court of King's Bench of that day, he experienced the momentary relief and satisfaction of the seaman who has completely prepared his vessel for the approaching storm. He felt, indeed, relieved, for a while, from a dreadful pressure.

"And what, now, have I really to complain of?" said he to himself; "why murmur presumptuously and vainly against the dispensations of Providence? I thank God that I am still able to recognize His hand in what has befallen me, and to believe that *He hath done all things well*; that prosperity and adversity are equally, from Him, means of accomplishing *His* all-wise purposes! Is it for *me*, poor insect! to question the goodness, the wisdom, or the justice of my Maker? I thank God for the firm belief I have, that *He governs the world in righteousness*, and that He has declared that He will protect and bless those who sincerely endeavor to discover, and conform to His will concerning them. He it was who placed me in my late condition of prosperity and eminence; why should I fret, when He sees fit gently to remove me from it, and place me in a different sphere of exertion and suffering? If the dark heathen could spend a life in endeavoring to steel his heart against the sense of suffering, and to look with cheerless indifference upon the vicissitudes of life, shall I, a Christian, shrink with impatience and terror from the first glimpse of adversity? Even at the worst,

how favored is my situation in comparison of that of millions of my fellow-creatures? Shall I—may I not—lessen my own sufferings, by the contemplation of those which the Almighty has thought fit to inflict upon my brethren? What if I, and those whom I love, were the subjects of direful disease—of vice—of dishonor? What if I were the object of the just and universal contempt of mankind; given up to a reprobate mind; miserable here, and without hope hereafter? Here have I health, a loving family—have had the inestimable advantages of education, and even now, in the imminent approach of danger, am enabled to preserve, in some measure, a composure of feeling, a resolution—which will support me, and those who are dearer to me than life." Here his heart beat quickly, and he walked rapidly to and fro. "I am confident that Providence will care for them! As for me, even in sight of the more serious and startling peril which menaces me—what is it to a Christian but a trial of his constancy? *There hath no temptation taken you, say the Scriptures written for our instruction, but such as is common to man;*^[7] *but God is faithful, who will not suffer you to be tempted above what ye are able, but will with the temptation, also make a way to escape, that ye may be able to bear it.*" This consolatory passage led Aubrey, in a calm and exalted mood of mind, to meditate upon that picture of submission to manifold misfortune, simple and sublime beyond all comparison or approach, drawn by the pencil of one inspired with wisdom from on high—calculated at once to solemnize, to strengthen, and elevate the heart and character of man; and which is to be found in the first and second chapters of the *Book of Job*. Oh reader! who, brilliant as may be at this moment your position in life, may have been heretofore, or may be hereafter, placed in circumstances of dreadful suffering and peril, suffer him whose humble labors now for a moment occupy your attention, reverently to refer you again and yet again, to that memorable passage of holy writ! With danger surrounding him, with utter ruin staring him in the face, Mr. Aubrey read this passage of Scripture; his shaken spirit gathered from it calmness and consolation; and after a while, retiring early to bed, he enjoyed a night of tranquil repose.

"These wretches are determined not to let the grass grow underneath their feet, Mr. Aubrey," said Mr. Runnington, who, the next morning, made his appearance at breakfast, pursuant to appointment; "within two hours' time of the court's delivering judgment, yesterday afternoon, I received the following communication." He handed to Mr. Aubrey this letter:—

"*Saffron Hill, 25th April 18—.*

"GENTLEMEN:

"*Doe d. Titmouse v. Jolter.*

"The rule for a new trial herein having been this day discharged, and the unanimous judgment of the court delivered in favor of the claims to the Yatton estate, of the lessor of the plaintiff, in the present action, we shall feel obliged by an intimation from you, at your earliest possible convenience, of the course which your client may think fit to adopt. You are, of course, aware that we are now in a situation to attack, successfully, the entire property at Yatton, at present in the possession of Mr. Aubrey; and that, had we thought fit, we might have sought and recovered it all in the action which has just been decided in favor of our client. It is now in our power greatly to *strengthen* the evidence adduced at the late trial: and we beg to be informed whether it is your client's intention to put Mr. Titmouse to the enormous expense, and delay, of a second trial, the issue of which cannot be doubtful; or, with the promptitude and candor which are to be expected from a gentleman of the station and character of your client, at once to yield to our client the substantial fruits of his verdict.

"If his reasonable wishes and expectations in this matter should be disregarded and frustrated, we would merely intimate that it will be for your client most seriously to weigh the consequences; to see whether such a line of conduct may not greatly prejudice his interests, and place him in a far worse position than, perhaps, he would otherwise have occupied. As we understand your client to be in town, we trust you will forgive us for requesting you immediately to communicate with him; and that at your earliest convenience you will enable us to announce the result to our client.—We are, gentlemen, your obedient servants,

"QUIRK, GAMMON, & SNAP.

"MESSRS. RUNNINGTON & CO."

"Well—I own I see nothing to find fault with," said Mr. Aubrey, calmly, but with a suppressed sigh, as soon as he had read the letter.

"Rather quick work, too—is it not, Mr. Aubrey?—within an hour or two after judgment pronounced in their favor:—but, to be sure, it's very excusable, when you consider the line of business and the sort of clients that Messrs. Quirk, Gammon, and Snap are accustomed to."

"I have made up my mind as to the course I shall adopt," said Mr. Aubrey.

"Oh, of course, that is quite clear!" said Mr. Runnington, pouring out his coffee—"we shall stand another shot, and see if they've ammunition enough left for the purpose: and we'll tender a bill of exceptions, and carry the case into the Exchequer Chamber, and thence into the House of Lords—ah! we'll *work* them, I warrant them!"—and he rubbed his hands, with a little excitement in his manner.

"Why, Mr. Runnington," answered Mr. Aubrey, gravely, "would it not be wanton—most unconscientious—in me to put them to the expense and anxiety of a second trial, when the whole case, on both sides, has been fairly brought before both the court and the jury?"

"Good heavens, Mr. Aubrey!" exclaimed Mr. Runnington, with visible amazement—"who ever heard of an estate of even one or two hundred a-year being surrendered after one assault?"

"If it were ten thousand times ten thousand a-year, I would submit—after such a trial as ours!" said Mr. Aubrey, calmly.

"How do we know what fraud and perjury may have been resorted to in order to secure the late verdict, and which we may have the means of exploding against the next trial? Ah, Mr. Aubrey, you don't know the character of Messrs. Quirk, Gammon, and Snap in the profession; they learn a fresh trick from every scoundrel, swindler, and thief, whose case they undertake."

"I thought that fraud and perjury were never to be presumed, Mr. Runnington! Besides, had we not the advantage of most eminent, acute, and experienced counsel? How could it escape *them*?"

"I would only venture to remind you," said Mr. Runnington, firmly but respectfully, "of the observations of the Attorney-General, at our last consultation."

"I thought I was unanswered, Mr. Runnington, though I did not feel at liberty to press the matter," replied Mr. Aubrey, with a melancholy smile.

"Excuse me, but we *must* take the chance of a second trial," said Mr. Runnington.

"I have decided upon the course I shall adopt," replied Mr. Aubrey, calmly and determinedly—"I beg you, Mr. Runnington, to write this day to the gentlemen upon the other side, and inform them that within three weeks I shall be prepared to deliver up possession of Yatton."

"My dear sir!—Do I hear aright?" exclaimed Mr. Runnington, with some agitation. "Deliver up possession of the estates? and within three weeks? My ears are deceiving me!"

"That was what I said—or meant to say—Mr. Runnington," replied Mr. Aubrey, rather peremptorily.

"I give you my honor, Mr. Aubrey, that in the whole course of my practice I never heard of such a procedure!" said Mr. Runnington, with a half-desperate air.

"And I shall further request you to state that the last quarter's rents are in my banker's hands, and will be paid over to the order of Mr. Titmouse"——

"Good gracious, Mr. Aubrey!" interrupted Mr. Runnington, with an air of deep concern.

"I have well considered the position in which I am placed," said Mr. Aubrey, with a serious air.

"It is very painful for me to mention the subject, Mr. Aubrey; but have you adverted to the *mesne* profits?"

"I have. It is, indeed, a very fearful matter: and I frankly own that I see no way open before me, but to trust to the forbearance of"——

"Forbearance!—The *forbearance* of Messrs. Quirk, Gammon, and Snap!! or of any one counselled by them!"

"Why, what can I do? I might as well undertake to pay off the national debt as the sum of sixty thousand pounds!"

"That's just the very thing," replied Mr. Runnington, with a dismayed air.

"Whatever honorable negotiation can effect, I leave it in your hands to do. With reference to the time which may be allowed for liquidating this frightful demand"—Mr. Aubrey changed color, but spoke with firmness—"I must own this to be a matter which has occasioned me inexpressible anxiety, Mr. Runnington. I really do not see what length of time will enable me to discharge so vast a sum of money, or even to make any sensible impression upon it. I am quite at the mercy of my enemies!" Here both were silent for some time.

"At one time, I fancied that in a case so grievously hard as yours," said Mr. Runnington, with a sigh—"you might obtain relief from a Court of Equity from the payment of the mesne profits, on the ground of your total ignorance of the title of Titmouse; and I laid a case before the most skilful lawyer in the Court of Chancery—but alas! the answer was in the negative—that the court had no power whatever to deprive a man of what he had proved to be his strict legal rights"——

"Nor can I, Mr. Runnington, see on what principle such an interference could be supported!^[8] Besides—can I *entirely* acquit myself of negligence? Have I not been culpably forgetful of the suggestions which you made to me at the time of my marriage settlement? No, no! I feel myself bound hand and foot"——

At this moment a thundering appeal to the knocker of the door announced an arrival; and presently the servant entered and stated that Lord C—— had called, and was waiting in the library. After repeating two or three directions to Mr. Runnington, Mr. Aubrey left him; and presently entered the library, where Lord C—— was waiting to receive him. Lord C—— was a middle-aged man, tall, of elegant person, with a very handsome and intellectual countenance, and most winning address; he was a thorough politician, and possessed of eloquence, immense practical knowledge, and a commanding intellect. He was made for eminent office; and got through the most complicated and harassing business with ease and celerity. He had for several years entertained a sincere regard for Mr. Aubrey, whom he considered to be a very rising man in the House of Commons, and to have rendered him, on several occasions, special service in debate. He had been much shocked to hear of the sudden misfortune which had befallen Mr. Aubrey; and had now come to him with a sincere desire to be of service; and also, not without a faint hope of prevailing upon him to come down that

evening, and support them in a very close division. He was as kind-hearted a man as—a keen politician *could* be.

"I am really shocked beyond expression to hear all this," said he, after Aubrey had, at his earnest request, explained the position in which he was placed; the dreadful loss he had sustained, the still more dreadful liabilities to which he was subject. "Really," exclaimed his Lordship, "who can be safe? It might have happened to me—to any of us! Forgive me, my dear Aubrey," he continued earnestly, "if I venture to express a hope that at all events Mrs. Aubrey and your family are provided for, and your very lovely sister; they, I trust, are out of the reach of inconvenience?" Mr. Aubrey's lips quivered, and he remained silent.

"Allow me a friend's freedom, Aubrey, and let me repeat my question; are your family provided for?"

"I will be frank, Lord C——," replied Mr. Aubrey, with a strong effort to preserve his composure. "The little provision which had been made for them, is lost, with Yatton; but for them—my wife, my children, my sister—I could have submitted to this misfortune with unshrinking fortitude; but they are, alas, involved in my ruin! My wife had nothing when I married her; and of course the settlements I made on her were out of the Yatton property; as also was the little income left my sister by my father. With Yatton all is gone—that is the plain fact; and there is no disguising it."

Lord C—— seemed much moved.

"The Duke of ——, I, and two or three other of your friends, were talking about these matters last night; we wish we could serve you. What is the sort of foreign service you would prefer, Aubrey?"

"*Foreign* service?" echoed Mr. Aubrey, significantly.

"Yes; an entire change of scene would be highly serviceable in diverting your thoughts from the distressing subjects which here occupy them, and must continue to occupy them for some time to come. Can there be a doubt of it?"

"It is very kindly meant, Lord C——; but do you really think I can for a single moment entertain the idea of quitting the country to escape from pecuniary liability?"

"That's the point, exactly; I decidedly think you ought to do so; that you *must*," replied Lord C——, in a matter-of-fact manner.

"Nothing upon earth shall induce me to do so," replied Mr. Aubrey, firmly. "The bare idea shocks me. It would be the meanest, most unprincipled conduct—it would reflect disgrace on the king's service."

"Poh—this is mere eccentricity—knight-errantry; I'm sure that when you are in a calmer mood you will think differently. Upon my honor, I never heard of such absurdity as yours, in my life. Are you to stay at home, to have your hands tied behind your back, and be thrust into prison—to court destruction for yourself and your family?" Mr. Aubrey turned aside his head, and remained silent.

"I must plead in favor of Mrs. Aubrey—your children—your sweet lovely sister;—good God! it's quite shocking to think of what you are bringing them to."

"You torture my feelings, Lord C——," said Mr. Aubrey, tremulously and very pale; "but you do not convince my judgment. Every dictate of conscience and honor combines to assure me that I should not listen to your proposal."

"Good God! what an outrage on common sense!—But has anything been yet said on the subject of these liabilities—these *mesne* profits, as I think you said they are called?"

"Nothing; but they follow as a matter of course."

"How is it that you owe *only* sixty thousand pounds, Aubrey?"

"*Only* sixty thousand!" echoed Mr. Aubrey, amazedly.

"At the rate of ten thousand a-year, you must have had at least a hundred thousand pounds of the money belonging to your successor"——

"The statute of limitations prevents more than six years' arrears being recoverable."

"But do you intend, Aubrey, to avail yourself of such a protection against the just claims of this poor, unfortunate, ill-used gentleman? Are not the remaining forty thousand pounds justly due—money of his which you have

been making away with? Will you let a mere technical rule of law outweigh the dictates of honor and conscience?"

"I really don't exactly understand your drift, Lord C——," said Mr. Aubrey, coloring visibly.

"Well—I will explain. Your sovereign has a right to command your services; and, by obeying him and serving your country, you are enabled to prevent a malignant opponent from ruining you and your family, by extorting a vast sum of money not equitably due: I protest I see no difference in principle, Aubrey, between availing yourself of the statute of limitations, and of the call of the king to foreign service;—but we must talk of this again. By the way, what is the name of your worthy opponent? Tittlemouse, or some such strange name?"

"Titmouse!—By the way, you lose a seat for Yatton," said Aubrey, with a faint smile.

Lord C—— pricked up his ears. "Ay, ay! how's that?"

"The gentleman whom you have named professes, I understand, Liberal principles; probably he will sit for the borough himself; at all events, he will return the member."

"He's a poor ignorant creature, isn't he? What has made him take up with Liberal principles? By taking a little notice of him early, one might—eh?—influence him;—but—of course you don't intend to vacate this session?"

"I intend this day to apply for the Chiltern Hundreds; and this evening, if you like, a new writ may be moved for the borough of Yatton."

"You *must* come down to-night, my dear Aubrey, you really must," said Lord C——, with undisguised anxiety—with more than he had shown during the interview. "The numbers will run very close; they are stirring heaven and earth!—Good heavens! my dear Aubrey, a vote's invaluable to-night;—gad, you *sha'n't* have the Chiltern Hundreds;^[9] you mustn't really apply for it—at all events, not till to-morrow."

"I shall sit no more in the House of Commons," said Mr. Aubrey, with a sad determined air; "besides, I leave for Yatton by to-night's mail. There are those waiting for me whom you would not have me disappoint, Lord C——!"

"Not for worlds, my dear Aubrey," replied Lord C——, half absently. He was intensely disappointed at not obtaining Mr. Aubrey's vote that evening; and rose to go.

"Then I am to direct to Yatton, when I may have occasion to write to you?" said he.

"For the next three weeks only—my movements after that period are not yet fixed."

"Adieu, Aubrey; and I entreat of you to remember me most sincerely to Mrs. Aubrey and your sister; and when you look at them,—recollect—pray, recollect our conversation of to-day."

With this Lord C—— took his departure, and left poor Aubrey much depressed. He quickly, however, roused himself, and occupied the principal part of the day in making the necessary and melancholy arrangements for breaking up his establishment in Grosvenor Street, and disposing of his wines, books, and furniture at Yatton. He also instructed a house-agent to look out for two or three respectable but small houses in the outskirts of town, out of which might be chosen the one appearing most suitable to himself and Mrs. Aubrey, on their arrival in London. About eight o'clock he got into the York mail, and his heart was heavy within him.

CHAPTER III.

The result of a very long consultation between Mr. Runnington and his partners, held on the day after his last interview with Mr. Aubrey, was, that he drew up the following draft of a letter, addressed to Messrs. Quirk, Gammon, and Snap:—

"Lincoln's Inn, 26th April 18—.

"GENTLEMEN:

"Doe d. Titmouse v. Jolter.

"In answer to your letter of yesterday, (the 25th inst.,) we beg to inform you, that after the judgment in this cause pronounced yesterday in the Court of King's Bench, our client, Mr. Aubrey, does not intend to resist the claim of Mr. Titmouse to the residue of the Yatton property. We now, therefore, beg to give you notice, that on the 17th of next month you will be at liberty, on behalf of your client, Mr. Titmouse, to take possession of all the property at Yatton, at present in the possession of Mr. Aubrey. The whole of the last quarter's rents, due at Ladyday, have been paid into the bank of Messrs. Harley at Grilston, and will, on the day above mentioned, be placed at the disposal of your client.

"We are also instructed to request the delivery of your bill at as early a period as may suit your convenience, with a view to its immediate examination and settlement.

"We cannot forbear adding, while thus implicitly following the instructions of our client, our very great surprise and regret at the course which he has thought fit to adopt; since we have the strongest reasons for believing, that had he been disposed to contest your client's claim farther, in accordance with advice received from a high quarter, his case would have been materially strengthened, and your difficulties greatly increased, and rendered, in fact, absolutely insuperable. We feel

confident that the magnanimity displayed by our client, will be duly appreciated by *yours*.

"We are, Gentlemen, your obedient servants,

"RUNNINGTON & CO.

"MESSRS. QUIRK, GAMMON, & SNAP."

"Really," said Mr. Runnington, when he had read over the above to his partners, "I *must* throw in a word or two about those accursed mesne profits—yet it's a very ticklish subject, especially with such people as these—eh?"

One partner shook his head, and the other looked very thoughtful.

"We must not compromise Mr. Aubrey," said the former of the two.

"We have had no instructions on that point," said the latter,— "on the contrary, you told us yourself that your instructions were to announce an unconditional surrender."

"That may be; but in so desperate a business as this, I do think we have a discretion to exercise on behalf of himself and family, which I must say, he seems quite incapable of exercising himself. Nay, upon my honor, I think we are *bound* not to forego the slightest opportunity of securing an advantage for our client in this unrighteous claim!"

His partners seemed struck with his observation; and Mr. Runnington, after a few moments' consideration, added the following postscript:—

"P. S.—As to the *mesne profits*, by the way, of course we anticipate no difficulty in effecting an amicable arrangement satisfactory to both parties, due consideration being had for the critical position in which our client finds himself placed so suddenly and unexpectedly. Indeed, it is not difficult to conceive that Mr. Aubrey, in taking the step of which we have above advised you, must have contemplated"—(here Mr. Runnington paused for a considerable time,) "being met in a similar frank, liberal, and equitable spirit."

It was agreed, at length, that the whole amount and effect of the above postscript ought to be regarded as a spontaneous suggestion of Messrs. Runnington, not in any way implicating, or calculated in any event to annoy, Mr. Aubrey; and a fair copy of the letter and postscript having been

made, it was signed by the head of the firm, and forthwith despatched to Saffron Hill.

"Struck, by Jove, Gammon!" exclaimed Mr. Quirk, as, with the above letter open in his hands, he hurried, the instant after he had read it, into the room of his wily partner, and threw it down exultingly before him. Gammon read it with apparent calmness, but a slight flush overspread his cheek; and, as he finished the perusal, a subdued smile of excitement and triumph stole over his acute and placid countenance.

"Lord, Gammon! isn't it glorious?" quoth Mr. Quirk, heatedly, rubbing his hands together; "give us your hand, friend Gammon! We've fought a precious hard battle together"—and he shook his partner's hand with vehement cordiality. "This fellow Aubrey is a trump—isn't he?—Egad, if I'd been in his shoes—one way or another, I'd have stuck at Yatton for a dozen years to come—ah, ha!"

"Yes, I am sure you would—if you had been able," replied Gammon, dryly, and with a smile—the real character of which was not perceived by Mr. Quirk.

"Ay, that I would," replied he, with a triumphant chuckle—"but now to come to business. By next quarter-day Titmouse will have £5,000 in hard cash—half of it on the 17th of next month.—Lord! what have we done for him!" he added with a sort of sigh.

"We've put an ape into possession of Paradise—that's all"—said Gammon, absently and half aloud, and bitterly and contemptuously.

"Humph!—what of that?" said Mr. Quirk—"It answers *our* purposes, at any rate! By the way, Gammon, you see what's said about our bill—eh? The sooner it's made out the better, I should say—and—ahem! hem!—while Mr. Aubrey's on the tight rope he won't think of looking down at the particular items, will he? I should say, *now's* our time; and we should strike while the iron's hot! I've got *rather* a stiff entry, I can assure you. I must say Snap's done his duty; and *I've* not had my eyes shut—or my pen idle! You know one *must* live in these hard times—eh?" Here Mr. Quirk winked very knowingly.

"You must not *overdo* it, Mr. Quirk—but all that I leave, as usual, to your admirable management, as to that of a first-rate man of business. You know

I'm a sad hand at accounts; but you and Snap are perfect adepts—in short, I'm satisfied you'll do all that should be done."

"Ay, ay, trust us!" interrupted Quirk, quickly, with a significant nod, and fancying himself and Snap already at work, plundering the poor Aubreys. "And, by the way, Gammon, there are the mesne profits—that's a mighty fine postscript of theirs, isn't it?" and replacing his spectacles, he read it over aloud. "All my eye, of course!" he added, as he laid down the letter—"but I suppose one must give 'em a little time; it *is* a little hard on him just at present; but then, to be sure, that's *his* look-out—not ours, or Titmouse's!—Off-hand, I should say we ought to be content with—say—twenty thousand down, and the rest within two years, so as to give him time to look about him a little"——

"That will be quite an after consideration," said Mr. Gammon, who, for the last few minutes, had appeared lost in thought.

"Egad—an *after* consideration? Hang me if I think so, Gammon! There's a certain *bond*—eh? don't you recollect"——

"I assure you, Mr. Quirk, that my eye is fixed quite as steadily and anxiously on that point as yours," said Gammon, gravely.

"Thank you—thank you, Gammon!" replied Quirk, with the air of a man suddenly relieved from apprehension—"it couldn't possibly be in better hands. Lud—to go wrong *there*! It would send me to my grave at a hand gallop—it would, so help me Heaven, Gammon!—Titmouse—by the way—is a queer hand to deal with— isn't he? Wasn't he strange and bumptious the other day? Egad, it made me quake! Need we tell him, just yet," he dropped his voice, "of the letter we've got? Couldn't we safely say only that they have sent us word that we shall have Yatton by the 17th of next month?"

"Very great caution is necessary, Mr. Quirk, just now"——

"You *don't* think the young scamp's going to turn round on us, and snap his fingers in our face, eh?" inquired Mr. Quirk, apprehensively, violently twirling about his watch-key.

"If you leave him implicitly to me, you shall get all you want," replied Gammon, very gravely, and very pointedly. Quirk's color changed a little, as

he felt the keen gray eye of Gammon fixed upon him, and he involuntarily shrank under it.

"You'll excuse me, Gammon," at length said he, with rather a disturbed air; "but there's no fathoming you, when you get into one of your mysterious humors; and you always look so particularly strange whenever we get on this subject! What can you know that I don't—or *ought* not to know?"

"Nothing—nothing, I assure you," replied Gammon, with a gay smile.

"Well, I should have *thought* not. But, coming back to the main point, if one could but *touch* some part of that same ten thousand pounds, I *should* be a happy man!—Consider Gammon, what a draught there has been on my purse for this last sixteen months! Ecod!—the sleepless nights it has cost me!"

"Well, can you doubt being soon richly repaid, my dear sir? Only don't be too hasty."

"I take it, Gammon, we've a lien on the rents now in the banker's hands, and to become due next quarter-day, and on the first instalment of the mesne profits, both for our bill of costs, and in respect of that same bond?"

"Mesne profits, Mr. Quirk?" echoed Gammon, rather quickly; "you seem to take it for granted that they are all ready to be paid over! Even supposing Titmouse not to grow restive, do you suppose it probable that Mr. Aubrey, after so vast and sudden a sacrifice, can have more than a very few thousands—probably hundreds—to keep him and his family from immediate want, since we have reason to believe he has got no other resources than Yatton?"

"Not got 'em—not got 'em? D—n him! then he must look sharp and *get* 'em, that's all! You know we can't be trifled with; we must look after the interests of—Titmouse. And what's he to start with, if there's no mesne profits forthcoming? But, hang it! they must; I should say a gentle pressure, by-and-by, as soon as Aubrey's fairly got out of Yatton, must produce money, or *security*—he must know quantities of people of rank and substance that would rush forward, if they once heard him squeal"——

"Ah, you're for putting the thumbscrews on at once—eh?" inquired Gammon, with subdued energy, and a very strange sort of smile.

"Ay—capital—that's *just* what I meant!"—quoth Quirk.

"Eugh! you heartless old reprobate!" thought Gammon, nearly on the point of expressing as much; but his momentary excitement passed off unobserved by Mr. Quirk. "And, I must say, I agree with you," added Gammon, calmly, "we ought in justice to see you first reimbursed your very heavy outlays, Mr. Quirk."

"Well, that's honorable, Gammon.—Oh, Gammon, how I *wish* you would let me make a friend of you!" suddenly added Mr. Quirk, eyeing wistfully his surprised companion.

"If you have one sincere, disinterested friend in the world, Mr. Quirk, I am he," said Mr. Gammon, throwing great warmth into his manner, perceiving that Mr. Quirk was laboring with some communication of which he wished to deliver himself.

"Gammon, Gammon! how I *wish* I could think so!" replied Quirk, looking earnestly, yet half distrustingly, at Gammon, and fumbling about his hands in his pockets. The mild and friendly expression of Gammon's countenance, however, invited communicativeness; and after softly opening and shutting the two doors, to ascertain that no one was trying to overhear what might be passing, he returned to his chair, which he drew closer to Gammon, who noticed this air of preparation with not a little curiosity.

"I may be wrong, Gammon," commenced Mr. Quirk, in a low tone; "but I do believe you've always felt a kind of personal friendship towards me; and there ought to be no secrets among friends. *Friends*, indeed? Perhaps it's premature to mention so small a matter; but at a certain silversmith's, not a thousand miles from the Strand, there's at this moment in hand, as a present from me to you"—(Oh dear, dear! Mr. Quirk! what a shocking untruth! and at your advanced period of life, too!)"—"as elegant a gold snuff-box as can be made, with a small inscription on the lid. I hope you won't value it the less for its being the gift of old Caleb Quirk"—he paused and looked earnestly at Mr. Gammon.

"My dear Mr. Quirk, you have taken me," said his bland partner, apparently with great emotion, "quite by surprise. Value it? I will preserve it to the latest moment of my life, as a memorial of one whom the more I know of, the more I respect and admire!"

"You, Gammon, are in your prime—scarce even that—but I am growing old"—tears appeared to glisten in the old gentleman's eyes; Gammon, looking much moved, shook him cordially by the hand in silence, wondering what upon earth was coming next. "Yes;—old Caleb Quirk's day is drawing to a close—I feel it, Gammon, I feel it! But I shall leave behind me—a—a—child—an only daughter, Gammon;" that gentleman gazed at the speaker with an expression of respectful sympathy;—"Dora: I don't think you can have known Dora so long, Gammon, without feeling a *leetle* interest in her!" Here Gammon's color mounted rapidly; and he looked with feelings of a novel description at his senior partner. Could it be possible that old Quirk wished to bring about a match between his daughter and Mr. Gammon? That gentleman's thoughts were for a moment confused. All he could do was to bow with an earnest—an anxious—a deprecating air; and Mr. Quirk, rather hastily, proceeded,—"*and when I assure you, Gammon, that it is in your power to make an old friend and his only daughter happy and proud,*"—Gammon began to draw his breath hurriedly, and to look more and more apprehensively at his senior partner,—"*in short, my dear friend Gammon, let me out with it at once—my daughter's over head and ears in love with Titmouse! She is, so help me Heaven!*"

[*"Whew!"* thought Gammon, suddenly and infinitely relieved.]

"Ah, my dear sir, is that all?" he exclaimed, and shook Mr. Quirk cordially by the hand,—"*at length you have made a friend of me indeed! But, to tell you the truth, I have long suspected as much; I have indeed!*"

"Have you really? Hang me if anything can escape your lynx's eyes!—Well! *there is no accounting for tastes, is there?—especially among the women? Poor Dora's quite lost her heart—quite—she has—so help me Heaven!*" continued Mr. Quirk, energetically.

"Well, my dear sir, and why this *surprise?*" inquired Gammon, earnestly. "I consider Titmouse to be a very handsome young fellow; and that he is already rapidly acquiring very gentlemanly manners; and as to his *fortune*—really—when one thinks of the thing—it would be most desirable to bring it about! Indeed, the sooner his heart's fixed, and his word's pledged, the better—for you must of course be aware that there will be many schemers on the look-out to entrap his frank and inexperienced nature—look, for instance, at Tag-rag."

"Eugh!" exclaimed Mr. Quirk, with a sudden motion of sickening disgust—"the old beast! I smoked him long ago! Now, *that* I call villany, Gammon; infernal villany! Don't you?"

"Indeed, indeed, Mr. Quirk, I do; I quite agree with you! Upon my honor, I think it is a part of even *my* duty towards our confiding and inexperienced client, if possible, to protect him against such infamous designs."

"Right—right, Gammon; by Jove, you're quite right—I *quite* agree with you!" replied Quirk, earnestly, not observing the lambent smile upon the features of his calm, crafty, and sarcastic companion.

"You see, however," said Gammon, "we've a very delicate and difficult game to play with old Tag-rag. He's certainly a toad, ugly and venomous—but then he's got a jewel in his head—he's got money, you know, and, to serve *our* purposes, we must really give him some hopes about his daughter and Titmouse."

"Faugh! eugh! feugh! Nasty wretch! a little trollop! It makes one sick to hear of her! And, by the way, now we're on that subject, Gammon, what do we want of this wretch Tag-rag, now that Titmouse has actually got the property?"

"Want of him? Money—security, my dear sir!—money!"

"But, curse me! (excuse me, Gammon,) why go to Tag-rag? *That's* what I can't understand! Surely any one will advance almost any amount of money to Titmouse, with such security as he can now give!"

"Very possibly—probably"——

"Possibly? Why, I myself don't mind advancing him five thousand—nay, ten thousand pounds—when we've once got hold of the title-deeds."

"My dear sir," interrupted Gammon, calmly, but with a very serious air, and a slight change of color which did not happen to attract the notice of his eager companion, "there are reasons why I should dissuade you from doing so; upon my word there are; farther than that I do not think it necessary to go; but I have gone far enough, I know well, to do you a real service."

Mr. Quirk listened to all this with an air of the utmost amazement—even open-mouthed amazement. "What reason, Gammon, *can* there be against

my advancing money on a security worth at least twenty times the sum borrowed?" he inquired with visible distrust of his companion.

"I can but assure you, that were I called upon to say whether I would advance a serious sum of money to Titmouse on the security of the Yatton estates, I should at all events require a most substantial *collateral* security."

"Mystery again!" exclaimed Mr. Quirk, a sigh of vexation escaping him. "You'll excuse me, Gammon, but you'd puzzle an angel, to say nothing of the devil! May I presume for one moment, so far on our personal and professional relationship, as to ask what the reason is on which your advice rests?"

"Mere caution—excessive caution—anxiety to place you out of the way of all risk. Surely, is your borrower so soon to be pronounced firm in the saddle?"

"If you know anything, Gammon, that I don't, it's your bounden duty to communicate it! *Look at our articles!*"

"It is; *but do I* know anything! Prove that, Mr. Quirk, and you need trouble yourself no more!—but, in the mean while, (without saying how much I feel hurt at your evident distrust,) I have but a word or two further to add on this point."

When Mr. Gammon chose, he could assume an expression of feature, a tone of voice, and a manner which indicated to the person he was addressing, that he was announcing a matured opinion, an inflexible determination—and this, moreover, in the calmest, quietest way imaginable. Thus it was that he now said to Mr. Quirk, "My opinion is, that you should get *some third party* or parties to advance any required sum, and prevail upon Tagrag to join in a collateral security, without—if possible—making him aware of the extent of liability he is incurring. By exciting him with the ridiculous notion of an attachment between his daughter and Titmouse, he may be induced to give his signature, as to some complimentary matter of form only—Now, that's my opinion, Mr. Quirk; not lightly or hastily formed; and it rests upon a deep feeling of personal regard towards you, and also our common interests."

Mr. Quirk had listened to this communication in perturbed silence, eying the speaker with a ludicrous expression of mingled chagrin, apprehension,

and bewilderment. "Gammon," at length said he, affecting a smile, "do you remember, when you, and I, and Dora, went to the play to see some German thing or other—Foss was the name, wasn't it?"

"Faust—Faust," interrupted Gammon, curiously.

"Well; and now, what was the name of that fellow that was always—Meph—Meph—what was it?"

"Mephistopheles," replied Gammon, unable to repress a smile.

"Ah—yes! so it was. That's all; I only wanted to think of the name—I'd forgotten it. I beg your pardon, Gammon."

This was poor Mr. Quirk's way of being very sarcastic with his friend. He thought that he had now cut him to the very quick.

"If it hadn't been for what's passed between us to-day, Gammon, I should almost begin to think that you were not sincere in your friendship"——

"Did I ever deceive you? Did I ever attempt to overreach you in anything, Mr. Quirk?"

"N—o—o—," replied Mr. Quirk—but not in the readiest manner, or most confident tone in the world,—“I certainly can't say I ever found you out—but I'll tell you what, we each keep a precious sharp look-out after each other, too—don't we?" he inquired with a faint smile, which seemed for a moment reflected upon the face of Gammon.

"How long," said the latter, "I am to be the subject of such unkind suspicions, I do not know; but your nature is suspicious; and as every one has his fault, that is the alloy in the otherwise pure gold of your manly, generous, and straightforward character. Time may show how you have wronged me. My anxious wish is, Mr. Quirk, to witness your daughter occupying a position in which we may all be proud to see her." Here a smile shot across Quirk's anxious countenance, like evening sunshine on troubled waters.

"I do really believe, Gammon," said he, eagerly, "that Dora's just the kind of girl to suit Titmouse"——

"So indeed, my dear sir, do I. There's a mingled softness and spirit in Miss Quirk"——

"She's a good girl, a good girl, Gammon! I hope he'll use her well if he gets her." His voice trembled. "She's got very much attached to him! Gad, she's quite altered lately; and my sister tells me that she's always playing dismal music when he's not there. But we can talk over these matters at another time. Gad, Gammon, you can't think how it's relieved me, to open my mind to you on this matter! We quite understand each other *now*, Gammon—eh?"

"Quite," replied Gammon, pointedly; and Mr. Quirk having quitted the room, the former prepared to answer Messrs. Runnington's letter. But first he leaned back, and reflected on several points of their late conversation. Of course, he had resolved that Miss Quirk should never become Mrs. Titmouse! And what struck him as not a little singular was this; viz. that Mr. Quirk should have made no observation on the circumstance that Gammon allowed him to risk his daughter, and her all, upon chances which he pronounced too frail to warrant advancing a thousand or two of money! Yet so it was.

This was the answer he presently wrote to the letter of Messrs. Runnington:
—

"Saffron Hill, 26th April 18—.

"GENTLEMEN:

"Doe d. Titmouse v. Jolter.

"We are favored with your letter of this day's date; and beg to assure you how very highly we appreciate the prompt and honorable course which has been taken by your client, under circumstances calculated to excite the greatest possible commiseration. Every expression of respectful sympathy, on our parts, and on that of our client, Mr. Titmouse, which you may think fit to convey to your distinguished client, is his.

"We shall be prepared to receive possession of the Yatton estates on the day you mention—namely, the 17th May next, on behalf of our client, Mr. Titmouse; on whose behalf, also, we beg to thank you for your communication concerning the last quarter's rents.

"With reference to the question of the mesne profits, we cannot doubt that your client will promptly pursue the same line of honorable conduct which he has hitherto adopted; and sincerely trust that a good understanding in this matter will speedily exist between our respective clients.

"As you have intimated a wish upon the subject, we beg to inform you that we have given instructions for making out and delivering our bill herein.

"We are, Gentlemen,

"Your obedient humble servants,

"QUIRK, GAMMON, & SNAP.

"MESSRS. RUNNINGTON & CO."

Having finished writing the above letter, Gammon sat back in his chair, with folded arms, and entered upon a long train of thought—revolving many matters which were worthy of the profound consideration they then received.

When Gammon and Titmouse returned to town from York, they were fortunate in having the inside of the coach to themselves for nearly the whole of the way—an opportunity which Gammon improved to the utmost, by deepening the impression he had already made in the mind of Titmouse, of the truth of one great fact—namely, that he and his fortunes would quickly part company, if Gammon should at any time so will—which never would, however, come to pass, as long as Titmouse recognized and deferred to the authority of Gammon in all things. In vain did Titmouse inquire how this could be. Gammon was impenetrable, mysterious, authoritative; and at length enjoined Titmouse to absolute secrecy concerning the existence of the fact in question, on pain of the infliction of those consequences to which I have already alluded. Gammon assured him that there were many plans and plots hatching against him (Titmouse;) but that it was in his (Gammon's) power to protect him from them all. Gammon particularly enjoined him, moreover, to consult the feelings, and attend to the suggestions of Mr. Quirk, wherever Mr. Gammon did not intimate to the contrary; and wound up all by telling him, that as he, Gammon, was the only person on earth—and this he really believed to be the case, as the reader may hereafter see—who knew the exact position of Titmouse, so he

had devoted himself for his life to the advancing and securing the interests of that fortunate gentleman.

For about a fortnight after their return, Titmouse, at Gammon's instance, continued at his former lodgings; but at length complained so earnestly of their dismal quietude, and of their being out of the way of "*life*," that Gammon yielded to his wishes, and, together with Mr. Quirk, consented to his removing to a central spot—in fact, to the CABBAGE-STALK HOTEL, Covent Garden—a queer enough name, to be sure; but it was the family name of a great wholesale green-grocer, who owned most of the property thereabouts. It was not without considerable uneasiness and anxiety that Messrs. Quirk and Snap beheld this change of residence, apprehensive that it might have the effect of estranging Titmouse from them; but since Gammon assented to it, they had nothing for it but to acquiesce, considering Titmouse's proximity to his splendid independence. They resolved, however, as far as in each of them lay, not to let themselves be forgotten by Titmouse. Pending the rule for the new trial, Mr. Quirk had been so confident concerning the issue, that he greatly increased the allowance of Titmouse; to an extent, indeed, which admitted of his entering into almost all the gayeties that his as yet scarce initiated heart could desire. In the first place, he constantly added to his wardrobe. Then he took lessons, every other day, in "the noble art of self-defence;" which gave him an opportunity of forming, with great ease, at once an extensive and brilliant circle of acquaintance. Fencing-rooms, wrestling-rooms, shooting-galleries, places for pigeon-shooting, cock-fighting, dog-fighting, and billiard-rooms; the water, and boat-racing—these were the dazzling scenes which occupied the chief portion of each day. Then, in the evenings, there were theatres, great and small, the various taverns, and other places of nocturnal resort, which are the secret pride and glory of the metropolis. In addition to this, at an advanced period of the night, or rather very early hour in the morning, he sedulously strove to perfect himself in those higher arts and accomplishments, formerly excelled in by one or two of the more eminent of the youthful aristocracy, viz. breaking windows, pulling bells, wrenching off knockers,^[10] extinguishing lamps, tripping up old women, watchmen, and children, and spoiling their clothes;—ah, how often in his humbler days, had his heart panted in noble rivalry of such feats as these, and emulation of the notoriety which they earned for the glittering miscreants

excelling in them! Ah, Titmouse, Titmouse! Now is your time! *Macte novâ virtute, puer!*

That he could long frequent such scenes as these without forming an extensive and varied acquaintance, would be a very unlikely thing to suppose; and there was one who would fain have joined him in his new adventures—one who, as I have already intimated, had initiated him into the scenes with which he was now becoming so familiar; I mean Snap, who had been at once his

"Guide, philosopher, and friend;"

but who now had fewer and fewer opportunities of associating with him, inasmuch as his (Snap's) nose was continually "kept at the grindstone" in Saffron Hill, to compensate for the lack of attention to the business of the office of his senior partners, owing to their incessant occupation with the affairs of Titmouse. Still, however, he now and then contrived to remind Titmouse of his (Snap's) existence, by sending him intimations of interesting trials at the Old Bailey and elsewhere, and securing him a good seat to view both the criminal and the spectators—often persons of the greatest rank, fashion, and beauty; for so it happened that, in this country, the more hideous the crime, the more intense the curiosity of the upper classes of both sexes to witness the miscreant perpetrator; the more disgusting the details, the greater the avidity with which they are listened to by the distinguished auditors;—the reason being plain, that, as they have exhausted the pleasures and excitements afforded by their own sphere of action and enjoyment, their palled and sated appetites require novel and more powerful stimulants. Hence, at length, we see "fashionables" peopling even the condemned cell—rushing, in excited groups, after the shuddering malefactor, staggering, half palsied, and with horror-laden eye, on his way to the gallows! As soon as old Quirk had obtained an inkling of Titmouse's taste in these matters, he afforded him many opportunities of gratifying it. Once or twice the old gentleman succeeded in obtaining for him, even the gratification of shaking the cold and pinioned hands of wretches within a few minutes' time of their being led out for execution!

This is a brief and general account of the way in which Titmouse passed his time, and laid the groundwork of that solid, extensive, and practical acquaintance with men and things, which was requisite to enable him to occupy with dignity and advantage the splendid station to which he was on the point of being elevated.

But let us not lose sight of our early and interesting friends, the Tag-rags—a thing which both Quirk and Gammon resolved should not happen to Titmouse: for, on the very first Sunday after his arrival in town from York, a handsome glass-coach might have been seen, about two o'clock in the afternoon, drawing up opposite to the gates of Satin Lodge; from which said coach, the door having been opened, presently descended Messrs. Quirk, Gammon, and Titmouse. Now, the Tag-rags always dined at about two o'clock on Sundays; and, on the present occasion, Mr., Mrs., and Miss Tag-rag, together with a pretty constant visitor, the Reverend Dismal Horror, were sitting at their dinner-table discussing as savory a leg of roast pork, with apple-sauce, as could at once have tempted and satisfied the most fastidious and the most indiscriminating appetite.

"Oh, ma!" exclaimed Miss Tag-rag, faintly, changing color, as she caught sight, through the blinds, of the approaching visitors—"if there isn't Mr. Titmouse!" and almost dropping on the table her plate, in which, with an air of tender gallantry, pious Mr. Horror was in the act of depositing some greens, she flew out of the room, darted up-stairs, and in a trice was standing, with beating heart, before her glass, hastily twirling her ringlets round her trembling fingers, and making one or two slight alterations in her dress. Her papa and mamma started up at the same moment, hastily wiping their mouths on the corners of the table-cloth; and, after a hurried apology to their reverend and astounded guest, whom they

begged "to go on eating till they came back"—they bounced into the little drawing-room, in just time enough to appear (as they thought) to have been seated there for some time; but they were both rather red in the face, and flustered in their manner. Yet, how abortive was their attempt to disguise the truly disgraceful fact of their having been at dinner when their distinguished visitors arrived! For, firstly, the house was redolent of the odors of roast pork, sage and onion stuffing, and greens; secondly, the red-faced servant girl was peering round the corner of the kitchen stairs, as if watching an opportunity to whip off a small dinner tray that stood between the dining-room and drawing-room; and thirdly, the visitors caught a glimpse of the countenance of the reverend young guest, who was holding open the dining-room door just wide enough to enable him to see who passed on to the drawing-room; for, in truth, the name which had escaped from the lips of Miss Tag-rag, was one which always excited unpleasant feelings in the breast of her spiritual-minded friend.

"Ah! Mr. and Mrs. Tag-rag! 'Pon my soul—glad to see you—and—hope you're all well?" commenced Titmouse, with an air of easy confidence and grace. Mr. Gammon calmly introduced himself and Mr. Quirk.

"We were just going to sit down to—*lunch*," said Mr. Tag-rag, hurriedly.

"You won't take a little, will you, gentlemen?" inquired Mrs. Tag-rag, faintly; and both the worthy couple felt infinite relief on being assured that the great people "had already lunched." Neither Mr. nor Mrs. Tag-rag could take their eyes off Mr. Titmouse, whose easy nonchalance convinced them that he must have been keeping the society of lords. He was just inquiring—as he ran his hand through his hair, and gently smacked his slight ebony cane against his leg—after Miss Tag-rag, when, pale and agitated, and holding in her hand a pocket-handkerchief, which she had first suffused with musk and bergamot, designed to overcome so much of the vulgar odor of dinner as might be lingering about *her*—that interesting young lady entered. Titmouse rose and received her in a familiar, forward manner; she turning white and red by turns. She looked such a shrivelled little ugly formal creature, that Titmouse conceived quite a hatred of her, through recollecting that he had once thought such an inferior piece of goods superfine! Old Quirk and Tag-rag, every now and then, cast distrustful glances at each other; but Gammon kept all in a calm flow of small talk, which at length restored those whom they had come to see, to something like self-possession. As for Mr. Quirk, the more he looked at Miss Tag-rag, the more pride and satisfaction he felt in reflecting upon the unfavorable contrast she must present, in Titmouse's eyes, to Miss Quirk. After a little further conversation, principally concerning the brilliant success of Titmouse, Mr. Quirk came to the business of the day, and invited Mr., Mrs., and Miss Tag-rag to dinner at Alibi House, on the ensuing Sunday, at six o'clock—apologizing for the absence of Miss Quirk, on the score of indisposition—she being at the time in the highest possible state of health. Mrs. Tag-rag was on the point of saying something deprecatory of their dining out on Sunday, as contrary to their rule; but a sudden recollection of the earthly interests she might peril by so doing, aided by a fearfully significant glance from Mr. Tag-rag, restrained her. The invitation was, therefore, accepted in a very obsequious manner; and soon afterwards their great visitors took their departure, leaving Mr. and Mrs. and Miss Tag-rag in a state of very great excitement. Goodness! could there be a doubt that there must be some very potent attraction at Satin Lodge to bring

thither Titmouse, after all that had occurred? And where could reside the point of that attraction, but in Miss Tag-rag?

As soon as their visitors' glass-coach had driven off—its inmates laughing heartily at the people they had just quitted—Mr., Mrs., and Miss Tag-rag returned to the dining-table, like suddenly disturbed fowl returning to their roost, when the disturbance has ceased. Profuse were their apologies to Mr. Horror; not aware, however, that he had improved the opportunity afforded by their absence, to recruit his exhausted energies with a couple of glasses of port wine from a decanter which stood on the sideboard—a circumstance which he did not deem important enough to mention. Vehemently suspecting as he did, what was the state of things with reference to Mr. Titmouse and Miss Tag-rag, it was somewhat of a trial of temper to the exemplary young pastor—and calculated to interfere grievously with the preparation for his evening duties—to have to listen, for the remainder of the afternoon, to the praises of Titmouse, and speculations concerning the immensity of his fortune—matters, indeed, (in his pious estimation,) *of the earth, earthy*. In vain did the worthy minister strive, every now and then, to divert the current of conversation into a more profitable channel—*i. e.* towards himself; all he said was evidently lost upon her for whose ear it was intended. She was in a reverie, and often sighed. The principal figures before her mind's eye were—TITTLBAT TITMOUSE, ESQUIRE, and THE REV. DISMAL HORROR. The latter was about twenty-six, (he had been "called to the work of the ministry" in his sixteenth year;) short in stature; his face slightly pitted with small-pox; his forehead narrow; his eyes cold and watery; no eyebrows or whiskers; high cheekbones; his short dark hair combed primly forward over each temple, and twisted into a sort of topknot in front; he wore no shirt-collar, but had a white neck-handkerchief tied very formally, and was dressed in an ill-made suit of black. He spoke in a drawling, canting tone; and his countenance was overspread with a demure expression of—CUNNING, *trying to look religious*. Then he was always talking about himself, and his chapel, and the devil, and the bottomless pit, and the number of souls which he had saved, and the number of those whom he knew were damned, and many more who certainly would be damned; and other cheerful and interesting matters of that sort, intrusted—it would seem—to his confidential keeping. All this might be very well in its way, began to think Miss Tag-rag—but it was possible to choke a dog with pudding. Poor girl, can you wonder at her dwelling fondly upon the image of Titmouse? So splendidly dressed, so handsome, such a fashionable air, and with—ten thousand a-year! When she put all these things together, it almost looked like a dream; such good fortune could never be in store for a poor simple girl like herself. Yet there was such a thing as—love at first sight! After tea they all walked down to Mr. Horror's meeting-house. It was very crowded; and it was remarked that the eloquent young preacher had never delivered a more impassioned sermon from that pulpit: it was sublime. Oh, how bitterly he denounced "worldly-mindedness!" What a vivid picture he drew of the flourishing green bay-tree of the wicked, suddenly blasted in the moment of its pride and strength; while the righteous should shine like stars in the firmament forever and ever! Who cannot see here shadowed out the characters of Titmouse and of Horror respectively?—who hesitate between the two? And when at length, the sermon over, he sat down in his pulpit, (the congregation also sitting and singing, which had a somewhat queer effect,) and drew gracefully across his damp forehead his white pocket-handkerchief, which had been given him by Miss Tag-rag; and looked with an air of most interesting languor and exhaustion towards Mr. Tag-rag's pew, where sat that

young lamb of his flock—Miss Tag-rag—her father the wealthiest man in the congregation, and she his only child—he felt a most lively and tender interest in her welfare—her spiritual welfare, and resolved to call the next morning; entertaining an humble hope of finding that his zealous labors had not been in vain, that he had not missed the mark at which he had been secretly aiming! Was one fruit of the pious pastor's exertions the benignant temper which Tag-rag, to the amazement of his shopmen, evinced the next morning, for at least an hour? Would that the like good effects had been visible in Mrs. and Miss Tag-rag; but—alas that I should have to record it!—it was so far otherwise, that they laid aside some fancy-fair work on which Mr. Horror had set them—for the whole week, devoting it, instead, to the preparation of those dresses with which they purposed the profanation of the ensuing Sunday.

That day at length arrived, and precisely at six o'clock a genteel fly deposited the visitants from Satin Lodge at the splendid entrance to Alibi House. There was the big footman—shoulder-knot, red breeches, and all. Tag-rag felt a *little* nervous. Before they had entered the gates, the fond proud parents had kissed their trembling daughter, and entreated her "to keep her spirits up!" The exhortation was needful; for when she saw the sort of style that awaited them, she became not a little agitated. When she entered the hall—ah! on a chair lay a glossy new hat, and a delicate ebony walking-stick; so he had come—was then up-stairs!—Miss Tag-rag trembled in every limb.

"I don't know, my dear," whispered Mrs. Tag-rag to her husband, with a subdued sigh, as they followed the splendid footman up-stairs,—*"it may be all uncommon grand; but somehow I'm afraid we're doing wrong—it's the Lord's Day—see if any good comes of it."*

"Tut—hold your tongue! Let's have no nonsense," sternly whispered Mr. Tag-rag to his submissive wife.

"Your name, sir?" quoth the footman, in a sort of gentlemanly way.

"Mr., Mrs., and Miss Tag-rag," replied Mr. Tag-rag, after clearing his throat; and so they were announced, Miss Quirk coming forward to receive the ladies with the most charming affability. There stood Titmouse, in an easy attitude, with his hands stuck into his coat-pockets, and resting on his hips, in a very delicate and elegant fashion. How completely he seemed at his ease!

"Oh Lord!" thought the almost trembling Tag-rag, "that's the young fellow I used to go on so to!"

In due time dinner was announced; and who can describe the rapture that thrilled through the bosoms of the three Tag-rags, when Mr. Quirk requested Mr. Titmouse to take down—Miss Tag-rag!! Her father took down Mrs. Alias; Mr. Quirk, Mrs. Tag-rag; and Gammon, Miss Quirk. She really might have been proud of her partner. Gammon was about thirty-six years old; above the average height; with a very easy, calm, gentlemanly appearance and address, and an intellectual and even handsome countenance; though it occasionally exhibited, to a keen observer, a sinister expression. He wore a blue coat, a plain white waistcoat, (not disfigured by any glistening fiddle-faddle of pins, chains, or quizzing-glasses,) black trousers, and plain black silk stockings. There was at once an appearance of neatness and carelessness; and there was such a ready smile—such a bland ease and self-possession about

him—as communicated itself to those whom he addressed. I hardly know, Mr. Gammon, why I have thus noticed so particularly your outward appearance. It certainly, on the occasion I am describing, struck me much; but there are such things as *whited walls* and *painted sepulchres*!

Dinner went off very pleasantly, the wines soon communicating a little confidence to the flustered guests. Mrs. Tag-rag had drunk so much champagne—an unusual beverage for her—that almost as soon as she had returned to the drawing-room, she sat down on the sofa and fell asleep, leaving the two young ladies to amuse each other as best they might; for Mrs. Alias was very deaf, and moreover very stiff and distant, and sat looking at them in silence. To return to the dining-room for a moment. 'T was quite delightful to see the sort of friendship that seemed to grow up between Quirk and Tag-rag, as their heads got filled with wine; at the same time each of them half unconsciously drawing closer and closer to Titmouse, who sat between them—volubility itself. They soon dropped all disguise—each plainly under the impression that the other could not, or did not, observe him; and at length, impelled by their overmastering motives, they became so barefaced in their sycophancy—evidently forgetting that Gammon was present—that he could several times, with only the utmost difficulty, refrain from bursting into laughter at the earnest devotion with which these two worshippers of the little golden calf strove to attract the attention of their divinity, and recommend themselves to its favor.

At length the four gentlemen repaired to the drawing-room, whence issued the sounds of music; and on entering, they beheld the two lovely performers seated at the piano, engaged upon a duet. The plump flaxen-haired Miss Quirk, in her flowing white muslin dress, her thick gold chain and massive bracelets, formed rather a strong contrast to her sallow skinny little companion, in a span-new slate-colored silk dress, with staring scarlet sash; her long corkscrew ringlets glistening in bear's grease; and as for their performance, Miss Quirk played boldly and well through her part, a smile of contempt now and then beaming over her countenance at the ridiculous incapacity of her companion. As soon as the gentlemen made their appearance the ladies ceased, and withdrew from the piano, Miss Tag-rag, with a sweet air of simplicity and conscious embarrassment, gliding towards the sofa, where sat her mamma asleep, but whom she at once awoke. Mr. Quirk exclaimed, as evidently elevated with wine, he slapped his daughter on her fat back, "Ah, Dora, my dove!" while Tag-rag kissed his daughter's cheek, and squeezed her hand, and then glanced with a proud and delighted air at Titmouse, who was lolling at full length upon the other sofa, picking his teeth. While Miss Quirk was making tea, Gammon gayly conversing with her, and in an undertone satirizing Miss Tag-rag, the latter young lady was gazing, with a timid air, at the various elegant nick-nacks scattered upon the tables and slabs. One of these consisted of a pretty little box, about a foot square, with a glass lid, through which she saw the contents; and they not a little surprised her. They were pieces of cord; and on looking at one of the sides of the box, she read with a sudden shudder,—"*With these cords were tied the hands of Arthur Grizzlegut, executed for high treason, 1st May 18—. Presented, as a mark of respect, to Caleb Quirk, Esq., by J—— K——.*" Poor Miss Tag-rag recoiled from the box as if she had seen it filled with writhing adders. She took an early opportunity, however, of calling her father's attention to it; and he pronounced it a "most interesting object," and fetched Mrs. Tag-rag to see it. She agreed, first, with her daughter; and then with her husband. Quietly

pushing her investigations, Miss Tag-rag by-and-by beheld a large and splendidly bound volume—in fact, Miss Quirk's album; and, after turning over most of the leaves, and glancing over the "poetical effusions" and "prose sentiments" which few fools can abstain from depositing upon the embossed pages, when solicited by the lovely proprietresses of such works, behold—her heart fluttered—poor Miss Tag-rag almost dropped the magnificent volume; for there was the idolized name of Mr. Titmouse appended to some beautiful poetry—no doubt his own handwriting and composition. She read it over eagerly again and again:—

"Tittlebat Titmouse Is My name,
England Is My Nation,
London Is My Dwelling-Place,
And Christ Is My Salvation."

How exquisite—how touching its simplicity! She looked anxiously about for writing implements! but not seeing any, was at length obliged to trust to her memory; on which, indeed, the remarkable composition was already inscribed in indelible characters. Miss Quirk, who was watching her movements, guessed the true cause of her excitement; and a smile of mingled scorn and pity for her infatuated delusion shone upon her face; in which, however, there appeared a little anxiety when she beheld Titmouse—(she did not perceive that he did so in consequence of a motion from Gammon, whose eye governed his movements as a man's those of his spaniel)—walk up to her, and converse with a great appearance of interest. At length Mr. Tag-rag's "carriage" was announced. Mr. Quirk gave his arm to Mrs. Tag-rag, and Mr. Titmouse to the daughter; who endeavored, as she went down the stairs, to direct melting glances at her handsome and distinguished companion. They evidently *told*, for she could not be mistaken; he certainly once or twice squeezed her arm—and the last fond words he uttered to her were, "'Pon my soul—it's early; devilish sorry your going—hope you've enjoyed yourself!" As the Tag-rags drove home, they were all loud in the praises of those whose splendid hospitality they had been enjoying. Possessing a daughter, for whom Quirk must naturally have wished to make so splendid a match as that with Titmouse—but who was plainly engaged to Mr. Gammon—how kind and disinterested was Mr. Quirk, in affording every encouragement in his power to the passion which Titmouse had so manifestly conceived for Miss Tag-rag! And was there ever so delightful a person as Gammon? How cordially he had shaken the hands of each of them at parting! As for Miss Tag-rag, she felt that if her heart had not been so deeply engaged to Titmouse, she could have loved Mr. Gammon!

"I hope, Tabby," said Mrs. Tag-rag, with subdued excitement, as they rattled homeward, "that when you're Mrs. Titmouse, you'll bring your dear husband to hear Mr. Horror? You know, we ought to be grateful to the Lord—for He has done it!"

"La, ma, how can I tell?" quoth Miss Tag-rag, petulantly. "I must go where Mr. Titmouse chooses, of course; and no doubt he'll take sittings in one of the West End churches; you know, *you* go where *pa* goes—I go where Titmouse goes! But I *will* come sometimes, too—if it's only to show that I'm not above it, you know. La, what a stir there will be! The three

Miss Knipps—I do so hope they'll be there! I'll have your pew, ma, lined with red velvet; it will look so genteel."

"I'm not quite so sure, Tabby, though," interrupted her father, with a certain swell of manner, "that we shall, after a certain event, continue to live in these parts. There's such a thing as retiring from business, Tabby; besides, we shall nat'rally wish to be near you!"

"He's a *love* of a man, pa, isn't he?" interrupted Miss Tag-rag, with irrepressible excitement. Her father folded her in his arms. They could hardly believe that they had reached Satin Lodge. That respectable structure, somehow or other, now looked to the eyes of all of them shrunk into most contemptible dimensions; and they quite turned up their noses, involuntarily, on entering the little passage. What was it to the spacious and splendid residence which they had quitted? And what, in all probability, could *that* be to the mansion—or any one, perhaps, of the several mansions—to which Mr. Titmouse would be presently entitled, and—in his right—some one else?

Miss Tag-rag said her prayers that evening very briefly—pausing for an instant to consider, whether she might in plain terms pray that she might soon become Mrs. Titmouse; but the bare thought of such an event so excited her, that in a sort of confused whirl of delightful feeling, she suddenly jumped into bed, and slept scarce a wink all night long. Mr. and Mrs. Tag-rag talked together very fast for nearly a couple of hours, sleep long fleeing from the eyes dazzled with so splendid a vision as that which had floated before them all day. At length Mr. Tag-rag, getting tired sooner than his wife, became very sullen, and silent; and on her venturing—after a few minutes' pause—to mention some new idea which had occurred to her, he told her furiously to "hold her tongue, and let him go to sleep!" She obeyed him, and lay awake till it was broad daylight. About eight o'clock, Tag-rag, who had overslept himself, rudely roused her—imperiously telling her to "go down immediately and see about breakfast;" then he knocked gently at his daughter's door; and on her asking who it was, said in a fond way—"How are you, Mrs. T.?"

CHAPTER IV.

While the brilliant success of Tittlebat Titmouse was exciting so great a sensation among the inmates of Satin Lodge and Alibi House, there were also certain quarters in the upper regions of society, in which it produced a considerable commotion, and where it was contemplated with feelings of intense interest; nor without reason. For indeed to you, reflecting reader, much pondering men and manners, and observing the influence of great wealth, especially when suddenly and unexpectedly acquired, upon all classes of mankind—it would appear passing strange that so prodigious an event as that of an accession to a fortune of ten thousand a-year, and a large accumulation of money besides, could be looked on with indifference in those regions where MONEY

"Is like the air they breathe—if they have it not they die;"

in whose absence, all their "honor, love, obedience, troops of friends," disappear like snow under sunshine; the edifice of pomp, luxury, and magnificence that "rose like an exhalation," so disappears—

"And, like an insubstantial pageant faded,
Leaves not a rack behind."

Take away money, and that which raised its delicate and pampered possessors above the common condition of mankind—that of privation and incessant labor and anxiety—into one entirely artificial, engendering totally new wants and desires, is gone, all gone; and its occupants suddenly fall, as it were, through a highly rarefied atmosphere, breathless and dismayed, into contact with the chilling exigencies of life, of which till then they had only heard and read, sometimes with a kind of morbid sympathy; as we hear and read of a foreign country, not stirring the while from our snug homes, by whose comfortable and luxurious firesides we read of the frightful palsy cold of the polar regions, and for a moment sigh over and shudder at the condition of their miserable inhabitants, as vividly pictured to us by adventurous travellers.

If the reader had reverently cast his eye over the pages of that glittering centre of aristocratic literature, and inexhaustible solace against the *ennui* of a wet day—I mean *Debrett's Peerage*, his attention could not have failed to be riveted, among a galaxy of brilliant but minor stars, by the radiance of one transcendent constellation.

Behold; hush; tremble!

"AUGUSTUS MORTIMER PLANTAGENET FITZ-URSE, EARL OF DREDDLINGTON, VISCOUNT FITZ-URSE, AND BARON DRELINCOURT; KNIGHT OF THE GOLDEN FLEECE; G. C. B., D. C. L., F. C. S., F. P. S., &c., &c., &c.; Lieutenant-General in the army, Colonel of the 37th regiment of light dragoons; Lord Lieutenant of ——shire; elder brother of the Trinity House;

formerly Lord Steward of the Household; born the 31st of March, 17—; succeeded his father, PERCY CONSTANTINE FITZ-URSE, as fifth Earl, and twentieth in the Barony, January 10th, 17—; married, April 1, 17—, the Right Hon. Lady Philippa Emmeline Blanche Macspleuchan, daughter of Archibald, ninth Duke of Tantallan, K. T., and has issue an only child,

"CECILIA PHILIPPA LEOPOLDINA PLANTAGENET, born June 10, 17—.

"Town residence, Grosvenor Square.

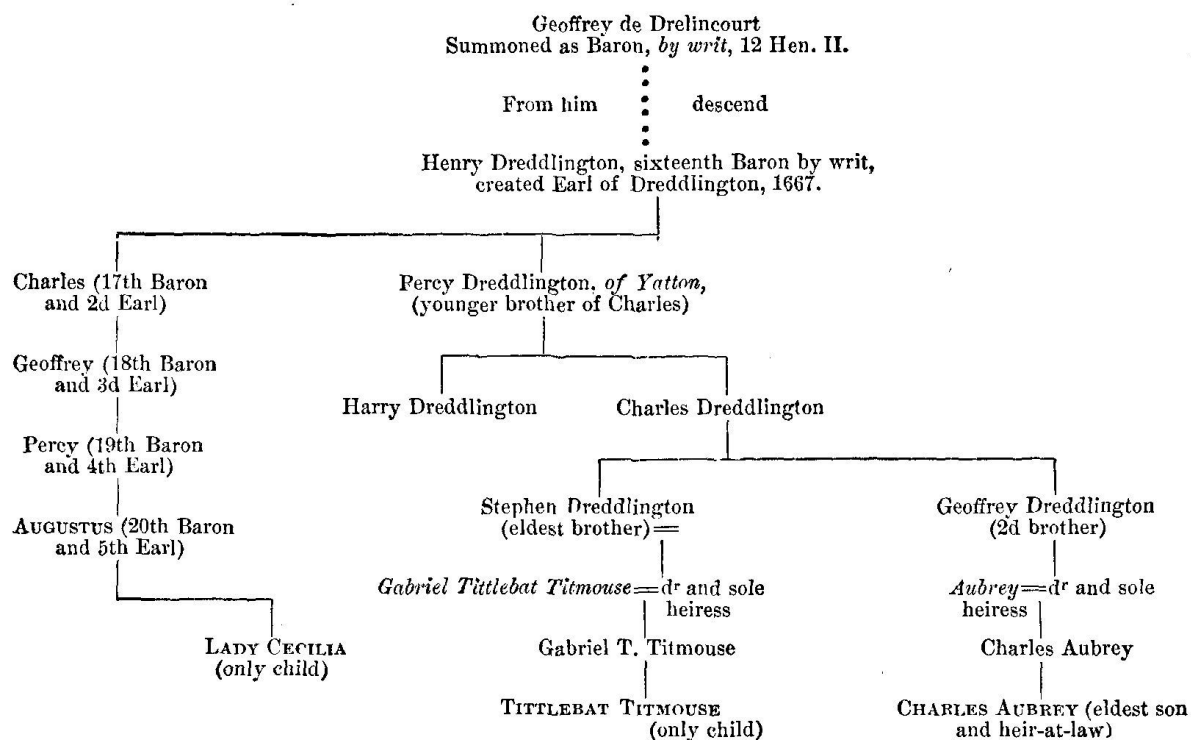
"Seats, Gruneaghoolaghan Castle, Galway; Tre-ardevoraveor Manor, Cornwall; Llmryllwcrwpplgilly Abbey, N. Wales; Tully-clachanach Palace, N. Britain; Poppleton Hall, Hertfordshire.

"Earldom, by patent, 1667; — Barony, by writ of summons, 12th Hen. II."

Now, as to the above tremendous list of seats and residences, be it observed that the existence of two of them, viz. Grosvenor Square and Poppleton Hall, was tolerably well ascertained by the residence of the august proprietor of them, and the expenditure therein of his princely revenue of £5,000 a-year. The existence of the remaining ones, however, the names of which the diligent chronicler has preserved with such scrupulous accuracy, had become somewhat problematical since the era of the civil wars, and the physical derangement of the surface of the earth in those parts, which one may conceive to have taken place^[11] consequent upon those events; those imposing feudal residences having been originally erected in positions so carefully selected with a view to their security against aggression, as to have become totally inaccessible—and indeed unknown, to the present inglorious and degenerate race, no longer animated by the spirit of chivalry and adventure.

[I have now recovered my breath, after my bold flight into the resplendent regions of aristocracy; but my eyes are still dazzled.]

The reader may by this time have got an intimation that Tittlebat Titmouse, in a madder freak of Fortune than any which her incomprehensible Ladyship hath hitherto exhibited in the pages of this history, is far on his way towards a dizzy pitch of elevation,—viz. that he has now, owing to the verdict of the Yorkshire jury, taken the place of Mr. Aubrey, and become heir-expectant to the oldest barony in the kingdom—between it and him only one old peer, and his sole child, an unmarried daughter, intervening. Behold the thing demonstrated to your very eye, in the Pedigree on the next page, which is only our former one^[12] a little extended.



From this I think it will appear, that on the death of Augustus, fifth earl and twentieth baron, with no other issue than Lady Cecilia, the earldom being then extinct, the barony would descend upon the Lady Cecilia; and that, in the event of her dying without issue in the lifetime of her father, Tittlebat Titmouse would, on the earl's death without other lawful issue, become LORD DRELINCOURT, twenty-first in the barony! and in the event of her dying without issue, after her father's death, TITTLEBAT TITMOUSE would become the twenty-second LORD DRELINCOURT; one or other of which two splendid positions, but for the enterprising agency of Messrs. Quirk, Gammon, and Snap, would have been occupied by CHARLES AUBREY, ESQ.;—on considering all which, one cannot but remember a saying of an ancient poet, who seems to have kept as keen an eye upon the unaccountable frolics of the goddess Fortune, as this history shows that I have. 'Tis a passage which any little schoolboy will translate to his mother or his sisters—

—"Hinc apicem rapax
Fortuna cum stridore acuto
Sustulit, hic posuisse gaudet."[\[13\]](#)

At the time of which I am writing, the Earl of Dreddlington was about sixty-seven years old; and he would have realized the idea of an incarnation of the sublimest PRIDE. He was of rather a slight make, and, though of a tolerably advanced age, stood as straight as an arrow.

His hair was glossy, and white as snow: his features were of an aristocratic cast; their expression was severe and haughty; and I am compelled to say that there was scarce a trace of intellect perceptible in them. His manner and demeanor were cold, imperturbable, inaccessible; wherever he went—so to speak—he radiated cold. Comparative poverty had embittered his spirit, as his lofty birth and ancient descent had generated the pride I have spoken of. With what calm and supreme self-satisfaction did he look down upon all lower in the peerage than himself! And as for a newly-created peer, he looked at such a being with ineffable disdain. Among his few equals he was affable enough; and among his inferiors he exhibited an insupportable appearance of condescension—one which excited a wise man's smile of pity and contempt, and a fool's anger—both, however, equally nought to the Earl of Dreddlington!—If any one could have ventured upon a *post mortem* examination of so august a structure as the earl's carcass, his heart would probably have been found to be of the size of a pea, and his brain very soft and flabby; both, however, equal to the small occasions which, from time to time, called for the exercise of their functions. The former was occupied almost exclusively by two feelings—love of himself and of his daughter, (because upon her would descend his barony;) the latter exhibited its powers (supposing the brain to be the seat of the mind) in mastering the military details requisite for nominal soldiership; the game of whist; the routine of petty business in the House of Lords; and the etiquette of the court. One branch of useful knowledge by the way he had, however, completely mastered—that which is so ably condensed in *Debrett*; and he became a sort of oracle in such matters. As for his politics, he professed Whig principles—and was, indeed, a bitter though quiet partisan. In attendance to his senatorial duties, he practised an exemplary punctuality; was always to be found in the House at its sitting and rising; and never once, on any occasion, great or small, voted against his party. He had never been heard to speak in a full House; first, because he never could summon nerve enough for the purpose; secondly, because he never had anything to say; and lastly, lest he should compromise his dignity, and destroy the *prestige* of his position, by not speaking better than any one present. His services were not, however, entirely overlooked; for, on his party coming into office for a few weeks, (they knew it could be for no longer a time,) they made him Lord Steward of the Household; which was thenceforward an epoch to which he referred every event of his life, great and small. The great object of his ambition, ever since he had been of an age to form large and comprehensive views of action and conduct, to conceive superior designs, and to achieve distinction among mankind—was, to obtain a step in the peerage; for considering the antiquity of his family, and his ample, nay, *superfluous* pecuniary means—so much more than adequate to support his present double dignity of earl and baron—he thought it but a reasonable return for his eminent political services, to confer upon him the honor which he coveted. But his anxiety on this point had been recently increased a thousand-fold by one circumstance. A gentleman who held an honorable and lucrative official situation in the House of Lords, and who never had treated the Earl of Dreddlington with that profound obsequiousness which the earl conceived to be his due—but, on the contrary, had presumed to consider himself a man, and an Englishman, equally with the earl—had, a short time before, succeeded in establishing his title to an earldom which had long been dormant, and was, alas, of creation earlier than that of Dreddlington. The Earl of Dreddlington took this untoward circumstance so much to heart, that for some months afterwards he appeared to be in a decline; always experiencing a dreadful inward spasm whenever the Earl of Fitzwalter

made his appearance in the House. For this sad state of things there was plainly but one remedy—a MARQUISATE—at which the earl gazed with the wistful eye of an old and feeble ape at a cocoa-nut, just above his reach, and which he beholds at length grasped and carried off by some nimbler and younger rival.

Among all the weighty cares and anxieties of this life, however, I must do the earl the justice to say, that he did not neglect the concerns of hereafter—the solemn realities of that Future revealed to us in the Scriptures. To his enlightened and comprehensive view of the state of things around him, it was evident that the Author of the world had decreed the existence of regular gradations of society. The following lines, quoted one night in the House by the leader of his party, had infinitely delighted the earl—

"Oh, where DEGREE is shaken,
Which is the ladder to all high designs,
The enterprise is sick!
Take but DEGREE away—untune that string,
And, hark! what discord follows! each thing meets,
In mere oppugnancy!"^[14]

When the earl discovered that this was the production of Shakespeare he conceived a great respect for that writer, and purchased a copy of his works, and had them splendidly bound. They were fated never to be opened, however, except at that one place where the famous passage in question was to be found. How great was the honor thus conferred upon the plebeian poet, to stand amid a collection of royal and noble authors, to whose productions, and those in elucidation and praise of them, the earl's splendid-looking library had till then been confined!—Since, thought the earl, such is clearly the order of Providence in this world, why should it not be so in the next? He felt certain that then there would be found corresponding differences and degrees, in analogy to the differences and degrees existing upon earth; and with this view had read and endeavored to comprehend the first page or two of a very dry but learned book—Butler's *Analogy*—lent him by a deceased kinsman—a bishop. This consolatory conclusion of the earl's was greatly strengthened by a passage of Scripture, from which he had once heard the aforesaid bishop preach—"In my Father's house are MANY MANSIONS; if it had not been so, I would have told you." On grounds such as these, after much conversation with several old brother peers of his own rank, he and they—those wise and good men—came to the conclusion that there was no real ground for apprehending so grievous a misfortune as the huddling together hereafter of the great and small into one miscellaneous and ill-assorted assemblage; but that the rules of precedence, in all their strictness, as being founded in the nature of things, would meet with an exact observance, so that every one should be ultimately and eternally happy—in the company of his equals. The Earl of Dreddlington would have, in fact, as soon supposed, with the deluded Indian, that in his voyage to the next world—

"His faithful dog should bear him company;"

as that his Lordship should be doomed to participate the same regions of heaven with any of his domestics; unless, indeed, by some, in his view, not improbable dispensation, it should

form an ingredient in their cup of happiness in the next world, there to perform those offices—or analogous ones—for their old masters, which they had performed upon earth. As the earl grew older, these just, and rational, and Scriptural views, became clearer, and his faith firmer. Indeed, it might be said that he was in a manner ripening for immortality—for which his noble and lofty nature, he secretly felt, was fitter, and more likely to be in its element, than it could possibly be in this dull, degraded, and confused world. He knew that there his sufferings in this inferior stage of existence would be richly recompensed,—for sufferings indeed he had, though secret, arising from the scanty means which had been allotted to him for the purpose of maintaining the exalted rank to which it had pleased God to call him. The long series of exquisite mortifications and pinching privations arising from this inadequacy of means, had, however, the earl doubted not, been designed by Providence as a trial of his constancy, and from which he would, in due time, issue like thrice-refined gold. Then also would doubtless be remembered in his favor the innumerable instances of his condescension in mingling, in the most open and courteous manner, with those who were unquestionably his inferiors, sacrificing his own feelings of lofty and fastidious exclusiveness, and endeavoring to advance the interests, and as far as influence and example went, polish and refine the manners of the lower orders of society. Such is an outline—alas, how faint and imperfect!—of the character of this great and good man, the Earl of Dreddlington. As for his domestic and family circumstances, he had been a widower for some fifteen years, his countess having brought him but one child, Lady Cecilia Philippa Leopoldina Plantagenet, who was, in almost all respects, the counterpart of her illustrious father. She resembled him not a little in feature, only that she partook of the plainness of her mother. Her complexion was delicately fair; but her features had no other expression than that of a languid hauteur. Her upper eyelids drooped as if she could hardly keep them open; the upper jaw projected considerably over the under one; and her front teeth were prominent and exposed. Frigid and inanimate, she seemed to take but little interest in anything on earth. In person, she was of average height, of slender and well-proportioned figure, and an erect and graceful carriage, only that she had a habit of throwing her head a little backward, which gave her a singularly disdainful appearance. She had reached her twenty-seventh year without having had an eligible offer of marriage, though she would be the possessor of a barony in her own right, and £5,000 a-year; a circumstance which, it may be believed, not a little embittered her. She inherited her father's pride in all its plenitude. You should have seen the haughty couple sitting silently side by side in the old-fashioned yellow family chariot, as they drove round the crowded park, returning the salutations of those they met in the slightest manner possible! A glimpse of them at such a moment would have given you a far more just and lively notion of their real character, than the most anxious and labored description of mine.

Ever since the first Earl of Dreddlington had, through a bitter pique conceived against his eldest son, the second earl, diverted the principal family revenues to the younger branch, leaving the title to be supported by only £5,000 a-year, there had been a complete estrangement between the elder and the younger—the titled and the moneyed—branches of the family. On Mr. Aubrey's attaining his majority, however, the present earl sanctioned overtures being made towards a reconciliation, being of opinion that Mr. Aubrey and Lady Cecilia might, by intermarriage, effect a happy reunion of family interests; an object, this, which had long lain nearer his heart than any other upon earth, till, in fact, it became a kind of passion. Actuated by such considerations, he had done more to conciliate Mr. Aubrey than

he had ever done towards any one on earth. It was, however, in vain. Mr. Aubrey's first delinquency was an unqualified adoption of Tory principles. Now all the Dreddlingtons, from time whereof the memory of man runneth not to the contrary, had been firm unflinching Tories, till the distinguished father of the present earl quietly walked over, one day, to the other side of the House of Lords, completely fascinated by a bit of ribbon which the minister held up before him; and ere he had sat in that wonder-working region, the ministerial side of the House, twenty-four hours, he discovered that the true signification of Tory, was *bigot*—and of Whig, *patriot*; and he stuck to that version till it transformed him into a GOLD STICK, in which capacity he died; having repeatedly and solemnly impressed upon his son, the necessity and advantage of taking the same view of public affairs, that so he might arrive at similar results. And in the way in which he had been *trained up*, most religiously had gone the earl; and see the result: he, also, had attained to eminent and responsible office—to wit, that of Lord Steward of the Household. Now, things standing thus—how could the earl so compromise his principles, and indirectly injure his party, as by suffering his daughter to marry a Tory? Great grief and vexation of spirit did *this* matter, therefore, occasion to that excellent nobleman. But, secondly, Aubrey not only declined to marry his cousin, but clinched his refusal, and sealed his final exclusion from the dawning good opinion and affections of the earl, by marrying, as hath been seen, some one else—Miss St. Clair. Thenceforth there was a great gulf between the Earl of Dreddlington and the Aubreys. Whenever they happened to meet, the earl greeted him with an elaborate bow, and a petrifying smile; but for the last seven years not one syllable had passed between them. As for Mr. Aubrey, he had never been otherwise than amused at the eccentric airs of his magnificent kinsman.—Now, was it not a hard thing for the earl to bear—namely, the prospect there was that his barony and estates might devolve upon this same Aubrey, or his issue? for Lady Cecilia, alas! enjoyed but precarious health, and her chances of marrying seemed daily diminishing. This was a thorn in the poor earl's flesh; a source of constant worry to him, sleeping and waking; and proud as he was, and with such good reason, he would have gone down on his knees and prayed to Heaven to avert so direful a calamity—to see his daughter married—and with a prospect of perpetuating upon the earth the sublime race of the Dreddlingtons.

Such being the relative position of Mr. Aubrey, and the Earl of Dreddlington, at the time when this history opens, it is easy for the reader to imagine the lively interest with which the earl first heard of the tidings that a stranger had set up a title to the whole of the Yatton estates; and the silent but profound anxiety with which he continued to regard the progress of the affair. He obtained, from time to time, by means of confidential inquiries instituted by his solicitor, a general notion of the nature of the new claimant's pretensions; but with a due degree of delicacy towards his unfortunate kinsman, his Lordship studiously concealed the interest he felt in so important a family question as the succession to the Yatton property. The earl and his daughter were exceedingly anxious to see the claimant; and when he heard that that claimant was a gentleman of "decided Whig principles"—the earl was very near setting it down as a sort of special interference of Providence in his favor; and one that, in the natural order of things, would lead to the accomplishment of his other wishes. Who could say that, before a twelvemonth had passed over, the two branches of the family might not be in a fair way of being reunited? And that thus, among other incidents, the earl would be invested with the virtual patronage of the borough of Yatton, and, in the event of their

return to power, his claim upon his party for his long-coveted marquisate rendered irresistible? He had gone to the Continent shortly before the trial of the ejectment at York; and did not return till a day or two after the Court of King's Bench had solemnly declared the validity of the plaintiff's title to the Yatton property, and consequently established his contingent right of succession to the barony of Drelincourt. Of this event a lengthened account was given in one of the Yorkshire papers which fell under the earl's eye the day after his arrival from abroad; and to the report of the decision of the question of law, was appended the following paragraph:—

"In consequence of the above decision, Mr. Aubrey, we are able to state on the best authority, has given formal notice of his intention to surrender the entire of the Yatton property without further litigation; thus making the promptest amends in his power to those whom he has—we cannot doubt unwittingly—injured. He has also accepted the Chiltern Hundreds, and has consequently retired from Parliament; so that the borough of Yatton is now vacant. We sincerely hope that the new proprietor of Yatton will either himself sit for the borough, and announce immediately his intention of doing so, or give his prompt and decisive support to some gentleman of decided Whig principles. We say *prompt*—for the enemy is vigilant and crafty. Men of Yatton! To the rescue!!!—Mr. Titmouse is now, we believe, in London. This fortunate gentleman is not only at this moment in possession of the fine property at Yatton, with an unencumbered rent-roll of from twelve to fifteen thousand a-year, and a vast accumulation of rents to be handed over by the late possessor, but is now next but one in succession to the earldom of Dreddlington and barony of Drelincourt, with the large family estates annexed thereto. We believe this is the oldest barony in the kingdom. It must be a source of great gratification to the present earl, to know that his probable successor professes the same liberal and enlightened political opinions, of which his Lordship has, during his long and distinguished public life, been so able, consistent, and uncompromising a supporter."

The Earl of Dreddlington was not a little flustered on seeing the above paragraph; which he read over half a dozen times with increasing excitement. The time had at length arrived for him to take decisive steps; nay, duty to his newly-discovered kinsman required it.

Messrs. Titmouse and Gammon were walking arm-in-arm down Oxford Street, on their return from some livery-stables, where they had been looking at a horse which Titmouse was thinking of purchasing, when an incident occurred which ruffled him not a little. He had been recognized and publicly accosted by a vulgar fellow, with a yard-measure in his hand, and a large parcel of drapery under his arm—in fact, by our old friend Mr. Huckaback. In vain did Mr. Titmouse affect, for some time, not to see his old acquaintance, and to be earnestly engaged in conversation with Mr. Gammon.

"Ah, Titty!—Titmouse! Well, then—*Mister* Titmouse—how are you?—Devilish long time since we met!" Titmouse directed a look at him which he wished could have blighted him, and quickened his pace without taking any further notice of the presumptuous intruder. Huckaback's blood was up, however—roused by this ungrateful and insolent treatment from

one who had been under such great obligations to him; and quickening *his* pace also, he kept alongside with Titmouse.

"Ah," continued Huckaback, "why do you cut me in this way, Titty? You *aren't* ashamed of me surely? Many's the time you've tramped up and down Oxford Street with your bundle and yard-measure"——

"Fellow!" at length exclaimed Titmouse, indignantly, "'pon my life I'll give you in charge if you go on so! Be off, you low fellow!—Dem vulgar brute!" he subjoined in a lower tone, bursting into perspiration, for he had not forgotten the insolent pertinacity of Huckaback's disposition.

"My eyes! Give me in charge? Come, I like that, rather—you vagabond! Pay me what you owe me! You're a swindler! You owe me fifty pounds, you do! You sent a man to rob me!"

"Will any one get a constable!" inquired Titmouse, who had grown as white as death. The little crowd that was collecting round them began to suspect, from Titmouse's agitated appearance, that there must be some foundation for the charges made against him.

"Oh, go, get a constable! Nothing I should like better! Ah, my fine gentleman—what's the time of day when chaps like you are wound up so high?"

Gammon's interference was in vain. Huckaback got more abusive and noisy; no constable was at hand; so, to escape the intolerable interruption and nuisance, he beckoned a coach off the stand, which was close by; and, Titmouse and he stepping into it, they were soon out of sight and hearing of Mr. Huckaback. Having taken a shilling drive, they alighted, and walked towards Covent Garden. As they approached the hotel, they observed a yellow chariot, at once elegant and somewhat old-fashioned, rolling away from the door.

"I wonder who that is," said Gammon; "it's an earl's coronet on the panel; and a white-haired old gentleman was sitting low down in the corner"——

"Ah—it's no doubt a fine thing to be a lord, and all that—but I'll answer for it, some of 'em's as poor as a church mouse," replied Titmouse as they entered the hotel. At that moment the waiter, with a most profound bow, presented him with a letter and a card, which had only the moment before been left for him. The card was thus:

THE EARL OF
DREDDLINGTON.

GROSVENOR SQUARE

and there was written on it, in pencil, in rather a feeble and hurried character—"For Mr. Titmouse."

"My stars, Mr. Gammon!" exclaimed Titmouse, excitedly, addressing Mr. Gammon, who also seemed greatly interested by the occurrence. They both repaired to a vacant table at the extremity of the room; and Titmouse, with not a little trepidation, hastily breaking a large

seal which bore the earl's family arms, with their crowded quarterings and grim supporters—better appreciated by Gammon, however, than by Titmouse—opened the ample envelope, and, unfolding its thick gilt-edged enclosure, read as follows:—

"The Earl of Dreddlington has the honor of waiting upon Mr. Titmouse, in whom he is very happy to have, though unexpectedly, discovered so near a kinsman. On the event which has brought this to pass, the earl congratulates himself not less than Mr. Titmouse, and hopes for the earliest opportunity of a personal introduction.

"The earl leaves town to-day and will not return till Monday next, on which day he begs the honor of Mr. Titmouse's company to dinner, at six o'clock. He may depend upon its being strictly a family *reunion*; the only person present, besides Mr. Titmouse and the earl, being the Lady Cecilia.

"Grosvenor Square, Thursday.

"TITTLEBAT TITMOUSE, ESQ., &c. &c."

As soon as Titmouse had read the above, still holding it in his hand, he gazed at Gammon with mute apprehension and delight. Of the existence, indeed, of the magnificent personage who had just introduced himself, Titmouse had certainly heard, from time to time, since the commencement of the proceedings which had just been so successfully terminated. He had seen the brightness, to be sure; but, as a sort of remote splendor, like that of a fixed star which gleamed brightly, but at too vast a distance to have any sensible influence, or even to arrest his attention. After a little while, Titmouse began to chatter very volubly; but Gammon, after reading over the note once or twice, seemed not much inclined for conversation: and, had Titmouse been accustomed to observation, he might have gathered, from the eye and brow of Gammon, that that gentleman's mind was very deeply occupied by some matter or other, probably suggested by the incident which had just taken place. Titmouse, by-and-by, called for pens, ink, and paper—"the very best gilt-edged paper, mind"—and prepared to reply to Lord Dreddlington's invitation. Gammon, however, who knew the peculiarities of his friend's style of correspondence, suggested that *he* should draw up, and Titmouse copy the following note. This was presently done; but when Gammon observed how thickly studded it was with capital letters, the numerous flourishes with which it was garnished, and its more than questionable orthography, he prevailed on Titmouse, after some little difficulty, to allow him to transcribe the note which was to be sent to Lord Dreddlington. Here is a copy of that courteous document:—

"Mr. Titmouse begs to present his compliments to the Earl of Dreddlington, and to express the high sense he entertains of the kind consideration evinced by his Lordship in his call and note of to-day.

"One of the most gratifying circumstances connected with Mr. Titmouse's recent success, is the distinguished alliance which his Lordship has been so prompt and courteous in recognizing. Mr. Titmouse will feel the greatest pleasure in availing himself of the Earl of Dreddlington's invitation to dinner for Monday next.

"Cabbage-Stalk Hotel, Thursday.

"The Right Honble. the EARL OF DREDDLINGTON, &c., &c."

"Have you a 'Peerage' here, waiter?" inquired Gammon, as the waiter brought him a lighted taper. *Debrett* was shortly laid before him; and turning to the name of Dreddlington, he read over the paragraph which had been already laid before the reader. "Humph—'*Lady Cecilia*'—here she is—his *daughter*—I thought as much—I see!" This was what passed through his mind, as—having left Titmouse, who set off to deposit a card and the above "Answer" at Lord Dreddlington's—he made his way towards the delectable regions in which their office was situated—Saffron Hill. "'Tis curious—amusing—interesting, to observe the social progress of this charming little fellow"—continued Gammon to himself—

"*Tag-rag*—and his daughter;

"*Quirk*—and his daughter;

"*The Earl of Dreddlington*—and his daughter. How many more? Happy! happy! happy Titmouse!"

The sun which was rising upon Titmouse was setting upon the Aubreys. Dear, delightful—now too dear, now too delightful—Yatton! the shades of evening are descending upon thee, and thy virtuous but afflicted occupants, who, early on the morrow, quit thee forever. Approach silently you conservatory. Behold, in the midst of it, the dark slight figure of a lady, solitary, motionless, in melancholy attitude—her hands clasped before her: it is Miss Aubrey. Her face is beautiful, but grief is in her eye; and her bosom heaves with sighs, which, gentle though they be, are yet the only sounds audible. Yes, that is the sweet and once joyous Kate Aubrey!

'Twas she indeed; and this was her last visit to her conservatory. Many rare, delicate, and beautiful flowers were there. The air was laden with the fragrant odors which they exhaled, as it were in sighs, on account of the dreaded departure of their lovely mistress. At length she stooped down, and, in stooping, a tear fell right upon the small sprig of geranium which she gently detached from its stem, and placed in her bosom. "Sweet flowers," thought she, "who will tend you as I have tended you, when I am gone? Why do you look now more beautiful than ever you did before?"—Her eye presently fell upon the spot on which, till the day before, had stood her aviary. Poor Kate had sent it, as a present, to Lady De la Zouch, and it was then at Fotheringham Castle. What a flutter there used to be among the beautiful little creatures, when they perceived Kate's approach! She turned her head away. She felt oppressed, and attributed it to the closeness of the conservatory—the strength of the odors given out by the numerous flowers; but it was sorrow that oppressed her; and she was in a state at once of mental excitement and physical exhaustion. The last few weeks had been an interval of exquisite suffering. She could not be happy alone, nor yet bear the company of her brother and sister-in-law, or their innocent and lovely children. Quitting the conservatory with a look of lingering fondness, she passed along into the house with a hurried step, and escaped, unobserved, to her chamber—the very chamber in which the reader obtained his first distant and shadowy glimpse of her; and in which, now entering it silently and suddenly, the door being only closed, not shut, she observed her faithful little maid Harriet, sitting in tears before a melancholy heap of packages prepared for travelling on the morrow.

She rose as Miss Aubrey entered, and presently exclaimed passionately, bursting afresh into tears, "Ma'am, I *can't* leave you—indeed I can't! I know all your ways; I won't go to any one else! I shall hate service! and I know they'll hate *me* too; for I shall cry myself to death!"

"Come, come, Harriet," faltered Miss Aubrey, "this is very foolish; nay, it is unkind to distress me in this manner at the last moment."

"Oh, ma'am, if you *did* but know how I love you! How I'd go on my knees to serve you all the rest of the days of my life!"

"Don't talk in that way, Harriet; that's a good girl," said Miss Aubrey, rather faintly, and, sinking into the chair, she buried her face in her handkerchief, "you know I've had a great deal to go through, Harriet, and am in very poor spirits."

"I know it, ma'am, I do; and that's why I can't *bear* to leave you!" She sank on her knees beside Miss Aubrey. "Oh, ma'am, if you would but let me stay with you! I've been trying, ever since you first told me, to make up my mind to part with you, and, now it's coming to the time, I *can't*, ma'am—indeed, I can't! If you did but know, ma'am, what my thoughts have been, while I've been folding and packing up your dresses here! To think that I sha'n't be with you to unpack them! It's very hard, ma'am, that Madam's maid is to go with her, and I'm not to go with *you*!"

"We were obliged to make a choice, Harriet," said Miss Aubrey, with forced calmness.

"Yes, ma'am; but why didn't you choose us both? Because we've both always done our best; and, as for me, you've never spoke an unkind word to me in your life"——

"Harriet, Harriet," said Miss Aubrey, tremulously, "I've several times explained to you that we cannot any longer afford each to have our own maid; and Mrs. Aubrey's maid is older than you, and knows how to manage children"——

"What signifies *affording*, ma'am? Neither she nor I will ever take a shilling of wages; I'd really rather serve you for nothing, ma'am, than any other lady for a hundred pounds a-year! Oh, so happy as I've been in your service, ma'am!" she added hastily, and burst into an agony of weeping.

"Don't, Harriet!—You would not, if you knew the pain you give me," said Miss Aubrey, faintly. Harriet perceived Miss Aubrey's ill-concealed agitation; and starting aside, poured out a glass of water, and forced her pale mistress to swallow a little, which presently revived her.

"Harriet," said she, feebly, but firmly, "you have never once disobeyed me, and *now* I am certain that you will not. I assure you that we have made all our arrangements, and cannot alter them. I have been very fortunate in obtaining for you so kind a mistress as Lady Stratton. Remember, Harriet, she was the oldest bosom friend of my"——Miss Aubrey's voice trembled, and she ceased speaking for a minute or two, during which she struggled against her feelings with momentary success. "Here's the prayer-book," she presently resumed, opening a drawer in her dressing-table, and taking out a small volume—"Here's the prayer-book I promised you; it is very prettily bound, and I have written your name in it, Harriet, as you desired. Take it, and keep it for my sake. Will you?"

"Oh, ma'am," replied the girl, bitterly, "I shall never bear to look at it! And yet I'll never part with it till I die!"

"Now leave me, Harriet, for a short time—I wish to be alone," said Miss Aubrey; and she was obeyed. She presently rose and bolted the door; and then, secure from interruption, walked slowly to and fro for some time; and a long and deep current of melancholy thoughts and feelings flowed through her mind and heart. She had but a short time before seen her sister's sweet children put into their little beds for the last time at Yatton; and together with their mother, had hung fondly over them, kissing and embracing them—their destined little fellow-wanderers—till her feelings compelled her to leave them. One by one, all the dear innumerable ties which had attached her to Yatton, and to everything connected with it, ever since her birth, had been severed and broken—ties, not only the strength, but very existence of which, she had scarce been aware of, till then. She had bade—as had all of them—repeated and agonizing farewells to very dear and old friends. Her heart trembled as she gazed at the objects familiar to her eye, and pregnant with innumerable little softening associations, ever since her infancy. Nothing around them now belonged to *them*—but to a stranger—to one who—she shuddered with disgust. She thought of the fearful position in which her brother was placed—entirely at the mercy of, it might be, selfish and rapacious men—what indeed was to become of all of them? At length she threw herself into the large old easy-chair which stood near the window, and with a fluttering heart and hasty tremulous hand, drew an open letter from her bosom. She held it for some moments, as if dreading again to peruse it—but at length unfolded and read a portion of it. 'Twas full of fervent and at the same time delicate expressions of fondness; and after a short while, her hand dropped, with the letter, upon her lap, and she burst into a passionate flood of tears. After an interval of several minutes, she again took up the letter—read a little farther—still more and more moved by the generous and noble sentiments it contained—and at length, utterly overcome, she again dropped her hand, and sobbed aloud long and vehemently. "It cannot—cannot—no, it *cannot* be," she murmured; and, yielding to her feelings for a long while, her tears showered down her pallid, beautiful cheeks.

At length, having resumed her perusal of the letter, she came to the conclusion. In a kind of agony she pressed the signature to her lips; and then hastily folding up the letter, replaced it whence she had taken it, and continued sobbing bitterly. Alas, what additional poignancy did this give to the agonies of her last evening at Yatton! She had, however, become somewhat calmer by the time that she heard the door hastily, but gently tapped at, and then attempted to be opened. Miss Aubrey rose and unbolted it, and Mrs. Aubrey entered, her beautiful countenance as pale and sad as that of her sister-in-law. The former, however, was both wife and mother; and the various cares which these relations had entailed upon her, at a bitter moment like the present, served in some measure to occupy her thoughts, and prevent her from being absorbed by the heart-breaking circumstances which surrounded her. Suffering had, however, a little impaired her beauty; her cheek was very pale, and her eye and brow were laden with trouble.

"Kate, dear Kate," said she, rather quickly, closing the door after her, "what is to be done? Did you hear carriage-wheels a few moments ago? Who do you think have arrived? As I fancied would be the case, the De la Zouches!" Miss Aubrey trembled and turned pale. "You must see—you *must* see—Lady De la Zouch, Kate—they have driven from Fotheringham

on purpose to take—*once more*—a last farewell! 'Tis very painful, but what can be done? You know what dear, dear, good friends they are!"

"Is Lord De la Zouch come, also?" inquired Miss Aubrey, apprehensively.

"I will not deceive you, dearest Kate, they are *all* come; but *she*, only, is in the house: they are gone out to look for Charles, who is walking in the park." Miss Aubrey trembled violently; and after evidently a severe struggle with her feelings, the color having entirely deserted her face, and left it of an ashy whiteness, "I cannot muster up resolution enough, Agnes," she whispered. "I know their errand!"

"Care not about their errand, love!" said Mrs. Aubrey, embracing her fondly. "You shall not be troubled—you shall not be persecuted." Miss Aubrey shook her head, and grasped Mrs. Aubrey's hand.

"They do not, Agnes, they *cannot* persecute me," replied Miss Aubrey, with energy. "It is a cruel and harsh word to use—and!—consider how noble, how disinterested is their conduct; *that* it is which subdues me!"

Mrs. Aubrey embraced still more closely her agitated sister-in-law, and tenderly kissed her forehead.

"Oh, Agnes!" faltered Miss Aubrey, pressing her hand upon her heart to relieve the intolerable oppression which she suffered—"would to Heaven that I had never seen—never thought of him!"

"Don't fear, Kate! that he will attempt to see you on so sad an occasion as this. Delamere is a man of infinite delicacy and generosity!"

"I know he is—I know he is," gasped Miss Aubrey, almost suffocated with her emotions.

"Stay, I'll tell you what to do; I'll go down and return with Lady De la Zouch: we can see her here, undisturbed and alone, for a few moments; and then, nothing painful *can* occur. Shall I bring her?" she inquired, rising. Miss Aubrey did not dissent; and, within a very few minutes' time, Mrs. Aubrey returned, accompanied by Lady De la Zouch. She was rather an elderly woman. Her countenance was still handsome; and she possessed a very dignified carriage. She was of an extremely affectionate disposition, and passionately fond of Miss Aubrey. Hastily drawing aside her veil as she entered the room, she stepped quickly up to Miss Aubrey, kissed her, and grasped her hands, for some moments, in silence.

"This is very sad work, Miss Aubrey," said she at length, hurriedly glancing at the luggage lying piled up at the other end of the room. Miss Aubrey made no answer, but shook her head. "It was useless attempting it, dear Kate—we *could* not stay at home; we have risked being charged with cruel intrusion; forgive me, dearest, will you? *They*," said Lady De la Zouch, pointedly, "will not come near you!" Miss Aubrey trembled. "I feel as if I were parting with an only daughter, Kate," said Lady De la Zouch, with sudden emotion. "How your mamma and I loved one another!" said she, fondly, and burst into tears.

"For mercy's sake, open the window; I feel suffocated," faltered Miss Aubrey. Mrs. Aubrey hastily drew up the window, and the cool refreshing breeze of evening quickly diffused itself through the apartment, and revived the drooping spirits of Miss Aubrey, who walked gently

to and fro about the room, supported by Lady De la Zouch and Mrs. Aubrey, and soon recovered a tolerable degree of composure. The three ladies presently stood, arm-in-arm, gazing through the deep bay-window at the fine prospect which it commanded. The gloom of evening was beginning to steal over the landscape.

"How beautiful!" exclaimed Miss Aubrey, faintly, with a deep sigh.

"The window in the northern tower of the Castle commands a still more extensive view," said Lady De la Zouch, looking earnestly at Miss Aubrey, who, as if conscious of some agitating allusion, burst into tears. After standing gazing through the window for some time longer, they stepped back into the room, and were soon engaged in deep and earnest conversation.

For the last three weeks Mr. Aubrey had addressed himself with calmness and energy to the painful duties which had devolved upon him, of *setting his house in order*. Immediately after quitting the dinner-table that day—a mere nominal meal to all of them—he had retired to the library, to complete the extensive and important arrangements consequent upon his abandonment of Yatton; and after about an hour thus occupied, he went forth to take a solitary walk—a melancholy—a last walk about the property. It was a moment which severely tried his fortitude; but that fortitude stood the trial. He was a man of lively sensibilities, and appreciated, to its utmost extent, the melancholy and alarming change which had come over his fortunes. Surely even the bluntest and coarsest feelings which ever tried to disguise and dignify themselves under the name of STOICISM—to convert into bravery, and fortitude, a stupid, sullen insensibility—must have been not a little shaken by such scenes as Mr. Aubrey had had to pass through during the last few weeks—scenes which I do not choose to distress the reader's feelings by dwelling upon in detail. Mr. Aubrey had no mean pretensions to real philosophy; but he had still juster pretensions to an infinitely higher character,—that of a CHRISTIAN. He had a firm unwavering conviction that whatever befell him, either of good or evil, was by the ordination of the Almighty—ininitely Wise, infinitely Good;—and this was the source of his fortitude and resignation. He felt himself here standing upon ground which was immovable.

To avert the misfortune which menaced him, he had neglected no rational and *conscientious* means. To retain the advantages of fortune and station to which he had believed himself born, he had made the most strenuous exertions consistent with a rigid sense of honor. What, indeed, *could* he have done, that he *had* not done? He had caused the claims of his opponent to be subjected to as severe a scrutiny as the wit of man could suggest; *and they had stood the test*. Those claims, and his own, had been each of them placed in the scales of justice; those scales had been held up and poised by the pure and firm hands to which the laws of God, and of the country, had committed the administration of justice: on what ground could a just and reasonable man quarrel with or repine at the issue? And supposing that a perverse and subtle ingenuity in his legal advisers could have devised means for delaying his surrender of the property to the individual who had been solemnly declared its true owner, what real and ultimate advantage could have been obtained by such a dishonorable line of conduct? Could the spirit of the CHRISTIAN RELIGION tolerate the bare idea of it? Could such purposes or intentions consist for one instant with the consciousness that the awful eye of God was always upon every thought of his mind, every feeling of his heart, every purpose of

his will? A thorough and lively conviction of God's moral government of the world secured Aubrey a happy composure—a glorious and immovable resolution. It enabled him to form a true estimate of things; it extracted the sting from grief and regret; it dispelled the gloom which would otherwise have settled portentously upon the future. Thus he had not *forgotten the exhortation which spoke unto him, as unto a child: My son, despise not thou the chastening of the Lord, nor faint when thou art rebuked of him.* And if, indeed, religion had not done this for Mr. Aubrey, what *could* it have done, what would it have been worth? It would indeed have been that which dull fools suppose it—a mere name, a melancholy delusion. What hopeless and lamentable imbecility would it not have argued, to have acknowledged the reality and influence of religion in the hour of prosperity—and to have doubted, distrusted, or denied it in the hour of adversity? When a child beholds the sun obscured by dark clouds, he may think in his simplicity that it is gone forever; but a MAN knows that behind is the sun, magnificent as ever; and that the next moment, the clouds having rolled away, its glorious warmth and light are again upon the earth. Thus is it, thought Aubrey with humble but cheerful confidence, with the Almighty—who hath declared himself *the Father of the spirits of all flesh*—

"Behind a frowning Providence
He hides a smiling face!
Blind unbelief is sure to err,
And scan His works in vain!
God is His own interpreter,
And He will make it plain!"

"Therefore, O my God!" thought Aubrey, as he gazed upon the lovely scenes familiar to him from his birth, and from which a few short hours were to separate him forever, "I do acknowledge Thy hand in what has befallen me, and Thy mercy which enables me to bear it, as from Thee." The scene around him was tranquil and beautiful—inexpressibly beautiful. He stood under the shadow of a mighty elm-tree, the last of a long and noble avenue, which he had been pacing in deep thought for upwards of an hour. The ground was considerably elevated above the level of the rest of the park. No sound disturbed the serene repose of the approaching evening, except the distant and gradually diminishing sounds issuing from an old rookery, and the faint low bubbling of a clear streamlet which flowed not far from where he stood. Here and there, under the deepening shadows cast by the lofty trees, might be seen the glancing forms of deer, the only live things visible. "Life," said Aubrey, to himself, with a sigh, as he leaned against the trunk of the grand old tree under which he stood, and gazed with a fond and mournful eye on the lovely scenes stretching before him, to which the subdued radiance of the departing sunlight communicated a tone of tender pensiveness; "life is, in truth, what the Scripture—what the voice of nature—represents it—a long journey, during which the traveller stops at many resting places. Some of them are more, others less beautiful; from some he parts with more, from others with less regret; but *part he must*, and pursue his journey, though he may often turn back to gaze with lingering fondness and admiration at the scene which he has last quitted. The next stage may be—as *all his journey might have been*—bleak and desolate; but, through *that* he is only passing: he will not be condemned to stay in it, as he was not permitted to dwell in the other; he is still journeying

on, along a route which he cannot mistake, to the point of his destination, his journey's end—the shores of the vast, immeasurable, boundless ocean of eternity—HIS HOME!"

The deepening shadows of evening warned him to retrace his steps to the Hall. Before quitting the spot upon which he had been so long standing, he turned his head a little towards the right, to take a last view of an object which called forth tender and painful feeling—it was the old sycamore which his sister's intercession had saved from the axe. There it stood, feeble and venerable object! its leafless silvery-gray branches becoming in the fading light, dim and indistinct, yet contrasting touchingly with the verdant strength of those near it. A neat strong fence had been placed around it; but how much longer would it receive such care and attention? Aubrey thought of the comparison which had on a former occasion been made by his sister; and sighed heavily as he looked his last at the old tree. Then he slowly walked on towards the Hall. When about halfway down the avenue, he beheld two figures apparently approaching him, but undistinguishable in the gloom and the distance. As they neared him, he recognized Lord De la Zouch, and Mr. Delamere. Suspecting the object of their visit, which a little surprised him, since they had taken a final leave, and a very affecting one, the day before, he felt a little anxiety and embarrassment. Nor was he entirely mistaken. Lord De la Zouch, who advanced alone towards Aubrey—Mr. Delamere turning back—most seriously pressed his son's suit for the hand of Miss Aubrey, as he had often done before; declaring, that though undoubtedly he wished a year or two first to elapse, during which his son might complete his studies at Oxford, there was no object dearer to the heart of Lady De la Zouch and himself, than to see Miss Aubrey become their daughter-in-law. "Where," said Lord De la Zouch, with much energy, "is he to look elsewhere for such an union of beauty, of accomplishments, of amiability, of high-mindedness?" After a great deal of animated conversation on this subject, during which Mr. Aubrey assured Lord De la Zouch that *he* would say everything which he honorably could to induce his sister to entertain, or at all events, not to discard the suit of Delamere; at the same time reminding him of the firmness of her character, and the hopelessness of attempting to change any determination to which she might have been led by her sense of delicacy and honor,—Lord De la Zouch addressed himself in a very earnest manner to matters more immediately relating to the personal interests of Mr. Aubrey; entered with lively anxiety into all his future plans and purposes; and once more pressed upon him the acceptance of most munificent offers of pecuniary assistance, which, with many fervent expressions of gratitude, Aubrey again declined. But he pledged himself to communicate freely with Lord De la Zouch, in the event of an occasion arising for such assistance as his Lordship had already so generously volunteered. By this time Mr. Delamere had joined them, regarding Mr. Aubrey with infinite earnestness and apprehension. All, however, he said, was—and in a hurried manner to his father—"My mother is waiting for you in the carriage, and wishes that we should immediately return." Lord De la Zouch and his son again took leave of Mr. Aubrey. "Remember, my dear Aubrey, remember the pledges you have repeated this evening," said the former. "I do, I will!" replied Mr. Aubrey, as they each wrung his hands; and then, having grasped those of Lady De la Zouch, who sat within the carriage powerfully affected, the door was shut; and they were quickly borne away from the presence and the residence of their afflicted friends. While Mr. Aubrey stood gazing after them, with folded arms, in an attitude of melancholy abstraction, at the Hall door, he was accosted by Dr. Tatham, who had come to him from the library, where he had been, till a short time before,

busily engaged reducing into writing various matters which had been the subject of conversation between himself and Mr. Aubrey during the day.

"I am afraid, my dear friend," said the doctor, "that there is a painful but interesting scene awaiting you. You will not, I am sure, forbear to gratify, by your momentary presence in the servants' hall, a body of your tenantry, who are there assembled, having come to pay you—good souls!—their parting respects."

"I would really rather be spared the painful scene," said Mr. Aubrey, with emotion. "I am nearly unnerved as it is! Cannot you bid them adieu, in my name? and say God bless them!"

"You *must* come, my dear friend! If it *be* painful, it will be but for a moment; and the recollection of their hearty and humble expressions of affection and respect will be pleasant hereafter. Poor souls!" he added with not a little emotion, "you should see how crowded is Mr. Griffiths' room with the presents they have each brought you, and which would surely keep your whole establishment for months!—Cheeses, tongues, hams, bacon, and I know not what beside!"

"Come, Doctor," said Mr. Aubrey, quickly, and with evidently a great effort, "I will see them, my humble and worthy friends! if it *be* but for a moment; but I would rather have been spared the scene." He followed Dr. Tatham into the spacious servants' hall, which he found nearly filled by some forty or fifty of his late tenantry, who, as he entered, rose in troubled silence to receive him. There were lights, by which a hurried glance sufficed to show him the deep sorrow visible in their countenances. "Well, sir," commenced one of them, after a moment's hesitation—he seemed to have been chosen the spokesman of those present—"we've come to tak' our leave; and a sad time it be for all of us, and it may be, sir, for you." He paused, and added abruptly—"I thought I could have said a word or two, sir, in the name of all of us, but I've clean forgotten all; and I wish we could all forget that we were come to part with you, sir;—but we sha'n't—no, never!—we shall never see your like again, sir! God help you, sir!" Again he paused, and struggled hard to conceal his emotions. Then he tried to say something further, but his voice failed him.

"Squire, it may be law; but it be not justice, we all do think, that hath taken Yatton from you, that was born to it," said one, who stood next to him who had first spoken. "Who ever heard o' a scratch in a bit of paper signifying the loss o' so much? It never were heard of afore, sir, an' cannot be right!"

"You'll forgive me, Squire," said another, "but we shall never tak' to t'new one that's coming after you!"

"My worthy—my dear friends," commenced Mr. Aubrey, with melancholy and forced composure, as he stood beside Dr. Tatham, "this is a sad trial to me—one which I had not expected, and am quite unprepared for. I have had lately to go through many very painful scenes; but few more so than the present. My dear friends, I can only say from my heart, God bless you all! I shall never forget you, whom I have always respected, and indeed been very proud of, as my tenantry, and whom I now, of course, look at as my friends only. We shall *never* forget you"——

"Lord Almighty bless you, sir, and Madam and Miss, and little Miss—and the little squire!" said a voice, in a vehement manner, from amid the throng, in tones which went to Mr.

Aubrey's heart. His lips quivered, and he ceased speaking for some moments. At length he resumed.

"You see my feelings are a little shaken by the sufferings which I have gone through. I have only a word more to say to you. Providence has seen fit, my friends, to deprive me of that which I had deemed to be my birthright. God is good and wise; and I bow, as we must all bow, to His will with reverence and resignation. And also, my dear friends, let us always submit cheerfully to the laws under which we live. We must not quarrel with their decision, merely because it happens to be adverse to our own wishes. I, from my heart—and so must you, from yours—acknowledge a firm, unshaken allegiance to the laws; they are ordained by God, and He demands our obedience to them! society cannot exist without them"—He paused. "I have to thank you," he presently added in a subdued tone, "my worthy friends, for many substantial tokens of your good-will, brought with you this evening. I assure you sincerely that I value them far more"—he paused, and it was some moments before he could proceed—"than if they had been of the most costly and splendid description"——

"Lord, only hearken to t'squire!" called out a voice, as if on an impulse of eager affection, which its rough, honest speaker could not resist. This seemed entirely to deprive Mr. Aubrey of the power of utterance, and he turned suddenly towards Dr. Tatham with an overflowing eye and a convulsive quivering of the lips which showed the powerful emotions with which he was contending. The next moment he stepped forward and shook hands with those nearest. He was quickly surrounded, and every one present grasped his hands, scarcely any of them able to utter more than a brief but fervent "God bless you, sir!"

"I am sure, my friends," said Dr. Tatham, almost as much affected as any of them, "that you cannot wish to prolong so afflicting a scene as this. Mr. Aubrey is much exhausted, and has a long journey to take early in the morning—and you had better now leave."

"Farewell! farewell, my kind and dear friends, farewell!—May God bless you all, and all your families!" said Mr. Aubrey; and, most powerfully affected, withdrew from a scene which he was not likely ever to forget. He retired, accompanied by Dr. Tatham, to his library; where Mr. Griffiths, his steward, was in readiness to receive his signature to various documents. This done, the steward, after a few hurried expressions of affection and respect, withdrew; and Mr. Aubrey had then completed all the arrangements, and transacted all the business, which had required his attention before quitting Yatton: which, at an early hour in the morning, he was going to leave; having determined to go direct to London, instead of accepting any of the numerous offers which he had received from his friends in the neighborhood, to take up with them his abode for, at all events, some considerable period. That, however, would have been entirely inconsistent with the plans for his future life, which he had formed and matured. He left the whole estate in admirable order and condition. There was not a farm vacant, not a tenant dissatisfied with the terms under which he held. Every document, all the accounts connected with the estate, after having been carefully examined by Mr. Parkinson, and Mr. Aubrey, and Mr. Griffiths, were in readiness for the most scrupulous and searching investigation on the part of Mr. Aubrey's successor and his agents.

Mr. Aubrey's library was already carefully packed up, and was to follow him, on the ensuing day, to London, by water, as also were several portions of the furniture—the residue of

which was to be sold off within a day or two's time. How difficult—how very difficult had it been for them to choose which articles they would part with, and which retain! The favorite old high-backed easy-chair, which had been worked by Miss Aubrey herself; the beautiful ebony cabinet, which had been given by her father to her mother, who had given it to Kate; the little chairs of Charles and Agnes—and in which Mr. Aubrey and Kate, and all their brothers and sisters—long since deceased—had sat when children; Mrs. Aubrey's piano; these, and a few other articles, had been successfully pleaded for by Mrs. Aubrey and Kate, and were to accompany or rather follow them to London, instead of passing, by the auctioneer's hammer, into the hands of strangers. The two carriage-horses, which had drawn old Mrs. Aubrey in the family coach for many years, were to be turned to grass, for the rest of their days, at Lady Stratton's. Poor old Peggy was, in like manner, to have to herself a little field belonging to Dr. Tatham. Little Charles's pony, a beautiful animal, and most reluctantly parted with, was sent as a present, in his name, to little Sir Harry Oldfield, one of his play-fellows. Hector, the magnificent Newfoundland dog, was, at the vehement instance of Pumpkin, the gardener, who had almost gone upon his knees to beg for the animal, and declared that he loved the creature like a son—as I verily believe he did, for they were inseparable, and their attachment was mutual—given up to him, on his solemn promise to take great care of him. Then there was a poor animal which they hardly knew how to dispose of. It was a fine old favorite staghound, stone-blind, quite gray about the head, and so very feeble, that it could but just crawl in and out of its commodious kennel, and lie basking in the genial sunshine; wagging its tail when any one spoke to it, and affectionately licking the hand that patted it. Thus had it treated Mr. Aubrey, that very morning, as he stood by, and stooped down to caress it for the last time. It was, at his earnest request, assigned to Dr. Tatham, kennel and all; indeed the worthy little doctor would have crammed the whole of his little premises in a similar way, in order to have the more "keepsakes" and "memorials" of his friends. Miss Aubrey's beautiful Blenheim spaniel, with its brilliant black eyes, and long glossy graceful ears, was to accompany her to London.

As for the servants—the housekeeper was going to keep the house of her brother, a widower, at Grilston, and the butler was going to marry, and quit service. As for the rest, Mr. Parkinson had, at Mr. Aubrey's desire, written about them to Messrs. Quirk, Gammon, and Snap; and Mr. Gammon had sent word that such members of the establishment as chose, might continue at Yatton, at all events till the pleasure of Mr. Titmouse, upon the subject, should have been known. All the servants had received a quarter's wages that morning from Mr. Griffiths, in the presence of Mr. Aubrey, who spoke kindly to each, and earnestly recommended them to conduct themselves respectfully towards his successor. Scarce any of them could answer him, otherwise than by an humble bow, or courtesy, accompanied by sobs and tears. One of them did contrive to speak, and passionately expressed a wish that the first morsel Mr. Titmouse ate in the house might choke him—a sally which received so very grave a rebuke from Mr. Aubrey, as brought the hasty offender to her knees, begging forgiveness; which, I need hardly say, she received, but with a very serious admonition. Many of them most vehemently entreated to be allowed to accompany Mr. Aubrey and his family to London, and continue in their service, but in vain. Mr. Aubrey had made his selection, having taken only his own valet, and Mrs. Aubrey's maid, and one of the nursery-maids, and declaring that on no consideration would he think of being accompanied by any other of the servants.

There were some twenty or thirty poor old infirm cottagers, men and women, who had been for years weekly pensioners on the bounty of Yatton, and respecting whom Mr. Aubrey felt a painful anxiety. What could he do? He gave the sum of fifty pounds to Dr. Tatham for their use; and requested him to press their claims earnestly upon the new proprietor of Yatton. He also wrote almost as many letters, as there were of these poor people, on their behalf to his friends and neighbors. Oh, it was a moving scene which had occurred at each of their little cottages, when their benefactors, Mr. Aubrey, his wife, and sister, severally called to bid them farewell, and receive their humble and tearful blessings! But it was the parting with her school, which neither Kate nor her brother saw any probability of being kept up longer than for a month or two after their departure, which had occasioned Kate the greatest distress. There were several reasons, which will occur to the reader, why no application could be made, about the matter, from her, or on her account, to Mr. Titmouse; even if she had not had reason to anticipate, from what she had heard of his character, that he was a person unlikely to feel any interest in such an institution. Nor had she liked to trouble or burden the friends whom she left behind her, with the responsibility of supporting and superintending her little establishment. She had nothing for it, therefore, but to prepare the mistress, and her scholars, for the breaking up of the school, within a month of her departure from Yatton. She gave the worthy woman, the mistress, a present of a five-pound note; and five shillings to each of the children. She felt quite unequal to the task of personally taking leave of them, as she had intended, and several times attempted. She therefore, with many tears, wrote the following lines, and gave them to Dr. Tatham, to read aloud in the school, when their good and beautiful writer should be far on her way towards London. The little doctor paused a good many times while he read it, and complained of his glasses.

"My dear little girls,—You know that I have already bid each of you good-by; and though I tried to say something to all of you at once, I was not able, because I was so sorry to part with you, and tell you that my little school must be given up. So I have written these few lines, to tell you that I love you all, and have tried to be a good friend to you. Be sure not to forget your spelling and reading, and your needle. Your mothers have promised to hear you say your catechisms; you must also be sure to say your prayers, and to read your Bibles, and to behave very seriously at church, and to be always dutiful to your parents. Then God will bless you all! I hope you will not forget us, for we shall often think of you when we are a great way off; and Dr. Tatham will now and then write and tell us how you are going on. Farewell, my dear little girls; and may God bless and preserve you all! This is the prayer of both of us—Mrs. Aubrey and

"CATHERINE AUBREY.

"*Yatton, 15th May 18—.*"

The above was not written in the uniform and beautiful hand usual with Miss Aubrey; it was, on the contrary, rather irregular, and evidently written hastily; but Dr. Tatham preserved it to the day of his death, and always thought it beautiful.

On the ensuing morning, at a very early hour, Dr. Tatham left the vicarage, to pay his last visit to friends whom it almost broke his heart to part with, in all human probability forever. He started, but on a moment's reflection ceased to be surprised, at the sight of Mr. Aubrey

approaching him from the direction of the little churchyard. He was calm, but his countenance bore the traces of very recent emotion. They greeted each other in silence, and so walked on for some time, arm-in-arm, slowly, towards the Hall. It was a dull heavy morning, almost threatening rain. The air seemed full of oppression. The only sounds audible were the hoarse clamorous sounds issuing from the old rookery, at some distance on their left. Mr. Aubrey and Dr. Tatham interchanged but few words, as they walked along the winding pathway to the Hall. The first thing which attracted their eyes, after passing under the gateway, was the large old family carriage, standing opposite the Hall door, where stood some luggage, sufficient for the journey, ready to be placed upon it; the remainder having been sent on the day before to London. How mournful was the sight! On entering the Hall, they found its heart-broken inmates all up, and dressed. The children were taking their last breakfast in the nursery; Charles making many inquiries of the weeping servants, which they could answer only by tears and kisses. In vain was the breakfast-table spread for the senior travellers. There sat poor Kate, in travelling trim, before the antique silver urn, attempting to perform, with tremulous hand, her accustomed office; but neither she, nor Mrs. Aubrey, was equal to the task; which, summoning the housekeeper into the room, they devolved upon her, and which she was scarce able to perform. Mr. Aubrey and Dr. Tatham were standing there; but neither of them spoke. A short time before, Mr. Aubrey had requested the servants to be summoned, as usual, to morning prayer in the accustomed room, and requested Dr. Tatham to officiate. As soon, however, as the sorrowful little assemblage was collected before him, he whispered to Mr. Aubrey that he felt unequal to go through the duty with the composure which it required; and after a pause, he said, "Let us kneel down;" and in a low voice, often interrupted by his own emotions, and the sobs of those around him, he read, with touching simplicity and solemnity, the ninety-first psalm; adding the Lord's prayer, and a very tremulous benediction.

The bitter preparations for starting at an early hour, seven o'clock, were soon afterwards completed. Half smothered with the kisses and caresses of the affectionate servants, little Charles and Agnes were already seated in the carriage, on the laps of their two attendants, exclaiming eagerly, "Come, papa! come, mamma! What a while you are!" Just then, poor Pumpkin, the gardener, scarce able to speak, made his appearance, his arms full of nosegays, which he had been culling for the last two hours—having one a-piece for each of the travellers, servants, and children, and all. The loud angry bark of Hector was heard from time to time, little Charles calling loudly for him; but Pumpkin had fastened him up, for fear of his starting off after the carriage. At length, having scarcely tasted breakfast, the travellers made their appearance at the Hall door. Kate and Mrs. Aubrey were utterly overcome at the sight of the carriage, and wept bitterly. They threw their arms passionately around, and fervently kissed, their venerable friend and pastor, Dr. Tatham, who was grievously agitated. Then they tore themselves from him, and hastily got into the carriage. As he stood alone, bareheaded, on their quitting him, he lifted his hands, but could scarce utter a parting benediction. Mr. Aubrey, almost overpowered with his emotions, then grasped his hand, whispering, "Farewell, my dear and venerable friend! Farewell!" "The Lord God of thy fathers bless thee!" murmured Dr. Tatham, clasping Mr. Aubrey's hand in both of his own, and looking solemnly upward. Mr. Aubrey, taking off his hat, turned towards him an unutterable look: then, waving his hand to the group of agitated servants standing within and without the door, he stepped into the carriage; the door was shut; and they rolled slowly

away. Outside the park gates were collected more than a hundred people, to bid them farewell—all the men, when the carriage came in sight, taking off their hats. The carriage stopped for a moment. "God bless you all! God bless you!" exclaimed Mr. Aubrey, waving his hand, while from each window was extended the white hand of Kate and Mrs. Aubrey, both of which were fervently kissed and shaken by those who were nearest. Again the carriage moved on; and quickening their speed, the horses soon bore them out of the village. Within less than half an hour afterwards, the tearful eyes of the travellers, as they passed a familiar turning of the road, had looked their last on Yatton!

NOTE *concerning the law of* ERASURES *and* ESTOPPELS.

I. ERASURES.—The question—What is the effect of an erasure, an interlineation, or alteration apparent in a material part of a deed above thirty years old, when offered in evidence?—has led to much discussion both among professional and general readers of this work, as well at home as abroad; and many communications upon the subject have been received by the author. Lord Widdrington at the trial, and subsequently he and the full court, held, in the case of *Doe d. Titmouse v. Jolter*, that such an erasure was fatal to the case of the party who relied on the instrument in which it was exhibited. In constructing this portion of the story, the author, aware of some difference of opinion on the subject among lawyers, relied upon the following passage in a work of great and long-established authority, (BULLER'S *Nisi Prius*, p. 255,) in which the law is thus laid down—"If there be any [material] blemish, by razure or interlineation, in a deed, it ought to be proved, though it were above thirty years old, by the witnesses if living, and if dead, by proving the handwriting of at least one of the witnesses, and also the hand of the party, *in order to encounter the presumption arising from the blemishes in the deed.*" Such, also, is the law laid down in Lord Chief Baron Gilbert's Treatise on Evidence, (p. 89,) and the proposition appears adopted, and these two high authorities cited, in the last edition, (the ninth,) of that celebrated standard text-book, PHILLIPS *on Evidence*, p. 205, published since the former edition of this work. There is an impression, however, that this strict rule would not *now* be acted upon; on the ground that the presumption resulting from a continued possession, in conformity with the effect of a deed with erasure or interlineation, is strong enough to overcome the presumption of forgery afforded by the alterations themselves. Still it is possible to foresee great danger arising out of the adoption of such a rule: for a man enjoying an estate in lands, less than one of fee simple, may alter the deed so as to give to himself that superior estate, and then, after a lapse of thirty years, produce the deed so altered, and thereby defeat the innocent party challenging his title to the property. Possibly it would now be submitted as a question for a jury to decide, *whether the alteration had been made previously or subsequently to the delivery of the deed?* for if *previously*, the deed remains valid and binding. A deed thirty years old is called "an ancient document," and is said to "prove itself"—*i. e.* to require no proof of its execution, provided it shall have been produced from a custody which may be reasonably and naturally explained, even though not the strictly proper legal custody.—See the late case of *Doe d. Neale v. Sampler*, 8 *Adolphus and Ellis' Rep.* 151; and *Doe d. Wildgoose v. Pearce*, 2 *Moody and Robinson*, 240. As to the point made by the Attorney-

General, at the trial, that where the right is once vested—*i. e.* the instant after the execution of the deed—*such execution* creating a title to the land in question—that right and title cannot be affected by any subsequent alteration of the deed;—it has been affirmed to be good law in a recent solemn decision of the Court of Exchequer, and confirmed in a Court of Error.—*See Davidson v. Cooper*, 11 Meeson v. Welsley, 799-800. "The moment after the execution of the deed, it has become valueless," said Lord Abinger, "except as affording *evidence* of the fact that it had been executed." In this case, in which the author was engaged, (in 1843,) the whole doctrine of erasures was thoroughly canvassed; and it was decided, on error, that when an instrument, (whether under seal or not,) which is *the foundation* of a right sought to be enforced, is altered in a material part, even by a stranger, without the privity of the party affected by it, such alteration makes the instrument utterly void. The Scotch law respecting erasures is exceedingly stringent; and even goes farther than that laid down by Lord Widdrington.

II. ESTOPPEL.—Both this doctrine, and that of erasures, as illustrated by this work, formed the subject of elaborate investigation in an article in the *American Jurist* for 1842, (vol. xxvii. pp. 50, et seq.) The question relating to estoppel, is thus stated there in abstract terms. "If the son and heir-apparent of a tenant in fee-simple, conveys the land thus held, and afterwards dies in his father's lifetime, is the heir of the father, who also makes his pedigree through the son, estopped by that son's conveyance?" The conclusion arrived at is, that, according to Lord Coke, if such conveyance had been with warranty, the heir would be bound, if assets descended to him from the son.^[A] But statute 4 and 5 Anne, c. 16 § 22, makes void as against his heir all collateral warranties made by an ancestor who has no estate of inheritance, in *possession*; and the Act just passed, (1844—stat. 7 and 8 Vict. c. 76 § 5,) permitting the alienation of contingent interests, expressly declares that it shall not enable any heir to dispose of his *expectancy*.

[A] By "Warranty," is meant the clause with which deeds of feoffment formerly concluded, and by which the feoffor agreed that he and his heirs would "warrant, acquit, and forever defend the feoffee and his heirs against all persons." This old form has long been obsolete; and may be considered to have been, by two late statutes, abolished.

In this story an heir is represented as conveying away his expectancy; and the author has received an obliging communication on the subject, from one of the greatest conveyancers who ever lived—Mr. Preston—to the following effect. "The rule of law is—*Qui non habet, ille non dat: nemo potest plus juris in alium transferre, quam ipse habet*. Therefore a grant by an expectant heir, *simpliciter*, is void. But the doctrine of *estoppels* (a 'cunning learning,' says Lord Coke) affords exceptions to this general rule." A feoffment with warranty binds an heir, however, not by estoppel, but by *rebutter*, "in order to avoid circuity of action, which is not favored by the law."—(Co. Litt. 265 a.) He might be estopped by a lease for years, and by matter of record—or by fine and recovery, before those methods of assurance were abolished; but a conveyance by Lease and Release would not bind the heir, on the subsequent descent of the estate: for he had *no right at all* at the time of the release, made, but that once in the ancestor; after whose decease the heir may enter in to the land against his own release.—(Co. Litt. 265 a.) "The late vice-chancellor, Sir John Leach," says Mr. Preston, "once decided that a release *did* operate as an estoppel, in conformity with my argument before him; but Lord Lyndhurst on appeal, contrary to his own first impression, on

Sir Edward Sugden's handing up to him my own Book on Conveyancing, as a *contre projet* to my attempt to support the vice-chancellor's decision, overruled that decision."

CHAPTER V.

Rank is very apt to attract and dazzle vulgar and feeble optics; and the belief that such is its effect upon mankind generally, is unspeakably gratifying to a vain and ignorant possessor of that rank. Of the truth of one part of this observation, take as an illustration the case of Tittlebat Titmouse; of the other, that of the Earl of Dreddlington. The former's dinner engagement with the latter, his august and awful kinsman, was an event of such magnitude as to absorb almost all his faculties in the contemplation of it, and also occasion him great anxiety in preparing for an effective appearance upon so signal an occasion. Mr. Gammon had repeatedly, during the interval, instructed his anxious pupil, if so he might be called, as to the manner in which he ought to behave. He was—Heaven save the mark, poor Titmouse!—to assume an air of mingled deference, self-possession, and firmness; not, on the one hand, to be overawed by the greatness with which he would be brought into contact, nor, on the other, unduly elated by a sense of his own suddenly acquired importance. He was, on the contrary, to steer evenly between the extremes of timorousness and temerity—to *aim*, at least, at that happy mean, so grateful to those able to appreciate the effort, and object, of those who had attained to it. Titmouse was to remember that, great as was the Earl of Dreddlington, he was yet *but a man*—related, too, by consanguinity, to him, the aforesaid Titmouse; who might, moreover, before many years should have elapsed, become himself Lord Drelincourt, and by consequence equally entitled, with the present possessor of that resplendent rank, to the homage of mankind. At the same time that the earl's advanced years gave him a natural claim to the reverence of his young kinsman—(whom his Lordship was about to introduce into the sublime regions of aristocracy, and also of political society)—Titmouse might extract a few ingredients of consolation from the reflection, that his income probably *exceeded*, by a third, that of the Earl of Dreddlington. This is the sum of Mr. Gammon's *general* instructions to his eager and excited pupil; but he also gave Titmouse many minor hints and suggestions. He was to drink very little wine—(whereat Titmouse demurred somewhat vehemently, and asked "How the d—l he was to *get his steam* up without it?")—and on no account to call for beer or porter, to which plebeian beverages, indeed, he might consider himself as having bid a long and last adieu;—to say occasionally, only, "my Lord" and "your Lordship," in addressing the earl—and "your Ladyship," in addressing Lady Cecilia;—and, above all, never to appear in a hurry, but to do and say whatever he had to do and say calmly; for that the nerves of aristocracy were very delicate, and could not bear a bustle, or the slightest display of energy or feeling. Then, as to his *dress*—Gammon, feeling himself treading on very doubtful ground, intimated merely that the essence of true fashion was *simplicity*—but here Titmouse grew fidgety, and his Mentor ceased.

During the night which ushered in the eventful day on which Titmouse dined with the Earl of Dreddlington, our friend got but very little sleep. Early in the morning he engaged a most respectable glass-coach to convey him westward in the evening, in something like style; and before noon, his anxieties were set at rest by the punctual arrival of various articles of dress, decoration, and scent—for Titmouse had a great idea of scents. As for his new watch and its

brilliant gold guard-chain—ambitious reader! you should have seen them! About half-past four o'clock Titmouse retired to his bedroom, and resigned himself into the hands of Mr. Twirl, the tip-top hairdresser from the Strand, whose agreeable manipulations, and still more agreeable small-talk, occupied upwards of an hour; Titmouse, from time to time, giving the anxious operator abundant notice of the high quarter in which his handiwork was likely soon to be scrutinized.

"Pray-a, can you tell me," quoth Titmouse, drawlingly, shortly after Twirl had commenced his operations, "how long it will take me to get from this infernal part of the town to Grosvenor Square? *Dem* long way, isn't it, Mr. What's-your-name?"

"Grosvenor Square, sir?" said Twirl, glibly, but with a perceptible dash of deference in his tone; "why it is as one might say a tolerable way off, certainly; but you can't well miss your way *there*, sir, of all places in town"——

"My coachman," interrupted Titmouse, with a fine air, "of course, had I thought of it, *he* must know, *dem* him, of course!"

"Oh! to be sure, sir. There's none but people of the most *highest* rank lives in that quarter, sir. Excuse me, sir, but I've a brother-in-law that's valet to the Duke of Dunderwhistle there"——

"Indeed! How far off is that from Lord Dreddlington's?" inquired Titmouse, carelessly.

"Lord Dreddlington's, sir?—Well, I never! Isn't it particular strange, if that's where you're going, sir—it's next door to the Duke's—the very next door, sir!"

"Pon my life, is it indeed? How devilish odd!"

"Know the Earl of Dreddlington then, I presume, sir?"

"Ya-as, I should think so; he's my—my—relation, that's all; and devilish near too!"

Mr. Twirl instantly conceived a kind of reverence for the gentleman upon whom he was operating.

"Well, sir," he presently added in a still more respectful tone than before, "p'r'aps you'll think it a liberty, sir; but, do you know, I've several times had the honor of seeing his Lordship in the street at a little distance—and there's a—a family likeness between you, sir—'pon my word, sir. It struck me, directly I saw you, that you was like some *nob* I'd seen at the other end of the town." [Here Titmouse experienced pleasurable sensations, similar to those said to be enjoyed by a cat when you pass your hand down its glossy coat in the right direction.] "Will you allow me, sir, to give your hair a good brushing, sir, before I dress it? I always like to take the *greatest* pains with the hair of my quality customers!—Do you know, sir, that I had the honor of dressing his Grace's hair for a whole fortnight together, once when my brother-in-law was ill; and though p'r'aps I oughtn't to say it, his Grace expressed the highest satisfaction at my exertions, sir."

"Pon my life, and *I* should say you were an uncommon good hand—I've known lots worse, I assure you; men that would have spoiled the best head of hair going, by Jove!"

"Sir, you're very kind. I assure you, sir, that to do justice to a *gent's* hair requires an uncommon deal of practice, and a sort of *nat'ral* talent for it besides. Lord, sir! how much depends on a gent's hair, don't it? Of two coming into a room, it makes all the difference, sir! Believe me, sir, it's no use being well-dressed, nay, nor good-looking, if as how the hair a'n't done—what I call—*correct!*"

"By Jove, I really think you're nigh about the mark," said Titmouse; and after a pause, during which Mr. Twirl had been brushing away at one particular part of the head with some vehemence, "Well," he exclaimed with a sigh, ceasing for a moment his vigorous exertions—"I'm *blest* if I can manage it, do what I will!"

"Eh? What's that? What is it?" inquired Titmouse, a little alarmedly.

"Why, sir, it's what we gents, in our profession, calls a *feather*, which is the most *hobstinatest* thing in nature."

"What's a *feather*?" quoth Titmouse, rather faintly.

"You see, sir, 'tis when a small lot of hair on a gent's head *will* stick up, do all we can to try and get it down; and (excuse me, sir,) *you've* got a regular rattler!" Titmouse put up his hand to feel, Twirl guiding it to the fatal spot; there it was, just as Twirl had described it.

"What's to be done?" murmured Titmouse.

"I'm afraid, sir, you don't use our OSTRICH GREASE and RHINOCEROS MARROW, sir."

"Your *what*?" cried Titmouse, apprehensively, with a dismally distinct recollection of the tragedy of the Cyanochaitanthropopoion, and the Damascus Cream, and the Tetaragmenon Abracadabra; matters which he at once mentioned to Mr. Twirl.

"Ah, it's not *my* custom, sir," quoth Twirl, "to run down other gents' inventions; but my real opinion is, that they're all an imposition—a rank imposition, sir. I didn't like to say it, sir; but I soon saw there had been somebody a-practising on your hair."

"What, is it very plain?" cried Titmouse, with a kind of horror, starting up and stepping to the glass.

"No, sir—not so *very* plain; only *you've* got, as I might say, *accustomed* to the sight of it; but when it's properly curled, and puckered up, and frizzed about, it won't show—nor the feather neither, sir; so, by your leave, here goes, sir;" and, after about a quarter of an hour's more labor, he succeeded in parting it right down the middle of the head, bringing it out into a bold curl towards each eyebrow, and giving our friend quite a new and very fascinating appearance, even in his own eyes. And as for the color—it really was not so very marked, after all; a little purple-hued and mottled, to be sure, in parts, but not to a degree to attract the eye of a casual observer. Twirl having declared, at length, his labors completed—regarding Titmouse's head with a look of proud satisfaction—Titmouse paid him half a crown, and also ordered a pot of ostrich grease and of rhinoceros marrow, (the one being *suet*, the other *lard*, differently scented and colored,) and was soon left at liberty to proceed with the important duties of the toilet. It took him a good while; but in the end he was supremely successful. He wore black tights, (*i. e.* pantaloons fitting closely to his legs, and tied round his ankles with black ribbons,) silk stockings, and shoes with glittering silver

buckles. His white neckerchief was tied with great elegance, not a superfluous wrinkle being visible in it. His shirt-front of lace, had two handsome diamond pins, connected together by a little delicate gold chain, glistening in the midst of it. Then he had a white waistcoat edge, next a crimson one, and lastly a glorious sky-blue satin waistcoat, spangled all over with gold flowers inwrought—and across it hung his new gold watch-guard, and his silver guard for his eyeglass, producing an inconceivably fine effect. His coat was of a light brown, of exquisite cut, fitting him as closely as if he had been born in it, and with burnished brass buttons, of sugar-loaf shape. 'Twas padded also with great judgment, and really took off more of his round-shouldered awkwardness of figure than any coat he had ever worn before. Then he had a fine white pocket-handkerchief, soaked in lavender water; and immaculate white kid gloves. Thus habited, he stood before his glass, bowing fifty different times, and adjusting his expression to various elegant forms of address. He was particularly struck with the combined effect of the two curls of his hair towards each eye, and the hair underneath his chin curved upwards on each side of his mouth in complete symmetry. I have ascertained from Mr. Titmouse himself, that on this memorable occasion of his first introduction to NOBILITY, every item of dress and decoration was entirely new; and when at length his labors had been completed, he felt great composure of mind, and a consciousness of the decisive effect which he must needs produce upon those into whose presence he was so soon to be ushered. His "carriage" was presently announced; and after keeping it standing for a few minutes, (which he conceived to be usual with fine people,) he gently placed his hat upon his head; drew on one glove, took his little ebony cane in his hand; and, with a hurried inward prayer that he might be equal to the occasion, stepped forth from his apartment and passed on to the glass-coach. Such a brilliant little figure, I will take upon myself to say, had never before issued, nor will perhaps ever again issue, from the Cabbage-Stalk Hotel. The waiters whom he passed, inclined towards him with instinctive reverence. He was *very* fine, to be sure; but who could, they justly thought, be dressed too finely that had ten thousand a-year, and was gone to dine with a lord in Grosvenor Square?

Titmouse was soon on his way towards that at once desired and dreaded region. He gazed with a look of occasional pity and contempt, as he passed along, at the plebeian pedestrians, and the lines of shops on each side of the narrow streets, till increasing indications of superior modes of existence presented themselves; and then he began to feel not a little fidgety and nervous. The streets grew wider; the squares greater; hackney-coaches (unsightly objects!) became fewer and fewer, giving place to splendid vehicles—coaches, and chariots—with one, two, and even three footmen, in elegant liveries, clustering behind, with long canes, cockades, and shoulder-knots; crimson, blue, green, bear and tiger skin hammercloths, with burnished coronets and crests upon them; sleek coachmen with wigs and three-cornered hats, and horses that pawed the ground with very pride; ladies within, glistening in satin, lace, and jewels—their lords beside them, leaning back with countenances so stern and haughty; oh, by all that was grand and tremendous! Titmouse felt himself getting now within the very vortex of greatness and fashion, and experienced a frequent fluttering and catching of the breath, and a sense of indefinite distressing apprehension. He was, however, now *in for it*—and there was no retreat. As he neared Grosvenor Square, he heard, ever and anon, terrific thundering noises at the doors opposite which these splendid vehicles had drawn up—as if the impatient footmen were infuriated because the doors did not fly open of themselves, at the sound of the approaching carriage-

wheels. At length he entered Grosvenor Square, that "pure empyrean" of earthly greatness. Carriages rolled calmly and haughtily past him, others dashed desperately in different directions. At each side of Lord Dreddlington's house, were carriages setting down with tremendous uproar. Mr. Titmouse felt his color going, and his heart began to beat much faster than usual. 'Twas quite in vain that he "hemmed" two or three times, by way of trying to reassure himself: he felt that his hour was come; and would have been glad, at the moment, of any decent excuse for driving off home again, and putting off the evil day a little longer. Opposite the dreaded door had now drawn up Mr. Titmouse's glass-coach; and the decent coachman—whose well-worn hat, and long, clean, but threadbare blue coat, and ancient-looking top-boots, bespoke their wearer's thriftiness—slowly alighting, threw the reins on his quiet horses' backs, and gave a modest *rat-tat-tat-tat-tat* at the door without ringing.

"What name shall I give, sir?" said he, returning to his coach, and letting down the loud clanking steps, with such a noise as seemed to indicate his desire to show the solid metal structure of them!

"Titmouse—Mr. Titmouse;" replied our friend, hurriedly, as the lofty door was thrown open by the corpulent porter; disclosing several footmen in light blue liveries, with silver shoulder-knots, and powdered heads, standing in the hall waiting for him.

"Mr. Titmouse!" exclaimed the coachman to the servants: then, having returned to the coach—"When shall I come back for you, sir?" he inquired of his flustered fare.

"D— me, sir—don't bother *me*," faltered Titmouse, quitting the vehicle with great trepidation: and the next moment he was in the hands of the Philistines—the hall door was closed upon him. All his presence of mind had evaporated; the excellent lessons given him by Mr. Gammon had disappeared like breath from the surface of a mirror. Though Lord Dreddlington's servants had never before seen in the house so strange an object as poor little Titmouse, they were of far too highly polished manners to appear to notice anything unusual. They silently motioned him up-stairs with a bland courteous air, he carrying his little agate-headed cane in one hand, and his new hat in the other. A gentlemanly person in a full black dress suit, opened the drawing-room door for him, with an elegant inclination, which Titmouse very gracefully returned. A faint mist seemed to be in the drawing-room for a second or two, during which Titmouse heard his name gently whispered by the gentleman who had introduced him; quickly clearing away, however, he beheld, at the upper end, but two figures, that of an old gentleman, and a young lady—they were, in fact, the Earl of Dreddlington and Lady Cecilia. Now—if truth must be told—that great man had not been a whit behindhand, in the matter of dress, with the little creature now trembling before him; being, in truth, full as anxious to make an effective first appearance in the eyes of Mr. Titmouse, as he in those of the Earl of Dreddlington. And each had, in his way, completely succeeded. There was little or no substantial difference between them. The Right Honorable the Earl of Dreddlington was an old experienced fool, and Tittlebat Titmouse a young inexperienced one. They were the same species of plant, but had grown in different soils. The one had had to struggle through a neglected existence by the dusty, hard road-side of life; the other had had all the advantage of hothouse cultivation—its roots striking deep into, and thriving upon, the rich manure of sycophancy and adulation!—We have seen how

anxious was our little friend to appear as became the occasion, before his great kinsman; who in his turn had several times during the day exulted secretly in the anticipation of the impression which must be produced upon the mind of Titmouse by the sudden display, in the earl's person, of the sublimest distinctions which society can bestow, short of royalty. It had once or twice occurred to the earl, whether he could find any fair excuse for appearing in his full general's uniform; but on maturer reflection, governed by that simplicity and severity of taste which ever distinguished him, he had abandoned that idea, and appeared in a plain blue coat, white waistcoat, and black knee-breeches. But on his left breast glittered one or two foreign orders, and across his waistcoat was the broad red ribbon of the Bath. His hair was white and fine; his cold blue eye and haughty lip gave him an expression of severe dignity: and he stood erect as an arrow. Lady Cecilia reclined on the sofa, with an air of languor and *ennui* which had become habitual to her; and was dressed in glistening white satin, with a necklace of large and very beautiful pearls. The earl was standing in an attitude of easy grace to receive his guest, as to whose personal appearance, by the way, he was quite in the dark—Mr. Titmouse might be a great or a little man, and forward or bashful; and require a corresponding demeanor and address on the part of the earl. "Gracious Powers!" he involuntarily exclaimed to himself, the instant his eye caught sight of Titmouse, who approached slowly, making profound and formal obeisances. The earl stood rooted to the spot which he had occupied when Titmouse entered. If his servants had turned an ape into the drawing-room, his Lordship could scarcely have felt or exhibited greater amazement than he now experienced, for a moment. "Ah, Heavens!" thought he, "what a fool have we here? what creature is this?" Then it flashed across his mind;—"May this be THE FUTURE LORD DRELINCOURT?" He was on the point of recoiling from his suddenly-discovered kinsman in dismay, (as for Lady Cecilia, she gazed at him, through her glass, in silent horror, after a faint exclamation, on his first becoming visible, of "Gracious! Papa!") when his habitual self-command came to his assistance; and, advancing very slowly a step or two towards Titmouse—who, after a hurried glance around him, saw no place to deposit his hat and cane upon except the floor, on which he accordingly dropped them—the earl extended his hand, slightly compressed the tips of Titmouse's fingers, and bowed courteously, but with infinite concern in his features.

"I am happy, Mr. Titmouse, to make your acquaintance," said the earl, slowly—"Sir, I have the honor to present you to my daughter, the Lady Cecilia." Titmouse, who by this time had got into a sort of cold sweat—a condition from which the earl was really not *very* far removed—made a very profound and formal bow, (he had been taking lessons from a posture-master to one of the theatres,) first to the earl, and then to Lady Cecilia, who rose about two inches from the sofa, with an almost audible sigh, and then sank again upon it, without removing her eyes from the figure of Titmouse, who went on bowing, first to the one and then to the other, till the earl had engaged him in conversation.

"It gives me pleasure, sir, to see that you are punctual in your engagements. I am so too, sir; and owe to it no small portion of any success which I may have had in life. Punctuality, sir, in small matters, leads to punctuality in great matters." This was said very deliberately, and with a sort of freezing grandeur.

"Oh yes, my Lord! quite so, your Lordship," stammered Titmouse, suddenly recollecting a part of Gammon's instructions; "to be sure—wouldn't have been behind time, your Lordship,

for a minute, my Lord; uncommon bad manners, if it please your Lordship"——

"Will you be seated, sir?" interrupted the earl, dignifiedly motioning him to a chair, and then sitting down beside him; after which his Lordship seemed, for a second or two, to forget himself; staring in silence at Titmouse, and then in consternation at Lady Cecilia. "I—I—" said he, suddenly recollecting himself, "beg your par—sir, I mean—I congratulate you upon—your recent success. Sir, it must have been rather a surprise to you?"

"Oh yes, sir—my Lord, most uncommon, may it please your Lordship—particular—but *right is right*—please your Lordship"——

[*"Oh Heavens! merciful Heavens! How horrid is all this! Am I awake or only dreaming? 'Tis an idiot—and what's worse, a vulgar idiot! And this thing may become Lord Drelincourt!"* This was what was passing through Lord Dreddlington's mind, while his troubled eye was fixed upon Titmouse.]

"It is, indeed, Mr. Titmouse," replied his Lordship, "very true, sir; what you say is correct. Quite so; exactly." His eye was fixed on Titmouse, but his words were uttered, as it were, mechanically, and in a musing manner. It flitted for a moment across his mind, whether he should ring the bell, and order the servant to show out of the house the fearful imp which had just been shown into it; but at that critical moment he detected poor Titmouse's eye fixed with a kind of reverent intensity upon his Lordship's glittering orders. 'Twas a lucky look, that, for Titmouse, since it began to melt away the ice which was beginning to incrust the little heart of his august relative. 'Twas evident that the poor young man had not been accustomed to society, thought the earl, with an approach towards the compassionate mood. He was frightfully dressed, to be sure; and as for his speech, he was manifestly overawed by the Presence in which he found himself; [that thought melted a little more of the ice.] Yet, was it not evident that he had *some* latent power of appreciating real distinction, when he beheld it? [his Lordship's little heart here lost *all* the ice which had begun so suddenly to collect round it.] And again;—he has actually thrust out the intolerable Aubrey, and is now lawful owner of Yatton—of TEN THOUSAND A-YEAR——

"Did you see the review, to-day, sir?" inquired the earl, rather blandly—"His Majesty was there, sir, and seemed to enjoy the scene." Titmouse, with a timid air, said that he had not seen it, as he had been at a boatrice upon the river; and after a few more general observations—"Will you permit me, sir? It is from A QUARTER requiring the highest—a-hem!" said the earl, as a note was brought him, which he immediately opened and read. Lady Cecilia, also, appearing to be reading, Titmouse had a moment's breathing time and interval of relief. What would he have given, he thought, for some other person, or several persons, to come in and divide the attention—the intolerably oppressive attention of the two august individuals then before him! He seized the opportunity to cast a furtive glance around the room. It opened into a second, which opened into a third: how spacious, each, and lofty! And glittering glass chandeliers in each! What chimney and pier glasses! What rich flowered satin curtains—they must have cost twelve or fourteen shillings a-yard at least!—The carpets, of the finest Brussels—and they felt like velvet to the feet;—then the brackets, of marble and gold, with snowy statues and vases glistening upon each; chairs so delicate, and gilded all over—he almost feared to sit down on them. What would the Quirks and Tag-rags think of this! Faugh—only to think for a moment of Alibi House and Satin Lodge!—Then

there was the Lady Cecilia—a lady of high rank! How rich her dress—and how haughtily beautiful she looked as she reclined upon the sofa! [she was in fact busy conning over the new opera, which was to come out the next evening.] And the Earl of Dreddlinton—there he was, reading, doubtless, some letter from the king or one of the royal family—a man of great rank—resplendent in his decorations—all just according to what he had seen in pictures, and heard and read of—what must that red ribbon have cost? Ay, indeed, poor Lord Dreddlinton, it had cost you the labor of half a life of steadfast sycophancy, of watchful manœuvring, and desperate exertion! And at last, the minister tossed it to you in a moment of disgust and despair—mortally perplexed by the conflicting claims of two sulky dukes and a querulous old marquis, each of whom threatened to withdraw his "*influence and support*," if his *rival's* claims were preferred! He had never seen any of such a breadth.—It must have been manufactured on purpose for the earl! How white were his hands! And he had an antique massive signet-ring on his forefinger, and two glittering rings at least on each of his little fingers—positively Titmouse at length began to regard him almost as a god:—and yet the amazing thought occurred that this august being was allied to him by the ties of relationship! Such were the thoughts and reflections passing through the mind of Titmouse, during the time that Lord Dreddlinton was engaged in reading his letter—and afterwards during the brief intervals which elapsed between the various observations addressed to him by his Lordship.

The gentleman in black at length entered the room, and advancing slowly and noiselessly towards the earl, said in a gentlemanlike manner, "Dinner, my Lord;" and retired. Into what new scenes of splendid embarrassment was this the signal for Mr. Titmouse's introduction? thought our friend, and trembled.

"Mr. Titmouse, will you give your arm to the Lady Cecilia?" said the earl, motioning him to the sofa. Up jumped Titmouse, and approached hastily the recumbent beauty; who languidly arose, arranged her train with one hand, and with the other, having drawn on her glove, just barely touched the proffered arm of Titmouse, extended towards her at a very acute angle, and at right angles with his own body—stammering, "Honor to take your Ladyship—uncommon proud—this way, my Lady." Lady Cecilia took no more notice of him than if he had been a dumb waiter; walking beside him in silence—the earl following. To think that a nobleman of high rank was walking *behind* him!

Would to heaven, thought the embarrassed Titmouse, that he had two fronts, one for the earl behind, and the other to be turned full towards Lady Cecilia! The tall servants, powdered and in light blue liveries, stood like a guard of honor around the dining-room door. That room was extensive and lofty: what a solitary sort of state were they about to dine in! Titmouse felt cold, though it was summer; and trembled as he followed, rather than led, his haughty partner to her seat; and then was motioned into his own by the earl, himself sitting down opposite an antique silver soup tureen! A servant stood behind Lady Cecilia; another behind Titmouse; and a third on the left of the earl; while on his right, between his Lordship and the glistening sideboard, stood a portly gentleman in black, with a bald head and—Titmouse thought—a somewhat haughty countenance. Though Titmouse had touched nothing since breakfast, he felt not the slightest inclination to eat, and would have given the world to have dared to say as much, and be at once relieved from a vast deal of anxiety. Is it indeed easy to conceive of a fellow-creature in a state of more complete thralldom, at that

moment, than poor little Titmouse? A little animal under the suddenly exhausted receiver of an air-pump, or a fish just plucked out of its own element, and flung gasping and struggling upon the grass, may serve to assist your conceptions of the position and sufferings of Mr. Titmouse. The earl, who was on the look-out for it, observed his condition with secret but complete satisfaction; here he beheld the legitimate effect of rank and state upon the human mind. Titmouse got through the soup—of which about half a dozen spoonfuls only were put into his plate—pretty fairly. Anywhere else than at Lord Dreddlington's, Titmouse would have thought it poor, thin, watery stuff, with a few green things chopped up and swimming in it; but now he perceived that it had a sort of superior flavor. How some red mullet, enclosed in paper, puzzled poor Titmouse, is best known to himself.

"The Lady Cecilia will take wine with you, Mr. Titmouse, I dare say, by-and-by," observed the earl, blandly; and in a moment's time, but with perfect deliberation, the servants poured wine into the two glasses. "Your Ladyship's health, my Lady"—faltered Titmouse. She slightly bowed, and a faint smile glimmered at the corners of her mouth—but unobserved by Titmouse.

"I think you said, Mr. Titmouse," quoth the earl, some time afterwards, "that you had not yet taken possession of Yatton?"

"No, my Lord; but I go down the day after to-morrow—quite—if I may say it, my Lord—quite in style"—answered Titmouse, with humble and hesitating jocularly of manner.

"Ha, ha!"—exclaimed the earl, gently.

"Had you any acquaintance with the Aubreys, Mr. Titmouse?" inquired the Lady Cecilia.

"No, my Lady—yes, your Ladyship, (I beg your Ladyship's pardon)—but, now I think of it, I had a slight acquaintance with Miss Aubrey." [Titmouse, Titmouse, you little wretch, how dare you say so?]

"She is considered pretty in the country, I believe," drawled Lady Cecilia, languidly.

"Oh, most uncommon lovely!—*middling*, only middling, my Lady, I should say"—added Titmouse, suddenly; having observed, as he fancied, rather a displeased look in Lady Cecilia. He had begun his sentence with more energy than he had yet shown in the house; he finished it hastily, and colored as he spoke—feeling that he had, somehow or another, committed himself.

"Do you form a new establishment at Yatton, sir?" inquired the earl, "or take to any part of that of your predecessor?"

"I have not, please your Lordship, made up my mind yet exactly—should like to know your Lordship's opinion."

"Why, sir, I should be governed by circumstances—by circumstances, sir; when you get there, sir, you will be better able to judge of the course you should pursue." Titmouse made an humble obeisance.

"Do you intend, Mr. Titmouse, to live in town, or in the country?" inquired Lady Cecilia.

"A little of both, my Lady—but mostly in town; because, as your Ladyship sees, the country is *devilish* dull—'pon my life, my Lady—my Lord—beg a thousand pardons," he suddenly added, bowing to both, and blushing violently. Here he *had* committed himself, and awfully; but his august companions bowed to him very kindly, and he presently recovered his self-possession.

"Are you fond of hunting, Mr. Titmouse?" inquired the earl.

"Why, my Lord, can't exactly say that I am—but your Lordship sees, cases alter circumstances, and when I get down there among the country gents, p'r'aps I may do as they do, my Lord."

"I presume, Mr. Titmouse, you have scarcely chosen a town residence yet?" inquired Lady Cecilia.

"No, my Lady—not fixed it yet—was thinking of taking Mr. Aubrey's house in Grosvenor Street, understanding it is to be sold;" then turning towards the earl—"because, as your Lordship sees, I was thinking of getting into *both* the nests of the old birds, while both are warm"—he added with a very faint smile.

"Exactly; yes—I see, sir—I understand you," replied Lord Dreddlington, sipping his wine. His manner rather discomposed Titmouse, to whom it then very naturally occurred that the earl might be warmly attached to the Aubreys, and not relish their being spoken of so lightly; so Titmouse hastily and anxiously added—"Your Lordship sees I was most *particular* sorry to make the Aubreys turn out. A most uncommon respectable gent, Mr. Aubrey: I assure your Lordship I think so."

"I had not the honor of his acquaintance, sir," replied the earl, coldly, and with exceeding stiffness, which flustered Titmouse not a little; and a pause occurred in the conversation for nearly a minute. Dinner had now considerably advanced, and Titmouse was beginning to grow a *little* familiar with the routine of matters. Remembering Gammon's caution concerning the wine, and also observing how very little was drunk by the earl and Lady Cecilia, Titmouse did the same; and during the whole of dinner had scarcely four full glasses of wine.

"How long is it," inquired the earl, addressing his daughter, "since the Aubreys took that house?" Lady Cecilia could not say. "Stay—now I recollect—surely it was just before my appointment to the Household. Yes; it was about that time, I now recollect. I am alluding, Mr. Titmouse," continued the earl, addressing him in a very gracious manner, "to an appointment under the Crown of some little distinction, which I was solicited to accept at the personal instance of his Majesty, on the occasion of our party coming into power—I mean that of Lord Steward of the Household."

"Dear me, my Lord! Indeed! Only to think, your Lordship!" exclaimed Titmouse, with such a profound deference in his manner as encouraged the earl to proceed.

"That, sir, was an office of great importance, and I had some hesitation in undertaking its responsibility. But, sir, when I had once committed myself to my sovereign and my country, I resolved to give them my best services. I had formed plans for effecting very extensive alterations, sir, in that department of the public service, which I have no doubt would have

given great satisfaction to the country, as soon as the nature of my intentions became generally understood; when faction, sir, unfortunately prevailed, and we were compelled to relinquish office."

"Dear me, my Lord! How particular sorry I am to hear it, my Lord!" exclaimed Titmouse, as he gazed at the baffled statesman with an expression of respectful sympathy.

"Sir, it gives me sincere satisfaction," said the earl, after a pause, "to hear that our political opinions agree"——

"Oh yes! my Lord, quite; *sure* of that"——

"I assure you, sir, that some little acquaintance with the genius and spirit of the British constitution has satisfied me that this country can never be safely or advantageously governed except on sound Whig principles."——He paused.

"Yes, my Lord; it's quite true, your Lordship"——interposed Titmouse, reverentially.

"That, sir, is the only way I know of, by which aristocratic institutions can be brought to bear effectively upon, to blend harmoniously with the interests of the lower orders—*the people*, Mr. Titmouse." Titmouse thought this wonderfully fine, and sat listening as to an oracle of political wisdom. The earl, observing it, began to form a much higher opinion of his little kinsman. "The unfortunate gentleman, your predecessor at Yatton, sir, if he had but allowed himself to have been guided by those who had mixed in public affairs before he was born," said the earl, with great dignity——

"Pon my word, my Lord, he was, I've heard, a d—d Tory!—Oh my Lady! my Lord! humbly beg pardon," he added, turning pale; but the fatal word had been uttered, and heard by both; and he felt as if he could have sunk through the floor.

"Shall I have the honor of taking another glass of wine with you, sir?" inquired the earl, rather gravely and severely, as if wishing Mr. Titmouse fully to appreciate the fearful breach of etiquette of which he had just been guilty, by swearing in such a presence. After they had bowed to each other, a very awkward pause occurred, which was at length broken by the considerate Lady Cecilia.

"Are you fond of the opera, Mr. Titmouse?"

"Very, my Lady—most particular," replied Titmouse, who had been there once only.

"Do you prefer the opera, or the ballet? I mean the music or the dancing?"

"Oh I understand your Ladyship. 'Pon my word, my Lady, I prefer them both. The dancing is most uncommon superior; though I must say, my Lady, the lady dancers there do most uncommonly—*rather*, I should say"——He stopped abruptly; his face flushed, and he felt as if he had burst into a perspiration. What the deuce was he about? It seemed as if some devil within were urging him on, from time to time, to commit himself. Good gracious! another word, and out would have come his opinion as to the shocking indecency of the ballet!

"I understand you, sir; I quite agree with you," said Lady Cecilia, calmly; "the ballet *does* come on at a sad late hour; I often wish they would now and then have the ballet first."

"'Pon my life, my Lady," quoth Titmouse, eagerly snatching at the plank which had been thrown to him; "that is what I meant—nothing else, upon my soul, your Ladyship!"

"Do you intend taking a box there, Mr. Titmouse?" inquired her Ladyship, with an appearance of interest in the expected answer.

"Why, your Ladyship, they say a box there is a *precious* long figure;—but in course, my Lady, when I've got to rights a little with my property—your Ladyship understands—I shall do the correct thing."

Here a very long pause ensued. How dismally quiet and deliberate was everything! The very servants, how noiselessly they waited! Everything done just when it was wanted, yet no hurry, or bustle, or noise; and they looked so composed—so much at their ease. He fancied that they had scarce anything else to do than look at him, and watch all his movements; which greatly embarrassed him, and he began to *hate* them. He tried hard to inspirit himself with a reflection upon his own suddenly acquired and really great personal importance; absolute master of Ten Thousand a-Year, a relation of the great man at whose table he sat, and whose hired servants they were; but then his timorously raised eye would light, for an instant, upon the splendid *insignia* of the earl; and he felt as oppressed as ever. What would he not have given for a few minutes' interval, and sense of complete freedom and independence? And were these to be his feelings ever hereafter? Was this the sort of tremulous apprehension of offence, and embarrassment as to his every move, to which he was to be doomed in high life? Oh that he had but been *born* to it, like the earl and the Lady Cecilia!

"Were you ever in the House of Lords, Mr. Titmouse?" inquired Lord Dreddlington, suddenly, after casting about for some little time for a topic on which he might converse with Titmouse.

"No, my Lord, never—should most uncommon like to see it, my Lord"—replied Titmouse, eagerly.

"Certainly, it is an impressive spectacle, sir, and well worth seeing," said the earl, solemnly.

"I suppose, my Lord, your Lordship goes there every day?"

"Why, sir, I believe *I am* pretty punctual in my attendance. I was there to-day, sir, till the House rose. Sir, I am of opinion that hereditary legislators—a practical anomaly in a free state like this—but one which has innumerable unperceived advantages to recommend it—Sir, our country expects at our hands, in discharge of so grave a trust—in short, if we were not to be true to—we who are in a peculiar sense the guardians of public liberty—if we were once to betray our trust—Let me trouble you sir, for a little of that——," said the earl, using some foreign word which Titmouse had never heard of before, and looking towards a delicately constructed fabric, as of compressed snow, which stood before Titmouse. A servant was in a twinkling beside him, with his Lordship's plate. Ah me! that I should have to relate so sad an event as presently occurred to Titmouse! He took a spoon; and, imagining the glistening fabric before him to be as solid as it looked, brought to bear upon it an adequate degree of force, even as if he had been going to scoop out a piece of Stilton cheese—and inserting his spoon at the summit of the snowy and deceitful structure, souse to the bottom went spoon, hand, coat-cuff, and all, and a very dismal noise evidenced that the dish

on which the aforesaid spoon had descended, with so much force—was no longer a dish. It was, in fact, broken in halves, and the liquid from within, ran about on the cloth.... A cluster of servants was quickly around him.... A mist came over his eyes; the color deserted his cheek; and he had a strange feeling, as if verily the end of all things was at hand.

"I beg you will think nothing of it—for it really signifies nothing at all, Mr. Titmouse," said the earl, kindly, observing his agitation.

"Oh dear! oh my Lord—your Ladyship—what an *uncommon* stupid ass!" faltered Titmouse.

"Pray *don't* distress yourself, Mr. Titmouse," said Lady Cecilia, really feeling for his evident misery, "or you will distress *us*."

"I beg—humbly beg pardon—please your Lordship—your Ladyship. I'll replace it with the best in London the very first thing in the morning." Here the servant beside him, who was arranging the table-cloth, uttered a faint sound of suppressed laughter, which disconcerted Titmouse still more.

"Give yourself no concern—'tis only a *trifle*, Mr. Titmouse!—You understand, ha, ha?" said the earl, kindly.

"But if your Lordship will only allow me—expense is no object. I know the very best shop in Oxford Street."

"Suppose we take a glass of champagne together, Mr. Titmouse?" said the earl, rather peremptorily; and Titmouse had sense enough to be aware that he was to drop the subject. It was a good while before he recovered even the little degree of self-possession which he had had since first entering Lord Dreddlington's house. He had afterwards no very distinct recollection of the manner in which he got through the rest of dinner, but a general sense of his having been treated with the most kind and delicate forbearance—no *fuss* made. Suppose such an accident had occurred at Satin Lodge, or even Alibi House!

Shortly after the servants had withdrawn, Lady Cecilia rose to retire. Titmouse, seeing the earl approaching the bell, anticipated him in ringing it, and then darted to the door with the speed of a lamplighter to open it, as he did, just before a servant had raised his hand to it on the outside. Then he stood within, and the servant without, each bowing, and Lady Cecilia passed between them with stately step, her eyes fixed upon the ground, and her lip compressed with the effort to check her inclination to a smile—perhaps, even laughter. Titmouse was now left alone with Lord Dreddlington; and, on resuming his seat, most earnestly renewed his entreaties to be allowed to replace the dish which he had broken, assuring Lord Dreddlington that "money was no object at all." He was encountered, however, with so stern a negative by his Lordship, that, with a hurried apology, he dropped the subject; but the earl very good-naturedly added that he had perceived the *joke* intended by Mr. Titmouse—which was certainly a very good one! This would have set off poor Titmouse again; but a glance at the face of his magnificent host sealed his lips.

"I have heard it said, Mr. Titmouse," presently commenced the earl, "that you have been engaged in mercantile pursuits during the period of your exclusion from the estates which you have just recovered. Is it so, sir?"

"Ye-e-e-s—sir—my Lord"—replied Titmouse, hastily considering whether or not he should altogether *sink the shop*; but he dared hardly venture upon so very decisive a lie—"I was, please your Lordship, in one of the greatest establishments in the mercery line in London—at the west end, my Lord; most confidential, my Lord; management of everything; but, somehow, my Lord, I never *took to it*—always felt a cut above it—your Lordship understands?"

"Perfectly, sir; I can quite appreciate your feelings. But, sir, the mercantile interests of this great country are not to be overlooked!—Those who are concerned in them, are frequently respectable persons."

"Begging pardon, my Lord—no, they a'n't—if your Lordship only knew them as well as I do, my Lord. Most uncommon low people. Do anything to turn a penny, my Lord; and often sell damaged goods for best."

"It is very possible, sir, that there may exist irregularities, *eccentricities*, ha! ha! of that description; but upon the whole, sir, I am disposed to think that there are many very decent persons engaged in trade. I have had the happiness, sir, to assist in passing measures that were calculated, by removing restrictions and protective duties, to secure to this country the benefits of free and universal competition. We have been proceeding, sir, for many years, on altogether a wrong principle—that of protecting native industry and enterprise; but, not to follow out this matter farther, I must remind you, sir, that your acquaintance with the principles and leading details of mercantile transactions—undoubtedly one of the mainsprings of the national greatness—may hereafter be of use to you, sir."

"Yes, my Lord, 'pon my soul—when I'm furnishing my houses in town and country, I mean to go to market myself—please your Lordship, I know a trick or two of the trade, and can't be taken in, my Lord. For instance, my Lord, there's Tag-rag—a-hem! hem!" he paused abruptly, and looked somewhat confusedly at the earl.

"I did not mean *that* exactly," said his Lordship, unable to resist a smile. "Pray, fill your glass, Mr. Titmouse." He did so. "You are of course aware that you have the absolute patronage of the borough of Yatton, Mr. Titmouse?—It occurs to me, that as our political opinions agree, and unless I am presumptuous, sir, in so thinking—I may be regarded, in a political point of view, as the head of the family—you understand me, I hope, Mr. Titmouse?"

"Exactly, my Lord—'pon my soul, it's all correct, my Lord."

"Well—then, sir, the family interests, Mr. Titmouse, must be looked after"——

"Oh! in course, my Lord, only too happy—certainly, my Lord, we shall, I hope, make a very *interesting* family, if your Lordship so pleases—I *can* have no objection, my Lord!"

"It was a vile, a disgraceful trick, by which Ministers popped in their own man for our borough, Mr. Titmouse."

[Lord Dreddlington alluded to the circumstance of a new writ having been moved for, immediately on Mr. Aubrey's acceptance of the Chiltern Hundreds, and, before the Opposition could be prepared for such a step, sent down, without delay, to Yatton, and Sir Percival Pickering, Bart., of Luddington Court, an intimate friend of Mr. Aubrey's, and a

keen unflinching Tory, being returned as member, before the Titmouse influence could be brought for even one moment into the field; the few and willing electors of that ancient and loyal borough being only too happy to have the opportunity of voting for a man whose principles they approved—probably the last they would have of doing so.]

"Yes, my Lord—Sir What-d'ye-call-him *was* a trifle too sharp for us, in that business, wasn't he?"

"It has succeeded, sir, for the moment, but"—continued his Lordship, in a very significant and stately manner—"it is quite possible that their triumph may be of very short duration—Mr. Titmouse. Those who, like myself, are at headquarters—let me see you fill your glass, Mr. Titmouse.—I have the honor to congratulate you, sir, on the recovery of your rights, and to wish you health and long life in the enjoyment of them," quoth the earl, with an air of the loftiest urbanity.

"May it please your Lordship, your Lordship's most uncommon polite"—commenced Titmouse, rising and standing while he spoke—for he had had experience enough of society, to be aware that when a gentleman's health is drunk on important occasions, it becomes him to rise and acknowledge the compliment in such language as he can command—"and am particularly proud—a—a—I beg to propose, my Lord, your Lordship's very *superior* good health, and many thanks." Then he sat down; each poured out another glass of claret, and Titmouse drank his off.

"It is extremely singular, sir," said the earl, musingly, after a considerable pause, "the reverses in life that one hears of!"

[I cannot help pausing, for a moment, to suggest—what must have become of the earl and his daughter, had they been placed in the situation of the unfortunate Aubreys?]

"Yes, my Lord, your Lordship's quite true, 'pon my word!—Most uncommon *ups* and *downs*! Lord, my Lord, only to fancy *me*, a few months ago, trotting up and down Oxford Street with my yard mea"—He stopped short, and colored violently.

"Well, sir," replied the earl, with an expression of bland and dignified sympathy—"however humble might have been your circumstances, it is a consolation to reflect that *the Fates ordained it*. Sir, there is nothing dishonorable in being poor, when—you cannot help it! Reverses of fortune, sir, have happened to some of the greatest characters in our history. You remember Alfred, sir?" Titmouse bowed assentingly; but had he been questioned, could have told, I suspect, as little about the matter—as the earl himself.

"Allow me, sir, to ask whether you have come to any arrangement with your late opponent concerning the backrents?" inquired the earl, with a great appearance of interest.

"No, my Lord, not yet; but my solicitors say they'll soon *have the screw on*, please your Lordship—that's just what they say—their very words."

"Indeed, sir!" replied the earl, gravely. "What is the sum to which they say you are entitled, sir?"

"Sixty thousand pounds, my Lord, at least—quite set me up at starting, my Lord—won't it?" replied Titmouse, with great glee; but the earl shuddered involuntarily for a moment, and

sipped his wine in silence.

"By the way, Mr. Titmouse," said he, after a considerable pause—"I trust you will forgive me for suggesting whether it would not be a prudent step for you to go to one of the universities, for at least a twelvemonth."

"Humbly begging your Lordship's pardon, am not I too old? I've heard they're all a pack of overgrown schoolboys there—and learn nothing but a bit of some old languages that a'n't the least use now-a-days, seeing it a'n't *spoke* now, anywhere"—replied Titmouse—"Besides, I've talked the thing over with Mr. Gammon, my Lord"——

"Mr. Gammon? Allow me, sir, to ask who that may be?"

"One of my solicitors, my Lord; a most remarkable clever man, and an out-and-out lawyer, my Lord. It was he that found out all about my case, my Lord. If your Lordship was only to see him for a moment, your Lordship would say what a *remarkable* clever man that is!"

"You will forgive my curiosity, sir—but it must have surely required very ample means to have carried on so arduous a lawsuit as that which has just terminated so successfully?"

"Oh yes, my Lord!—Quirk, Gammon, and Snap did all that; and, between me and your Lordship, I suppose I shall have to come down a pretty long figure, all on the *nail*, as your Lordship understands; but I mean them to get it all out of that respectable gent, Mr. Aubrey!"—By quietly pressing his questions, the earl got a good deal more from Titmouse than he was aware of, concerning Messrs. Quirk, Gammon, and Snap; and in doing so, conceived a special dislike for Gammon. The earl gave him some pretty decisive hints about the necessity of being on his guard with such people—and hoped that he would not commit himself to anything important without consulting his Lordship, who would of course give him the advantage of his experience in the affairs of the world, and open his eyes to the designs of those whose only object was to make a prey of him. Titmouse began to feel that here, at length, he had met with a *real* friend—one whose suggestions were worthy of being received with the profoundest deference. Soon afterwards, he had the good fortune to please the earl, beyond expression, by venturing timidly to express his admiration of the splendid ribbon worn by his Lordship; who took the opportunity of explaining that and the other marks of distinction he wore, and others which he was entitled to wear, at great length and with much minuteness—so that he at length caused Titmouse to believe that he, Lord Dreddlington—the august head of the family—must have rendered more signal service, somehow or other, to his country, and also done more to win the admiration and gratitude of foreign countries, than most men of former or present times. His Lordship might not, perhaps, have intended it; but he went on till he had almost DEIFIED himself in the estimation of his little listener!—One very natural question was perpetually trembling on the tip of Titmouse's tongue; viz. how and when he could get such things for *himself*.

"Well, Mr. Titmouse," at length observed the earl, after looking at his watch—"shall we adjourn to the drawing-room? The fact is, sir, that Lady Cecilia and I have an evening engagement at the Duchess of Diamond's. I much regret being unable to take you with us, sir; but, as it is, shall we rejoin the Lady Cecilia?" continued his Lordship, rising. Up jumped Titmouse; and the earl and he were soon in the drawing-room; where, besides the Lady Cecilia, sat another lady, to whom he was not introduced in any way. This was Miss

Macspleuchan, a distant connection of the earl's late countess—a very poor relation, who had entered the house of the Earl of Dreddlington, in order to eat the bitter, bitter bread of dependence. Poor soul! you might tell, by a glance at her, that she had not thriven upon it. She was about thirty, and so thin! She was dressed in plain white muslin; and there was a manifest constraint and timidity about her motions, and a depression in her countenance; whose lineaments showed that if she could have been happy, she might have appeared handsome. She had a most ladylike air; and there was thought in her brow and acuteness in her eye, which however, as it were, habitually watched the motions of the earl and the Lady Cecilia, with deference and anxiety. Poor Miss Macspleuchan felt herself gradually sinking into a sycophant; the alternative being *that*, or starvation. She was very accomplished, particularly in music and languages, while the Lady Cecilia really knew scarcely anything—for which reason, principally, she had long ago conceived a bitter dislike to Miss Macspleuchan, and inflicted on her a number of petty but exquisite mortifications and indignities; such, perhaps, as none but a sensitive soul could fully appreciate; for the earl and his daughter were exemplary persons in the proprieties of life, and would not do such things *openly*. She was a sort of companion of Lady Cecilia, and entirely dependent upon her and the earl for her subsistence. She was sitting on the sofa beside Lady Cecilia, when Titmouse re-entered the drawing-room; and the latter eyed him through her glass with infinite *nonchalance*, even when he had advanced to within a few feet of her. He made Miss Macspleuchan, as she rose to take her seat and prepare tea, a most obsequious bow. Absurd as was the style of its performance, she saw that there was politeness in the intention; 'twas moreover a courtesy towards herself, that was unusual from the earl's guests; and these considerations served to take off the edge of the ridicule and contempt with which Lady Cecilia had been preparing her to receive their newly-discovered kinsman. After standing for a second or two near the sofa, Titmouse ventured to sit himself down upon it—on the very edge only—as if afraid of disturbing Lady Cecilia, who was reclining on it with an air of languid hauteur.

"So you're going, my Lady, to a dance to-night, as my Lord says?" quoth Titmouse, respectfully; "hope your Ladyship will enjoy yourself!"

"We regret that you do not accompany us, Mr. Titmouse," said Lady Cecilia, slightly inclining towards him, and glancing at Miss Macspleuchan with a faint and bitter smile.

"Should have been most uncommon proud to have gone, please your Ladyship," replied Titmouse, as a servant brought him a cup of tea. "These cups and saucers, my Lady, come from abroad, I suppose? Now, I dare say, though they've *rather* a funny look, they cost a good deal?"

"I really do not know, sir; I believe we have had them some time."

"Pon my life, my Lady, I like them amazing!" Seeing her Ladyship not disposed to talk, Titmouse became silent.

"Are you fond of music, Mr. Titmouse?" inquired the earl, presently; observing that the pause in the conversation had become embarrassing to Titmouse.

"Very, indeed, my Lord; is your Lordship?"

"I am rather fond of *vocal* music, sir—of the opera."

This the earl said, because Miss Macspleuchan played upon the piano very brilliantly, and did not sing. Miss Macspleuchan understood him.

"Do you play upon any instrument, Mr. Titmouse?" inquired Lady Cecilia, with a smile lurking about her lips, which increased a little when Titmouse replied in the negative;—but added that, he had once begun to learn the *clarionet* some years before, but could not manage the notes. "Excuse me, my Lady, but what an uncommon fine piano that is!" said he. —"If I may make so bold, will your Ladyship give us a tune?"

"I dare say Miss Macspleuchan will play for you, Mr. Titmouse, if you wish it," replied Lady Cecilia, coldly.

Some time afterwards, a servant announced to her Ladyship and the earl that the carriage was at the door; and presently they both retired to their dressing-rooms to make some slight alteration in their dress;—the earl to add an order or two, and Lady Cecilia to place upon her haughty brow a small tiara of brilliants. As soon as they had thus retired—"I shall feel great pleasure, sir, in playing for you, if you wish it," said Miss Macspleuchan, in a voice of such mingled melancholy and kindness as must have gone to Titmouse's heart, had he possessed one. He jumped up, and bowed profoundly. She sat down to the piano, and played with great ease and brilliancy such music as she supposed would suit her auditor—namely, waltzes and marches—till the door opened, and Lady Cecilia reappeared drawing on her gloves, with the glittering addition which I have mentioned—followed presently by the earl.

"Well, sir," said he, with dignified affability, "I need not repeat how highly gratified I feel at our introduction to each other. I trust you will henceforth consider yourself no stranger here"——

"Oh, 'pon my life, my Lord! your Lordship's most particular polite!" exclaimed Titmouse, in a low tone, and with a sudden and profound bow.

"And that on your return from Yorkshire," continued the earl, drawing on his gloves, "you will let us see you: we both feel great interest in your good fortunes. Sir, I have the honor to wish you a good evening!" He extended his gloved hand to his distinguished little kinsman, whose hand, however, he touched with little more than the ends of his fingers.

"We exceedingly regret that we must leave you, Mr. Titmouse," said Lady Cecilia, with forced seriousness; "but as we wish to leave the duchess's early, in order to go to another ball, we must *go* early. Good-evening, sir," and having dropped him a slight formal courtesy, she quitted the drawing-room followed by the earl, Titmouse making four or five such bows as provoked a smile from all who witnessed them. The next moment he was alone with Miss Macspleuchan. Her unaffected, good-natured address made him feel more at home within the next five minutes, than he had been since entering that frigid scene of foolish state—since being in the oppressive presence of the greatness just departed. She felt at first a contempt for him bordering upon disgust, but which very soon melted into pity. What a wretched creature was *this* to be put into such a dazzling position! What might be the design of Providence in placing such a being in the possession of such wealth and rank, at the expense of the virtuous Aubreys?

Titmouse soon got pretty communicative with Miss Macspleuchan, and told her about the Tag-rags, Miss Tag-rag, and Miss Quirk, both of whom were absolutely dying of love for

him, and thought he was in love with them, which was not the case—far from it. Then he hinted something about a most particular uncommon lovely gal that had his heart, and he hoped to have hers, as soon as he had got all to rights at Yatton. Then he described the splendid style in which he was going down to take possession of his estates. Having finished this, he told her that he had been the morning before to see a man hanged for murdering his wife; that he had been into the condemned cell, and then into the press-room, and had seen his hands and arms tied, and shaken hands with him; and he was going into such a sickening minuteness of detail, that to avoid it Miss Macspleuchan, who felt both shocked and disgusted, suddenly asked him if he was fond of heraldry; and rising from the sofa, she went into the second room, where, on an elegant and antique stand, lay a huge roll of parchment, on a gilded stick, splendidly mounted and most superbly illuminated,—it was about three-quarters of a yard in breadth, and some ten or twenty feet in length. This was the *Pedigree of the Dreddlingtons*. She was giving him an account of Simon de Drelincourt, an early ancestor of the earl's, who had come over with William the Conqueror, and performed stupendous feats of valor at the battle of Hastings, Titmouse listening in open-mouthed awe, and almost trembling to think that he had broken a valuable dish belonging to a nobleman who had such wonderful ancestors; not, at the moment, adverting to the circumstance that he was himself descended from the very same ancestors, and had as rich blood in him as the earl and Lady Cecilia—when a servant entered and informed him in a whisper that "his carriage had arrived." He considered that etiquette required him to depart immediately.

"Beg your pardon; but if ever you should come down to my estate in the country, shall be most uncommon proud to see your Ladyship."

"I beg your pardon; you are mistaken, sir," interrupted Miss Macspleuchan, hastily, and blushing scarlet; the fact being that Titmouse had not caught her name on its having been once or twice pronounced by Lady Cecilia; and very naturally concluded that she also must be a lady of rank. Titmouse was, however, so occupied with his efforts to make a graceful exit, that he did not catch the explanation of his mistake; and, bowing almost down to the ground, reached the landing, where the tall servant, with a very easy grace, gave him his hat and cane, and preceded him down-stairs. As he descended, he felt in his pockets for some loose silver, and gave several shillings between the servants who stood in the hall to witness his departure; after which, one of them having opened the door and gently let down the steps of the glass-coach, Titmouse popped into it.

"Home, sir?" inquired the servant, as he closed the door.

"The Cabbage-Stalk Hotel, Covent Garden," replied Titmouse, with an affected drawl.

His answer was communicated to the coachman, who thereupon addressed a sharp argument to the brace of meek and skinny horses, standing with downcast heads before him—which they lifted up—then they got into motion—and away rumbled the glass-coach. As soon as its distinguished inmate had become calm enough to reflect upon the events of the evening, he came to the conclusion that the Earl of Dreddlington was a very great man indeed; the Lady Cecilia very beautiful, but rather proud; and Miss Macspleuchan (Lady Somebody, as he supposed) one of the most interesting ladies whom he had ever met with; that there was something *uncommon* pleasing about her: in short, he felt a sort of grateful attachment

towards her; but how long it would have lasted after his hearing that she was only a plain miss, and a poor relation, I leave the acute reader to conjecture.

CHAPTER VI.

Mr. Gammon was with Titmouse about half-past nine o'clock the next morning, not a little anxious to hear how that young gentleman had got on over-night; but met with a totally different reception from any that he had before experienced.

He imagined for a few minutes that Lord Dreddlington had been *pumping* Titmouse; had learned from him his position with respect to Gammon, in particular; and had injected distrust and suspicion into the mind of Titmouse, concerning him. But Gammon, with all his acuteness, was quite mistaken. The truth was, 'twas only an attempt on the part of poor Titmouse to assume the composed demeanor, the languid elegance, which he had observed in the distinguished personages with whom he had spent the preceding evening, and which had made a very deep impression on his little mind. He drawled out his words, looked as if he were half asleep, and continually addressed Gammon as "Sir," and "Mr. Gammon," just as the Earl of Dreddlington had constantly addressed him—Titmouse. Our friend was sitting at breakfast, on the present occasion, in a most gaudy dressing-gown, and with the newspaper before him; in short, his personal appearance and manner were totally different from what Gammon had ever previously witnessed; and he looked now and then at Titmouse, as if for a moment doubting his identity. Whether or not he was now on the point of throwing overboard those who had piloted him from amid the shoals of poverty into the open sea of affluence, shone upon by the vivid sunlight of rank and distinction, Gammon did not know; but he contracted his brow, and assumed a certain sternness and peremptoriness of tone and bearing, which were not long in reducing Titmouse to his proper dimensions; and when at length Mr. Gammon entered upon the delightful subject of the morrow's expedition, telling him that he, Gammon, had now nearly completed all the preparations for going down to, and taking possession of Yatton in a style of suitable splendor, according to the wish of Titmouse—this quickly melted away the thin coating of mannerism, and Titmouse was "himself again." He immediately gave Mr. Gammon a full account of what had happened at Lord Dreddlington's, and, I fear, of a great deal more, which *might*, possibly, have happened, but certainly *had* not, *e. g.* his Lordship's special laudation of Mr. Gammon as a "monstrous fine lawyer," which Titmouse swore were the very exact words of his Lordship, who "would have been most happy to see Mr. Gammon," and a good deal to the like effect. Also that he—Titmouse—had been "most uncommon thick" with "Lady Cicely," (so he pronounced her name;) and that both she and Lord Dreddlington had "pressed him very hard to go with them to a ball *at a duke's!*" He made no mention of the broken trifle-dish; said they had nearly a dozen servants to wait on them, and that there were twenty different sorts of wine, and no end of courses, at dinner. That the earl wore a star, and garter, and ribbons—which Gammon erroneously thought as apocryphal as the rest; and had told him that he—Titmouse—might one day wear them, and sit in the House of Lords; and had, moreover, advised him most strenuously to get into Parliament as soon as possible, as the "cause of the people wanted strengthening." [As Lord Coke, somewhere says, in speaking of a spurious portion of the text of Lyttleton, "*that arrow came never out of Lyttleton's quiver*"—so Gammon instantly

perceived that the last sentence came never out of Titmouse's own head, but came plainly marked as that of a wise and able man and statesman.]

As soon as Titmouse had finished his little romance, Gammon proceeded to the chief object of his visit—their next day's journey. He said that he much regretted to inform Titmouse that Mr. Snap had expressed a very anxious wish to witness the triumph of Mr. Titmouse; and that unless he had some particular objection—"Oh none, 'pon honor!—poor Snap!—devilish good chap in a small way!" said Titmouse, in a most condescending manner, and at once gave his consent—Gammon informing him that Mr. Snap would be obliged to return to town by the next day's coach. The reader will smile when I tell him, and if a lady, will frown when she hears, that Miss Quirk was to be of the party—a point which her anxious father had secured some time before. Mrs. Alias had declared that she saw no objection, as Mr. Quirk would be constantly with his daughter, and Gammon had appeared most ready to bring about so desirable a result. He had also striven hard, unknown to his partners, to increase their numbers, by the Tag-rags, who might have gone down, all three of them, if they had chosen, by coach, and so have returned. Gammon conceived that this step might not have been unattended with advantage in several ways; and would, moreover, have secured him a considerable source of amusement. Titmouse, however, would not listen to the thing for one moment, and Gammon was forced to give up his little scheme. Two dashing young fellows, fashionable friends of Titmouse, (who had picked them up, Heaven only knows where, but they never deserted him,) infinitely to Gammon's annoyance, were to be of the party. He had seen them but once, when he had accompanied Titmouse to the play, where they soon joined him. One was a truly disgusting-looking fellow—a Mr. PIMP YAHOO—a man about five-and-thirty years old, tall, with a profusion of black hair parted down the middle of his head, and falling down in long clustering curls from each temple upon his coat-collar. His whiskers also were ample, and covered two-thirds of his face, and spread in disgusting amplitude round his throat. He had also a jet-black tuft—an imperial—depending from his underlip. He had an execrable eye—full of insolence and sensuality; in short, his whole countenance bespoke the thorough debauchee and ruffian. He had been, he said, in the army; and was nearly connected, according to his own account—as with fellows of this description is generally the case—with "some of the first families in the North!" He was now a man of pleasure about town—which contained not a better billiard-player, as the admiring Titmouse had had several painful opportunities of judging. He was a great patron of the ring—knowing all their secrets—all their haunts. He always had plenty of the money of other people, and drove about in a most elegant cab, in which Titmouse had often had a seat; and as soon as Mr. Yahoo had extracted from his communicative little companion all about himself, that astute gentleman made it his business to conciliate Titmouse's good graces by all the arts of which he was master—and he succeeded. The other chosen companion of our friend was Mr. ALGERNON FITZ-SNOOKS; a complete fool. He was the sole child of a rich tradesman—who had christened him by the sounding name given above; and afterwards added the patrician prefix to the surname, which also you see above, in order to gratify his wife and son. The youth had never "taken to business"—but was allowed to saunter about, doing, and knowing, nothing, till about his twenty-second year, when his mother died, as also a year afterwards did his father, bequeathing to his hopeful son some fifty thousand pounds—absolutely and uncontrolledly. Mr. Algernon Fitz-Snooks very judiciously thought that youth was the time to enjoy life; and before he had reached his

thirtieth year, he had got through all his fortune except about five or six thousand pounds—in return for which, he had certainly got *something*; viz. an impaired constitution and a little experience, which *might*, possibly, at some future time, be useful. He had a pleasing face, regular features, and interesting eyes; his light hair curled "deliciously;" and he spoke in a sort of lisp and in a low tone—and, in point of dress, always "turned out" beautifully. *He*, also, had a cab, and was a great friend of Mr. Yahoo, who had introduced him into a great deal of high society, principally in St. James's Street; where both he and Mr. Yahoo had passed a great deal of their time, especially during the night! There was no intentional *mischief* in poor Fitz-Snooks: nature had made him only a fool—his prudent parents had done the rest; and if he fell into vice, it was only because—as people say—"he couldn't help it." Such were the chosen companions of Titmouse; the one a fool, the other a rogue—and "he *must*," he said, "have them down to the *jollifying* at Yatton." A groom and a valet—both impudent knaves, and both newly hired the day before—would complete the party of the morrow. Gammon assured Titmouse that he had taken all the pains in the world to get up a triumphant entry into Yatton; his agents at Grilston, Messrs. Bloodsuck and Son—the Radical electioneering attorneys of the county—who were well versed in the matter of processions, bands, flags, &c. &c. &c., had by that time arranged everything, and they were to be met, when within a mile of Yatton, by a grand procession. The people at the Hall, also, were under orders from Mr. Gammon, through Messrs. Bloodsuck and Son, to have all in readiness—and a banquet prepared for nearly a hundred persons—in fact, all comers were to be welcome. To all this Titmouse listened with eyes glistening, and ears tingling with rapture; but can any tongue describe his emotion, on being apprised that the sum of £2,500, in the banker's hands, was now at his disposal—that it would be doubled in a few weeks—and that a check for £500, drawn by Mr. Titmouse on the London agents of the Grilston bankers, had been honored on the preceding afternoon? Titmouse's heart beat fast, and he felt as if he could have worshipped Gammon. As for the matter of carriages, Mr. Gammon said, that probably Mr. Titmouse would call that morning on Mr. Axle, in Long Acre, and select one to his mind—it must of course be one with two seats—and Mr. Gammon had pointed out several which were, he thought, eligible, and would be shown to Mr. Titmouse. That would be the carriage in which—he presumed—Mr. Titmouse himself would travel; the second, Mr. Gammon had taken the liberty of already selecting. With this, Mr. Gammon (just as the new valet brought in no fewer than a dozen boxes of cigars ordered over-night by Titmouse) shook his hand and departed, saying that he should make his appearance at the Cabbage-Stalk the next morning, precisely at eleven o'clock—about which time it was arranged they were all to start. Titmouse hardly knew how to contain himself, on being left alone. About an hour afterwards, he made his appearance at Mr. Axle's: who, worthy and indefatigable man, carried on two businesses, one public, *i. e.* that of a coach-builder—one private, *i. e.* that of a money-lender. He was a rich man—a very obliging and "accommodating" person, by means of which latter quality he had amassed a fortune of, it was believed, a hundred thousand pounds. He never made a fuss about selling on credit—or lending, taking back, or exchanging, carriages of all descriptions; nor in discounting the bills of his customers, to any amount. He proved generally right, in each case, in the long run. He would supply his fashionable victim with as splendid a chariot, and funds to keep it some time going, as he or she could desire; well knowing that in due time, after they should have taken a few turns in it about the parks, and a few streets and squares in the neighborhood, it

would quietly drive up to one or two huge dingy fabrics in a different part of the town, where it would deposit its burden, and then return to its maker very little the worse for wear; who took it back at about a twentieth part of its cost, and soon again disposed of it in a way equally advantageous to himself. Mr. Axle showed Mr. Titmouse very obsequiously over his premises, pointing out (as soon as he knew who his visitor was,) the carriages which Mr. Gammon had the day before desired should be shown to him; and which Mr. Titmouse, with his glass stuck in his eye—where it was kept by the pure force of muscular contraction—examined with something like the air of a connoisseur—occasionally rapping with his agate-headed cane—now against his teeth, then against his legs. He did not seem perfectly satisfied with any of them; they looked—he said—"devilish plain and dull."

"Hollo—Mr. Axletree, or whatever your name is—what have we *here*? 'Pon my soul, the very thing!"—he exclaimed, as his eye caught a splendid object—the state-carriage of the ex-sheriff, with its gorgeously decorated panels: which, having been vamped up for some six or seven successive shrievalties—(being on each occasion heralded to the public by laudatory paragraphs in the newspapers, as entirely new and signal instances of the taste and magnificence of the sheriff-elect)—seemed now *perfunctus officio*. Mr. Axle was staggered for a moment, and scarce supposed Mr. Titmouse to be in earnest—Gammon having given him no inkling of the real character of Titmouse; but observing the earnest steadfast gaze with which he regarded the glittering object, having succeeded in choking down a sudden fit of laughter, Mr. Axle commenced a most seductive eulogium upon the splendid structure—remarking on the singularity of the circumstance of its happening just at that exact moment to be placed at his disposal by its former owner—a gentleman of great distinction, who had no longer any occasion for it. Mr. Axle declared that he had had numerous applications for it already; on hearing which, Titmouse got excited. The door was opened—he got in; sat on each seat—"Don't it hang beautifully?" inquired the confident proprietor, testing, by pressure, the elasticity of the springs, as he spoke.

"Let me see, who was it that was after it yesterday? Oh—I think it was Sir Fitzbiscuit Gander; but I've not *closed* with him yet!"

"What's your price, Mr. Axletree?" inquired Titmouse, rather heatedly, as he got out of the carriage.

After some little higgie-haggling he bought it!!!—for there was nothing like closing at once, where there was keen competition! Mr. Gammon—thought Titmouse—could not have seen this beautiful vehicle when making his choice on the preceding morning! For the rest of the day he felt infinitely elated at his fortunate purchase; and excited his imagination by pictures of the astonishment and admiration which his equipage must call forth on the morrow. Punctual to his appointment, Mr. Gammon, a few moments before the clock had struck eleven on the ensuing morning, drew up to the Cabbage-Stalk, as near at least as he could get to it, in a hackney-coach, with his portmanteau and carpet-bag. I say as near as he could; for round about the door stood a little crowd, gazing with a sort of awe on a magnificent vehicle standing there, with four horses harnessed to it. Gammon looked at his watch, as he entered the hotel, and asked why the sheriff's carriage was standing at the door. The waiter to whom he spoke, seemed nearly splitting with laughter, which almost disabled him from answering that the carriage in question was that of Mr. Titmouse, ready for setting off for

Yorkshire. Mr. Gammon started back—turned pale, and seemed nearly dropping an umbrella which was in his hand.

"Mr. Titmouse's!" he echoed incredulously.

"Yes, sir—been here for this hour, at least, packing, such a crowd all the while; everybody thinks it's the sheriff, sir," replied the waiter, scarce able to keep his countenance. Mr. Gammon rushed up-stairs with greater impetuosity than he had perhaps ever been known to exhibit before, and burst into Mr. Titmouse's room. There was that gentleman, with his hat on, his hands stuck into his coat-pockets, a cigar in his mouth, and a tumbler of brandy and water before him. Mr. Yahoo, Mr. Fitz-Snooks, and Mr. Snap were similarly occupied; and Mr. Quirk was sitting down with his hands in his pockets, and a glass of negus before him, with anything but a joyful expression of countenance.

"Is it possible, Mr. Titmouse"—commenced Gammon, almost breathlessly.

"Ah, how d'ye do, Gammon?—punctual!" interrupted Titmouse, extending his hand.

"Forgive me—but can it be, that the monstrous thing now before the door, with a crowd grinning around it, is *your carriage*?" inquired Gammon, with dismay in his face.

"I—rather—think—it *is*," replied Titmouse, slightly disconcerted, but striving to look self-possessed.

"My *dear* sir," replied Gammon, in a kind of agony, "it is *impossible*! It never can be! Do you mean to say that you bought it at Mr. Axle's?"

"I should rather think so," replied Titmouse, with a piqued air.

"He's been grossly imposing on you, sir!—Permit me to go at once and get you a proper vehicle."

"Pon my life, Mr. Gammon, I think that it's a monstrous nice thing—a great bargain—and I've bought it and paid for it, that's more."

"Gentlemen, I appeal to *you*," confidently said Gammon, turning in an agony to Mr. Yahoo and Mr. Fitz-Snooks.

"As for *me*, sir," replied the former, coolly, at the same time knocking off the ashes from his cigar;—"since you ask my opinion, I confess I rather like the idea—ha! ha! 'Twill produce a *sensation*; that's something in this dull life!—Eh, Snooks?"

"Ay—a—I confess I was a little shocked at first, but I think I'm getting over it now," lisped Mr. Fitz-Snooks, adjusting his shirt-collar, and then sipping a little of his brandy and water. "I look upon it, now, as an excellent joke; egad, it beats Chitterfield hollow, though *he*, too, has done a trick or two lately."

"Did you purchase it as a joke, Mr. Titmouse?" inquired Gammon, with forced calmness, nearly choked with suppressed fury.

"Why—a—'pon my life"—said Titmouse, with a desperate effort to appear at his ease—"if you ask *me*—wonder you don't see it! Of course I did!—Those that don't like it may ride, you know, in the other—can't they? Eh?"

"We shall be hooted at, laughed at, wherever we go," said Mr. Gammon, vehemently.

"Exactly—that's the *novelty* I like," said Mr. Yahoo, looking, as he spoke, at Mr. Gammon with a smile of ineffable insolence.

Mr. Gammon made him no reply, but fixed an eye upon him, under which he became plainly rather uneasy. He felt outdone. Talk of SCORN!—the eye of Gammon, settled at that instant upon Mr. Yahoo, was its complete and perfect representative; and from that moment the wretch Yahoo felt something like *fear* of the eye of man, or of *submission* to it. When, moreover, he beheld the manner in which Titmouse obeyed Gammon's somewhat peremptory request to accompany him out of the room for a moment, he resolved, if possible, to make a friend of Gammon. That gentleman failed, on being alone with Titmouse, in shaking his resolution to travel in the splendid vehicle standing at the door. Titmouse said that he had bought and paid for the carriage; it suited his taste—and where was the harm of gratifying it? Besides, it was already packed—all was prepared for starting. Gammon thereupon gave it up; and, swallowing down his rage as well, and as quickly as he could, endeavored to reconcile himself to this galling and most unexpected predicament.

It seemed that Miss Quirk, however really anxious to go down to Yatton—to do anything, in short, calculated to commit Mr. Titmouse to her—was quite staggered on discovering, and shocked at seeing, the kind of persons who were to be their travelling companions. As for Mr. Yahoo, she recoiled from him with horror at the very first glance. What decent female, indeed, would not have done so? She had retired to a bedchamber, soon after entering the Cabbage-Stalk; and, seeing her two unexpected fellow-travellers, presently sent a chambermaid to request her papa to come to her.

He found her considerably agitated. She wished earnestly to return to Alibi House; and consented to proceed on her journey only on the express promise of Mr. Titmouse and her papa, that no one should be in the carriage in which she went except her papa and Mr. Gammon—unless, indeed, Mr. Titmouse should think proper to make himself the fourth.

Mr. Quirk, on this, sent for Mr. Gammon, who, with a somewhat bad grace, ("Confound it!" thought he, "everything seems going wrong,") undertook to secure Mr. Titmouse's consent to that arrangement.

While Messrs. Quirk and Gammon were closeted together, one of the waiters entered the room occupied by Mr. Titmouse and his friends, and informed him that a lad had brought a parcel for him, which he, the aforesaid lad, had received special orders to deliver into the hands of Mr. Titmouse. Accordingly there was presently shown into the room a little knock-kneed lad, in tarnished livery, in whom Titmouse recollected the boy belonging to Mr. Tag-rag's one-horse chaise; and who gave a small parcel into Mr. Titmouse's hands, "with Mrs. and Miss Tag-rag's respectful respects."

As soon as he had quitted the room, "By Jove! What have we here?" exclaimed Titmouse, just a *little* flustered as he cut open the string of the parcel. Inside was a packet wrapped up in white paper, and tied in a pretty bow, with narrow white satin ribbons. This again, and another still, within it, having been opened—behold, there stood exposed to view, three fine cambric pocket-handkerchiefs, each of which, on being examined, proved to be marked with the initials "T. T." in *hair*; and Mr. Yahoo happening to unfold one of them, (in so doing,

dropped upon it some of the ashes of his cigar,) lo! in the centre was—also done in hair—the figure of a heart transfixed with an arrow!!! Mr. Yahoo roared; and Mr. Fitz-Snooks lisped, "Is she pretty, Tit? Where's her nest? Any *old* birds?—eh?"

Titmouse colored a little; then grinned, and put his finger to the side of his nose, and winked his eye, as if favoring the bright idea of Mr. Fitz-Snooks. On a sheet of gilt-edged paper, and sealed with a seal bearing the tender words, "*Forget me not*," was written the following:

"SIR—Trusting you will excuse the liberty, I send you three best cambric pocket-handkerchiefs, which my daughter have marked with her own hair, and beg your acceptance of, hoping you may be resigned to all the good fortune that may befall you, which is the prayer of, dear sir, yours respectfully,

"MARTHA TAG-RAG.

"P. S.—My daughter sends what you may please to wish and accept: and hope we have the great happiness to see you here again, when you return to town from your noble mansion in the country.

"*Satin Lodge, 18th May 18—.*"

"Oh! the naughty old woman! Fie! Fie!" exclaimed Mr. Yahoo, with his intolerable smile.

"Pon my soul, there's nothing in it," said Titmouse, reddening.

"Where's Satin Lodge?" lisped Mr. Fitz-Snooks.

"It is a country-house on the—the Richmond road," said Titmouse, with a little hesitation; and just then the return of Gammon, who had resumed his usual calmness of manner, relieved him from his embarrassment. Mr. Gammon had succeeded in effecting the arrangement suggested by Mr. Quirk and his daughter; and within about a quarter of an hour afterwards, behold the ex-sheriff's resplendent but cast-off carriage filled by Miss Quirk and Titmouse, and Mr. Quirk and Gammon—the groom and valet sitting on the coach-box; while in the other, a plain yellow carriage, covered with luggage, sat Mr. Yahoo, Mr. Fitz-Snooks, and Mr. Snap, all of them with lighted cigars—Snap never having been so happy in all his life as at that moment.

Mr. Titmouse had laid aside his cigar in compliment to Miss Quirk; who wore a long black veil, and an elegant light shawl, and looked uncommonly like a young bride setting off—oh, heavens!—thought she—that it *had* been so!—on her wedding excursion. Mr. Gammon slouched his hat over his eyes, and inclined his head downwards, almost collapsed with vexation and disgust, as he observed the grins and tittering of the group of spectators gathered round the carriage and doorway; but Titmouse, who was most splendidly dressed, took off his hat on sitting down, and bowed several times to—as he supposed—the admiring crowd.

"Get on, boys!" growled Mr. Gammon; and away they rattled, exciting equal surprise and applause wherever they went. Whoever had met them, must have taken Titmouse and Miss Quirk for a newly-married couple—probably the son or daughter of one of the sheriffs who had lent the state carriage to add *éclat* to the interesting occasion!

With the exception of the sensation produced at every place where they changed horses, the only incident during their journey worth noticing, occurred at the third stage from London. As they came dashing up to the door of the inn, their advent setting all the bells of the establishment ringing, and waiters and hostlers scampering up to them like mad, they beheld a plain and laden dusty travelling-carriage, waiting for horses—and Gammon quickly perceived it to be the carriage of the unfortunate Aubreys! The travellers had alighted. The graceful figure of Miss Aubrey, her face pale, and wearing an expression of manifest anxiety and fatigue, was standing near the door, talking kindly to a beggar-woman, with a cluster of half-naked children around her; while little Aubrey was romping about with Miss Aubrey's beautiful little spaniel Cato; Agnes looking on and laughing merrily, and trying to escape from the hand of her attendant. Mr. and Mrs. Aubrey were talking together, close beside the carriage-door. Gammon observed all this, and particularly that Mr. Aubrey was scrutinizing their appearance, with a sort of half-smile on his countenance, melancholy as it was.

"Horses on!" said Gammon, leaning back in the carriage.

"That's a monstrous fine woman standing at the inn door, Titmouse—eh?" exclaimed Mr. Yahoo, who had alighted for a moment, and stood beside the door of Titmouse's carriage, his execrable eye settled upon Miss Aubrey. "I wonder who and what she is? By Jove, 'tis the face—the figure of an angel! egad, they're *somebody*; I'll look at their panels!"

"I know who it is," said Titmouse, rather faintly; "I'll tell you by-and-by."

"Now, *now*! my dear fellow. Our divinity is vanishing," whispered Mr. Yahoo, eagerly, as Miss Aubrey, having slipped something into the beggar's hand, stepped into the carriage. As soon as her brother had entered, the door was closed, and they drove off.

"Who's that, Mr. Titmouse?" inquired Miss Quirk, with a little eagerness, observing—women are very quick in detecting such matters—that both Gammon and Titmouse looked rather embarrassed.

"It's the—the Aubreys," replied Titmouse.

"Eh! By Jove!—is it?" quickly inquired old Quirk, putting his head out of the window; "how very odd, to meet the old birds? Egad! their nest must be yet warm—ha! ha!"

"What! dear papa, are those the people you've turned out? Gracious! I thought I heard some one say that Miss Aubrey was pretty! La! I'm sure *I* thought—now what do *you* think, Mr. Titmouse?" she added, turning abruptly and looking keenly at him.

"Oh! 'pon my life, I—I—see nothing at all in her—devilish plain, I should say—infernally pale, and all that!"

They were soon on their way again. Titmouse quickly recovered his equanimity, but Gammon continued silent and thoughtful for many—many miles; and the reader would not be surprised at it, if he knew as well as I do the thoughts which the unexpected sight of that travelling-carriage of Mr. Aubrey had suggested to Mr. Gammon.

As they approached the scene of triumph and rejoicing, and ascertained that they were within about a mile of the peaceful little village of Yatton, the travellers began to look out for indications of the kind which Mr. Gammon had mentioned to Titmouse, viz. a band and

procession, and an attendant crowd. But however careful and extensive might have been the arrangements of those to whom that matter had been intrusted, they were likely to be sadly interfered with by a circumstance which, happening just then, might, to a weaker and more superstitious mind than that of Mr. Titmouse, have looked a little ominous—namely, the occurrence of a tremendous thunder-storm. It was then about five o'clock in the afternoon. The whole day had been overcast, and the sky threatening; and just as the two carriages came to that turning in the road which gave them the first glimpse of the Hall—only, however, the tops of the great antique brick chimneys, which were visible above the surrounding trees—a fearful, long-continued flash of lightning burst from the angry heavens, followed, after an interval of but a second or two, by a peal of thunder which sounded as if a park of artillery was being repeatedly discharged immediately overhead.

"Mind your horses' heads, boys," called out Mr. Gammon; "keep a tight rein."

Miss Quirk was dreadfully alarmed, and clung to her father; Titmouse also seemed disconcerted, and looked to Gammon, who was perfectly calm, though his face was not free from anxiety. The ghastly glare of the lightning was again around them—all involuntarily hid their faces in their hands—and again rattled the thunder in a peal lasting more than half a minute, and seeming to be in frightful contiguity, as it were only a few yards above their heads. Down, then, came the long-suspended rain, pouring like a deluge, and so it continued, with frequent returns of the thunder and lightning, for nearly a quarter of an hour. The last turning brought them within sight of the village, and also of some fifty or sixty persons crowding under the hedges, on each side—these were the triumphant procession; musicians, flagmen, footmen, horsemen, all dripping with wet, and constituting surely a spectacle piteous to behold. Out, however, they all turned, true to their orders, as soon as they saw the carriages, which immediately slackened their speed—the rain also somewhat abating. The flagman tried desperately to unroll a wet banner, of considerable size, with the words:—

"WELCOME TO YATTON!"

in gilded letters; while the band (consisting of a man with a big drum, another with a serpent, a third with a trumpet, a fourth with a bassoon, two with clarionets, and a boy with a fife) struck up—"See the conquering hero comes!" They puffed and blew lustily; bang! bang! bang! went the drum; but the rain, the thunder, and the lightning woefully interfered with their harmony. 'Twould have made your heart ache to see the wet flag clinging obstinately to the pole, in spite of all the efforts of its burly bearer! But now for the procession—first, on horseback, was Barnabas Bloodsuck, (senior,) Esq.; beside him rode his son, Barnabas Bloodsuck, (junior,) Esq.; then came the Reverend Gideon Fleshpot, solemn simpleton, the vicar of Grilston, the only Radical clergyman in that part of the country; beside him, the Reverend Smirk Mudflint, a flippant, bitter, little Unitarian parson, a great crony of Mr. Fleshpot, and his surname singularly enough exactly designating the qualities of his brain and heart. Next to these, alone in his one-horse chaise, (looking like a pill-box drawn by a leech,) came the little fat Whig apothecary, Gargle Glister, Esq. Following him came, also in a gig, Going Gone, Esq., the auctioneer—the main prop of the Liberal side, being a most eloquent speaker—and Mr. Hic Hæc Hoc, a learned schoolmaster, who undertook to teach the rudiments of Latin, viz. the Latin grammar up as far as the

irregular verbs. Then there were Mr. Centipede, the editor, and Mr. Woodhouse, the publisher and proprietor of the "YORKSHIRE STINGO," for which, also, Mr. Mudflint wrote a great deal. These, and about a dozen others, the flower of the "party" thereabouts, disdainful of the inclement weather, bent on displaying their attachment to the new owner of Yatton, and solacing each his patient inner man with anticipation of the jolly cheer awaiting him at the Hall, formed the principal part of the procession; the rest consisting of rather a miscellaneous assortment of scot-and-lot and potwalloper-looking people, all very wet and hungry, and very frequently casting looks of devout expectation towards the Hall. Scarcely a villager of Yatton was to be seen stirring; nor did any of the tenants of the estate join in the procession; even had they not felt far otherwise disposed, they had luckily a complete excuse for their non-appearance in the deplorable state of the weather. Sometimes the band played; then a peal of thunder came; then a cry of "hurra! Titmouse forever! hurra!" then the band, and then the thunder, and rain! rain! rain! Thus they got to the park gates, where they paused, the half-drowned men and boys shouting, "Titmouse forever! hurra—a—a!" Mr. Titmouse bobbing about, now at one window, then at the other, with his hat off, in the most gracious manner. Really it seemed almost as if the elements were indicating the displeasure of heaven at Mr. Titmouse's assumption of Yatton; for just as he was passing under the old gateway, out flashed the lightning more vividly than it had yet appeared, and the thunder bellowed and reverberated among the woods as though it would never have ceased. The music and shouting now ended suddenly; carriages, horsemen, pedestrians, quickened their pace in silence, as if anxious to get out of the storm; the horses now and then plunging and rearing violently. Titmouse was terribly frightened, in spite of his desperate efforts to appear unconcerned. He was as pale as death, and looked anxiously at Gammon, as if hoping to derive courage from the sight of his rigid countenance. Miss Quirk trembled violently, and several times uttered a faint scream: but her father, old Mr. Quirk, did not seem to care a pinch of snuff about the whole matter; he rubbed his hands together cheerily, chucked his daughter under the chin, rallied Titmouse, and now and then nudged and jeered Gammon, who seemed disposed to be serious and silent. Having drawn up opposite the Hall door, it was opened by Mr. Griffiths, with a saddened, but still respectful look and manner; and in the same way might be characterized some six or seven servants standing behind him, in readiness to receive the new-comers. The half-drowned musicians tried to strike up "Rule Britannia," as the hero of the day, Mr. Titmouse, descended from his carriage, Mr. Griffiths holding an umbrella for him, and bounded out of the rain with a hop, step, and jump into the Hall, where the first words he was heard to utter, were—

"What a devilish rum old place!"

"God bless you! God bless you! God bless you, Titmouse!" exclaimed old Mr. Quirk, grasping him by the hand as soon as he had entered. Titmouse shook hands with Miss Quirk, who immediately followed a female servant to an apartment, being exceedingly nervous and agitated. Gammon seemed a little out of spirits; and said simply, "You know, Mr. Titmouse, how fervently *I* congratulate you."

"Oh! my dear boy, Tit, do, for Heaven's sake, if you want the thunder and lightning to cease, order those wretched devils off—send them anywhere, but do stop their cursed noise, my dear boy!" exclaimed Mr. Yahoo, as soon as he had entered, putting his fingers to his ears.

"Mr. what's-your-name," said Titmouse, addressing Mr. Griffiths, "I'll trouble you to order off those fellows and their infernal noise. Demme! there's a precious row making up above, and surely *one at a time* will do—demme!"

"Ah, ha, capital joke, by Jove! capital!" said Mr. Fitz-Snooks, arranging his shirt-collar.

"A—Titmouse—by Jupiter!" said Mr. Yahoo, as, twirling his fingers about in his long black hair, of which he seemed very proud, he glanced about the Hall, "this a'n't so much amiss! Do you know, my dear boy, I rather like it; it's substantial, antique, and so forth!"

"Who are those dem ugly old fellows up there?" presently exclaimed Titmouse, as, with his glass stuck into his right eye, and his hands into his coat-pockets, he stood staring at the old-fashioned pictures.

"Some of them, sir," replied Mr. Griffiths, with an irrepressible sigh, "are ancestors of the Dreddlingtons, others of the Aubrey families. They are very old, sir," continued Mr. Griffiths, "and are much admired, and Mr. Aubrey desired me to say, that if you should be disposed to part"——

"Oh confound him, he may have 'em all, if he'll pay for 'em, if that's what he wants: I shall soon send them packing off!" Mr. Griffiths bowed, and very nearly shed a tear. By this time the Hall was crowded with the gentlemen who had formed part of the procession, and who came bowing and scraping to the new lord of Yatton, congratulating him, and wishing him health and happiness. As soon as he could disengage himself from their flattering but somewhat troublesome civilities, Tweedle (his valet) came and whispered, "Will you dress, sir? All is ready," and Titmouse followed him to the dressing-room which had formerly been young Mrs. Aubrey's. 'Twas the first time that Titmouse had ever experienced the attentions of a valet; and he was quite nonplussed at the multitudinousness and elegance of the arrangements around him. Such quantities of clothes of all sorts—dressing-implements, curling-irons, combs, brushes, razors, a splendid dressing-case, scents in profusion, oils, bear's-grease, four or five different sorts of soaps, &c. &c. &c.; all this gave Titmouse a far livelier idea of his altered circumstances, of his having really become a GENTLEMAN, than anything which he had up to that moment experienced. He thought his valet one of the cleverest and most obliging men in the world, only somewhat oppressive with his attentions; and at length Mr. Titmouse said he preferred *this* time, dressing alone, and so dismissed his obsequious attendant; whom, however, he was soon obliged to summon to his assistance after all, not knowing the proper uses of several implements about him. Having completed his toilet, he descended into the drawing-room; which, as well as the dining-room, was ready prepared for the banquet, covers being laid for forty or fifty, and good substantial fare provided for at least as many more, in the servants' hall, where operations had already commenced. On entering the drawing-room, his appearance seemed to produce a great sensation; and after a momentary and embarrassing pause, the only county gentleman who was present, advanced and introduced himself, his wife and daughter. This was Harkaway Rotgut Wildfire, Baronet, a tall and somewhat corpulent man of about fifty, very choleric and overbearing; his countenance showing the hard life he had led, his nose being red, and his forehead and mouth beset with pimples. He had been a bitter political opponent of Mr. Aubrey, and once a member for the county; but had so crippled his resources by hunting and horse-racing, as to compel the sacrifice of their town amusements; viz. his seat in the House

of Commons, and Lady Wildfire's box at the opera. This had soured both of them not a little, and they had completely sunk out of the county circle, in which they had once been sufficiently conspicuous. Sir Harkaway had an eye to the borough of Yatton on the happening of the next election, as soon as he had obtained an inkling that the new proprietor of Yatton was a very weak young man; and hence his patronizing presence at Yatton, in consequence of the invitation respectfully conveyed to him in Mr. Titmouse's name, through Messrs. Bloodsuck and Son. Besides Lady Wildfire and her daughter, both of whom had inquired with a sort of haughty curiosity about the lady who had accompanied Mr. Titmouse from town—a point which had been at length cleared up to their satisfaction—there were about a dozen ladies, the wives of the gentlemen who had borne so distinguished a part in the triumphal procession. They certainly looked rather a queer set; and none of them dared to speak either to Lady Wildfire or her daughter till spoken to by them. Never had old Yatton beheld within its walls so motley a group; and had the Aubreys continued there, hospitable as they were, accessible and charitable as they were, I leave the reader to guess whether such creatures ever *would* have found their way thither. By such guests, however, were the two principal tables crowded on this joyous occasion, and about half-past six o'clock the feast commenced, and a feast it certainly was, both elegant and substantial, nothing having been spared that money could procure. Mr. Aubrey had a fine cellar of wines at Yatton, which, owing to some strange misunderstanding, had been sold by private contract, not among his own friends in the neighborhood, as Mr. Aubrey had intended, and imagined that he had directed, but to Mr. Titmouse. Choice, indeed, were these wines, and supplied on the present occasion in wanton profusion. Champagne, Burgundy, and claret, flowed like water, and the rich old port, sherry, and madeira in like manner;—these last, however, not being confined to the two principal rooms, but finding their way into the servants' hall, where they there drank without stint. Merriment echoed uproariously from all parts of the old Hall, and Mr. Titmouse was universally declared to be a very fine fellow, and likely to become by far the most popular man in the county. The Reverend Mr. Fleshpot said grace, and the Reverend Mr. Mudflint returned thanks; and shortly afterwards Sir Harkaway arose, and, his eye fixed firmly on the adjoining borough, and also on the jolly table which promised to be ever open to him at Yatton, he proposed the health of the distinguished proprietor of Yatton, in a very flattering and energetic speech. The toast was received with the utmost enthusiasm; the gentlemen shouted and jingled their glasses on the table, while the ladies waved their handkerchiefs; indeed the scene was one of such overpowering excitement, that Miss Quirk burst into tears, overcome by her emotions; her papa winking very hard to those about him, and using every exertion in his power to point the attention of those present to the probability that a very near and tender relationship was about to exist between that young lady and Mr. Titmouse. Mr. Gammon, who sat next to Titmouse, assured him that it was absolutely necessary for him to make a speech to the company, in acknowledgment of the compliment which had just been paid him.

"I shall put my foot into it—by jingo I shall! You must help me!" he whispered to Mr. Gammon, in an agony of trepidation and a mist of confusion, as he rose from his chair, being welcomed in the most enthusiastic manner, by applause of every kind, lasting for several minutes. At length, when the noise had subsided into a fearful silence, he stammered out, prompted incessantly by Mr. Gammon, something exceedingly like the following, if, indeed, he did not use these very words.

"Mr.—I beg pardon—*Sir Hark*—away, and gentlemen—gentlemen and ladies, am most uncommon, monstrous—particular happy to—to—(eh? *what* d'ye say, Mr. Gammon?) see you all here—at this place—here—at Yatton.—(*Applause.*) Ladies and gentlemen—I say—hem!—unaccustomed as—(*much applause*, during which Titmouse stooped and whispered to Gammon—"Curse me if I can catch a word you say!") Happy and proud to see you all here—at Yatton—homes of my ancestry—known to you all—centuries. Enjoyed yourselves, I hope—(*great applause*)—and hope you'll often come and do the same—(*still greater applause.*) Particular glad to see the ladies—(*applause*)—often heard of the beauties of Yatton—never believed it—no—beg pardon, mean I now see them—(*applause.*) Am fond of horses—(*applause*)—racing, hunting, and all that. (Here Sir Harkaway, extending his hand, publicly shook that of the eloquent speaker.) Sorry to turn out the—the—old bird—but—nest not *his*—mine all the while—(*sensation*)—bear him no ill-will—(*applause.*) Political principles—(*profound silence.*) Liberal principles—(*loud applause*)—rights of the people—religious liberty and all that—(*vociferous applause*)—found at my post in the hour of danger—enemy stole a march on me—(*great laughter and applause.*) Won't detain you—ladies and gentlemen—drink your good healths, and many happy returns of the day." Down sat Mr. Titmouse, exhausted by his maiden speech; and quite overpowered, moreover, by the extraordinary applause with which he was greeted at its conclusion. In due course, many other toasts were drunk; among them were—"Lady Wildfire and the married ladies." "Miss Wildfire and the single ladies." "Sir Harkaway Rotgut Wildfire." "Religious Liberty," (to which Mr. Mudflint responded in a very eloquent speech.) "The Liberty of the Press;" "Messrs Quirk, Gammon, and Snap, the enterprising, skilful, and learned professional advisers of Mr. Titmouse." Dancing was now loudly called for; and the hall was speedily prepared for it. By this time, however, it was past

eleven o'clock; the free potations of all the gentlemen, and indeed (to be candid) of more than one of the ladies, were beginning to *tell*, and the noise and confusion were very great. Fierce confused sounds issued from the servants' hall, where it proved that a great fight was going on between Pumpkin the gardener, and a man who insisted on shouting "Titmouse forever—down with Aubrey!" Pumpkin, I am not sorry to say, had much the best of it, and beat his opponent, after a severe encounter, into silence and submission. Then there were songs sung in all the rooms at once—speeches made, half-a-dozen at the same time; in short, never before had such doings been witnessed, or such uproar heard, within the decorous, dignified, and venerable precincts of Yatton. Scenes ensued which really baffle description. Mr. Titmouse, of course, drank prodigiously, although Mr. Gammon never left his side, and checked him fifty times when he was about to fill his glass. The excitement thus produced by wine will, I trust, in some measure mitigate the reader's indignation at hearing of a little incident which occurred, in which Titmouse was concerned, and which, about half past three or four o'clock in the morning, served to bring that brilliant entertainment to a somewhat abrupt and rather unpleasant termination. Scarcely knowing where he was, or what he was about, I am sorry to say, that while standing, as well as he could, beside Miss Wildfire, to dance for the fifth time with her—a plump, fair-faced, good-natured girl of about nineteen or twenty—he suddenly threw his arms around her, and imprinted half-a-dozen kisses on her forehead, lips, cheek, and neck, before she could recover from the confusion into which this monstrous outrage had thrown her. Her faint shriek reached her father's ears, while he was, in a distant part of the room, persecuting Miss Quirk with drunken and profligate impertinence. Hastily approaching the quarter whence his daughter's voice had issued, he beheld her just extricated from the insolent embrace of the half-unconscious Titmouse, and greatly agitated. With flaming eye and outstretched arm, he approached his unfortunate little host, and seizing hold of his right ear, almost wrung it out of his head, Titmouse actually yelling with the pain which he experienced. Still retaining his hold, uttering the while most fearful imprecations—Sir Harkaway gave him three violent kicks upon the seat of honor, the last of them sending him spinning into the arms of old Mr. Quirk, who was hurrying up to his relief, and who fell flat on the floor with the violent concussion. Then Miss Quirk rushed forward and screamed; a scene of dreadful confusion ensued; and at length the

infuriated and half-drunken baronet, forced away by his wife and his daughter, aided by several of the company, quitted the Hall, and got into his carriage, uttering fearful threats and curses all the way home; without once adverting to the circumstance, of which also Lady Wildfire and her daughter were not aware, that he had been himself engaged in perpetrating nearly the same sort of misconduct which he had so severely and justly punished in poor Titmouse. As for Mr. Yahoo and Mr. Fitz-Snooks, they had been in quest of similar sport the whole night; and had each of them, in pursuing their adventures in the servants' hall, very narrowly escaped much more serious indignities and injuries than had fallen to the lot of the hospitable owner of the mansion.

About half-past four o'clock, the sun was shining in cloudless splendor, the air cleared, and all nature seeming freshened after the storm of the preceding day; but what a scene was presented at Yatton! Two or three persons, one with his hat off, asleep; another grasping a half-empty bottle; and a third in a state of desperate indisposition, were to be seen, at considerable distances from each other, by the side of the carriage-road leading down to the park gates. Four or five horses, ready saddled and bridled, but neglected, and apparently forgotten by both servants and masters, were wandering about the fine green old court opposite the Hall door, eating the grass, and crushing with their hoofs the beautiful beds of flowers and shrubs which surrounded it. Mr. Glister's gig had got its wheels entangled with the old sundial—having been drawn thither by the horse, which had been put into it at least two hours before; opposite the Hall door stood the post-chaise which had brought Mr. and Mrs. Mudflint and their daughter. The latter two were sitting in it, one asleep—the other, Mrs. Mudflint, anxiously on the look-out for her husband, from time to time calling to him, but in vain; for about half an hour before, he had quitted the room where he, Mr. Fleshpot, Mr. Going Gone, and Mr. Centipede had been playing a rubber at whist, till all of them had nearly fallen asleep with their cards in their hands, and made his way to the stables; where, not finding his chaise in the yard, or his horses in the stalls, he supposed his wife and daughter had gone home, whither he followed them by the footpath leading through the fields which stretched along the high-road to Grilston; and along which said fields he was, at that moment, staggering, hiccuping, not clearly understanding where he was, nor where he had last seen his wife and daughter. Candles and lamps were still burning and glimmering in some

of the rooms; and in the servants' hall there were some dozen or so of the lower kind of guests, who, having awakened from a deep sleep, were calling for more ale, or wine, or whatever else they could get. Some of the old family servants had fled hours before from scenes of such unwanted riot, to their bedrooms, and, having locked and barricaded the doors, had gone to sleep. Mr. Griffiths sat in an old armchair in the library, the picture of misery; he had been repeatedly abused and insulted during the night, and had gone thither, unable to bear the sight of the disgusting revelry that was going forward. In short, at every point that caught the eye, were visible the evidences of the villanous debauchery which had prevailed for the last seven hours; and which, under the Titmouse dynasty, was likely to prevail at all times thereafter. As for Mr. Titmouse, half stunned with the treatment which he had experienced at the hands of Sir Harkaway, he had been carried to bed—where his excessive, miscellaneous, and long-continued potations aggravating the effect of the serious injuries which he had sustained, he lay sprawling, half undressed, in a truly deplorable condition. Mr. Glistar, who had been summoned to his bedside upwards of an hour before, sat now nodding in his chair beside his patient; and pretty nearly in a state of similar exhaustion were his valet and the housekeeper, who had, from time to time, wiped her eyes and sobbed aloud when thinking of past times, and the horrid change which had come over old Yatton. Mr. Yahoo, Mr. Fitz-Snooks, Mr. Snap, Mr. Quirk, and Miss Quirk, (the last having retired to her bedroom in the utmost terror, at the time of Titmouse's mischance,) were in their respective chambers, all of them probably asleep. Poor Hector, chained to his kennel, having barked himself hoarse for several hours, lay fast asleep, no one having attended to him, or given him anything to eat since Mr. Titmouse's arrival. Gammon had retired from the scene, in disgust and alarm, to his bedroom, some three hours before; but unable to sleep—not, however, with excess of wine, for he had drunk very little—had arisen about four o'clock, and was at that moment wandering slowly, with folded arms and downcast countenance, up and down the fine avenue of elm-trees, where, it may be recollected, Mr. Aubrey had spent a portion of the last evening of his stay at Yatton.

Such is *my* account of that memorable entertainment—and as fair an account as I know how to give of the matter; but it is curious to observe how very differently the same thing will strike different people. As soon as the grateful Mr. Centipede had recovered from the excitement occasioned

by the part which he had borne in the splendid festival, he set to work, with the pen of a ready writer, and in the next number of the "YORKSHIRE STINGO," there appeared the following interesting account of the

"FESTIVITIES *at* YATTON HALL, *on the occasion of* POSSESSION *being*
taken by TITTLEBAT TITMOUSE, ESQUIRE.

"Yesterday this interesting event came off with signal *éclat*. Notwithstanding the very unfavorable state of the weather, about five o'clock in the evening an imposing cavalcade, comprising many of the leading gentry and yeomanry of this part of the county, on foot and on horseback, preceded by an admirable band, and a large and splendid banner, bearing the inscription—'*Welcome to Yatton,*' went out to meet the above distinguished gentleman, whose *cortège*, in two carriages, made its appearance in the village about half-past five. The band immediately struck up 'See the Conquering Hero comes!' which inspiring air, however, was nearly drowned in the shout which welcomed the new proprietor of the noble estate of Yatton. His carriage was of the most tasteful, splendid, and unique description, and attracted universal admiration. Mr. Titmouse repeatedly bowed through the carriage-windows, in graceful acknowledgment of the cordial welcome and congratulations with which he was received. He was dressed in a light blue surtout, with velvet collar, full black stock, and a rich velvet waistcoat of plaid pattern. His countenance is handsome and expressive, his eye penetrating, and his brow strongly indicative of thought. He appears to be little more than twenty-five years old; so that he has before him the prospect of a long and brilliant career of happiness and public usefulness. Tables were spread in all the chief apartments, groaning beneath the most costly viands. All the luxuries of the season were there; and the wines (which we believe were those of Mr. Aubrey) were of the first description. Grace was said by the exemplary vicar of Grilston, the Rev. Mr. Fleshpot; and the Rev. Mr. Mudflint returned thanks. Sir Harkaway Rotgut Wildfire (whose amiable lady and accomplished daughter were present) proposed the health of Mr. Titmouse in a brief, but manly and cordial address; and the manner in which Mr. Titmouse acknowledged the toast, which was drunk with the greatest possible enthusiasm—the simplicity, point, and

fervor which characterized every word he uttered—were such as to excite lively emotion in all who heard it, and warrant the highest expectations of his success in Parliament. Nothing could be more touching than his brief allusions to the sufferings and privations which he had undergone—nothing more delicate and forbearing than the feeling which pervaded his momentary allusion to the late occupant of Yatton. When, however, he distinctly avowed his political principles as those of a dauntless champion of civil and religious liberty among all classes of his Majesty's subjects—the applause was long and enthusiastic. After dinner, the great hall was cleared for dancing, which was opened by Mr. Titmouse and Miss Wildfire; Lady Wildfire being led out by the Honorable [!] Mr. Yahoo, an intimate friend of Mr. Titmouse. We should not omit to mention that Miss Quirk (the only daughter of Caleb Quirk, Esq., the head of the distinguished firm of Quirk, Gammon, and Snap, of London, to whose untiring and most able exertions is owing the happy change which has taken place in the ownership of the Yatton property) accompanied her father, at the earnest request of Mr. Titmouse, who danced several sets with her; and it is whispered—but we will not anticipate family arrangements. Sir [!] Algernon Fitz-Snooks, a distinguished fashionable, also accompanied Mr. Titmouse, and entered with great spirit into all the gayeties of the evening. The 'light fantastic toe' was kept 'tripping' till a late, or rather very early hour in the morning—when the old Hall was once more (for a time) surrendered to the repose and solitude from which it has been so suddenly and joyously aroused."

[In another part of the paper was contained an insulting paragraph, charging Mr. Aubrey with being a party to the "flagrant and iniquitous job," by which Sir Percival Pickering had been returned for the borough; and intimating pretty distinctly, that Mr. Aubrey had not gone without "*a consideration*" for his share in the nefarious transaction.]

A somewhat different account of the affair appeared in the "YORK TRUE BLUE" of the same day.

"YATTON HALL.—We have received one or two accounts of the orgies of which this venerable mansion was yesterday the scene, on occasion of Mr. Titmouse taking possession. We shall not give publicity to the

details which have been furnished us—hoping that the youth and inexperience of the new owner of Yatton (all allowance, also, being made for the very natural excitement of such an occasion) will be deemed a palliative in some measure of the conduct then exhibited.

One fact, however, we may mention, that a very serious *fracas* arose between Mr. Titmouse and a certain well-known sporting baronet, which is expected to give employment to the gentlemen of the long robe at the ensuing assizes. Nor can we resist adverting to a circumstance, which our readers will, we trust, credit, on being assured that we witnessed it with our own eyes—that Mr. Titmouse positively travelled in the cast-off state carriage of the Lord Mayor of London!!!! Nothing, by the way, could be more absurd and contemptible than the attempt at a 'Procession' which was got up—of which our accounts are ludicrous in the extreme. Will our readers believe it, that the chief personages figuring on the occasion, were the editor and publisher of a certain low Radical print—which will no doubt, this day, favor its readers with a flaming description of this 'memorable affair!'"

Titmouse, assisted by his attentive valet, made a desperate attempt to get up, and present himself the next day at dinner. Aided by a glass of pretty strong brandy and water, he at length got through the fatiguing duties of the toilet, and entered the drawing-room, where his travelling companions were awaiting his arrival—dinner being momentarily expected to be announced. He was deadly pale; his knees trembled; his temples throbbed; his eyes could not bear the light; and everything seemed in undulating motion around him, as he sank in silent exhaustion on the sofa. After a few minutes' continuance, he was compelled to leave the room, leaning on Gammon's arm, who conducted him to his chamber, and left him in charge of his valet, who got him again into bed, and there he lay, enduring much agony, (Dr. Goddard being sent for,) while his friends were enjoying themselves at dinner.

Snap had set off the ensuing day for town, by the first coach, pursuant to the arrangements already spoken of; but I think that old Mr. Quirk would have

made up his mind to continue at Yatton until something definite had been done by Titmouse, in two matters which absorbed all the thoughts of the old gentleman—his daughter and the *Ten Thousand Pounds* bond. Miss Quirk, however, intense as was her anxiety to become the affianced bride of Titmouse, and as such the mistress of the delightful domain where at present she dwelt only as a guest, and in a very embarrassing position—was not so blind to all perception of womanly delicacy as to prolong her stay; and at length prevailed upon her father to take their departure on the day but one after that on which they had arrived. Mr. Quirk was perfectly miserable. He vehemently distrusted Titmouse—and feared and detested Gammon. As for the former gentleman, he had not made any definite advances whatever towards Miss Quirk, nor afforded to any one the slightest evidence of a promise of marriage, either express or implied. He chattered to Miss Quirk an infinite deal of vulgar absurdity—but that was all, in spite of the innumerable opportunities afforded him by the lady and her anxious parent. Was Titmouse acting under the secret advice of that deceitful devil Gammon?—thought Mr. Quirk, in an ecstasy of perplexity and apprehension. Then as to the other matter—but there Gammon had almost as deep a stake, in proportion, as Quirk himself. On the morning of his departure, he and Gammon had a very long interview, in which they several times came to high words; but in the end Gammon vanquished his opponent as usual; allayed all his apprehensions; and accounted for all Titmouse's conduct in the most natural way in the world. "Look at his position just now," quoth Gammon—"the excitement, the novelty, the bewilderment, the indisposition he is experiencing: surely, surely *this* is not a moment to bring him to book!" In short, Gammon at length brought Quirk, who had received the first intimation of the matter with a sudden *grunt* of surprise and anger, to acknowledge the propriety of Gammon's remaining behind, to protect Titmouse from the designing Yahoo that had got hold of him; and solemnly pledged himself, as in the sight of Heaven, to use his utmost efforts to bring about, as speedily as possible, the two grand objects of Mr. Quirk's wishes. With this the old gentleman was fain to be satisfied; but entered the chaise which was to convey Miss Quirk and himself to Grilston, with as rueful a countenance as he had ever exhibited in his life. Mr. Titmouse was sufficiently recovered to be present at the departure of Miss Quirk, who regarded his interesting and languid looks with an eye of melting sympathy and affection. With half a smile and half a tear, she slipped into his hand, as

he led her to the chaise, a little sprig of heart's ease, which he at once stuck into the button-hole of his coat.

"Pon my soul—must you go? Devilish sorry you can't stay to have seen some fun!—The old gent" (meaning her father) "don't quite seem to like it—he, he!" said he, in a low tone; then he handed her into the chaise, she dropping her veil to conceal the starting tear of mingled disappointment, and desire, and disgust, and they drove off, Titmouse kissing his hand to her as he stood upon the steps; and, as soon as they were out of sight, he exchanged a very significant smile with Mr. Gammon.

The next day, Titmouse rose about ten o'clock, almost entirely recovered from his indisposition. Accompanied by Mr. Yahoo and Mr. Fitz-Snooks, with whom he was conversing as to the course he should take with reference to Sir Harkaway—whom, however, they advised him to treat with silent contempt, as he, Titmouse, was clearly in the wrong—he took a stroll about noon, down the path leading to the park gates. They all three had cigars in their mouths, Titmouse walking between them, as odious-looking a little puppy, sure, as man ever saw—puffing out his smoke slowly, and with half-closed eye, his right hand stuck into his coat-pocket, and resting on his hip. These three figures—Heaven save the mark!—were the new lord of Yatton and his select friends!

"By jingo, surely here comes a parson," quoth Titmouse; "what the devil can he want here?"—"Twas Dr. Tatham, who slowly approached them, dressed in his Sunday suit, and leaning on his old-fashioned walking-stick, given him many, many years ago by the deceased Mrs. Aubrey.

"Let's have some sport," said Fitz-Snooks.

"We must look devilish serious—no grinning till the proper time," said Yahoo.

"Hallo—you sir!" commenced Titmouse, "who are you?" Dr. Tatham took off his hat, bowed, and was passing on.

"*Devilish* cool, upon—my—soul—sir?" said Titmouse, stopping, and staring impudently at the worthy little doctor, who seemed taken quite by surprise.

"My worthy old gentleman," said Yahoo, with mock respect, "are you aware who it was that asked you a question?"

"I am not, sir," replied Dr. Tatham, quietly but resolutely.

"My name is Tittlebat Titmouse, at your service—and you are now in my grounds," said Titmouse, approaching him with an impudent air.

"Am I really addressed by Mr. Titmouse?" inquired Dr. Tatham, somewhat incredulously.

"Why, 'pon my life, I *think* so, unless I'm changed lately; and by Jove, sir—*now*, who are you?"

"I am Dr. Tatham, sir, the vicar of Yatton: I *had* intended calling at the Hall, as a matter of courtesy; but I fear I am intruding"——

"Devil a bit—no, 'pon honor, no! you're a very good old fellow, I don't doubt!—Pray—a—is that little church outside, yours?"

"It is, sir," replied Dr. Tatham, seriously and sternly; his manner completely abashing the presumptuous little coxcomb who addressed him.

"Oh—well—I—I—'pon my soul, happy to see you, sir—you'll find something to eat in the Hall, I dare say"——

"Do you preach in that same little church of yours next Sunday?" inquired Mr. Yahoo, whose gross countenance had filled Dr. Tatham with unspeakable aversion.

"I preach there *every* Sunday, sir, twice," he replied gravely and distantly.

"You see, sir," lisped Fitz-Snooks, "the prayers are so—so—*devilish* long and tiresome—if you could—eh?—shorten 'em a little?"——

Dr. Tatham slowly turned away from them, and, disregarding their calls to him, though their tone of voice was greatly altered, walked back again towards the gate, and quitted the park for the first time in his life, with feelings of mortal repugnance. On reaching his little study, he sat down in his old armchair, and fell into a sad reverie, which lasted more than an hour; and then he rose, and went to see the old blind stag-hound fed—and looked at it, licking his hands, with feelings of unusual tenderness; and the doctor shed a tear or two as he patted its smooth gray old head.

On Saturday morning, Mr. Titmouse, at Mr. Gammon's instance, had fixed to go over the estate, accompanied by that gentleman, and by Mr. Waters and Dickons, to give all the information required of them, and point out the

position and extent of the property. To an eye capable of appreciating it, in what admirable order was everything! but Titmouse quickly tired of it, and when about a mile from the Hall, discovered that he had left his cigar-box behind him; at which he expressed infinite concern, and, greatly to the annoyance of Gammon, and the contempt of his two bailiffs, insisted on returning home; so they re-entered the park. How beautiful it was! Its gently undulating surface, smooth as if overspread with green velvet; trees great and small, single and in clumps, standing in positions so picturesque and commanding; the broad, babbling, clear trout-stream winding through every part of the park, with here and there a mimic fall, seen faintly flashing and glistening in the distance; herds of deer suddenly startled amid their green pastures and silent shades, and moving off with graceful ease and rapidity; here and there a rustic bridge over the stream; here an old stone bench placed on an elevation commanding an extensive prospect; there a kind of grotto, or an ivy-covered summer-house; then the dense, extensive, and gloomy woods, forming a semicircular sweep round the back of the Hall; all around, nearly as far as the eye could reach, land of every kind in the highest state of cultivation, plentifully stocked with fine cattle, and interspersed with snug and substantial farms.

All this, thought Titmouse, might do very well for those who fancied that sort of thing; but as for *him*, how the devil could he have thought of leaving his cigars behind him? Where, he wondered, were Yahoo and Fitz-Snooks? and quickened his pace homeward.

On Gammon the scene which they had been witnessing had made a profound impression; and as his attention was now and then called off from contemplating it, by some ignorant and puerile remark of the proprietor of the fine domain, he felt a momentary exasperation at himself for the part he had taken in the expulsion of the Aubreys, and the introduction of such a creature as Titmouse. That revived certain other thoughts, which led him into speculations of a description which would have afforded uneasiness even to the little idiot beside him, could he have been made aware of them. But the cloud that had darkened his brow was dispelled by a word or two of Titmouse. "Mr. Gammon, 'pon my soul you're devilish dull to-day," said he. Gammon started; and with his winning smile and cheerful voice, instantly replied, "Oh, Mr. Titmouse, I was only thinking how happy you are; and that you deserve it!"

"Yes; 'pon my soul it ought all to have been mine at my birth!—Don't it tire you, Mr. Gammon, to walk in this up-and-down, zig-zag, here-and-there sort of way? It does *me*, 'pon my life! What would I give for a cigar at this moment!"

The next day was the Sabbath, tranquil and beautiful; and just as the little tinkling bell of Yatton church had ceased, at half-past ten o'clock, Dr. Tatham rose, in his reading-desk, and commenced the service. The church was quite full, for every one was naturally anxious to catch a glimpse of the new tenants of the squire's pew. It was empty, however, till about five minutes after the service had commenced, when a gentleman walked slowly up to the church door; and having whispered an inquiry of the old pew-opener which was the squire's pew, she led him into it—all eyes settled upon him; and all were struck with his appearance, his calm keen features, and gentlemanly figure. 'Twas, of course, Gammon; who, with the utmost decorum and solemnity, having stood for half a minute with his hat covering his face, during which time he reflected that Miss Aubrey had sat in that pew on the last occasion of his attendance at the church, turned round, and behaved with the greatest seriousness and reverence throughout the service, paying marked attention to the sermon. Gammon was an unbeliever, but he thought Dr. Tatham an amiable and learned enthusiast, but who was most probably in earnest; and he felt disposed to admit, as his eye glanced round the attentive and decent congregation, that the sort of thing was not without its advantages. Almost all present took him for Titmouse, and watched every turn of his countenance with intense interest; and, in their simplicity, they rejoiced that Mr. Aubrey's successor was, at all events, so grave and respectable-looking a man; and they fancied that he frequently thought, with kindness and regret, of those whose seat he was occupying. About the middle of the service, the main-door of the church standing wide open, the congregation beheld three gentlemen, smoking cigars, and laughing and talking together, approaching the porch. They were dressed very finely indeed; and were supposed to be some of the great friends of the new squire. They stopped when within a few yards of the church; and after whispering together for a moment, one of them, having expelled a mouthful of smoke, stepped forward to the door, holding his cigar in one hand, and with the other taking off his hat. There was a faint smirk on his face, (for he did not catch the stern countenance of Gammon anxiously directed towards him,) till he beheld Dr. Tatham's solemn eye

fixed upon him, while he made a momentary pause. Titmouse blushed scarlet; made a hesitating but most respectful bow; and, stepping back a few paces, replaced his hat on his head, and lit his cigar from that of Mr. Fitz-Snooks, within view, perhaps unconsciously, of more than half the congregation. Then the three gentlemen, after Mr. Titmouse had spoken a word or two to them, burst out into a laugh, and quitted the churchyard.

CHAPTER VII.

Aubrey's sudden plunge into the cold and deep stream of trouble, had—the first shock over—served, as it were, to brace his nerves. 'Tis at such a time, and on such an occasion, that the temper and quality of the soul are tried; whether it be weak in seeming strength, or strong in seeming weakness. How many are there, walking with smiling complacent confidence along the flowery bank, who, if suddenly bidden to strip and enter, would turn pale and tremble as they reluctantly prepared to obey the stern mandate; and, after a convulsive shudder, a faint shriek, a brief struggle, disappear from the surface, paralyzed, never to be seen again! In such a point of view, let me hope that the situation of Aubrey, one of deepening difficulty and danger—the issue of which, hid in the darkness of the future, no earthly intelligence could predict—will excite in the thoughtful reader an anxiety not unmingled with confidence.

The enervating effects of *inactivity* upon the physical structure and energies of mankind, few can have failed to observe. Rust is more fatal to metal than wear. A thorough-bred racer, if confined in stable or paddock, or a boxer, born of the finest muscular make, if prematurely incarcerated in jail, will, after a few years, become quite unable to compete with those vastly their inferiors in natural endowments and capabilities; however they may, with careful training, be restored to the full enjoyment and exercise of their powers. Thus is it with the temper and intellect of man, which, secluded from the scenes of *appropriate* stimulus and exercise, become relaxed and weakened. What would have become of the glorious spirit and powers of Achilles, if his days had all melted away in the tender, delicate, emasculating inactivity and indulgence of the court of Lycomedes? The language of the ancient orator concerning his art may be applied to *life*, that not only its greatness, but its enjoyment, consists in action—*action*—ACTION. The feelings, for instance, may become so morbidly sensitive, as to give an appearance of weakness to the whole character; and this is likely to be specially the case of one born with those of superior liveliness and delicacy, if he be destined to move only in the realms of silent and profound abstraction and contemplation—in those refined regions which may be

termed a sort of paradise; where every conceivable source of enjoyment is cultivated for the fortunate and fastidious occupants, to the very uttermost, and all those innumerable things which fret, worry, and harass the temper, the head, and the heart of the dwellers in the rude regions of ordinary life—most anxiously weeded out; instead of entering into the throng of life, and taking part in its constant cares and conflicts—scenes which require all his energies always in exercise, to keep his place, and escape being trodden under foot. Rely upon it, that the man who feels a tendency to shrink from collision with his fellows, to run away with distaste or apprehension from the great practical business of life, does not enjoy moral or intellectual health; will quickly contract a silly conceit and fastidiousness, or sink into imbecility and misanthropy; and should devoutly thank Providence for the occasion, however momentarily startling and irritating, which stirs him out of his lethargy, his *cowardly* lethargy, and sends him among his fellows—puts him, in a manner, upon a course of training; upon an experience of comparative suffering, it may be of sorrow, requiring the exercise of powers of which he had before scarcely been conscious, and giving him presently the exhilarating consciousness that he is exhibiting himself—a MAN.

"It is probable," says the late Mr. Foster, in his Essay on "Decision of Character"—"that the men most distinguished for decision, have not, in general, possessed a large share of tenderness: and it is easy to imagine that the laws according to which our nature is formed, will with great difficulty allow the combination of the refined sensibilities, with a hardy, never shrinking, never yielding constancy. Is it not almost of the essence of this constancy, to be free from even the *perception* of such impressions as cause a mind, weak through susceptibility, to relax, or to waver?—No doubt, this firmness consists partly in overcoming feelings—but it may consist partly, too, in not having them." The case I am contemplating is perhaps the difficult, though by no means, I am persuaded, uncommon one—of a person possessing these delicate sensibilities, these lively feelings; yet with a native strength of character beneath, which, when the occasion for its display has arisen—when it is placed in a scene of constant and compulsory action, will fully evince and vindicate itself. It is then "that another essential principle of decision of character," to quote from another part of the same essay, "will be displayed; namely, a total incapability of surrendering to indifference or delay the serious determinations of the mind. A strenuous will accompanies the conclusions of thought, and constantly urges the

utmost efforts for their practical accomplishment. The intellect is invested, as it were, with a glowing atmosphere of passion, under the influence of which the cold dictates of reason take fire, and spring into active powers."

There is, indeed, nothing like throwing a man of the description we are considering, upon his own resources, and compelling him to exertion. Listen, ye languid and often gifted victims of indolence and *ennui*, to the noble language of one blessed with as great powers as perhaps were ever vouchsafed to man—Edmund Barke!

"DIFFICULTY is a severe instructor, set over us by the Supreme ordinance of a parental guardian and legislator, who knows us better than we know ourselves, as He loves us better, too. *Pater ipse colendi, haud facilem esse viam voluit*. He that wrestles with us, strengthens our nerves and sharpens our skill; our antagonist is our helper. This amicable contest with difficulty, obliges us to an intimate acquaintance with our object, and compels us to consider it in all its relations; it will not suffer us to be superficial."

The man, moreover, whose disposition is one of sterling excellence, despite the few foibles which it may have contracted in comparative solitude and inactivity, when he is compelled to mix indiscriminately with the great family of man, oh, how patient and tolerant becomes he of the weakness and errors of others, when thus constantly reminded of, and made to feel his own! Oh, how pitiful! how very pitiful is he!—How his heart yearns and overflows with love, and mercy, and charity towards his species, *individually*—whose eye looks oft on their grievous privations, their often incurable distress and misery!—and who in the spirit of a heavenly philanthropy penetrates even to those deserted quarters—

"Where hopeless anguish pours her moan,
And lonely want retires to die!"

It may be that some of the preceding observations are applicable to many individuals of the purest and most amiable characters, and powerful and cultivated intellects, in the higher classes of society, whose affluence exempts them from the necessity of actively intermingling with the concerns of life, and feeling the consciousness of individual responsibility,

—of having a personal necessity for anxious care and exertion. They are assured that a position of real precariousness and danger, is that which is requisite for developing the energies of a man of high moral and intellectual character; as it will expose to destruction one of a contrary description.

I have endeavored, in previous portions of this history, to delineate faithfully the character of Mr. Aubrey—one (how idle and childish would have been the attempt!) by no means *perfect*, yet with very high qualities. He was a man of noble simplicity of character, generous, confiding, sincere, affectionate: possessing a profound sense of religion, *really influencing his conduct in life*; an intellect of a superior order, of a practical turn, of a masculine strength—as had been evidenced by his successful academical career, his thorough mastery of some of the most important and difficult branches of human knowledge, and by his aptitude for public business. He was at the same time possessed of a sensibility that was certainly excessive. He had a morbid tendency to pensiveness, if not melancholy, which, with a feeble *physical* constitution, was partly derived from his mother, and partly accounted for by the species of life which he had led. From his early youth he had been addicted to close and severe study, which had given permanence and strength to his naturally contemplative turn. He had not, moreover, with too many possessed of his means and station, entered, just at the dawn and bloom of manhood, upon that course of dissipation which is a sure and speedy means of destroying "the freshness of thought and of feeling," which "never again can be theirs," and inducing a *lowered tone* of feeling, and a callousness which some seem to consider necessary to enable them to pass through life easily and agreeably. He, on the contrary, had stepped out of the gloom and solitude of the cloister into the pure and peaceful region of domestic life, with all its hallowed and unutterable tendernesses, where the affections grew luxuriantly; in the constant society of such women as his mother, his sister, his wife, and latterly his lovely children. Then he was possessed, all this while, of a fine fortune—one which placed him far beyond the necessity for anxiety or exertion. With such tastes as these, such a temperament as his, and leading such a life as his, is it surprising that the tone of his feelings should have become somewhat relaxed? The three or four years which he had spent in Parliament, when he plunged into its fierce and absorbing excitement with characteristic ardor and determination, though calculated to sharpen the faculties, and draw forth the resources of his intellect, subjected him to

those alternations of elevation and depression, those extremes of action and reaction, which were not calculated to *correct* his morbid tendencies.

Therefore came there up to him a messenger from Heaven, with trouble and affliction in his countenance, telling him to descend from the happy solitude of his high mountain, into the dismal hubbub and conflict in the plain beneath. He came down with humility and awe, and with reverent resignation; and was—instantly surrounded!—

A weak man would have been confused and stunned, and so sunk helpless into the leaden arms of despair. But it was not so with Aubrey. There was that dormant energy within, which, when appealed to, quickly shook off the weakness contracted by inaction, and told him to *be up and doing*; and that, not with the fitfulness of mere impulse, but the constant strength of a well regulated mind, conscious of its critical position; and also of a calm inflexible determination to vanquish difficulty, and if possible escape the imminent danger, however long and doubtful might prove the conflict. Above all, he was consoled and blessed by the conviction, that nothing could befall him that was not the ordination of Providence,

———"supremely wise,
Alike in what it gives and what denies;"

that His was the ordering of the sunshine and the gloom, the tempest and the calm of life. This was to Aubrey—this is—as the humble writer of these pages (who has had in his time his measure of anxiety and affliction) has in his soul a profound and intimate persuasion and conviction of—the only source of real fortitude and resignation, amid the perplexities, and afflictions, and dangers of life. Depend upon it, that a secret and scarce acknowledged disbelief, or at least doubt and distrust of the very existence of God, and of His government of the world—HIS REAL PRESENCE AND INTERFERENCE with the men and the things of the world—lies at the bottom of almost all impatience and despair under adverse circumstances. How can he be impatient, or despairing, who believes not only the existence of God, and His moral government of the world, but that He has mercifully vouchsafed to reveal and declare expressly that the infliction of suffering and sorrow is directly from Himself, and designed solely for the advantage of His creatures? *If ye endure chastening, God dealeth with you as with*

sons; for what son is he whom the father chasteneth not? We have had fathers of our flesh which corrected us, and we gave them reverence: shall we not much rather be in subjection unto the Father of spirits, and live? For they verily for a few days chastened us after their own pleasure; but he for our profit, that we might be partakers of his holiness. Now, no chastening for the present seemeth to be joyous, but grievous: nevertheless afterward it yieldeth the peaceable fruit of righteousness unto them which are exercised thereby. Wherefore lift up the hands which hang down, and the feeble knees. While thus benignantly teacheth the voice of God, thought Aubrey, shall I rather incline mine ear to the blighting whisper of the Evil One—a liar, and the father of a lie, who would fain that I should become a fool, saying within my heart there is no God—or, if I cannot but believe that there is one, provoking me to charge Him foolishly, to curse Him and die? Not so, however, had Aubrey read the Scriptures—not so had he learned the Christian religion.

The last time that we caught a glimpse of the ruined family, they had arrived nearly at the end of their long and melancholy journey from Yatton to the metropolis. When before had such been the character of their journey to town? Had they not ever looked forward with pleasure towards the brilliant gayeties of the season; their re-entrance into an extensive and splendid circle of friends—and he into the delightful excitement of political life—the opening of the parliamentary campaign? Alas, how changed now all this! how gloomy and threatening the aspect of the metropolis, whose dusky outskirts they were entering! With what feelings of oppression—of vague indefinite apprehension—did they now approach it: their spirits heavy, their hearts bleeding with their recent severance from Yatton! Now, distress, desertion, dismay, seemed associated with the formidable name of "London." They had now no place of their own awaiting, thoroughly prepared for them, their welcome arrival—but must drive to some quiet and inexpensive family hotel for temporary shelter. As their eyes caught familiar point after point in their route through the suburbs—now passed at a moderate pace, with a modest pair of horses; formerly dashed past by them in their carriage and four—there were very few words spoken by those within the carriage. Both the children were fast asleep. Poor Kate, as they entered Piccadilly, burst into tears: her pent-up feelings, suddenly gave way, and she cried heartily; Mrs. Aubrey also weeping. Mr. Aubrey was calm, but evidently oppressed with profound anxiety. Still he affectionately

grasped their hands, and, in something which was designed for a cheerful tone and manner, besought them to restrain their feelings, and thank Heaven that so far they had got on safely.

"I shall be better presently, Charles," said Miss Aubrey, passionately, burying her face in her handkerchief, "but I feel quite *afraid* of London!"

Over the pavement they rattled, meeting carriages rolling in all directions—for it was about the dinner-hour, and in the height of the season; and it was the casual but vivid evidence thus afforded of their desolate position, this sudden glimpse of old familiar scenes, which had momentarily overcome the fortitude of Miss Aubrey. They drove to a quiet family hotel in a retired street running parallel with Piccadilly; they were all wearied, both in mind and body, and after a very slight repast, and much anxious and desponding conversation, they bade each other affectionate adieus, and retired to rest. They rose in the morning refreshed with repose, and in a much more tranquil mood of mind than could have been expected.

"Now we enter," said Aubrey, with a cheerful smile, "upon the real business of life; so we must discard sentiment—we must not think of the past, but the future."

At their request, they, shortly after breakfast, accompanied him to the house agent who had been commissioned by Mr. Runnington to look out two or three residences from which, on their arrival in town, they might easily select that deemed most suitable for their purposes. One was particularly recommended to them; and after due inquiry, within three days after their arrival in town, they engaged it. 'Twas a small, but convenient, airy, and comfortable house, within five minutes' walk of Hyde Park, and situated in Vivian Street—a recently completed one—and as quiet and retired as they could have wished. The rent, too, was moderate—fifty pounds a-year. Though none of the houses in the street were large, they were all strictly private residences, and had an air of thorough respectability. Mr. Aubrey's house had but one window to the dining-room, and two to the drawing-room. The passage and staircase were sufficiently commodious, as were the chief apartments. At the back of the house was a small garden, about twenty yards in length, and about ten yards in width, with several lilacs, laburnums, and shrubs; and a considerable portion of the wall was covered with ivy. Was not this a delightful place for the children to play about in? The back

parlor, a somewhat small one certainly, looked into this garden, and was at once appropriated to be a library for Mr. Aubrey. Within a week's time, all their luggage, furniture, &c., had arrived in town from Yatton; and they had quite sufficient to furnish their little residence out of the wreck of the equipments of the old Hall—adapted as it was, under the tasteful superintendence of Mrs. and Miss Aubrey, with equal regard to elegance, simplicity, and economy. How busy were they all for a fortnight! Many and many an irrepressible sigh, and rebellious tear, would the sight of these old familiar objects, in their new situation, occasion them! Some half dozen family pictures hung upon the wall. Over the mantel-piece was suspended a piece of beautiful embroidery—by poor old Mrs. Aubrey, many years before—of the arms of the family. In the dining-room was the old high-backed chair in which she had sat for twenty years and more. In the drawing-room was Miss Aubrey's favorite ebony inlaid cabinet, and Mrs. Aubrey's piano; and, in short, everywhere might be seen the delicate traces of dear, dear, graceful, and elegant *woman*—touching nothing that she adorns not! What with the silk curtains, and a carpet of simple but tasteful pattern, and the various articles of furniture and ornament, all possessing a kind of *old family air*—all from Yatton, I declare there was a sort of richness about the general aspect of the drawing-room; and when Mrs. Aubrey and Kate came to fetch Mr. Aubrey out of his little library to witness the completion of their labors, he gazed round him for a while, looked at each object, and then at the two dear fond beings standing beside him, awaiting his opinion with womanly eagerness; but he could not express his feelings. He kissed each of them very tenderly and in silence, and then they were a little overcome. His library, also, though *very* small, was as snug and comfortable as a bookworm could have desired. All the sides were covered with books, and in the middle were the library-table and armchair which he had used in Grosvenor Street, and which were, it must be owned, on too large a scale for the little room to which they had been removed.

That this oppressed family were not incessantly and very painfully reminded of the contrast afforded by their present to their former circumstances, I do not pretend to assert; but it very, very seldom formed a topic of *conversation* between any of them. When, however, the little bustle and occupation of arranging their house was over, and Mrs. Aubrey and Kate were left a good deal to themselves—Mr. Aubrey being either absent

from home, or in his library, engaged in matters of the last importance to them all—then they would talk together with increasing eagerness and excitement about past times, and their recent troubles and bereavements; not displaying then—sweet souls!—*quite* that degree of resignation and fortitude which they strove to exhibit in the presence of Mr. Aubrey.

"Some natural tears they dropt, but wiped
them soon."

They passed a good deal of their time in-doors in needlework, *practical* family needlework, an art in which they were not particularly accomplished, but which they quickly acquired from a seamstress whom they kept engaged constantly in the house for several weeks. Then sometimes they would sit down to the piano; at other times they would read—on all occasions, however, frequently falling into conversation on the all-engrossing topic of their expulsion from Yatton. Now and then, they could scarcely refrain from a melancholy smile, when they remarked upon their shrunken personal importance. "Really, Agnes," said one day Miss Aubrey, "I feel just as one can fancy a few poor newly shorn sheep must feel! So light and cold! So much *less* than they were half an hour before! Surely they must hardly know what to make of themselves!"

"Then, I suppose, mamma," said Charles, who was sitting on a stool beside them—making believe to write on a small slate—"I am a *little* sheep?" They both looked at the child with silent tenderness, and presently thought of Him who "*tempers the wind* to the shorn lamb."

Their proximity to the parks was delightful, and many a pleasant hour did they pass there with the children; and then returning home, would occupy themselves with writing letters—and long ones they usually were—to early and loved friends, especially to Dr. Tatham, with whom Miss Aubrey kept up a constant correspondence. I ought to have mentioned before, that Mr. Aubrey, in bringing his favorite valet up to town with him, had no other design than, with that kind thoughtfulness for which he was remarkable, to have an opportunity of securing for him a good situation; and that he succeeded in doing, after about a fortnight's interval; but the poor fellow was quite confounded when he first heard that he was to quit the service of Mr. Aubrey, and, almost falling on his knees, begged to be permitted to

continue and receive no wages, and he should be a happy man. Mr. Aubrey was, however, firm; and on parting with him, which he did with no little emotion, put two guineas into his hand as a present, and wished him health and happiness. The poor fellow's deep distress at parting with the family sensibly affected them all, and reminded them vividly of one of the latest and bitterest scenes at Yatton. On his departure, their little establishment consisted but of three female servants, a cook, a housemaid, and a nursery-maid. It took them some little time to familiarize themselves with the attendance of a female servant at dinner! That was one little matter—and another was Charles' now and then complaining of being tired, and inquiring why his mamma did not drive in the carriage as she used to do, and how he should like to go with her!—which brought home to them, in a lively manner, their altered circumstances—their fallen fortunes. Many, many were the anxious calculations they made together, of the probable amount of their annual expenditure—which at length, inexperienced as they were, they fixed at from £300 to £400, including everything; his wife and sister eagerly assuring Mr. Aubrey, and persuading each other, that as for clothes—their wardrobe would, with care, last them for three or four years to come—so that *that* was an item which might be almost altogether excluded from the account; except by the way, the children—yes, *they* should be always well-dressed; that all agreed upon. Then there was their education—oh, Kate would see to *that*! Could they, in this manner, with rigid and persevering economy, hold on their way for a year or two? was a question they often asked one another, with beating hearts. If they could, then, they said, they should be happy; for they had *health*—they had peace of mind; their consciences were not oppressed by a sense of misconduct—and they were able to put their trust in Providence.

Mr. Aubrey resolved to live in strict privacy; and they consequently communicated their residence to but one or two of their numerous friends, and to them only in confidence. To have acted otherwise, would have seriously interfered with the arrangements which, long ago contemplated, he had now fixed upon. It would have been perpetually calling their attention to the contrast between former days and scenes, and the present; opening their wounds afresh; and moreover, subjecting them to kind and generous importunities and offers, which, however delicate, would have been exquisitely painful and trying to an honorable pride. But it is time that

I should proceed to give a more particular account of the position, the personal feelings, and the purposes and prospects of Mr. Aubrey.

From the moment when he received the first intimation of the desperate assault about to be made upon his fortunes, he felt a conviction—whether arising from weakness, or superstition, or any other cause it concerns me not here to say—that the issue would be a disastrous one for him; and, the first alarm and confusion over, he addressed himself with serious calmness, with deep anxiety, to the determination of his future course of life. A man of his refined taste and feeling would inevitably appreciate exquisitely—with, indeed, a most agonizing intensity—the loss of all those superior enjoyments—the *deliciæ* of life—to which he had been from his birth accustomed. *Semper enim delicatè ac molliter vixit.* I speak not here of the mere exterior "appliances and means" of wealth and station, but of the fastidious and sensitive condition of *feeling* and temper, which such a state of things is calculated to engender in a person of his description. He could part with the one; but how could he divest himself of the other? Even had he been alone in the world, and not surrounded with objects of the tenderest regard, whose safety or ruin was involved in his own, one of the results of his opponent's success—namely, his claim to the mesne profits—was calculated to fetter all his movements, to hang like a millstone round his neck; and that effect, indeed, it had. Still he played the man—resolved to act promptly, and with the best consideration he could give to his critical position. He had not yet reached the prime of life; had a fair share of health; had been blessed with the inestimable advantages of a thorough—a first-rate education—and, above all, had followed out his early advantages by laborious and systematic study. He had not only made accurate, extensive, and valuable acquisitions of knowledge, but learned how to use them—to turn them to practical account. What would, he thought, have become of him, had he—or those before him—neglected his education? Then he had acquired a considerable familiarity with business habits, in the House of Commons; and had friends and connections who might be of essential service to him, if he could but first succeed in acquiring such a position as would enable him to avail himself of their good offices. Surely all *these* were cheering considerations! Had he not even advantages superior to those possessed by many in entering upon some one of the scenes of honorable struggles for a livelihood, and even for distinction? He surveyed all the professions with much deliberation. The army and navy were of course out

of the question. There was the *Church*: but no—his soul recoiled from the degradation and guilt of entering that holy calling from mercenary motives, merely as a means of acquiring a livelihood; and he would rather have perished, than prefer the prayer uttered by the doomed descendants of one whose lamentable case is left on record—who *came and crouched for a piece of silver, and a morsel of bread, saying, Put me, I pray thee, into one of the priest's offices, that I may eat a piece of bread.*^[15] A personage of very high distinction in the Church—of eminent piety and learning—who was aware of the misfortunes of Aubrey, and well acquainted with his pure and exemplary character—his learning and acquirements—his fitness for the ministerial office—wrote to him, offering him every facility for taking orders, and assuring him that he need not wait long before he should be placed in a situation of public usefulness. Though he assured Mr. Aubrey that he believed himself consulting the best interests, both of Mr. Aubrey and of the Church—the scruples of Mr. Aubrey were not to be overcome; and he wrote to the kind and venerable prelate, a letter declining his offers, and assigning reasons which filled him with profound respect for Mr. Aubrey. Then literature, for which—for real substantial literature—he possessed superior qualifications, was proverbially precarious. As for *teaching*—he felt quite unfit for it; he had not the least inclination for it; 'twas a cheerless scene of exertion; in which, as it were, he felt his energies *perishing in the using*. The BAR was the profession to which his tastes and inclinations, and, he hoped, his qualifications, pointed him. One of the first things he did, on reaching London, was to apply for information to one consummately qualified to guide him in the matter. He wrote to the Attorney-General, soliciting an interview at his chambers upon the subject of entering the profession; and received an immediate answer, appointing ten o'clock on Saturday, on which day the Attorney-General expected to be partially free from public engagements. Precisely at that hour, Mr. Aubrey entered the chambers of that distinguished person, whose arrival he had anticipated. Poor Aubrey felt a little nervous and depressed as the fussy clerk showed him into the room—as *he fancied*, and only fancied—with an air of patronizing civility, as if aware of his diminished personal consequence. He stood for a minute or two very close to Mr. Aubrey, with a sort of confidence in his manner as he rubbed his hands, and glibly observed on the innumerable engagements of the Attorney-General, which slightly—*very slightly*—displeased Mr. Aubrey, suggesting the idea of

undue familiarity. He answered the voluble clerk therefore courteously, but with an evident disinclination to prolong the conversation, and was quickly left alone. Poor Aubrey's pride had taken the alarm. Was it possible that the man had been presuming to give him a hint not to occupy much of the Attorney-General's time? Was it even possible that it had been done in consequence of an intimation from the Attorney-General himself? Oh, no—his own good sense came presently to his assistance, and banished so absurd a notion. There were three tables in the room, and each was laden with briefs, some of them of prodigious bulk. Seven or eight very recent ones were placed on the table opposite to which his vacant chair was standing; the very sight of all this oppressed Aubrey: how could one man's head manage so much? He was ruminating on such matters—and especially upon the powerful, versatile, and practised intellect which was requisite successfully to cope with such perpetually accumulating difficulties, independently of the harassing responsibilities and occupations of political office, when the Attorney-General entered. He was a tall and handsome man, about forty-five, with an extremely graceful and gentlemanlike carriage. There was a slight dash of negligence in it; while his manner was fraught with cheerful composure. He looked quite a man of the world; you would have thought that he could have nothing to do but lounge at his club; ride round the Park; saunter into the House of Lords for an hour or two; and then surrender himself to the pleasures of society. There was not a trace of anxiety or exhaustion about him; yet had he been engaged during the whole of the preceding day conducting a very great political cause, (one of high treason,) not having concluded his reply till nine o'clock at night! There was a playful smile about his mouth; his ample forehead seemed unfurrowed by a wrinkle; and his bright penetrating hazel eyes seemed never the worse for wear with all the tens of thousands of brief sheets on which they had travelled for the last twenty years.

"Ha—Aubrey—I'm a few minutes behind time, I'm afraid!—How are you?" said he, with a cheerful air, grasping his saddened visitor very cordially by the hand.

"Good-morning, Mr. Attorney—*Cum tot sustineas, et tanta negotia solus*"—commenced poor Aubrey, pointing to the piles of briefs.

"Pho, my dear Aubrey; nonsense! *They've* enough of my time, surely, without grudging me half an hour's conversation with a friend—ah, ha!"

They were both quickly seated—and within a minute or two's time the Attorney-General—*more suo*—had *got to business*—the business of the visit. Aubrey perceived the rapidity of the movement; but nothing could be *kinder* than the manner of his companion, however distinct and decisive his intimation that time was very precious. He approved entirely of Mr. Aubrey's coming to the bar, and strongly recommended him not to lose one day in entering upon the serious practical study of it; informing him that, as an university man, within three years' time he would be eligible to be called to the bar. "I'll call you myself, Aubrey, if you will allow me," said he; but before that period had arrived, he had taken his seat upon the Woolsack, as Lord High Chancellor of England!

"Undoubtedly," said he, among other things, when pressed by Aubrey about the difficulties to be encountered in adopting the legal profession—"the acquisition of the *technical* knowledge will be for some little time rather troublesome; but a twelvemonth's steady study by a man who is in earnest, and accustomed to real *work*, will make a vast inroad on it. Everything you master, you see, helps to master so much more. Three years' serious application to the law, by a man like you, my dear Aubrey, will place you far a-head of the mob of men at the bar. Besides, 'tis not the study but the *practice* of the law that teaches law most effectually.... Always have an eye to *principle*, referring *everything* to it. Resolve thoroughly to understand the smallest details; and it will be a wonderful assistance in fixing them for practical use in your mind, to learn as much as you can, of the *reasons* and *policy* in which they originated. You'll find Reeves' History of the English Law of infinite service to you; I should study it in the evenings; 'tis full of interest and value in every point of view. I read every word of it, very carefully, soon after I left college; and, by the way, I'll tell you another book, by which I did the same—the State Trials: ay, you could hardly believe me, if I were to tell you how much I have read of them—speeches, examinations, cross-examination of witnesses, reply, and summing up. That's where I first learned how to examine and cross-examine a witness! Consider, the counsel employed were, you know, generally first-rate men, and exerted themselves, on such occasions, to the utmost, and the records of their procedure show you the best possible style of doing business. And there you also learn a great deal of *constitutional* law.... You ask me how I get through so much? To be sure, one *has* enough to do, and I'm afraid I neglect a good deal; but the great secret is—*attention*, and to *one thing* at a

time. The sun's rays scattered are comparatively powerless; condense them, they are irresistible:—but all this you know, Aubrey, as well as, or better than I do.... Certainly, law is difficult; but its difficulty is often greatly overrated, especially by imperfectly educated, and ill-disciplined, *quick, sharp* men. *You* will find it a very different matter. What is wanted is a clear head; a good memory; strong common sense; fixity of purpose; an aptitude for analysis and arrangement: before these combined, the difficulties of law fly like the morning mist before the sun.—*Tact* with the court, and a jury, is acquired by practice, to a considerable extent, in the absence even of natural endowments. And as for *you*, Aubrey—upon my honor, I've often listened with great satisfaction to you in the House; few ever made clearer statements of facts, or reasoned more closely and cogently than you did; with practice, you would have become—and you soon will become—a formidable debater. In your new profession you will find *facts* become quite different things from what they have ever hitherto appeared; flexible, elastic, accommodating—you may do anything with them—twist, and turn, and combine; ha! ha! Aubrey!" [Here the Attorney-General laughed in the plenitude of his own conscious power.] "In a word, Aubrey, if you *determine* to get on at the bar, you *will*: and if you can but get a bit of a *start* at the beginning; now, for instance, there's Runningtons' house—one of the very first in London—why if *they* would push you—your fortune's made. But you must make up your mind to wait a little: you can't get into a great business by a hop, step, and a jump, believe me. Certainly *I* have no cause to be dissatisfied; I've done pretty well; but I can tell you that eight years passed over me before I earned enough a-year to pay my laundress! With me, accident supplied the place of *connection*: but only suppose how I must have worked in the mean time to be able to do business when it came to me! I know it's said that I was always an idle man; but people were a good deal mistaken about that matter, I can promise them! What *idiots*, indeed, to suppose such a thing! Why, my very first start lifted me into a business of a thousand a-year; and, in the name of common sense, how could I have got through it, if I hadn't worked beforehand? Bah!—Now, if Runningtons'—one of the first firms in the profession—will stand by you, I'll guarantee your making £300 your first year! and if they *won't*, why, don't despair, you'll have to wait a little longer; but it will come at last, depend on it, if you continue on the look-out! Besides, you can help *me* a little bit, eh? It will be a sort of introduction, you know; but we've time enough to see about

that.—I recommend you to get at once into the chambers of some hard-working man, with a good deal of general business, particularly Pleading—let me see"—Here the Attorney-General paused, and stroked his chin for a moment or two in a musing manner, "Ah, yes, there's WEASEL, the very man for your purpose. He's a good pleader, and a neat draftsman; gets through his work very *cleanly*—ah! Weasel's a clear-headed painstaking little fellow—all for law; and he's got a good deal of it. He's not a very polished person, Weasel, ha! ha! but he's an honorable, right-minded man—shall I introduce you? Well, by-and-by, I'll walk over with you.—As to books? oh! why—I suppose you've looked into Blackstone? He's a fine fellow, Blackstone, and deserves all that has been said in his praise. Many think that he's only to be glanced at, at the beginning of their studies; never believe it! He's good to the end of the chapter! I've a profound respect for Blackstone; it's the only book I've read four or five times through—ay, from cover to cover; he makes law lovely! Stick to Blackstone by all means! Reeves—oh! I mentioned *him*, you know. Then I should go, I think, to Coke on Littleton; but we shall have several opportunities of talking over *these* matters. I really believe, Aubrey, that you are doing a very wise thing in coming to the bar. If you've health, and the average opportunities, (though I think you will have *more*,) I'll undertake to say that in a few years' time you will realize an income—which *may* be a great one—but which (whatever it may be) you'll *earn*, as you did not the one you've lost; and you'll enjoy it, my dear Aubrey, ten thousand times more! All that I can do for you, I will—command me! By the way," he added, assuming a somewhat anxious expression of countenance and a manner very different from that free, buoyant, off-hand one in which, for the last twenty minutes, he had been speaking, (Aubrey feeling all the while the easy commanding power and simplicity of the resplendent intellect with which he was communing,) "I'm almost afraid to ask; but how do you come on, about the——Mesne Profits?"

"I have heard nothing whatever about them, as yet," replied Aubrey, sighing; his face suddenly overshadowed with gloom. A moment's pause ensued; which was interrupted by the Attorney-General saying in a very earnest and feeling manner, "I hope to Heaven you'll be able to get some favorable arrangement made! You've not seen anything of Mr. Titmouse's attorneys, I suppose?"

"Oh, no!" replied Aubrey, sighing, "nor heard anything from them!"

"I've had very little to do with them; Quirk, Gammon, and Snap—these are the people, eh?" Mr. Aubrey nodded. "Quirk is a stubborn wooden-headed fellow—an old hedgehog! Egad! that man's compounded more felonies, the old scamp, than any man in England! I should like to have him in the witness-box for a couple of hours, or so! I think I'd tickle him a little," said the Attorney-General, with a bitter smile. "They say he's a confidential adviser to a sort of Thieves' Association! But there's Gammon: I've had several things to do with *him*. He is a superior man, that Gammon, a very superior man. A keen dog! I recollect him being principal witness in a cause when I was for the plaintiff; and he completely baffled Subtle—ah, ha, how well I recollect it!—Subtle lost his temper at last, because he couldn't make Gammon lose *his*! Ah, how cleverly the fellow twisted and turned with Subtle for nearly an hour! ah, ha—Subtle looked so chagrined!—Have you seen Mr. Gammon?"

"No, I've had no occasion."

"He has a pleasing, gentlemanlike appearance; rather a striking face. *He's* the man you'll have to deal with in any negotiations on the subject I named. You must mind what you're about with him. You mustn't think me intrusive, Aubrey; but, have they sent in their bill yet?"

Mr. Aubrey involuntarily shuddered, as he answered in the negative.

"I'd give a trifle to know how the plague such people ever came to be concerned in such a case. 'Tis quite out of their way—which is in the criminal line of business!—They'll make their client pay for it through the nose, I warrant him:—By the way, what an inconceivably ridiculous little ass that Titmouse is—I saw him in court at York. If he'd only go on the stage, and act *naturally*, he'd make his fortune as a fool!"—Mr. Aubrey faintly smiled at this sally; but the topics which the Attorney-General had just before touched upon, had not a little oppressed his spirits.

"As this is comparatively an idle day with me," said the Attorney-General, "and I've got ten minutes more at your service—suppose I go with you at once—nothing like the present moment—to Mr. Weasel's?"

"I am greatly obliged to you," replied Aubrey—and both rose to go. "Say I shall be back in a few minutes," said the Attorney-General, in answer to his

clerk, who reminded him as he passed, that Mr. Sergeant Squelch and Mr. Putty would be there in a moment or two's time. As they crossed the court—"How do you do, Mr. Putty?" said the Attorney-General, with lofty civility, to a grinning little confident personage who met him, exclaiming with flippant familiarity, "How do you do, Mr. Attorney?—Coming to your chambers—you don't forget?—Consultation—eh?"

"I perfectly recollect it, Mr. Putty, I shall return presently. Perhaps, if convenient, you will have the goodness to wait for a few minutes"—replied the Attorney-General, somewhat stiffly, and passed on, arm-in-arm with Mr. Aubrey.

"Now, that forward little imp's name, Aubrey, is Putty," whispered the Attorney-General. "He was a glazier by trade; but just as he finished his apprenticeship, an uncle left him a few hundred pounds, with which—would you believe it?—nothing would suit him but decking himself in a wig and gown, and coming to the bar—ah, ha!—The fellow's creeping, however, into a little business, positively! They say he has a cousin who is one of the officers to the sheriff of Middlesex, and puts a good many little things in his way! He's my junior in an action of libel against a newspaper, for charging his father-in-law—a baker who supplies some workhouse with bread—with making it of only one-third flour, one-third rye, and the remainder *saw-dust*—ah, ha, ha!—I dared hardly look at the judges while I moved the Rule for a New Trial, for fear of laughing! This is the case in which we're going to have the consultation he spoke of—but here's Mr. Weasel's." They mounted a narrow, dingy-looking, well-worn staircase—and on the first floor, beheld "MR. WEASEL" painted over the door. On the Attorney-General's knocking, as soon as his clear silvery voice was heard asking for Mr. Weasel, and his dignified figure had been recognized by the clerk, who had one pen in his mouth, and another behind his ear—that humble functionary suddenly bent himself almost double three or four times; and with flustered obsequiousness assured the great man that Mr. Weasel was quite at liberty. The next moment the Attorney-General and Mr. Aubrey were introduced into Mr. Weasel's room—a small dusky apartment wretchedly furnished, the walls being lined with book-shelves, well filled—and the table at which he was writing, and a chair on each side of him, strewn with draft paper, which he was covering at a prodigious rate. He was, in fact, drawing a "Declaration" in an action for a *Breach of promise of*

Marriage, (taking a hasty pinch of fiery Welsh snuff every three minutes;) and his task seemed to be rendered very difficult, by the strange conduct of the defendant—surely the most fickle of mankind—who, with an extraordinary inconsistency, not knowing his own mind for a day together, had promised to marry Miss M'Squint, the heart-broken plaintiff, *firstly*, within a reasonable time; *secondly*, on a given day; *thirdly*, on the defendant's return from the Continent; *fourthly*, on the death of his father, (both of which events were averred to have taken place;) *fifthly*, when the defendant should have cut his wise teeth, (which it was averred he had;) and lastly, on "*being requested*" by the lady—which it was averred she had done, and in the most precise and positive manner, that she had been *ready and willing, and then* [what will the ladies say?] "*tendered and offered herself to marry the said defendant*," who had then wholly neglected and refused to do any such thing. One notable peculiarity of the case was, that all these promises had been made, and all these events appeared to have come to pass in one particular place—and that rather an odd one, viz. in "*the parish of Saint Mary Le Bow, in the ward of Cheap, in the city of London*."^[16] If you had been better acquainted with Mr. Weasel's associations and mode of doing business, you would have discovered that, in *his* imagination, almost all the occurrences of life took place at this same spot! But to return—thus was that astute little pleader engaged when they entered. He was a bachelor, upwards of forty; was of spare make, of low stature, had a thin, sharp, sallow face, and short stiff black hair; there was an appearance about the eyes as if they were half-blinded with being incessantly directed to white paper; he had a furrowed forehead, a small pursed-up mouth—one hardly knew why, but really there was something about his look that instantly suggested to you the image of the creature whose name he bore. He was a ravenous lawyer, darting at the point and pith of every case he was concerned in, and sticking to it—just as would his bloodthirsty namesake at the neck of a rabbit. In *law* he lived, moved, and had his being. In his dreams he was everlastingly spinning out pleadings which he never could understand, and hunting for cases which he could not discover. In the daytime, however, he was more successful. In fact, everything he saw, heard, or read of—wherever he was, whatever he was doing, suggested to him questions of law, that might arise out of it. At his sister's wedding (whither he had not gone without reluctance) he got into a wrangle with the bridegroom, on a question started by himself, (Weasel,)

whether an *infant* was liable for goods supplied to his wife, before marriage. At his grandmother's funeral he got into an intricate discussion with a puzzled proctor about *bona notabilia*, with reference to a pair of horn spectacles, which the venerable deceased had left behind her in Scotland, and a poodle in the Isle of Man; and at church, the reading of the parable of the *Unjust Steward*, set his devout, ingenious, and fertile mind at work for the remainder of the service, as to the modes of stating the case, now-a-days, against the offender, and whether it would be more advisable to proceed civilly or criminally; and if the former, at law or in equity. He was a hard-headed man; very clear and acute, and accurate in his legal knowledge; every other sort he despised, if, indeed, he had more than the faintest notion, from hearsay, of its existence. He was a Cambridge man; and there had read nothing but mathematics, in which he had made a decent figure. As soon as he had taken his degree, he migrated to the Temple, where he had ever since continued engaged in the study, and then the successful practice, of the law, as a special pleader under the bar. He had a very large business, which he got through ably and rapidly. He scarcely ever went into society; early want of opportunity for doing so, had at length abated his desire for it—to say nothing of his want of *time*. When, as was seldom the case, he ventured out for a walk, he went, muttering to himself, at a postman's pace, to get the greatest quantity of exercise in the smallest space of time. He was not a bad-tempered man, but, from the absorbing and harassing nature of his employments, he had become nervous, fidgety, and irritable. His tone of voice was feeble, his utterance hesitating, his manner hurried. What a laughable contrast between him and his visitor! The Attorney-General coming to Mr. Weasel's chambers, suggested the idea of a magnificent mastiff suddenly poking his head into the little kennel of a querulous pug-dog; and I suppose Mr. Aubrey might be likened to a greyhound accompanying the aforesaid mastiff! On seeing his visitors, Mr. Weasel instantly got up with a blush of surprise, and a little hurry and embarrassment of manner. His clerk put out a couple of chairs, and down they sat. The Attorney-General came to the point in about half a minute, and the matter was very quickly settled; it being arranged that within a day or two's time, as soon as the forms necessary for admitting Mr. Aubrey to an Inn of Court should have been completed, he should commence his attendance at Mr. Weasel's, from ten o'clock till five daily.

"It's a comical-looking little animal, isn't it?" quoth the Attorney-General, with a laugh, as soon as they had got out of hearing.

"Certainly, I don't feel particularly prepossessed"——

"Oh, pho! He's the very man for you—the very man. There's no nonsense with Weasel; you may learn an infinite deal of law from him, and that is all you want. He's a very inoffensive fellow; and I've no doubt you'll soon like his chambers greatly, if you're in earnest in studying the law. You go or not, of course, as you choose; whatever you do is perfectly voluntary; pay him his hundred guineas, and then, if you like, you may get many thousand pounds' worth out of him in the twelvemonth. Now, I *must* bid you good-morning—I've really not another moment to spare. God bless you, my dear Aubrey; and," he added with great kindness, and a very pointed manner, "whenever you may think it worth your while to talk over your affairs with me, come without notice or ceremony—wherever I may be, I shall be delighted to see you!" Then they parted. Mr. Aubrey was not aware of a certain stroke of delicacy and generosity on the part of the Attorney-General; viz. that immediately on the *Rule* for a new trial being discharged, he had sent for Mr. Runnington, and insisted on returning every sixpence of his fees—upwards of six hundred guineas—desiring that Mr. Aubrey should not be made acquainted with it, if by any means Messrs. Runnington could conceal it from him!

A little fatigued and harassed by several important matters, which kept him engaged till a late hour in the afternoon, he reached Vivian Street in a depressed and desponding mood. Just as he turned the corner, he beheld, at about twenty yards' distance, Mrs. Aubrey and Miss Aubrey slowly walking homeward, on their return from the Park. Mrs. Aubrey held Charles by the hand, who was dancing and frisking wildly about, and Miss Aubrey's beautiful little Cato she was leading along by a slender chain. They were in half-mourning; there was such an air of elegant simplicity about them—their figures, their carriage, so easy and graceful! Aubrey, as he neared them, gazed at them with mingled feelings of pride and tenderness.

"Oh, my papa! my papa!" suddenly exclaimed Charles, who, happening to turn round, had caught sight of his father, and ran eagerly down to him: with what a thrill of love did he take in his arms the beautiful breathless boy, and how his heart yearned towards his wife and sister, as they also

turned quickly round to meet him, after a long day's absence! How inexpressibly dear were they to him—how, that day, he enjoyed their quiet little dinner-table—the romp with his children afterwards—and a long evening of eager and interesting conversation, after the little ones had gone to bed, Mrs. Aubrey and Kate busy, the while, with some slight matter of needlework! They had received several letters from Yorkshire, which they read to him. One was from poor Dr. Tatham, who, though he concealed a good deal that would have occasioned needless pain, yet gave them a melancholy notion of the altered state of things at the Hall. Though it was rather late before they retired to rest on the evening of the ensuing Sunday, Mr. Aubrey was to be found seated in his study by half-past four on Monday morning, perusing, with profound attention, stimulated by the strong observation of the Attorney-General, the second volume of Blackstone's Commentaries,—a work with which he had already a very tolerable familiarity. 'Twas really a thing to be thankful for that Mr. Aubrey, with so many absorbing anxieties, such distracting apprehensions concerning the future, *could* command his attention in the way he did. To be sure, he felt that it was plainly life-and-death work with him; but he might have derived great encouragement from perceiving himself possessed of that faculty of concentrating the attention, which the Attorney-General had spoken of as so essential an attribute of a lawyer. The way in which he parcelled out his time was this: From the time that he entered his study till breakfast-time, he resolved to read law—from ten o'clock till four or five, was to be spent at Mr. Weasel's chambers—and the evenings were to be devoted to the society of his children, his wife, and sister, and also to certain occasional literary efforts, from which he hoped to derive some little increase to his means. This was severe work; but it was probably the most fortunate and salutary thing in the world for Aubrey, that his energies should be thus occupied, and his mind kept from the corroding effects of constant reflection upon his misfortunes, and dismal apprehensions concerning the future. After he had spent a few days in Mr. Weasel's chambers, a good deal of his prejudice against that gentleman began to wear off. Mr. Aubrey found him all that the Attorney-General had described him as being—a very acute and able lawyer, with a constant current of important, varied, and instructive business running through his chambers, and every disposition to render his utmost assistance to Mr. Aubrey, whom he quickly found out to be a man of very superior intellect, and most

seriously bent upon acquiring a knowledge of the profession. Mr. Weasel was not blessed with the power of formally communicating elementary knowledge; Mr. Aubrey had, as it were, to *extort* from him what he wanted, with something like a painful effort. The real advantages of his position, were, the innumerable practical hints and suggestions as to the mode of dealing with miscellaneous business, which he derived from a watchful attention to whatever passed in chambers—to the mode, in which Weasel hunted up and applied his law, and reduced the facts involved in litigation into legal shape and language, in the process of pleading. The penetrating eye of Mr. Aubrey, thus closely fixed on everything that came under his notice, quickly began to discover and appreciate the good sense, the practical utility of most of the positive rules of law which he saw in operation; and at the end of a fortnight or three weeks, he began to feel interest in the study upon which he had so vigorously entered, and in which he felt himself making real progress. Mr. Weasel, during even that time, perceived the prodigious superiority of Mr. Aubrey over another pupil, who had nearly completed his second year in Mr. Weasel's chambers, after a twelvemonth spent in a conveyancer's; not, of course, in respect of legal knowledge, but of intellectual power and aptitude for business.—Mr. Aubrey would return to Vivian Street about six o'clock each evening, a little fatigued with a very long day's work, (for he was never later than five o'clock in entering his study, in the morning;) but he was quickly cheered and refreshed by the sight of the fond and lovely beings whom he there rejoined, and who had been counting the very minutes till he returned. Every day knit that little family together, if possible, in stronger bonds of love; for they clung to each other with a feeling of having been thrust out of the great gay world together, and sent, as it were, upon a pilgrimage afar, amid scenes of increasing gloom, difficulty, and danger. Each day that bore them farther from that of their expulsion from Yatton, mellowed, as it were, their recollections of past scenes, and poured upon their wounded feelings the soothing balm of pious resignation; and sometimes, also, faint and trembling beams of hope concerning the future, would steal across the gloomy chambers of their hearts. Thank God, the view of the past presented to them no occasion for shame, for remorse, for self-condemnation! They trusted that, in their day of wealth and distinction, many as had been their shortcomings, they had not been found wilfully neglecting the duties

imposed upon them. Therefore they derived a just consolation from a view of the past. But the FUTURE—indeed—

"Shadows, clouds, and darkness rested on it."

Their hearts involuntarily fluttered and shrank within them, when they gazed upon the threatening gloom which hung over it. Their straitened circumstances—an honorable poverty—had been a burden light, indeed, to bear. They were very happy in one another's company; their house, though small, was convenient, and even elegantly comfortable; they had health; Mr. Aubrey had constant exercise for an active and vigorous mind, in the acquisition of the learning of a noble profession, the practice of which might possibly hereafter raise all of them to even affluence and distinction—at all events, might secure them the substantial comforts of life. But he would have moments of heaviness and trepidation. When engaged in his little study, in the profound solitude and silence of the early morning, while he was thus straining his faculties to their utmost, on behalf of the sweet innocent beings—his wife—his children—his sister—sleeping above, he would sometimes lean back in his chair, with a very deep sigh, and sink into a reverie—oh, how sad and painful!—deepening occasionally into agony; but he would suddenly arouse himself, and resume his studies with a powerful effort at abstraction—with additional intensity of application.—How, indeed, could he be otherwise than momentarily *paralyzed*, when he surveyed his truly alarming, his tremendous pecuniary liabilities? Bills of costs—Heaven only knew to what amount—due to Messrs. Quirk, Gammon, and Snap; to his own attorneys, Messrs. Runnington; and to Mr. Parkinson: and then—sickening and fearful object!—the Mesne Profits—what *was* to become of them all? The mind which, in the presence of such disturbing forces as these, could apply its energies so successfully as did that of Mr. Aubrey to the acquisition of knowledge, with any degree of calmness, must surely have been of no common order, and have undergone no slight discipline; but, alas! alas! what could all this have availed him, unless he had been vouchsafed assistance from on high? When the *waters were come in unto his soul*; when he was *sinking in deep mire, where there was no standing*; when he was *come into deep waters, where the floods overflowed him*—whither was he to look but to one quarter, and that ABOVE, with earnest, and faithful, and constant supplication to the Almighty?

The constant apprehension of very great evil—*suspense*—is a state almost as terrible and insupportable, especially to those of lively susceptibilities, as that produced by the infliction of the evil. Every morning when Aubrey left home, he dreaded to think of what might happen before his return; and when he quitted the Temple, he experienced a sinking of the heart, when he thought of what might have transpired in his absence. In fact, they all of them felt like those whom the ominous silence and repose of surrounding nature—a portentous calm and gloom overhead—fill with trembling apprehension of the coming storm. Their fears are quickened by the occasional falling of large spreading drops of rain through the sultry sky, not a breath of air stirring. Upward is oft turned the pale cheek and apprehensive eye towards the black accumulating clouds, from which may soon flame the destructive lightning—what, in such a case, is there to rely upon, but the mercy of Him around whose throne are clouds and darkness, and the whirlwind and tempest His ordering?

The little family were sitting one morning at their usual early and simple breakfast, and Mr. Aubrey was reading aloud, for his wife and sister's suggestions, a second article which he had commenced over-night, designed for a recently-established Review—having, some fortnight before, sent off his first effort, about which, however, he had as yet heard nothing; and Kate was playfully patting his cheek, and telling him that, for all he might say to the contrary, a particular expression was not, in her opinion, "*elegant English!*"

"It is, you pert puss," insisted Aubrey, with a good-natured laugh; and then, turning to Mrs. Aubrey, "What do *you* say, Agnes?"

"Oh—why—I really like it very much as it is."

"I sha'n't alter it," said Aubrey, laughing.

"Then I'll alter it when you're gone," quoth Kate, jauntily, and bringing her beautiful laughing face so near his own, with a kind of air of defiance, that he kissed her forehead, and said it should be as she chose.

Just then a knock at the door announced a visitor, who proved to be Mr. Runnington. Why it was they hardly knew; but they all slightly changed color. He had called so early, he said, to insure seeing Mr. Aubrey before he

went to the Temple; and, though he had been shown into the study, Mr. Aubrey insisted on his joining the breakfast-table.

"We've very plain fare for you, however," said he, as Mr. Runnington yielded to his wishes.

Mr. Aubrey perceived, with some uneasiness, that the kind and thoughtful countenance of Mr. Runnington wore rather an anxious expression. And indeed so it was. When he looked at those who sat before him—lovely, elegant, yet with a plainly forced cheerfulness—reflected on the sufferings which they had passed through, and those which were but too evidently in store for them—and for the first bitter instalment of which he had come to prepare Mr. Aubrey—could he but feel very deep sympathy for them? As soon as he had retired with Mr. Aubrey to the study, in a low tone he explained his errand, which was to apprise him that, the evening before, Messrs. Quirk, Gammon, and Snap's BILL had come in.

"Well, show it me, if you please," said Mr. Aubrey, calmly, extending his hand.

"My dear sir, why do you suppose I have it *with me*?" inquired Mr. Runnington, with a concerned air. "You are not accustomed to such matters—God forbid you should be! It is too bulky for me to have brought with me, and lies at our office!"

"What is the *amount* of it, then?" inquired Mr. Aubrey, dreading to hear the answer; while Mr. Runnington took out of his pocket-book a slip of paper, which he handed to Mr. Aubrey, and on which the latter read—"£3,946, 14s. 6d." He gazed at it for some moments in silence, and became very pale. Mr. Runnington could hardly bear to look at him, and think of the two lovely women in the adjoining room, who were so fearfully interested in the intelligence which had so dismayed Mr. Aubrey.

"This is a very—large—amount," said the latter at length, with suppressed emotion.

"It is a most serious affair," replied Mr. Runnington, shaking his head and sighing.

"Then there is yours—and Mr. Parkinson's."

"Oh, Mr. Aubrey—*sufficient for the day is the evil thereof.*"

"Will you oblige me by saying what is the probable amount of *your* bill?" inquired Mr. Aubrey, with a calmness which seemed lent to him by despair.

"Oh! I assure you we have thought nothing at all about it, nor shall we for some time to come, Mr. Aubrey. We have not the slightest intention of troubling ourselves, or you, with the matter till you may be in a position to attend to it without serious inconvenience."

"But *do* favor me with something like a *notion*," pressed the unhappy Aubrey.

"Why—perhaps I am hardly doing right in mentioning it; but whenever our bill is sent in, it will be less by some six hundred and fifty pounds, by the noble generosity of the Attorney-General, who has returned all his fees"——

"Returned all his fees!" echoed Mr. Aubrey, starting, while the color rushed into his cheek, and the expression of his countenance was of pride struggling with astonishment, and gratitude, and admiration. He profoundly appreciated the conduct of his distinguished friend; and at the same time felt a *totally new* and very painful sense of pecuniary obligation.

"I feel, Mr. Aubrey, that I have broken my promise to the Attorney-General, who extracted from me a solemn pledge, to endeavor so to manage the matter as that you should never know it. What is it, after all—noble as it is—to the Attorney-General, with his £12,000 or £15,000 a-year?"

"Oh—do not talk so, Mr. Runnington; I am overpowered, oppressed. Never in all my life have I experienced feelings like those by which I am now agitated!" He rose, and stood opposite the window for a few minutes, neither of them speaking. Then he returned to his seat.

"How much does that leave me your debtor?"

"Why—really it is hard to say, unprepared—I should imagine—if you will really force me to speak of such an unpleasant topic—that our account is reduced to some £1,500 or £1,600—about which"——

"Then there is Mr. Parkinson's," said Aubrey, in a low tone, but with a desperate air; presently adding—"Here are some £6,000 or £7,000 to start with; and *then* we come to the mesne profits—gracious, gracious God!" he suddenly added with a visible shudder. He folded his arms convulsively,

and gazed, for a second or two, at Mr. Runnington, with an eye, the expression of which was overpowering. In his face Mr. Runnington beheld no longer the melancholy mildness to which he had been accustomed, but a sternness and power were apparent in his features, which Mr. Runnington had not imagined them capable of exhibiting. They told of a strong soul thoroughly roused, and excited, and in agony. At that moment a knocking was heard at the door, as of very little fingers. "Come in!" exclaimed Mr. Aubrey, with unusual quickness and sternness. He was obeyed—and Charles's little face peeped into the room timidly. He was evidently quite startled by the tone in which he had been addressed. "Come in, my child!" said Mr. Aubrey, rather tremulously, when he saw that it was *his son*, and observed the apprehensiveness overspreading his little features. Charles immediately advanced, with a serious submissive air, saying—"This letter is just come—Mamma sent me with it, dear papa"——

"Give it me, Charles," said Mr. Aubrey, extending his hand for it, while with the other he gently placed the child upon his lap, and kissed him. "I'm not angry with you, Charles," said he, tenderly.

"I've not been naughty, you know, dear papa!" said he, with innocent surprise.

"No, no, my little love." The ruined FATHER could say no more; but putting aside the child's flowing curly locks from his temples, as it were mechanically, he gazed on his little face for a moment, and then folded him in his arms with unspeakable tenderness. Mr. Runnington rose, and stood for some moments gazing through the window, unwilling that his own emotion should be observed. When Mr. Aubrey opened the letter, it proved to be from the publisher of the Review to which he had sent his article, enclosing a check for forty guineas, expressing an earnest desire that he would continue his contributions, and assuring him that the editor considered the article "in every way admirable." As soon as he had glanced over the letter—"You little messenger of hope and mercy!" he thought, again kissing his son, who sat passively gazing at the agitated countenance of his FATHER—"I cannot, I will not despair! You have brought me, as it were, a ray of light from heaven, piercing the fearful gloom of my situation; 'tis a token, surely, that I am not forgotten: I feel as though an angel, momentarily brightening the night of sorrow, had come and whispered in my ear—'COURAGE!'" His features began to resume their natural serenity of

expression. "Take it in to your mamma," said he, kissing little Charles, and despatching him with the letter. Shortly afterwards, as soon as he had recovered the command of his manner sufficiently to avoid occasioning uneasiness to Mrs. and Miss Aubrey, he proposed to Mr. Runnington that they should walk towards the Temple; and bidding adieu to those whom he left behind him, without giving them an opportunity to ask him as to the nature of Mr. Runnington's errand, but leaving them in high spirits at the letter which he had sent in to them, he quitted the house arm-in-arm with Mr. Runnington. I am persuaded that if that gentleman had had no one to consult, he would, serious as was the amount of his claim, have relieved Mr. Aubrey altogether from liability to *him*; but he had four partners; their own pecuniary outlay had been considerable; the thing, therefore, was practically quite out of the question. As they walked along, in the course of much anxious conversation, Mr. Runnington told Mr. Aubrey that he considered Messrs. Quirk, Gammon, and Snap's bill to be most outrageous and profligate in its charges; and that it might, on taxation—a process which he explained to Mr. Aubrey—be reduced, probably, by at least *one-half*. But he also reminded Mr. Aubrey of the power which they held in their hands, in respect of the mesne profits; and intimated his opinion, that in all probability they had constructed their account with an eye to such considerations—namely, that it should be discharged without rigorous scrutiny into its constituent items, before they would listen to any proposed terms for the payment of the mesne profits; and that Mr. Aubrey's position, with respect to Messrs. Quirk, Gammon, and Snap, was one requiring the greatest possible deliberation and circumspection on his part, especially in the matter of the bill which had just been delivered in by them.

"I see! The whole," said Mr. Aubrey, "comes to this: they will relieve me from liability to Mr. Titmouse, for as much of what may be due to him, as they can divert into their own pockets!"

"That certainly seems very much like it," replied Mr. Runnington, shrugging his shoulders; "but you will leave all such considerations and matters to us; and rely on our vigilance and discretion. At what may appear to us the exact moment for doing so with effect, depend upon our most cautious interference. We know, Mr. Aubrey, the kind of people we have to deal with. Mr. Titmouse is very likely to be merely a puppet in their hands

—at least in those of Mr. Gammon, who is a very long-headed man; and with him, I have no doubt, our negotiations will have to be carried on."

"That is just what the Attorney-General said—and he invited me, moreover, to converse with him whenever I might consider that his advice would be useful."

"Could you have a better adviser? He has a most penetrating sagacity, long exercised—in short, his qualifications are consummate; and I should not hesitate about consulting him in a friendly way, whenever we feel at a loss."

"Why should I disguise anything from you, Mr. Runninton?"—said Aubrey—"you ought to know the exact state of my affairs. I have a little family plate, which I could not bear to part with; my books; and the remnants of the furniture at Yatton, which I have saved in order to furnish our present residence. Besides this, the outside of all that I am possessed of—and I have no expectations, nor has my wife nor my poor sister, from any quarter—is a sum of about £3,000 in the funds, and £423 at my banker's. Those are my circumstances; they appall me merely in stating them:—Why, I owe double the sum I have named, for lawyers' bills only. I have not enough, without parting with my books and plate, to discharge even Messrs. Quirk, Gammon, and Snap's bill!"

"It would be cruel and absurd in me not to express at once, Mr. Aubrey, my conviction that your situation is fearfully critical; and that your sole hope is in the moderation which may be hoped for from Messrs. Quirk, Gammon, and Snap, and their client, Mr. Titmouse. Serious as are, at present, your other liabilities—to that one, of the mesne profits, they are but as a bucket of water to the Thames. As we are talking, Mr. Aubrey, in this candid and unrestrained manner, I will tell you my chief source of apprehension on your account, with reference to Messrs. Quirk, Gammon, and Snap: namely, that they may possibly speculate on your being able, if placed in real peril, to call around you, in your extremity, a host of wealthy and powerful friends—as security, or otherwise"—

"They will find themselves, then, utterly mistaken," said Mr. Aubrey, sternly. "If they and their client are really capable of such shocking brutality—such wanton oppression—let them do their worst: I am resigned. Providence will discover a shelter for my poor wife and children, and my dear, devoted, high-spirited sister; and as for myself, rather than satiate the

rapacity of such wretches, by plundering good-natured and generous friends, I will spend the remainder of my days in prison!"

Mr. Aubrey was evidently not a little excited while he said this; but there was that in his tone of voice, and in his eye, which told Mr. Runnington that he meant what he said; and that, as soon as it should have come to the point of oppression and injustice, no man could resist more powerfully, or endure with a more dignified and inflexible resolution. But Mr. Runnington expressed strong hopes that it would not come to such an issue. He consoled Mr. Aubrey with assurances that, as for their own demand, it might stand over for years; and that so, he was sure, would it be with the far lesser demand of Mr. Parkinson; and that if, by a great effort, sufficient could be raised to discharge promptly the bill of Messrs. Quirk, Gammon, and Snap, some much more favorable arrangement respecting the amount and mode of payment of the mesne profits might be effected—leaving Mr. Aubrey, in the mean time, leisure to apply himself vigorously to his studies for the bar, for which Mr. Runnington assured him that he considered him peculiarly qualified; and pledged himself to back him with all the influence he had, or could command.

"Gracious Heaven, Mr. Runnington!" said Aubrey, with a little excitement, "is it not very nearly intolerable that I should pass the prime of my days in thralldom to such people as these, and be encircled by the chains of such a man as this Titmouse is represented as being? I will not call myself his foe, nor his victim; but I am the one through whose sudden destitution he has obtained a splendid fortune. I did not *knowingly* deprive him of it—he must be bereft of all the ordinary feelings of humanity, to place me, whom he has already stripped of all, upon the rack—the rack of extortion! Oh! put me in his place, and him in mine—do you think I would not have been satisfied with what I had gained? Would *I* have alarmed and tortured him by calling for an account of what he had spent with a firm, a reasonable persuasion that it was his own—profoundly unconscious of its being another's? Oh, no! I would not only have forgiven him all, but endeavored to secure him from future want!" He sighed. "Oh, that I were at this moment a free man! *pauper—sed in meo ære*; that I had but five hundred pounds to keep me and mine for a year or two—with a mind at ease, and fit for study! but here we are at the Temple. When shall we meet again—or shall I hear from you?"

"Very shortly," replied Mr. Runnington, who for the last few minutes had been listening to Mr. Aubrey in respectful and sympathizing silence; and shaking him warmly by the hand, with much cordiality and fervency of manner, he pledged himself to do all in his power to promote his interests.

CHAPTER VIII.

When Mr. Aubrey arrived at Mr. Weasel's chambers, he looked dejected and harassed; yet, exerting his powers of self-command, he at once addressed himself, calmly and vigorously, to the business of the day. From time to time he peremptorily excluded the distressing thoughts and recollections arising out of his morning's interview with Mr. Runnington; and succeeded in concentrating his attention upon a case of more than usual intricacy and multifariousness of details, which Mr. Weasel, having glanced over, had laid aside for a more leisurely perusal. He handed it, however, to Mr. Aubrey soon after his arrival, with something approaching to a secret satisfaction, in the expectation of its "proving too much for him;" but he was mistaken. Mr. Aubrey left a little earlier than usual; but not before he had sent in the voluminous "case" to Mr. Weasel's room by the clerk, together with a half-sheet of draft paper, containing a brief summary of the results at which he had arrived; and which not a little surprised Mr. Weasel. The case did not happen to involve much technical knowledge; but, as well in respect of the imperfect manner in which it was drawn up, as of the confusion worse confounded of the transactions themselves, out of which the questions arose, there were required persevering attention, strength of memory, and great clear-headedness. In short, Weasel owned to himself that Mr. Aubrey had taken a very masterly view of the case; and how would his estimate of his pupil's ability have been enhanced, by a knowledge of the situation in which he was placed—one so calculated to distract his attention, and prevent that hearty and complete devotion to legal studies, without which Mr. Weasel well knew how vain was the attempt to master them?

"Have you read Aubrey's opinion on that troublesome case—I mean the Cornish Bank?" inquired Weasel, taking a pinch of snuff, of Mr. Thoroughpace, another pupil who had just sat down beside Mr. Weasel, to see him "settle" [*i. e.* score out, interline, and alter] a pleading drawn by the aforesaid Thoroughpace. That gentleman replied in the negative. "He's got a headpiece of his own, I can tell you!—Egad, somehow or another, he always contrives to hit the nail on the head!"

"I'd a sort of notion, the very first day he came, that he was a superior man," replied Thoroughpace. "He makes very few notes—seems to trust entirely to his head"——

"Ah! a man may carry that too far," interrupted Mr. Weasel, thrusting a pinch of snuff up his nose.

"Then I wish *I* could," replied Thoroughpace. "Isn't there such a thing as making *the hand engross the business of the head?*" Mr. Weasel—recollecting that in his library stood twelve thick folio volumes of manuscript "precedents," which he had been fool enough to copy out with his own hand during his pupilage, and the first year or two of his setting up in business—hemmed, and again applied to his snuff-box. "How do you get on with Aubrey in the pupils' room?" he inquired.

"Why, I didn't like him at first. Very reserved, and is not without *hauteur*. Even now, though very courteous, he says little, appears entirely absorbed by his studies; and yet he seems to have something or other pressing on his mind."

"Ah! I dare say! Law's no trifle, I warrant him! No doubt it's *teasing* him!" replied Weasel, rather complacently.

"Do you know I should doubt it! I never saw a man to whom it seemed to *yield* so easily.—He's a particularly *gentlemanlike* person, by the way; and there's something very attractive in his countenance. He seems highly connected."

"Oh—why, you've heard of the great cause of *Doe d. Titmouse v. Jolter*, a Yorkshire ejectment case, tried only last spring assizes?—That case, you know, about the effect of an *erasure*.—Well, he's the defendant, and has, I hear, lost everything."

"You astonish me! By Jove, then, he had need work!"

"Shall we set to work, Mr. Thoroughpace?" said Weasel, suddenly, looking at his watch lying on his desk. "I've promised to let them have these pleas by six o'clock—or the other side will be signing judgment;" and plunging his pen into the inkstand, to work he went, *more suo*, as if such a man as his pupil, Mr. Aubrey, had never existed. Weasel was not at all a hard-hearted man; but I verily believe that if a *capias ad satisfaciendum* (*i. e.* final process to take the body into custody to satisfy debt and costs) against

Charles Aubrey, Esquire, had come into Mr. Weasel's chambers to be "*settled*" as requiring special accuracy—after humming and hawing a bit—and taking an extra pinch of snuff, he would have done his duty by the document faithfully, marked his *seven-and-sixpence* in the corner, and sent it out indifferently with other papers; consoling himself with this just reflection, that the thing *must* be done by *somebody*! and he might as well have the *fee* as any one else!

On Mr. Aubrey's return home to dinner, he found that his sister had received another long letter from Dr. Tatham, to which was appended a postscript mentioning Mr. Gammon in such terms as suggested to Mr. Aubrey a little scheme which he resolved to carry into effect on the morrow—namely, to call himself at the office of Messrs. Quirk, Gammon, and Snap, and seek an interview with Mr. Gammon, who, Dr. Tatham stated, had quitted Yatton for town only the day before the doctor had written to Miss Aubrey. After a very restless and unhappy night, during which he was tormented by all kinds of dismal dreams, Messrs. Quirk, Gammon, and Snap figuring in each as the stern and mysterious arbiters of his earthly destiny, he resolved to put an end to his present insupportable suspense—to learn at once the extent of what he had either to hope or to fear—by calling that very afternoon at Saffron Hill. For that purpose, he quitted Mr. Weasel's at the early hour of three o'clock; and straightway bent his steps towards those delectable localities—through Fetter Lane to Hatton Garden, thence inquiring his way to Saffron Hill. He was not long in finding the house of which he was in quest, his eye being soon attracted by the great, gleaming brass-plate with the words "QUIRK, GAMMON, and SNAP," as prominent and threatening as ever those names had appeared to Titmouse in the day of *his* agony and suspense. *He* had stood gazing at them with idiot longing and vulgar apprehension, as the reader has seen. How very different a person now looked at them with feelings of intense interest and overmastering anxiety, as at the names of those who had him completely in their power—his fortunes, his *liberty*, his livelihood, and that of the dear beings whose interests, whose all on earth, whose personal safety—were bound up in his! Mr. Aubrey, with a jaded air, dressed in a buttoned black surtout, and with an umbrella under his arm, entered the hall, where were sitting and standing several strange-looking people—one or two suffering evidently great agitation; in fact, relatives of prisoners whose trials for capital offences

were coming on the next day at Newgate—and made his way into a room, on the door of which he read "Clerks' Room."

"Now, sir, your name and business?" said a showily dressed Jewish-looking youth, with copious curls, lolling at a desk from which he did not move, and speaking in a tone of very disagreeable assurance.

"Is Mr. Gammon within? my name is Aubrey," he added, taking off his hat; and there was a certain *something* in his voice, countenance, and bearing—a certain courtly superiority—which induced the personage whom he had addressed to slip off his stool, and exhibit as polite an air as *he* could possibly assume.

"Mr. Gammon is in his room, sir, and alone. I believe he is rather busy," said the youth, going towards Mr. Gammon's room—"but I've no doubt you can see him."

The fact was, that at that very moment Mr. Gammon was engaged drawing up "Instructions to prepare Declaration" in an action for mesne profits against Mr. Aubrey! He had only the day before returned from Yatton, where circumstances had occurred which had quickened their intended proceeding against that unfortunate gentleman—that being the first quarter to which, at Mr. Titmouse's suggestion, they were to look for a considerable supply of ready money. That morning, in the very room into which Mr. Aubrey was to be presently shown, had taken place a long discussion between Mr. Quirk and Mr. Gammon, on the very subject which had now brought to their office Mr. Aubrey. Mr. Quirk was for making short work of it—for "going straight a-head"—and getting the whole £60,000 or security for the greater portion, and £20,000 down! Gammon, however, was of opinion that that was mere madness; that by attempting to proceed to extremities against so unfortunate a sufferer as Mr. Aubrey, they could not fail of drawing down on themselves and their client universal execration—at *that*, Quirk only grunted and grinned;) and, moreover, of driving Mr. Aubrey desperate, and forcing him either to quit the country, or accept the protection of the insolvent laws—at this Mr. Quirk looked serious enough. Gammon had, in the end, satisfied his senior partner that their only chance was in gentleness and moderation; and the old gentleman had, as usual, agreed to adopt the plan of operations suggested by Gammon. The latter personage had quite as keen a desire and firm determination as the former,

to wring out of their wretched victim the very last farthing which there was the slightest probability of obtaining; for Titmouse had pointed to that quarter for the discharge of his ten thousand pound bond, and bill of costs (which—by the way—contained some three hundred items, slightly varied in language, which stood also charged in their bill to Mr. Aubrey!) then twenty—or at least fifteen thousand pounds, were to be handed over to himself, Titmouse; and all the rest that could be got, Mr. Gammon might appropriate to his own use. Such was the prospective partition of the spoil!—Mr. Gammon's inquiries into Mr. Aubrey's circumstances, had completely convinced him, however, that it would be impossible to extract any considerable sum from that unfortunate gentleman; and that if they could contrive to get payment of their bill against him—perhaps substantial security for a portion—say four or five thousand pounds—of the mesne profits; and his own personal responsibility for the payment of any portion of the remainder, hereafter—they had better rest satisfied—and look for liquidation of their own heavy claim, to a mortgage upon the Yatton estates. Mr. Gammon had also proposed to himself certain other objects, in dealing with Mr. Aubrey, than the mere extraction of money from him; and, in short, prompted by considerations such as those above intimated, he had come to the determination, an hour or so before Mr. Aubrey's most unexpected visit, to be at once prepared with the necessary means for setting in motion legal proceedings for the recovery of the arrear of mesne profits. But we are keeping Mr. Aubrey waiting, all this while, in the outer office.

"Have I the honor to address Mr. Gammon?" commenced Mr. Aubrey, courteously, on being shown into the room—not announced by name, but only as "*a gentleman*"—where Gammon sat busily engaged writing out the "Instructions" for framing the rack on which it was designed to extend his unconscious visitor!

"Sir, my name *is* Gammon," he replied, coloring a little—and rising, with an expression of very great surprise—"I believe I have the honor of seeing Mr. Aubrey?—I beg you will allow me to offer you a chair"—he continued with forced calmness of manner, placing one as far distant as was possible from the table, and, to make assurance doubly sure, seating himself between Mr. Aubrey and the table; expecting to hear his visitor at once open the subject of their bill, which they had so recently sent in.

"Will you suffer me, Mr. Aubrey," commenced Gammon, with a bland and subdued air, not fulsome, but extremely deferential, "before entering on any business which may have brought you here, to express deep and sincere sympathy with your sufferings, and my *personal* regret at the share we have had in the proceedings which have ended so adversely for your interests? But our duty as professional men, Mr. Aubrey, is often as plain as painful!"

"I feel obliged, sir," said Mr. Aubrey, with a sigh, "for your kind expressions of sympathy—but I cannot for a moment conceive any apology necessary. Neither I, nor my advisers, that I am aware of, have ever had cause to complain of harsh or unprofessional treatment on your part. Your proceedings certainly came upon me—upon all of us—like a thunder-stroke," said Mr. Aubrey, with a little emotion. "I trust that you have given me credit, Mr. Gammon, for offering no vexatious or unconscientious obstacles."

"Oh, Mr. Aubrey! on the contrary, I am at a loss for words to express my sense of your straightforward and high-minded conduct; and have several times intimated my sentiments on that subject to Messrs. Runnington"—Mr. Aubrey bowed—"and again I anxiously beg that you will give me credit for feeling the profoundest sympathy"—he paused, as if from emotion; and such might well have been excited, in any person of ordinary feeling, by the appearance of Mr. Aubrey—calm and melancholy—his features full of anxiety and exhaustion, and his figure, naturally slender, evidently somewhat emaciated.

["I wonder," thought Gammon, "whether he has any *insurances on his life*!—He certainly has *rather* a consumptive look—I should like to ascertain the fact—and in what office—and to what extent."]

"I trust, most sincerely, Mr. Aubrey, that the mental sufferings which you must have undergone, have not affected your health?" inquired Gammon, with an air of infinite concern.

"A little, certainly, sir, but, thank God, I believe not materially; I never was very robust," he replied with a faint sad smile.

["*How like his sister!*"—thought Gammon, watching his companion's countenance with real interest.]

"I am not quite sure, Mr. Gammon," continued Aubrey, "that I am observing etiquette in thus coming to you, on a matter which you may consider ought to have been left to my solicitors, and who know nothing of my present visit—but"——

"An honorable mind like yours, Mr. Aubrey, may surely act according to its own impulses with safety! As for etiquette, I know of no professional rule which I break, in entering into a discussion with you of any topic connected with the action which has recently been determined," said Gammon, cautiously, and particularly on his guard, as soon as his penetrating eye had detected the acuteness which was mingled with the sincerity and simplicity of character visible in the oppressed countenance of Mr. Aubrey.

"I dare say you can guess the occasion of my visit, Mr. Gammon?"

["There goes *our bill*!—Whew!—What now?" thought Gammon.]

Mr. Gammon bowed, with an anxious, expectant air.

"I allude to the question yet remaining between your client, Mr. Titmouse, and me—the mesne profits"——

"I feared—I expected as much! It gave me infinite anxiety, as soon as I found you were approaching the subject!"

"To me it is really a matter of life and death, Mr. Gammon. It is one pressing me on, almost to the very verge of despair!"

"Do not, Mr. Aubrey," said Gammon, in a tone and with a look which touched the heart of his agitated companion, "magnify the mischief. Don't—I beg—imagine your position to be one so hopeless! What is there to stand in the way of an amicable adjustment of these claims? If I had my way, Mr. Aubrey—and if I thought I should not be acting the part of the unjust steward in Scripture—I would write sixty thousand farthings for sixty thousand pounds!"

"You have named the sum for which I believe I am legally liable to Mr. Titmouse," said Mr. Aubrey, with forced composure; "it is, however, a sum as completely out of my power to pay or secure—or even a quarter of it—as to give him one of the stars."

"I am aware, Mr. Aubrey, that you must have had many calls upon you, which must have temporarily crippled your resources"——

"Temporarily!" echoed Mr. Aubrey, with a sickening smile.

"I devoutly trust that it is only temporary! For your own and family's sake," he added quickly, observing the watchfulness with which his every look and word was regarded by his companion. "Any proposal, Mr. Aubrey," he continued with the same apparent kindness of manner, but with serious deliberation, "which you may think proper to make, I am ready—eager—to receive and consider in a liberal spirit. I repeat—If I, only, had to be consulted—you would leave this room with a lightened heart; but to be plain and candid, our client, Mr. Titmouse, is a very difficult person to deal with! I pledge my word of honor to you—[*Oh Gammon! Gammon! Gammon!*!]*—*that I have repeatedly urged upon Mr. Titmouse to release you from all the rents which had been received by you previously to your having legal notice of the late proceedings." I suppose Gammon felt that this declaration was not received as implicitly as he desired, and had expected; for with a slight stiffness, he added, "I assure you, sir, that it is a fact. I have always been of opinion that the law is harsh, and even faulty in principle, which, in such a case as yours—where the possessor of an estate, to which he believed himself born, is ousted by a title of which he had no previous knowledge, nor MEANS of knowledge"—Gammon uttered this very pointedly, and with his eye fixed searchingly upon that of Mr. Aubrey—"requires him to make good the rents which he had so innocently appropriated to his own use. That is my *opinion*, though it may be wrong. I am bound to say, however, that as the law now stands—if Mr. Titmouse should, contrary to my advice, determine to stand upon his strict rights"—Gammon paused, shook his head, shrugged his shoulders, and looked with melancholy significance at Mr. Aubrey.

"I am entirely at his mercy! that I perfectly understand. I do trust, however, that in the name of our common humanity he will have some consideration for the helpless—the miserable situation in which I am so unexpectedly placed," said Aubrey, with mournful energy. "Never having imagined it necessary to save money"——

"Oh no—nor, with such an income as yours was, to resort, I fear, to any of the ordinary modes of providing against emergencies—by *insurance* of your life, for instance"—interposed Gammon, sighing.

"No—sir! nothing of the sort"—["Ah!—the deuce you have not!" thought Gammon]—"and I confess—I now bitterly feel—how improvident I have been! My situation is so deplorable and desperate, that disguise would be absurd, even could I stoop to it; and I declare, in the presence of Heaven, Mr. Gammon, that without giving up the little remnant of plate I have preserved, and my books, I am unable to liquidate even the amount of your bill sent in the day before yesterday"—Gammon gazed at Aubrey mournfully, but in silence—"and if my miserable remnant of means *be* so appropriated, we are *literally beggars*"—he paused, and his voice faltered.

"Indeed—indeed, you distress me beyond measure, Mr. Aubrey," said Gammon, in a low tone.

"If you can but secure me, sir—and that is the object of this intrusion upon you—a merciful interval, to prepare myself for the profession which I have entered—the bar—whatever earnings I might obtain, after leaving a bare maintenance for myself and family, shall be devoted faithfully to liquidate the heavy claims upon me! For myself, Mr. Gammon, I do not care about living upon bread and water for the next ten years; but there are others"—his voice trembled. "Sir," he suddenly added with almost passionate energy, "by every consideration which can influence a gentleman, I conjure you to interfere between me and utter immediate ruin!"

This was the real thrilling language of the heart; but it failed to produce the least impression upon Gammon, in whom it excited only intense chagrin and disappointment. "Oh, that it were but in my power," said he, however, with great energy, "to send you out of this room a free man! If I alone were to be consulted," he continued with vivacity, "I would instantly absolve you from all demands—or at least give you your own time, and take no other security than your word and honor!"

"Oh! what a happy—happy man! what a happy family should we be if only"—he could not finish the sentence, for he was greatly moved.

["Here's an infernal business!" thought Gammon to himself, and, bending down his head, he covered his eyes with his hands;—"worse, far worse than I had suspected. I would take five pounds for all *my* residuary interest in the sixty thousand pounds!! I've not the least doubt that he's speaking the truth. But the *bill* part of the business is highly unsatisfactory! I should like my friend Quirk to be here just now! Surely, however, Mr. Aubrey must be able

to get security? With such friends and connections as his!—If one could only get one or two of them to join him in a bond for ten thousand pounds—stay—that won't exactly do either—by the way—I *must* have my thumb upon him!"]

"I am so profoundly affected by the situation in which you are placed, Mr. Aubrey," said Gammon, at length appearing to have subdued his emotion, and feeling it necessary to say something, "that I think I may take upon myself to say the instructions which we have received *shall not* be acted upon, come what may. Those must be really monsters, not men, Mr. Aubrey, who could press upon one in your position; and that such should be attempted by one who has succeeded to your former splendid advantages, is inconceivably shocking. Mr. Aubrey, *you shall not be crushed*—indeed you shall not, so long as I am a member—possibly not the least influential one—of this firm, and have any weight with your formidable creditor, Mr. Titmouse. I cannot do justice to my desire to shelter you and yours, Mr. Aubrey, from the storm you dread so justly!" There was a warmth, an energy in Gammon's manner, while saying all this, which cheered the drooping heart of his wretched visitor. "What I am about to say, Mr. Aubrey, is in complete confidence," continued Gammon, in a low tone. Mr. Aubrey bowed, with a little anxious excitement in his manner. "May I rely implicitly upon your honor and secrecy?"

"Most implicitly, sir. What you desire me to keep within my own breast, no one upon earth shall know from *me*."

"There are serious difficulties in the way of serving you. Mr. Titmouse is a weak and inexperienced young man, naturally excited to a great pitch by his present elevation, and already embarrassed for want of ready money. You may imagine, sir, that his liabilities to us are of considerable magnitude. You would hardly credit, Mr. Aubrey, the amount of mere money out of pocket for which he stands indebted to us; our outlay during the last two years having considerably crippled our own pecuniary resources in an extensive practice like ours, and driven us to incur responsibilities which are beginning to occasion us personally considerable anxiety. Of course, Mr. Aubrey, we must look to Mr. Titmouse to be speedily reimbursed: he insists upon our immediately calling upon you; and I have reason to suspect that he has at his elbow one or two very heartless advisers, who have suggested this to him; for he follows it most pertinaciously. That he cannot

meet the liabilities I have alluded to out of his annual income, without swallowing it up entirely for eighteen months or two years, is certain. I regret to say that Mr. Quirk and Mr. Snap encourage his disposition to press you;—do not be alarmed, my dear sir!" he continued, observing the deadly paleness of Mr. Aubrey, whose eye was riveted upon that of Gammon; "for I declare that *I will* stand between you and them; and it is enough for me to say, moreover, that I have the *power* of doing so. I am—but this is committed specially and sacredly to your confidence—the *only person living who happens to possess the means of controlling Mr. Titmouse*; and since you have entered this room, I have resolved to *exercise* my powers. Now, bearing in mind that I have no legal authority from him, and am, at the same time, only one of a firm, and assuring you that I am entailing a serious personal responsibility upon myself in what I am doing, let me throw out for your consideration my general notion of what I think ought to be done—merely my off-hand notion."

"I perfectly understand you, sir—and am penetrated by a sense of gratitude! I listen to you with inexpressible anxiety," said Mr. Aubrey.

"Had I been consulted," continued Mr. Gammon, "we should have proposed to you, with reference to our bill, (which I frankly acknowledge contains a much more liberal entry than would probably be allowed on taxation, but with equal truth I declare that it is none of *my* doing,")—Gammon knew the credit for candor which this acknowledgment of a fact, of which Messrs. Runnington would quickly apprise Mr. Aubrey after examining the bill, was likely to obtain for him with Mr. Aubrey—"I say, I should have *proposed* to you, in the first instance, the payment of our bill by easy instalments, during the next three or four years, provided you could have obtained partial security. But I am only one of three, and I know the determination of Mr. Quirk and Mr. Snap, not to listen to any proposal with reference to the mesne profits which is not based upon—in short, they say, *the bill must be paid at once without being looked into*—I mean," he added quickly, "without its being subjected to the harassing and protracted scrutiny which a distrustful, an ungrateful client, or unreasonable opponent, has it too frequently in his power to inflict. Oh, let me disguise nothing from you, my dear sir, in a conversation of this kind between two gentlemen!" continued Gammon, with an admirable air of frankness, for he perceived that Mr. Aubrey looked slightly staggered. "I am ashamed to acknowledge that our

bill does contain exorbitant entries—entries which have led to very frequent and fierce disputes between me and my partners. But *what is to be done?* Mr. Quirk is—to be completely candid with you—the moneyed man of the firm; and if you were but to glance at the articles of our partnership"—Gammon shrugged his shoulders and sighed—"you would see the tyrannical extent of power over us which he has thereby secured! You observe how candid I am—perhaps foolishly so."

["I've not quite mastered him—I can tell it by his eye"—thought Gammon—"is this a game of chess between us? I wonder whether, after all, Messrs. Runnington are aware of his being here—knowing and trusting to his ability—and have put him thoroughly on his guard? He is checking strong feelings incessantly, and evidently weighing every word I utter. Misery has sharpened faculties naturally acute."]

"Pray do not say so, Mr. Gammon, I fully appreciate your motives. I am devoured with anxiety for an intimation of the nature of the terms which you were about, so kindly, to specify."

"Specify, Mr. Aubrey, is perhaps rather too strong a term—but to proceed. Supposing the preliminary matter which I have alluded to satisfactorily arranged, I am disposed to say, that if you could find security for the payment of the sum of ten thousand pounds within a year, or a year and a half"—[Mr. Aubrey's teeth almost chattered at the mention of it]—"I—I—that is, *my* impression is—but—I repeat—it is only *mine*"—added Gammon, earnestly—"that the rest should be left to your own honor, giving at the same time a personal undertaking to pay at a future—a very distant day—in the manner most convenient to yourself—the sum of ten thousand pounds more—making in all only one-third of the sum due from you; and receiving an absolute release from Mr. Titmouse in respect of the remaining two-thirds, namely, forty thousand pounds."

Mr. Aubrey listened to all this with his feelings and faculties strung to the utmost pitch of intensity; and when Gammon had ceased, experienced a transient sense, as if the fearful mountain which had pressed so long on his heart were moving.

"Have I made myself intelligible, Mr. Aubrey?" inquired Gammon, kindly, but very gravely.

"Perfectly—but I feel so oppressed and overwhelmed with the magnitude of the topics we are discussing, that I scarcely at present appreciate the position in which you would place me. I must throw myself, Mr. Gammon, entirely upon your indulgence!"

Gammon looked a little disappointed.

"I can imagine your feelings, sir," said he, as, thrusting into a heap the papers lying on the table, he threw them into a drawer, and then took a sheet of paper and a pencil; and while he made a few memoranda of the arrangement which he had been mentioning, he continued—"You see—the grand result of what I have been hastily sketching off is—to give you ample time to pay the amount which I have named, and to relieve you, at once, *absolutely* from no less a sum than FORTY THOUSAND POUNDS," said he, with emphasis and deliberation, "for which—and with interest—you will otherwise remain liable to the day of your death;—there can be no escape," he continued with pointed significance of manner—"except, perhaps, into banishment, which, with your feelings, would be worse than death—for it would—of course—be a *dishonorable* exile—to avoid just liabilities;—and those who bear your name would, in such an"——

"Pray, sir, be silent!" exclaimed Mr. Aubrey, in a tone and manner which electrified Gammon, who started in his chair. Mr. Aubrey's face was whitened; his eye glanced lightning at his companion. Dagon-like, Gammon had put forth his hand and touched the ark of Aubrey's honor. Gammon lost his color, and for, perhaps, the first time in his life, quailed before the majesty of man; 'twas also the majesty of suffering; for he had been torturing a noble nature. Neither of them spoke for some time—Mr. Aubrey continuing highly excited—Gammon gazing at him with unfeigned amazement. The paper which he held in his hand rustled, and he was obliged to lay it down on his lap, lest Mr. Aubrey should notice this evidence of his agitation.

"I am guilty of great weakness, sir," said at length Mr. Aubrey—his excitement only a little abated. He stood erect, and spoke with stern precision; "but you, perhaps unconsciously, provoked the display of it. Sir, I am ruined; I am a beggar: we are all ruined; we are all beggars: it is the ordering of God, and I bow to it. But do you presume, sir, to think that at last my HONOR is in danger? and consider it necessary, as if you were

warning one whom you saw about to become a criminal, to expatiate on the nature of the meditated act by which I am to disgrace myself and my family?" Here *that family* seemed suddenly standing around him: his lip quivered; his eyes filled; he ceased speaking; and trembled with excessive emotion.

"This is a sally equally unexpected, Mr. Aubrey, and, permit me to add, unwarrantable," said Gammon, calmly, having recovered his self-possession. "You have entirely misunderstood me, sir; or I have ill-explained myself. Your evident emotion and distress touch my very soul, Mr. Aubrey." Gammon's voice trembled. "Suffer me to tell you—unmoved by your violent rebuke—that I feel an inexpressible respect and admiration for you, and am miserable at the thought of one word of mine having occasioned you an instant's uneasiness." When a generous nature is thus treated, it is apt to feel an excessive contrition for any fault or extravagance which it may have committed—an excessive appreciation of the pain which it may have inflicted on another. Thus it was, that by the time Gammon had done speaking, Mr. Aubrey felt ashamed and mortified at himself, and conceived an admiration of the dignified forbearance of Gammon, which quickly heightened into respect for his general character as it appeared to Aubrey, and fervent gratitude for the disposition which he had evinced, from first to last, so disinterestedly to serve a ruined man. He seemed now to view all that Gammon had proposed in quite a new light—through quite another medium; and his excited *feelings* were in some danger of disturbing his *judgment*.

"As I am a man of business, Mr. Aubrey," said Gammon, shortly afterwards, with a very captivating smile—how frank and forgiving seeming his temper, to Aubrey!—"and this is a *place* for business, shall we resume our conversation? With reference to the first ten thousand pounds, it can be a matter of future arrangement as to the mode of securing its payment; and as for the remaining ten thousand, if I were not afraid of rendering myself personally liable to Mr. Titmouse for neglecting my professional duty to him, I should be content with your verbal promise—your mere word of honor, to pay it, as and when you conveniently could. But in justice to myself, I really must take a *show* of security from you. Say, for instance, two promissory notes, for £5,000 each, payable to Mr. Titmouse. You may really regard them as matters of mere form; for, when you shall have given

them to me, they will be deposited *there*," (pointing to an iron safe,) "and not again be heard of until you may have thought proper to inquire for them. The influence which I happen to have obtained over Mr. Titmouse, you may rely upon my exercising with some energy, if ever he should be disposed to press you for payment of either of the instruments I have mentioned. I tell you candidly that they must be *negotiable* in point of form; but I assure you, as sincerely, that I will not permit them to be negotiated. Now, may I venture to hope that we understand each other?" added Gammon, with a cheerful air; "and that this arrangement, if I shall be only able to carry it into effect, is a sufficient evidence of my desire to serve you, and will relieve you from an immense load of anxiety and liability?"

"An immense—a crushing load, indeed, sir, if Providence shall in any manner (to me at present undiscoverable) enable me to perform *my* part of the arrangement, and if *you* have but power to carry your views into effect," replied Mr. Aubrey, sighing heavily, but with a look of gratitude.

"Leave that to *me*, Mr. Aubrey; I will undertake to do it; I will move heaven and earth to do it—and the more eagerly, that I may thereby hope to establish a kind of set-off against the misery and loss which my professional exertions have unfortunately contributed to occasion you—and your honored family!"

"I feel deeply sensible of your very great—your unexpected kindness, Mr. Gammon; but still, the arrangement suggested is one which occasions me dreadful anxiety as to my being ever able to carry out *my* part of it."

"Never, never despair, Mr. Aubrey! Heaven helps those who help themselves; and I really imagine I see your powerful energies already beginning to surmount your prodigious difficulties! When you shall have slept over the matter, you will feel the full relief which this proposed arrangement is so calculated to afford your spirits. Of course, too, you will lose no time in communicating to Messrs. Runninton the nature of the proposal. I can predict that they will be not a little disposed to urge upon you its completion. I cannot, however, help once more reminding you, in justice to myself, Mr. Aubrey, that it is *but* a proposition, in making which, I hope it will not prove that I have been carried away by my feelings much further than my duty to my client or his interests "——

Mr. Aubrey was afraid to hear him finish the sentence, lest the faint dawn of hope should disappear from the dark and rough surface of the sea of trouble upon which he was being tossed. "I *will* consult, as you suggest, sir, my experienced and honorable professional advisers; and am strongly inclined to believe that they will feel as you predict. I am of course bound to defer to *them*,"——

"Oh, certainly! certainly! I am very strict in the observance of professional etiquette, Mr. Aubrey, I assure you; and should not think of going on with this arrangement, except with their concurrence, acting on your behalf. One thing I have to beg, Mr. Aubrey, that either you or they will communicate the result of your deliberations to *me*, personally. I am very desirous that the suggested compromise should be broken to my partners and our client by *me*.—By the way, if you will favor me with your address, I will make a point of calling at your house, either late in the evening or early in the morning."

[As if Messrs. Quirk, Gammon, and Snap had not kept eagle eyes upon his every movement since quitting Yatton, with a view to any sudden application for a writ of *Ne Exceas*, which a suspicious approach of his towards the sea-coast might render necessary!]

"I am infinitely obliged to you, sir—but it would be far more convenient for both of us, if you could drop me a line, or favor me with a call at Mr. Weasel's, in Pomegranate Court in the Temple."

Gammon blushed scarlet: but for this accidental mention of the name of Mr. Weasel, who was one of the pleaders occasionally employed by Messrs. Quirk, Gammon, and Snap in heavy matters—in all probability Mr. Aubrey might, within a day or two's time, have had to exercise his faculties, if so disposed, upon a declaration of Trespass for Mesne Profits, in a cause of "TITMOUSE v. AUBREY!"

"As you choose, Mr. Aubrey," replied Gammon, with difficulty concealing his feelings of pique and disappointment at losing the opportunity of a *personal introduction by Mr. Aubrey to his family*. After a few words of general conversation, Gammon inquiring how Mr. Aubrey liked his new profession, and assuring him, in an emphatic manner, that he might rely upon being supported, from the moment of his being called to the bar, by almost all the common-law business of the firm of "Quirk, Gammon, and

Snap"—they parted. It had been to Mr. Aubrey a memorable interview—and to Gammon a somewhat arduous affair, taxing to an unusual extent his great powers of self-command, and of dissimulation. As soon as he was left alone, his thoughts instantly recurred to Aubrey's singular burst of hauteur and indignation. Gammon had a stinging sense of submission to superior energy—and felt indignant with himself for not having at the moment resented it. Setting aside this source of exquisite irritation to the feelings of a proud man, he felt a depressing consciousness that he had not met with his usual success in his recent encounter with Mr. Aubrey; who had been throughout cautious, watchful, and courteously *distrustful*. He had afforded occasional glimpses of the unapproachable pride of his nature—and Gammon had crouched! Was there anything in their interview—thought he, walking thoughtfully to and fro in his room—which, when Aubrey came to reflect upon—for instance—had Gammon disclosed too much concerning the extent of his influence over Titmouse? His cheek slightly flushed; a sigh of fatigue and excitement escaped him; and gathering together his papers, he began to prepare for quitting the office for the day.

Mr. Aubrey left Messrs. Quirk, Gammon, and Snap's office with feelings of mingled exhaustion and despondency. As he walked down Saffron Hill—a dismal neighborhood!—what scenes did he witness! Poverty and profligacy revelling, in all their wild and revolting excesses! *Here*, was an Irishman, half-stupefied with liquor and bathed in blood, having just been rescued from a savage fight in a low underground public-house cellar, by his squalid wife, with dishevelled hair and a filthy infant in her arms—who walked beside him cursing, pinching, and striking him—reproaching him with the knowledge that she and her seven children were lying starving at home. Presently he stumbled; she with her wretched infant falling down with him; and she lay striking, and scratching, and abusing him till some one interfered.

There, was a woman—as it were a bloated mass of filth steeped in gin—standing with a drunken smile at an old-clothes stall, pawning a dirty little shirt, which she had a few minutes before stripped from the back of one of her four half-naked children!

A little farther on, was a noisy excited crowd round two men carrying a shutter, on which was strapped the bleeding body (a handkerchief spread over the face) of a poor bricklayer, who had fallen a few minutes before

from the top of some scaffolding in the neighborhood, and was at that instant in the agonies of death—leaving behind him a wife and nine children, for whom the poor fellow had long slaved from morning to night, and who were now ignorant of the frightful fate which had befallen him, and that they were left utterly destitute.

There, was a skinny little terrified urchin, about eight years old, with nothing to conceal his dirty, half-starved body, but a tattered man's coat, pinned round him; dying with hunger, he had stolen a villanous-looking bare bone—scarce a halfpenny worth of meat upon it; and a brawny constable, his knuckles fiercely dug into the poor little offender's neck, (with his tight grasp,) was leading him off, followed by his shrieking mother, to the police-office, whence he would be committed to Newgate; and thence, after two or three months' imprisonment, and being flogged—miserable little wretch!—by the common hangman, (who had hanged the child's father some six months before,) he would be discharged—to return probably several times and undergo a similar process; then to be transported; and finally be hanged, as had been his father before him.

These startling scenes passed before Mr. Aubrey, in the course of a five minutes' walk down Saffron Hill—during which period he now and then paused, and gazed around him with feelings of pity, of astonishment, of disgust, which presently blended and deepened into a dark sense of horror. These scenes, to some so fatally familiar—*fatally*, I mean, on account of the INDIFFERENCE which familiarity is apt to induce—to Mr. Aubrey, had on them all the frightful glare of *novelty*. He had never witnessed anything of the sort before; and had no notion of its existence. The people residing on each side of the Hill, however, seemed accustomed to such scenes; which they appeared to view with the same dreadful indifference with which a *lamb led to the slaughter* is beheld by one who has spent his life next door to the slaughter-house. The Jew clothesman, before whose shop-window, arrested by the horrifying spectacle of the bleeding wretch borne along to the hospital—Mr. Aubrey had remained standing for a second or two—took the opportunity to assail him, with insolent and pertinacious importunities to purchase some articles of clothing! A fat baker, and a greasy eating-house keeper, stood each at his door, one with folded arms, the other with his hands thrust into his pockets—both of them gazing with a grin at two curs fighting in the middle of the street—oh, how utterly insensible to the

ravenous want around them! The pallid spectres haunting the gin-shop—a large splendid building at the corner—gazed with sunken lack-lustre eye, and drunken apathy, at the shattered man who was being borne by.

Ah, God! what scenes were these! And of what other hidden wretchedness and horror did they not indicate the existence! "Gracious mercy!" thought Aubrey, "what a world have I been living in! And this dismal aspect of it exposed to me just when I have lost all power of relieving its wretchedness!"—here a thrill of anguish passed through his heart—"but woe, woe is me! if at this moment I had a thousand times ten thousand a-year, how far would it go amid the scenes similar to this, *abounding* in this one city? Oh God! what unutterable horror must be in store for those who, intrusted by Thee with an overflowing abundance, disregard the misery around them in guilty selfishness and indolence, or"—he shuddered—"expend it in sensuality and profligacy! Will DIVES become sensible of his misconduct, only when he shall have entered upon his next stage of existence, and of punishment? Oh, merciful Creator! how is my heart wrung by the sight of horrors such as these? Awful and mysterious Author of our existence, *Father of the spirits of all flesh*, are these states of being which Thou hast ordained? Are these Thy children? Are these my fellow-creatures? Oh, help me! help me! my weak heart faints; my clouded understanding is confounded! I cannot—insect that I am!—discern the scope and end of Thy economy, of Thy dread government of the world; yet blessed be the name of my God!—I KNOW that *thou reignest! though clouds and darkness are around thee! righteousness and judgment are the habitation of thy throne! with righteousness shalt thou judge the world, AND THE PEOPLE WITH EQUITY!*"

Like as the lesser light is lost in the greater, so, in Aubrey's case, was the lesser misery he suffered, merged in his sense of the greater misery he witnessed. What, after all, was his position, in comparison with that of those now before and around him? What cause of thankfulness had he not, for the merciful mildness of even the dispensations of Providence towards him? Such were his thoughts and feelings, as he stood gazing at the objects which had called them forth, when his eye lit on the figure of Mr. Gammon approaching him. He was threading his way, apparently lost in thought, through the scenes which had so powerfully affected Mr. Aubrey; who

stood eying him with a sort of unconscious intensity, as if secure from his observation, till he was actually addressed by him.

"Mr. Aubrey!" exclaimed Gammon, courteously saluting him. Each took off his hat to the other. Though Aubrey hardly intended it, he found himself engaged in conversation with Gammon, who, in a remarkably feeling tone, and with a happy flattering deference of manner, intimated that he could guess the subject of Mr. Aubrey's thoughts, namely, the absorbing matters which they had been discussing together.

"No, it is not so," said Mr. Aubrey, with a sigh, as he walked on—Gammon keeping easily beside him—"I have been profoundly affected by scenes which I have witnessed in the immediate neighborhood of your office, since quitting it; what misery! what horror!"

"Ah, Mr. Aubrey!"—exclaimed Gammon, echoing the sigh of his companion, as they slowly ascended Holborn Hill, separate, but side by side—"what a checkered scene is life! Guilt and innocence—happiness and misery—wealth and poverty—disease and health—wisdom and folly—sensuality and refinement—piety and irreligion—how strangely intermingled we behold them, wherever we look on life—and how difficult, to the philosopher, to detect the principle"——

"Difficult?—Impossible! Impossible! God alone can do so!"—exclaimed Mr. Aubrey, thoughtfully.

"Comparison, I have often thought," said Gammon, after a pause—"of one's own troubles with the greater misfortunes endured by others, is beneficial or prejudicial—consolatory or disheartening—according as the mind of him who makes the comparison is well or ill regulated—possessed or destitute, of moral and religious principle!"

"It is so, indeed," said Mr. Aubrey. Though not particularly inclined to enter into or prolong conversation, he was pleased with the tone of his companion's remark.

"As for me," proceeded Gammon, with a slight sigh—"the absorbing anxieties of professional life; and, too, in a line of professional life which, infinitely to my distaste, brings me constantly into scenes such as you have been observing, have contributed to render me, I fear, less sensible of their real character; yet can I vividly conceive the effect they must, when first

seen, produce upon the mind and heart of a compassionate, an observant, a reflecting man, Mr. Aubrey!"

Gammon looked a gentleman; his address was easy and insinuating, full of delicate deference, without the slightest tendency to cant or sycophancy; his countenance was an intellectual and expressive one; his conversation that of an educated and thinking man. He was striving his utmost to produce a favorable impression on Mr. Aubrey; and, as is very little to be wondered at, he succeeded. By the time that they had got about twenty yards beyond Fetter Lane, they might have been seen walking together, arm-in-arm. As they approached Oxford Street, they suddenly encountered Mr. Runnington.

"God bless me, Mr. Aubrey!" said he, surprisedly—"and Mr. Gammon? How do you do, Mr. Gammon?"—he continued, taking off his hat with a little formality, and speaking in a corresponding tone; but he was encountered by Gammon with greatly superior ease and distance, and was not a little nettled at it; for he was so palpably foiled with his own weapons.

"Well—I shall now resign you to your legitimate adviser, Mr. Aubrey," said Gammon, with a smile; then, addressing Mr. Runnington, in whose countenance pique and pride were abundantly visible—"Mr. Aubrey has favored me with a call to-day, and we have had some little discussion on a matter which he will explain to you. As for me, Mr. Aubrey, I ought to have turned off two streets ago—so I wish you good-evening."

Mr. Aubrey and he shook hands as they exchanged adieus: Mr. Runnington and he simply raised each his hat, and bowed to the other with cold politeness. As Mr. Runnington and Mr. Aubrey walked westward together, the former, who was a very cautious man, did not think fit to express the uneasiness he felt at Mr. Aubrey's having entered into anything like confidential intercourse with one whom he believed to be so subtle and dangerous a person as Mr. Gammon. He was, however, very greatly surprised when he came to hear of the proposal which had been made by Mr. Gammon, concerning the mesne profits; which, he said, was so unaccountably reasonable and liberal, considering the parties by whom it was made, that he feared Mr. Aubrey must be lying under some mistake. He would, however, turn it anxiously over in his mind, and consult with his partners; and, in short, do whatever they conceived best for Mr. Aubrey—that he might depend upon. "And, in the mean time, my dear sir," added Mr.

Runnington, with a smile designed to disguise considerable anxiety, "it may be as well for you not to have any further personal communication with these parties, whom you do not know as well as we do; but let *us* negotiate with them in everything, even the very least!" Thus they parted; and Mr. Aubrey entered Vivian Street with a considerably lighter heart than he had ever before carried into it. A vivid recollection of the scenes which he had witnessed at Saffron Hill, caused him exquisitely to appreciate the comforts of his little home, and to return the welcomes and caresses which he received, with a kind of trembling tenderness and energy. As he folded his still blooming but somewhat anxious wife fondly to his bosom, kissed his high-spirited and lovely sister, and fondled the prattling innocents who came clambering up upon his lap, he forgot, for a while, the difficulties but remembered the *lessons*, of the day.

We must, however, now return to Yatton, where some matters had transpired which are not unworthy of being recorded. Though Mr. Yahoo paid rather anxious court to Mr. Gammon, who was very far too much for him in every way, 'twas plain that he dreaded and disliked, as much as he was despised by, that gentleman. Mr. Gammon had easily extracted from Titmouse evidence that Yahoo was endeavoring, from time to time, artfully to set him against his protector, Mr. Gammon. This was *something*; but more than this—Yahoo, a reckless rollicking villain, was obtaining a growing ascendancy over Titmouse, whom he was rapidly initiating into all kinds of vile habits and practices; and, in short, completely corrupting him. But, above all, Gammon ascertained that Yahoo had already commenced, with great success, his experiments upon the purse of Titmouse. Before they had been a week at Yatton, down came a splendid billiard-table with its appendages from London, accompanied by a man to fix it—as he did—in the library, which he quickly denuded of all traces of its former character; and here Yahoo, Titmouse, and Fitz-Snooks would pass a good deal of their time. Then they would have tables and chairs, with cards, cigars, and brandy and water, placed upon the beautiful "soft, smooth-shaven lawn," and sit there playing *écarté*, at once pleasantly soothed and stimulated by their cigars and brandy and water, for half a day together. Then Yahoo got up frequent excursions to Grilston, and even to York; where, together with his two companions, he had "great sport," as the newspapers began to intimate with growing frequency and distinctness. Actuated by that execrable licentiousness with reference to the female sex, by which he was

peculiarly distinguished, and of which he boasted, he had got into several curious adventures with farmers' girls, and others in the vicinity of Yatton, and even among the female members of the establishment at the Hall; in which latter quarter Fitz-Snooks and Titmouse began to imitate his example. Mr. Gammon had conceived a horrid loathing and disgust for the miscreant leader into these enormities; and, but for certain consequences, would have despatched him with as much indifference as he would have laid arsenic in the way of a bold voracious rat, or killed a snake. As it was, he secretly caused him to experience, on one or two occasions, the effects of his good-will towards him. Yahoo had offered certain atrocious indignities to the sweetheart of a strapping young farmer; whose furious complaints coming to Mr. Gammon's ears, that gentleman, under a pledge of secrecy, gave him two guineas to be on the look-out for Yahoo, and give him the best taste he could of a pair of Yorkshire fists. A day or two afterwards, the Satyr fell in with his unsuspected enemy. Yahoo was a strongly-built man, and an excellent bruiser; but was at first disposed to shirk the fight, on glancing at the prodigious proportions of Hazel, and the fury flaming in his eyes. The instant, however, that he saw the fighting attitude into which poor Hazel had thrown himself, Yahoo smiled, stripped, and set to. I am sorry to say that it was a good while before Hazel could get one single blow at his accomplished opponent; whom, however, he at length began to wear out. Then he gave the Yahoo a miserable pommelling, to be sure; and finished by knocking out five of his front teeth, viz. three in the upper, and two in the under jaw—beautifully white and regular they certainly had been; and the loss of them caused him great affliction on the score of his appearance, and also, not a little interfered with the process of cigar-smoking. It would, besides, have debarred him, had he been so disposed, from enlisting as a soldier, inasmuch as he could not bite off the end of his cartridge: wherefore, it would seem, that Hazel had committed the offence of *Mayhem*.^[17] Mr. Gammon condoled heartily with Mr. Yahoo, on hearing of the brutal attack which had been made upon him; and as the assault had not been committed in the presence of a witness, strongly recommended him to bring an action of trespass *vi et armis* against Hazel, which Gammon undertook to conduct to—a nonsuit. While they were conversing in this friendly way together, it suddenly occurred to Gammon that there was another service which he could render to Mr. Yahoo, and with equally strict observance of the injunction, *not to let his left hand know*

what his right hand did; for he loved the character of a secret benefactor. So he wrote up a letter to Snap, (whom he knew to have been treated very insolently by Yahoo,) desiring him to go to two or three Jew bill-brokers and money-lenders, and ascertain whether they had any paper by them with the name of "Yahoo" upon it:—and in the event of such being discovered, he was to act in the manner pointed out by Gammon. Off went Snap like a shot, on receiving this letter; and the very first gentleman he applied to, viz. a Mr. SUCK'EM DRY, proved to be possessed of an acceptance of Yahoo's for £200, for which Dry had given only twenty-five pounds, on speculation. He readily yielded to Snap's offer, to give him a shy at Mr. Yahoo *gratis*—and put the document into the hands of Snap; who forthwith delivered it, confidentially, to Swinddle Shark, gent., one &c., a little Jew attorney in Chancery Lane, into whose office the dirty work of Quirk, Gammon, and Snap was swept—in cases where they did not choose to appear. I wish the mutilated Yahoo could have seen the mouthful of glittering teeth that were displayed by the hungry Jew, on receiving the above commission. His duties, though of a painful, were of a brief and simple description. 'Twas a plain case of *Indorsee v. Acceptor*. The affidavit of debt was sworn the same afternoon; and within an hour's time afterwards, a thin slip of paper was delivered into the hands of the under-sheriff of Yorkshire, commanding him to take the body^[18] of Pimp Yahoo, if he should be found in his bailiwick, and him safely keep—out of harm's way—to enable him to pay £200 *debt* to Suck'em Dry, and £24, 6s. 10d. *costs* to Swindle Shark. Down went that little "infernal machine" to Yorkshire by that night's post.

Nothing could exceed the astonishment and concern with which Mr. Gammon, the evening but one afterwards, on returning to the Hall from a ride to Grilston, heard Titmouse and Fitz-Snooks—deserted beings!—tell him how, an hour before, two big vulgar fellows, one of them with a long slip of paper in his hands, had called at the Hall, asked for the innocent unsuspecting Yahoo, just as he had made an admirable *coup*—and insisted on his accompanying them to the house of one of the aforesaid bailiffs, and then on to York Castle. They had brought a tax-cart with them for his convenience; and into it, between his two new friends, was forced to get the astounded Yahoo—smoking, as well as he could, a cigar, with some score or two of which he had filled all his pockets, and swearing oaths enough to have lasted the whole neighborhood for a fortnight at least. Mr. Gammon was quite shocked at the indignity which had been perpetrated, and asked

why the villains had not been kept till he could have been sent for. Then, leaving the melancholy Titmouse and Fitz-Snooks to themselves for a little while, he took a solitary walk in the elm avenue, where—grief has different modes of expressing itself—he relieved his excited feelings by reiterated little bursts of gentle laughter. As soon as the *York True Blue* had, among other intimations of fashionable movements, informed the public that "*The Hon. Pimp Yahoo*" had quitted Yatton Hall for York Castle, where he intended to remain and receive a large party of friends—it was gratifying to see how soon, and in what force, they began to muster and rally round him. "*Detainers*"^[19]—so that species of visiting cards is called—came fluttering in like snow; and in short, there was no end of the messages of civility and congratulation which he received from those whom, in the season of his prosperity, he had obliged with his valuable countenance and custom.

Ah me, poor Yahoo, completely done! Oft is it, in this infernal world of ours, that the best concerted schemes are thus suddenly defeated by the envious and capricious fates! Thus were thy arms suddenly held back from behind, just as they were encircling as pretty, plump a pigeon as ever nestled in them with pert and playful confidence, to be plucked! Alas, alas! And didst thou behold the danger to which it was exposed, as it fluttered upward unconsciously into the region where thine affectionate eye detected the keen hawk in deadly poise? Ah me! Oh dear! What shall I do? What can I say? How vent my grief for the Prematurely Caged?

Poor Titmouse was very dull for some little time after this sudden abduction of this bold and brilliant spirit, and spoke of bringing an action, at the suggestion of Fitz-Snooks, against the miscreant who had dared to set the law in motion at Yatton, under the very nose of its lord and master. As soon, however, as Gammon intimated to him that all those who had lent Yahoo money, might now rely upon that gentleman's honor, and whistle back their cash at their leisure, Titmouse burst out into a great rage; telling Gammon that he, Titmouse, had only a day or two before lent Yahoo £150!! and that he was a "cursed scamp," who had known, when he borrowed, that he could not repay; and a Detainer, at the suit of "Tittlebat Titmouse, Esq.," was one of the very earliest that found its way into the sheriff's office; this new creditor becoming one of the very bitterest and most relentless against the fallen Yahoo, except, perhaps, Mr. Fitz-Snooks. That gentleman having lent the amiable Yahoo no less a sum than thirteen hundred pounds, remained

easy all the while, under the impression that certain precious documents called "I.O.U.'s" of the said Yahoo were as good as cash. He was horribly dismayed on discovering that it was otherwise; that *he* was not to be paid before all other creditors, and immediately; so he also sent a very special message in the shape of a Detainer, backed by a great number of curses.

In process of time Mr. Yahoo bethought himself of getting "*white-washed*;" but when he came to be inspected, it was considered that he was not properly *seasoned*; so the operation was delayed for two years, under a very arbitrary statute, which enacted, "that if it should appear that the said prisoner had contracted any of his debts *fraudulently*, or by means of *false pretences*, or *without having had any reasonable or probable expectation, at the time when contracted, of paying the same*," &c. &c. &c., "or should be indebted for damages recovered in any *action for criminal conversation*, or *seduction*, or for *malicious injuries*, &c. &c., such prisoner should be discharged as to such debts and damages, so soon only as he should have been in custody at the suit of such creditors for a period or periods not exceeding two years." Such is the odious restraint upon the liberty of the subject, which at this day, in the nineteenth century, is suffered to disgrace the statute law of England; for, in order to put *other Yahoos* upon their guard against the cruel and iniquitous designs upon them, I here inform them that the laws under which Mr. Yahoo suffered his two years' incarceration, (every one of his debts, &c., coming under one or other of the descriptions above mentioned,) are, *proh pudor!* re-enacted and at this moment in force, and in augmented stringency,^[20] as several most respectable gentlemen, if you could only get access to them, would tell you.

Yahoo having been thus adroitly disposed of, Mr. Gammon had the gratification of finding that mischievous simpleton, Fitz-Snooks, very soon afterwards take his departure. He pined for the pleasures of the town, which he had money enough to enjoy for about three years longer, with economy; after which he might go abroad, or to *the dogs*—wherever they were to be found. 'Twas indeed monstrous dull at Yatton; the game which Yahoo had given him a taste for was so very *strictly preserved* there! and the birds so uncommon shy and wild, and strong on the wing! Besides, Gammon's presence was a terrible pressure upon him; overawing and benumbing him, in spite of several attempts which he had made, when charged with the requisite quantity of wine, to exhibit an impertinent familiarity, or even

defiance. As soon as poor Titmouse had bade Fitz-Snooks good-by, shaken hands with him, and lost sight of him—Titmouse was at Yatton, *alone with Gammon*, and felt as if a spell were upon him.—He was completely cowed and prostrate. Yet Gammon laid himself out to the very uttermost, to please him, and reassure his drooping spirits. Titmouse had got into his head that the mysterious and dreadful Gammon had, in some deep way or other, been at the bottom of Yahoo's abduction, and of the disappearance of Fitz-Snooks, and would, by-and-by, do as much for *him*! He had no feeling of *ownership* of Yatton; but of being, as it were, only tenant-at-will thereof to Mr. Gammon. Whenever he tried to reassure himself, by repeating that it did not signify—for Yatton was his own—and he might do as he liked; his feelings might be compared to a balloon, which, with the eyes of eager and anxious thousands upon it, yet cannot get inflated sufficiently to rise one inch from the ground. How was it? Mr. Gammon's manner towards him was most uncommonly respectful; what else could he wish for? Yet he would have given a thousand pounds to that gentleman to take himself off, and never show his nose again at Yatton! It annoyed him, too, more than he could express, to perceive the deference and respect which every one at the Hall manifested towards Mr. Gammon. Titmouse would sometimes stamp his foot, when alone, with childish fury on the ground, when he thought of it. When at dinner, and sitting together afterwards, Gammon would rack his invention for jokes and anecdotes to amuse Titmouse—who would certainly give a kind of laugh; exclaim, "Bravo! Ha, ha! 'Pon my life!—capital!—By Jove! Most uncommon good! you don't say so?"—and go on, drinking glass after glass of wine, or brandy and water, and smoking cigar after cigar, till he felt fuddled and sick, in which condition he would retire to bed, and leave Gammon, clear and serene in head and temper, to his meditations. When, at length, he broached the subject of *their bill*—a frightful amount it was; of the moneys advanced by Mr. Quirk, for his support for eight or nine months on a liberal scale, and which mounted up to a sum infinitely larger than could have been supposed; and lastly, of the bond for ten thousand pounds, as the just reward to the firm for their long-continued, most anxious, and successful exertions on their client's behalf—Titmouse mustered up all his resolution, as for a last desperate struggle; swore they were robbing him; and added, with a furious snap of the fingers, "they had better take the estate themselves—allow him a pound a-week, and send him

back to Tag-rag's." Then he burst into tears, and cried like a child, long and bitterly.

"Well, sir," said Gammon, after remaining silent for some time, looking at Titmouse calmly, but with an expression of face which frightened him out of his wits, "if this is to be really the way in which I am to be treated by you—I, the only *real disinterested* friend you have in the world, (as you have had hundreds of opportunities of ascertaining;) if my advice is to be spurned, and my motives suspected; if your first and deliberate engagements to our firm are to be wantonly broken"——

"Ah, but, 'pon my soul, I was humbugged into making them," said Titmouse, passionately.

"Why, you little miscreant!" exclaimed Gammon, starting up in his chair, and gazing at him as if he would have scorched him with his eye, "Do you DARE to say so? If you have no gratitude—have you lost your *memory*? What were you when I dug you out of your filthy hole at Closet Court? Did you not repeatedly go down on your knees to us? Did you not promise, a thousand times, to do infinitely more than you are now called upon to do? And is this, you insolent—despicable little insect!—is *this* the return you make us for putting you, a beggar—and very nearly too, an idiot"——

"You're most uncommon polite," said Titmouse, suddenly and bitterly.

"Silence, sir! I am in no humor for trifling!" interrupted Gammon, sternly. "I say, is *this* the return you think of making us; not only to insult us, but refuse to pay money actually advanced by us to save you from starvation—money, and days and nights, and weeks and months, and *many* months of intense anxiety, expended in discovering how to put you in possession of a splendid fortune?—Poh! you miserable little trifler!—why should I trouble myself thus? Remember—remember, Tittlebat Titmouse," continued Gammon, in a low tone, and extending towards him threateningly his thin forefinger, "I who made you, will in one day—one single day—unmake you—will blow you away like a bit of froth; you shall never be seen, or heard of, or thought of, except by some small draper whose unhappy shopman you may be!"

"Ah!—'pon my life! Dare say you think I'm uncommon frightened! Ah, ha! Monstrous—particular good!" said Titmouse, desperately.

Gammon perceived that he trembled in every limb; and the smile which he tried to throw into his face was so wretched, that, had you seen him at that moment, and considered his position, much and justly as you now despise him, you must have pitied him. "You're always now going on in this way!—It's all so very likely!" continued he. "Why, 'pon my soul, am not I to be A LORD one of these days? Can you help that? Can you send a lord behind a draper's counter? 'Pon my soul, what do you say to that? I like that, uncommon"——

"What do I say?" replied Gammon, calmly, "why, that I've a great mind to say and do something that would make you—would dispose you to—jump head foremost into the first sewer you came near!"

Titmouse's heart was lying fluttering at his throat.

"Tittlebat, Tittlebat!" continued Gammon, dropping his voice, and speaking in a very kind and earnest manner, "if you did but know the extent to which an accident has placed you in my power! at this moment in my power! Really I almost tremble, myself, to think of it!" He rose, brought his chamber-candlestick out of the hall—lit it—bade Titmouse good-night, sadly but sternly—and shook him by the hand—"I may rid you of my presence to-morrow morning, Mr. Titmouse. I shall leave you to *try to enjoy Yatton*! May you find a *truer*—a more powerful friend than you will have lost in me!" Titmouse never shrank more helplessly under the eye of Mr. Gammon than he did at that moment.

"You—you—*won't* stop and smoke another cigar with a poor devil, will you, Mr. Gammon?" he inquired faintly. "It's somehow—most uncommon lonely in this queer, large, old-fashioned"——

"No, sir," replied Gammon, peremptorily—and withdrew, leaving Titmouse in a state of mingled alarm and anger—the former, however, predominating.

"By jingo!" he at length exclaimed with a heavy sigh, after a revery of about three minutes, gulping down the remainder of his brandy and water, "If that same gent, Mr. Gammon, a'n't the—the—devil—he's the very best imitation of him that ever I heard tell of!" Here he glanced furtively round the room; then he got a little flustered; rang his bell quickly for his valet, and, followed by him, retired to his dressing-room.

The next morning the storm had entirely blown over. When they met at breakfast, Titmouse, as Gammon had known would be the case, was all submission and respect; in fact, it was evident that he was thoroughly frightened by what had fallen from Gammon, but infinitely more so by the *manner* in which he had spoken over-night. Gammon, however, preserved for some little time the haughty air with which he had met Titmouse; but a few words of the latter, expressing deep regret for what he had said through having drunk too much—poor little soul!—over-night, and his unqualifyingly submitting to every one of the requisitions which had been insisted on by Mr. Gammon—quickly dispersed the cloud settled on that gentleman's brow, when he entered the breakfast-room.

"Now, my dear Mr. Titmouse," said he, very graciously, "you show yourself the gentleman I always took you for—and I forget, forever, all that passed between us, so unpleasantly, last night. I am sure it will never be so again: for now we *entirely* understand each other?"

"Oh yes—'pon my life—quite entirely!" replied Titmouse, meekly, with a crestfallen air.

Soon after breakfast they adjourned, at Gammon's request, to the billiard-room; where, though that gentleman knew how to handle a cue, and Titmouse did not, he expressed great admiration for Titmouse's play, and felt great interest in being shown by him how to get a ball, now and then, into each pocket at one stroke, a masterly manœuvre in which Titmouse succeeded two or three times, and Gammon not once, during their hour's play. Upon that occasion had occurred the conversation in which Titmouse made the suggestion we have already heard of, viz. that Gammon should immediately clap the screw upon Aubrey, with a view to squeezing out of him at least sufficient to pay the £10,000 bond, and their bill of costs, immediately; and Titmouse urged Gammon at once to send Aubrey packing after Yahoo to York Castle, as an inducement to an early settlement of the remainder. Gammon, however, assured Mr. Titmouse, that in all probability Mr. Aubrey had not a couple of thousand pounds in the world.

"Well, that will do to begin with," said Titmouse, "and the rest *must* come, sooner or later—eh, by Jove?"

"Leave him to me, my dear Titmouse, or rather to Mr. Quirk—who'll *wring* him before he's done with him, I warrant you! But, in the mean while, if I

work day and night, I will relieve you from this claim of Mr. Quirk: for, in fact, I have little or no *real* interest in the matter."

"You'll take a slapping slice out of the bond, eh? Aha, Mr. Gammon!—But what were you saying you'd do for me?"

"I repeat, that I am your only disinterested friend, Mr. Titmouse; I shall never see a hundred pounds of what is going into Mr. Quirk's hands; who, I must say, however," added Gammon, with sudden caution, "has richly earned what he's going to get—but—to say the truth, by following my directions throughout. I was saying, however, that I had hit upon a scheme for ridding you of your difficulties. Though you have only just stepped into your property, and consequently people are very shy of advancing money on mortgage, if you'll only keep quiet, and leave the affair entirely to me, I will undertake to get you a sum of possibly twenty thousand pounds."

"My eyes!" exclaimed Titmouse, excitedly; quickly, however, adding with a sad air—"but then, what a lot of it will go to old Quirk?"

"He *is* rather a keen and hard—ahem! I own; but"——

"Pon my life, couldn't we *do* the old gent?"

"On no consideration, Mr. Titmouse; it would be a fatal step for you—and indeed for me."

"What! and can *he* do anything, too? I thought it was only you."—The little fool had brought a glimpse of color into Gammon's cheek—but Titmouse's volatility quickly relieved his tripping Prospero. "By the way—'pon my life—sha'n't I have to pay it all back again! There's a go! I hadn't thought of that."

"I shall first try to get it out of Mr. Aubrey," said Gammon, "and then out of another friend of yours. In the mean while we must not drop the Tag-rags just yet." They then got into a long and confidential conversation together; in the course of which, Titmouse happened to pop out a little secret of his, which till then he had managed to keep from Gammon, and which occasioned that gentleman a great and sudden inward confusion—one which it was odd that so keen an observer as Titmouse did not perceive indications of in the countenance of Gammon; viz. his—Titmouse's—fervent and disinterested love for Miss Aubrey. While he was rattling on with eager volubility upon this topic, Gammon, after casting about a little in

his mind, as to how he should deal with this interesting discovery, resolved for the present to humor the notion, and got out of Titmouse a full and particular account of his original "*smite*," as that gentleman called his passion for Miss Aubrey—the indelible impression she had made on his heart—the letter which he had addressed to her—[here Gammon's vivid fancy portrayed to him the sort of composition which must have reached Miss Aubrey, and he nearly burst into a gentle fit of laughter]—and, with a strange candor, or rather, to do him justice, with that frank simplicity which is characteristic of noble natures—he at length described his unlucky encounter with Miss Aubrey and her maid, in the winter; whereat Gammon felt a sort of sudden inward spasm, which excited a certain twinging sensation in his right toe—but it passed away—'twas after all, only a little juvenile indiscretion of Titmouse's; but Gammon, with rather a serious air, assured Titmouse that he had probably greatly endangered his prospect with Miss Aubrey.

"Eh? Why, devil take it! a'n't I going to offer to her, though she's got nothing?" interrupted Titmouse, with astonishment.

"True!—Ah, I had lost sight of that. Well, if you will pledge yourself to address no more letters to her, nor take any steps to see her, without first communicating with me—I think I can promise—hem!" he looked archly at Titmouse.

"She's a most *uncommon* lovely gal"—he simpered sheepishly. The fact was that Gammon had conceived quite another scheme for Titmouse—wholly inconsistent with his pure, ardent, and enlightened attachment to Miss Aubrey; 'twas undoubtedly rather a bold and ambitious one, but Gammon did not despair; for he had that confidence in himself, and in his knowledge of human nature, which always supported him in the most arduous and apparently hopeless undertakings.

There was a visible alteration for the better in the state of things at Yatton, as soon as Messrs. Yahoo and Fitz-Snooks had been disposed of. Now and then a few of the distinguished people who had honored Mr. Titmouse by going out in procession to meet and welcome him, were invited to spend a day at Yatton; and generally quitted full of admiration of the dinner and wines, the unaffected good-nature and simplicity of their hospitable host, and the bland, composed, and intellectual deportment and conversation of

Mr. Gammon. When rent-day arrived, Mr. Titmouse, attended by Mr. Gammon, made his appearance in the steward's room, and also in the hall; where, according to former custom, good substantial fare was set out for the tenants. They received him with a due respect of manner; but—alas—where was the cheerfulness, the cordiality, the rough, honest heartiness of days gone by, on such occasions? Few of the tenants stayed to partake of the good things prepared for them; a circumstance which greatly affected Mr. Griffiths, and piqued Mr. Gammon; as for Titmouse, however, he said, with a laugh, "Curse 'em! let 'em leave it alone, if they a'n't hungry!" and any faint feeling of mortification which he might have experienced, was dissipated by the intelligence of the amount paid into his banker's. Gammon was sensible that the scenes which had been exhibited at Yatton on the first night of his protégé's arrival, had seriously injured him in the neighborhood and county, and was bent upon effacing, as quickly as possible, such unfavorable impressions, by prevailing on Titmouse to "purge and live cleanly"—at all events for the present.

Let me pause now, for a moment, to inquire, ought not this favored young man to have felt happy? Here he was, master of a fine estate, producing him a splendid unencumbered rent-roll; a delightful residence, suggesting innumerable dear and dignified associations connected with old English feeling; a luxurious table, with the choicest liqueurs and wines, in abundance: he might smoke the finest cigars that the world could produce, from morning to night, if so disposed; had unlimited facilities for securing a distinguished personal appearance, as far as dress and decoration went; had all the amusements of the county at his command; troops of servants, eager and obsequious in their attentions; horses and carriages of every description which he might have chosen to order out—had, in short, all the "appliances and means to boot," which could be desired or imagined by a gentleman of his station and affluence. Mr. Gammon was, though somewhat stern and plain-spoken, still a most sincere and powerful friend, deeply and disinterestedly solicitous about his interests, and protecting him from villanous and designing adventurers; then he had in prospect the brilliant mazes of fashionable life in town—oh, in the name of everything that this world can produce, and of the feelings it should excite, ought not Titmouse to have enjoyed life—to have been happy? Yet he was not; he felt, quite independently of any constraint occasioned by the presence of Mr. Gammon, full of deplorable and inexpressible wearisomeness, which

nothing could alleviate, but the constant use of cigars, and brandy and water. On the first Sunday after the departure of Fitz-Snooks, Titmouse was prevailed upon to accompany the devout and exemplary Gammon to church; where, barring a good many ill-concealed yawns and constant fidgetiness, he conducted himself with tolerable decorum. Yet still the style of his dress, his air, and his countenance, filled the little congregation with feelings of great astonishment, when they thought that *that* was the new Squire of Yatton, and for a moment contrasted him with his simple and dignified predecessor, Mr. Aubrey. As for the worthy vicar, Dr. Tatham, Gammon resolved to secure his good graces, and succeeded. He called upon the worthy vicar soon after having heard from Titmouse, of his, Yahoo's, and Fitz-Snooks' encounter with Dr. Tatham; and expressed profound concern on being apprised of the rude treatment which he had encountered. There was a gentleness and affability—tempering at once and enhancing his evident acuteness and knowledge of the world—which quite captivated the little doctor. But, above all, the expressions of delicate sympathy and regret with which he now and then alluded to the late occupants of Yatton, and towards whom the stern requisitions of professional duty had caused him to play so odious a part, and his minute inquiries about them, drew out almost all that was in the little doctor's heart concerning his departed friends. Gammon gazed with deep interest at the old blind staghound, and feeble old Peggy; and seemed never tired of hearing the doctor's little anecdotes concerning them. He introduced Titmouse to the vicar; and, in his presence, Gammon declared his (Titmouse's) hatred and contempt for the two fellows who were with him when first he saw Dr. Tatham; who thereupon banished from his heart all recollection of the conduct which had so deeply hurt his feelings. Gammon, on another occasion, infinitely delighted the doctor by calling on a Monday morning, and alluding with evident interest and anxiety to certain passages in his sermon of the day before, and which led to a very lengthened and interesting discussion. In consequence of what then transpired, the doctor suddenly bethought himself of routing out an old sermon, which he had once preached before the judges of assize:—and during the week he touched it up with a good deal of care for the ensuing Sunday—when he had the satisfaction of observing the marked and undeviating attention with which Mr. Gammon sat listening to him; and that candid inquirer after truth afterwards stepped into the little vestry and warmly complimented the doctor upon his very satisfactory and masterly

discourse. Thus it was that Dr. Tatham came to pen a postscript to one of his letters to Mrs. Aubrey, to which I have formerly alluded, and of which said postscript the following is a copy:——

"P. S. By the way, the altered state of things at the Hall, I am of opinion, is entirely owing to the presence and the influence of a Mr. Gammon—one of the chief of Mr. Titmouse's solicitors, and to whom he seems very firmly attached. I have lived too long in the world to form hasty opinions, and am not apt to be deceived in my estimate of mankind; but I must say, I consider Mr. Gammon to be a very superior man, as well in character and intellect, as in acquirements. He possesses great acuteness and knowledge of the world, general information, a very calm and courteous address—and above and beyond all, is a man of very enlightened religious feeling. He comes constantly to church, and presents a truly edifying example to all around, of decorum and attention. You would be delighted to hear the discussions we have had on points which my sermons have suggested to him. He is really an uncommonly acute man, and I assure you it requires some little logical skill to contend with him in argument. I preached a sermon lately, specially aimed at him, which, thank God! I have every reason to believe has been attended with happy effects, and allayed some startling doubts which had been for years tormenting him. I am sure that my dear friend" (*i. e.* Mr. Aubrey) "would be delighted with him. I had myself, I assure you, to overcome a very strong prejudice against him—a thing I always love to attempt, and have in a measure, in the present instance, succeeded. He speaks of you all frequently, with evident caution, but at the same time with the deepest respect and sympathy."

This postscript it was, which, as I have already intimated, suggested to Mr. Aubrey to seek the interview with Gammon which has been described, and during which it was frequently present to his mind.

While, however, under the pressure of Mr. Gammon's benumbing presence and authority, Titmouse was for a brief while leading this sober retired life at Yatton—why, he hardly knew, except that Gammon willed it—a circumstance occurred which suddenly placed him on the very highest pinnacle of popularity in metropolitan society. I hardly know how to

suppress my feelings of exultation, in retracing the rapid steps by which Mr. Titmouse was transformed into a LION of the first magnitude. Be it known that there was a MR. BLADDERY PIP, a fashionable novelist, possessed of most extraordinary versatility and power; for he had at the end of every nine months, during the last nine years, produced a novel in three volumes—each succeeding one eclipsing the splendor of its predecessor, (in the judgment of the accomplished and disinterested newspaper critics)—in the "masterly structure of the plot"—the "vivid and varied delineation of character"—the "profound acquaintance with the workings of the human heart"—"exquisite appreciation of life in all its endless varieties"—"piercing but delicate satire"—"bold and powerful denunciations of popular vices"—"rich and tender domestic scenes"—"inimitable ease and grace"—"consummate tact and judgment"—"reflection coextensive with observation"—"the style flowing, brilliant, nervous, varied, picturesque," *et cetera, et cetera, et cetera*. We have, in the present day, thank Heaven! at least two or three hundred such writers; but at the time about which I am speaking, Mr. Bladdery Pip was pretty nearly alone in his glory. Such was the man, to whose trading brain it suddenly occurred, on glancing over the newspaper report of the trial of *Doe on the Demise of Titmouse v. Jolter*, to make the interesting facts of the case the basis of a new novel, on quite a new plan, and which was infinitely to transcend all his former works, and, in fact, occasion quite a revolution in that brilliant and instructive species of literature! To work went Mr. Pip, within a day or two after the trial was over, and in an incredibly short space of time had got to the close of his labors. Practice had made him perfect, and given him infinite facility in the production of first-rate writing. The spirited publisher (Mr. Bubble) then quickly set to work to "get the steam up"—but ah! how secretly and skilfully! For some time there appeared numerous intimations in the daily papers, that "the circles of ton" were "on the *qui vive*" in expectation of a certain forthcoming work, &c. &c. &c.—that "disclosures of a very extraordinary character" were being looked for—"attempts had been made to suppress," &c. &c.—"compromising certain distinguished," &c., and so forth; all these paragraphs being in the unquestionable [!] *editorial* style, and *genuine* [!] indications of a mysterious under-current of curiosity and excitement, existing in those regions which were watched with reverential awe and constancy by the occupants of the lower regions. As time advanced, more frequent became

these titillations of the public palate—more distinct these intimations of what was going forward, and might be shortly expected, from the appearance of the long-promised work. Take for instance the following, which ran the round of every newspaper, and wrought up to a high pitch the curiosity of three-fourths of the fools in the country:—

"The efforts made to deprive the public of the interesting and peculiar scenes contained in the forthcoming novel, and—in short—to suppress it, have entirely failed, owing to the resolution of the gifted author, and the determination of the spirited publisher; and their only effect has been to accelerate the appearance of the work. It will bear the exciting and *piquant* title—'TIPPETIWINK;' and is said to be founded on the remarkable circumstances attending the recent trial of a great ejectment cause at York. More than one noble family's history is believed to be involved in some of the details which will be found in the forthcoming publication, for which, we are assured, there are already symptoms of an unprecedented demand. The 'favored few' who have seen it, predict that it will produce a prodigious sensation. The *happy audacity* with which facts are adhered to, will, we trust, not lead to the disagreeable consequences that appear to be looked for, in certain quarters, with no little anxiety and dismay. When we announce that its author is the gifted writer of 'THE SILVER SPOONS'—'SPINNACH'—'THE PIROUETTE'—'TITTLE-TATTLE'—'FITZ-GIBLETS'—'SQUINT,' &c. &c. &c., we trust we are violating no literary confidence."

There was no resisting this sort of thing. In that day, a skilfully directed play of puffs laid prostrate the whole of the sagacious fashionable world; *producing* the excitement of which they affected to chronicle the existence. The artilleryman, in the present instance, was, in fact, a hack writer, hired by Mr. Bubble—in fact, kept by him entirely—to perform services of this degrading description—and he sat from morning to night in a back-room on Mr. Bubble's premises, engaged in spinning out these villanous and lying paragraphs concerning every work published, or about to be published, by Mr. Bubble. Then that gentleman hit upon another admirable device. He had seven hundred copies printed off; and allowing a hundred for a *first* edition, he varied the title-pages of each of the remaining six hundred by the words:

"Second Edition"—"Third Edition"—"Fourth Edition"—"Fifth Edition"—"Sixth Edition"—and "Seventh Edition."

By the time, however, that the fourth edition had been announced, there existed a real rage for the book. The circulating libraries at the West End of the town were besieged by applicants for a perusal of the work; and "notices," "reviews," and "extracts," began to make their appearance with increasing frequency in the newspapers. The idea of the work was admirable. *Tippetiwink*, the hero, was a young gentleman of ancient family—an only child—kidnapped away in his infancy by the malignant agency of "the demon *Mowbray*," a distant relative, of a fierce temper and wicked character, who by these means had succeeded to the enjoyment of the estate, and would have come, in time, to the honors and domains of the most ancient and noble family in the kingdom, that of the *Earl of Frizzleton*. Poor *Tippetiwink* was at length, however, discovered by his illustrious kinsman, by mere accident, in an obscure capacity, in the employ of a benevolent linen-draper, *Black-bag*, who was described as one of the most amiable and generous of linen-drapers; and, after a series of wonderful adventures, in which the hero displayed the most heroic constancy, the earl succeeded in reinstating his oppressed and injured kinsman in the lofty station which he ought always to have occupied. His daughter—a paragon of female loveliness—the *Lady Sapphira Sigh-away*—evinced the deepest interest in the success of *Tippetiwink*; and at length—the happy result may be guessed by the astute and experienced novel-reader. Out of these few and natural incidents, Mr. Bladdery Pip was pronounced at length, by those (*i. e.* the aforesaid newspaper scribes) who govern, if they do not indeed constitute, PUBLIC OPINION, to have produced an imperishable record of his genius; avoiding all the faults, and combining all the excellences, of all his former productions. The identity between *Titmouse* and *Tippetiwink*, *Lord Dreddlington* and *Lord Frizzleton*, *Lady Cecilia* and *Lady Sapphira*, and *Mr. Aubrey* and the "*demon Mowbray*," was quickly established. The novel passed speedily into the *tenth edition*! An undoubted, and a very great sensation was produced; extracts descriptive of the persons, particularly that of *Titmouse*, and the earl, and *Lady Cecilia*, figuring in the story, were given in the London papers, and thence transferred into those all over the country. The very author of the book, Mr. Bladdery Pip, became a prodigious LION, and dressing himself in the most elaborate and exquisite style, had his portrait, looking most intensely intellectual, prefixed to the

tenth edition. Then came portraits of "Tittlebat Titmouse, Esq.," (for which he had never sat,) giving him large melting eyes, a very pensive face, and a most fashionable appearance. The Earl of Dreddlinton and Lady Cecilia became also a lion and lioness. Hundreds of opera-glasses were directed, at once, to their opera-box; innumerable were the anxious salutations they received as they drove round the Park—and round it they went three or four times as often as they had ever done before. 'Twas whispered that the king had read the book, and drank the earl's health, under the name of Lord Frizzleton—while the queen did the same for Lady Cecilia as Lady Sapphira. Their appearance produced a manifest sensation at both the levee and drawing-room.—Majesty looked blander than usual as they approached. Poor Lord Dreddlinton, and Lady Cecilia, mounted in a trice into the seventh heaven of rapturous excitement; for there was that buoyant quality about their heads which secured them a graceful and rapid upward motion. They were both unutterably *happy*; living in a gentle delicious tumult of exalted feeling. Irrepressible exultation glistened in the earl's eyes; he threw an infinite deal of blandness and courtesy into his manners wherever he was, and whomsoever he addressed; as if he could now easily afford it, confident in the inaccessible sublimity of his position. It was slightly laughable to observe, however, the desperate efforts he made to maintain his former frigid composure of manner—but in vain; his nervousness looked almost like a sudden, though gentle accession of St. Vitus's dance. Innumerable were the inquiries after Titmouse—his person—his manners—his character—his dress, made of Lady Cecilia by her friends. Young ladies tormented her for his autograph. 'T was with her as if the level surface of the Dead Sea had been stirred by the freshening breeze.

When a thing of this sort is once fairly set going, where is it to end? When fashion does go mad, her madness is wonderful; and she very soon turns the world mad. Presently the young men appeared everywhere in black satin stocks, embroidered, some with flowers, and others with gold, and which went by the name of "*Titmouse-Ties*;" and in hats, with high crowns and rims a quarter of an inch in depth, called "*Tittlebats*." All the young blades about town, especially the clerks and shopmen in the city, dressed themselves in the most extravagant style; an amazing impetus was given to the cigar trade—whose shops were crowded, especially at nights; and every puppy that walked the streets puffed cigar-smoke in your eyes. In short, pert and lively *Titmice* might be seen hopping about the streets in all directions.

As for Tag-rag, wonders befell him. A paragraph in a paper pointed him out as the original of *Black-bag*, and his shop in Oxford Street as the scene of Titmouse's service. Thither quickly poured the tide of fashionable curiosity, and custom. His business was soon trebled. He wore his best clothes every day, and smirked and smiled, and bustled about amid the crowd in his shop, in a perfect fever of excitement. He began to think of buying the adjoining premises, and adding them to his own; and set his name down as a subscriber of a guinea a-year to the "Decayed Drapers' Association." Those were glorious times for Mr. Tag-rag. He was forced to engage a dozen extra hands; there were seldom less than fifty or a hundred persons in his shop at once; strings of carriages stood before his door, sometimes two deep, and continual strugglings occurred between the coachmen for precedence. In fact, Mr. Tag-rag believed that the MILLENNIUM (about which he had often heard wonders from Mr. Dismal Horror, who, it seemed, knew all about it—a fact of which he had first persuaded his congregation, *and then himself*) was coming in earnest.

CHAPTER IX.

The undulations of the popular excitement in town, were not long in reaching the calm retreat of Mr. Titmouse in Yorkshire. To say nothing of his having on several occasions observed artists busily engaged in sketching different views of the Hall and its surrounding scenery, and, on inquiry, discovered that they had been sent from London for the express purpose of presenting to the excited public sketches of the "residence of Mr. Titmouse," a copy of the inimitable performance of Mr. Bladdery Pip—viz. "TIPPETIWINK," (tenth edition) was sent down to Mr. Titmouse by Gammon; who also forwarded to him, from time to time, newspapers containing those paragraphs which identified Titmouse with the hero of the novel, and also testified the profound impression which it was making upon the thinking classes of the community. Was Titmouse's wish to witness the ferment he had so unconsciously produced in the metropolis, unreasonable? Yatton was beginning to look duller daily, even before the arrival of this stimulating intelligence from town; Titmouse feeling quite out of his element. So—Gammon *non contradicente*—up came Titmouse to town. If he had not been naturally a fool, the notice he attracted in London must soon have made him one. He had been for coming up in a post-chaise and four; but Gammon, in a letter, succeeded in dissuading him from incurring so useless an expense, assuring him that men of even as high consideration as himself, constantly availed themselves of the safe and rapid transit afforded by the royal mail. His valet, on being appealed to, corroborated Mr. Gammon's representations; adding, that the late hour in the evening at which that respectable vehicle arrived in town would effectually shroud him from public observation. Giving strict and repeated orders to his valet to deposit him at once "in a first-rate West-End hotel," the haughty lord of Yatton, plentifully provided with cigars, stepped into the mail, his valet perching himself upon the box-seat. That gifted functionary was well acquainted with town, and resolved on his master's taking up his quarters at the Harcourt Hotel, in the immediate vicinity of Bond Street.

The mail passed the Peacock, at Islington, about half-past eight o'clock; and long before they had reached even that point, the eager and anxious eye of

Titmouse had been on the look-out for indications of his celebrity. He was, however, compelled to own that both people and places seemed much as usual—wearing no particular air of excitement. At this he was a little chagrined, till he reflected on the vulgar ignorance of the movements of the great, for which the eastern regions of the metropolis were proverbial, and also on the increasing duskiness of the evening, the rapid pace at which the mail rattled along, and the circumstance of his being concealed inside. When his humble hackney-coach (its driver a feeble old man, with a wisp of straw for a hat-band, and sitting on the rickety box like a heap of dirty old clothes, and the flagging and limping horses looking truly miserable objects) had rumbled slowly up to the lofty and gloomy door of the Harcourt Hotel, it seemed to excite no notice whatever. A tall waiter, in a plain suit of black evening dress, with his hands stuck behind his coat-tails, continued standing in the ample doorway, eying the plebeian vehicle which had drawn up, with utter indifference—conjecturing, probably, that it had come to the wrong door. With the same air of provoking superciliousness he stood till the valet, having jumped down from his seat beside the driver, ran up, and in a peremptory sort of way exclaimed, "MR. TITMOUSE of Yatton!" This stirred the waiter into something like energy.

"Here, sir!" called out Mr. Titmouse from within the coach; and on the waiter's slowly approaching, the former inquired of him in a sufficiently swaggering manner—"Pray, has the *Earl of Dreddlington* been inquiring for me here to-day?" The words seemed to operate like magic; converting the person addressed, in a moment, into a slave—supple and obsequious.

"His Lordship has not been here to-day, sir," he replied in a low tone, with a most courteous inclination, gently opening the door, and noiselessly letting down the steps. "Do you alight, sir?"

"Why—a—have you room for me, and my *fellow* there?"

"Oh yes, sir! certainly.—Shall I show you into the coffee-room, sir?"

"The coffee-room? Curse the coffee-room, sir! Demme, sir, do you suppose I'm a commercial traveller? Show me into a private room, sir!" The waiter bowed low; and in silent surprise led Mr. Titmouse to a very spacious and elegantly-furnished apartment—where, amid the blaze of six wax candles, and attended by three waiters, he supped, an hour or two afterwards, in great state—retiring about eleven o'clock to his apartment, overcome with

fatigue—and brandy and water: having fortunately escaped the indignity of being forced to sit in the room where an English nobleman, two or three county members, and a couple of foreign princes, were sitting sipping their claret, some writing letters, and others conning over the evening papers. About noon, the next day, he called upon the Earl of Dreddlington; and though, under ordinary circumstances, his Lordship would have considered the visit rather unseasonable, he nevertheless received his fortunate and now truly distinguished kinsman with the most urbane cordiality. At the earl's suggestion, and with Mr. Gammon's concurrence, Titmouse, within about a week after his arrival in town, took a set of chambers in the Albany, together with the elegant furniture which had belonged to their late tenant, a distinguished fashionable, who had shortly before suddenly gone abroad upon a mission of great importance—to *himself*: viz. to avoid his creditors. Mr. Titmouse soon began to feel, in various ways, the distinction which was attached to his name—commencing, as he did at once, the gay and brilliant life of a man of high fashion, and under the august auspices of the Earl of Dreddlington. Like as a cat, shod with walnut-shells by some merry young scapegrace, doubtless feels more and more astounded at the clatter it makes in scampering up and down the bare echoing floors and staircases; so, in some sort, was it with Titmouse, in respect of the sudden and amazing *éclat* with which all his appearances and movements were attended in the regions of fashion. 'Tis a matter of indifference to a fool, whether you laugh *with* him or *at* him; so as that you do but laugh—an observation which will account for much of the conduct both of Lord Dreddlington and Titmouse. In this short life, and dull world, the thing is—to create a *sensation*, never mind how; and every opportunity of doing so should be gratefully seized hold of, and improved to the uttermost, by those who have nothing else to do, and have an inclination to distinguish themselves from the common herd of mankind, and show that they have not lived in vain. Lord Dreddlington had got so inflated by the attention he excited, that he set down everything he witnessed to the score of deference and admiration. His self-conceit was so intense, that it consumed every vestige of sense he had about him. He stood in solitary grandeur upon the lofty pillar of his pride, inaccessible to ridicule, and insensible indeed of its approach, like *vanity* "on a monument smiling at" *scorn*. Indeed,

"His soul was like a star, and dwelt apart."

He did not conceive it possible for any one to laugh at *him*, or anything he might choose to do, or any one he might think fit to associate with and introduce to the notice of society—which kind office he forthwith performed for Titmouse, to whose odd person, and somewhat eccentric dress and demeanor, his Lordship (who imagined that the same operation was going on in the minds of other people) was growing daily more reconciled. Thus, that which had at first so shocked his Lordship, he got at length perfectly familiar and satisfied with, and began to suspect whether it had not been assumed by Titmouse, out of a daring scorn for the intrusive opinions of the world, which showed a loftiness of spirit akin to his Lordship's own. Besides, in another point of view—suppose the manner and appearance of Titmouse were ever so absurd, so long as his Lordship chose to tolerate them, who should venture to gainsay them? So the earl asked him frequently to dinner; took him with them when his Lordship and Lady Cecilia went out in the evenings; gave him a seat in his carriage in going down to the House; and invited him to accompany him and Lady Cecilia when they either drove or rode round the Park. As for the matter of riding, Titmouse's assiduous attention at the riding-school, enabled him to appear on horseback without being *glaringly* unequal to the management of his horse, which, however, he more than once induced to back somewhat threateningly upon those of Lady Cecilia and the earl. Titmouse happening to let fall, at the earl's table, that he had that day ordered an elegant chariot to be built for him, his Lordship intimated that a cab was the usual turn-out of a bachelor man of fashion; whereupon Titmouse the next day countermanded his order, and was fortunate enough to secure a cab which had just been completed for a young nobleman who was unable to pay for it, and whom, consequently, the builder did not care about disappointing. He soon provided himself with a great horse and a little tiger. What pen can do justice to the feelings with which he first sat down in that cab, yielding upon its thoroughly well-balanced springs, took the reins from his little tiger, and then heard him jump up behind! As it was a trifle too early for the Park, he suddenly bethought himself of exhibiting his splendors before the establishment of Mr. Tag-rag; so he desired his little imp behind to run and summon his valet, who in a trice came down; and in answer to a question, "whether there wasn't something wanting from a draper or hosier," was informed glibly, that six dozen of best cambric pocket handkerchiefs, a dozen or two pair of white kid gloves, half-a-dozen stocks, and various

other items were "wanting"—(*i. e.* by the valet himself, for Titmouse was already profusely provided with these articles.) Off, however, he drove—occupied with but one idea—and succeeded, at length, in reaching the Oxford Street establishment, before the door of which five or six carriages were standing. I should say that, at the moment of Mr. Titmouse's strutting into that scene of his former miserable servitude, he experienced a gush of delight sufficient to have effaced all recollection of the wretchedness, privation, and oppression, endured in his early days. There was presently an evident flutter among the gentlemen engaged behind the counter—for, thought they—it must be "the great Mr. Titmouse!" Mr. Tag-rag, catching sight of him, bounced out of his little room, and bustled up to him through the crowd of customers, bowing, scraping, blushing, and rubbing his hands, full of pleasurable excitement, and exhibiting the most profound obsequiousness. "Hope you're well, sir," he commenced in a low tone, but instantly added, in a louder voice, observing that Mr. Titmouse chose to appear to have come merely upon business, "what can I have the honor to do for you, sir, this morning?" And handing him a stool, Tag-rag, with a respectful air, received a very liberal order from Mr. Titmouse, and called for a shopman to make a minute of the precious words which fell from the lips of Mr. Titmouse.

"Dear me, sir, is that your cab?" said Tag-rag, as, having accompanied Titmouse, bowing at every step, to the door, they both stood there for a moment, "I never saw such a beautiful turn-out in my life, sir"——

"Ya—a—s. Pretty well—pretty well; but that young rascal of mine's dirtied one of his boots a little—dem him!" and he looked terrors at the tiger.

"Oh dear!—so he has; shall I wipe it off, sir? *Do* let one of my young men"——

"No, it don't signify much. By the way, Mr. Tag-rag," added Mr. Titmouse, in a drawling way, "all well at—at—demme if I've not, at this moment, forgot the name of your place in the country"——

"Satin Lodge, sir," said Tag-rag, meekly, but with infinite inward uneasiness.

"Oh—ay, to be sure. One sees, 'pon my soul, such a lot of places—but—eh?—all well?"

"All very well, indeed, sir; and constantly talking of you, sir," replied Tag-rag, with an earnestness amounting to intensity.

"Ah—well! My compliments—" here he drew on his second glove, and moved towards his cab, Tag-rag accompanying him—"glad they're well. If ever I'm driving that way—good-day!" In popped Titmouse—up jumped his tiger behind—crack went his whip—and away darted the horse and splendid vehicle—Tag-rag following it with an admiring and anxious eye.

As Mr. Titmouse sat in his cab, on his way to the Park, dressed in the extreme of the mode; his glossy hat perched sideways on his bushy, well-oiled, but somewhat mottled hair; his surtout lined with velvet; his full satin stock, spangled with inwrought gold flowers, and ornamented with two splendid pins, connected together with delicate double gold chains; his shirt-collar turned down over his stock; his chased gold eyeglass stuck in his right eye; the stiff wristbands of his shirt turned back over his coat-cuffs; and his red hands concealed in snowy kid gloves, holding his whip and reins with graceful ease: when he considered the exquisite figure he must thus present to the eye of all beholders, and gave them credit for gazing at him with the same sort of feelings which similar sights had, but a few months before, excited in *his* despairing breast, his little cup of happiness was full, and even brimming over. This, though I doubt whether it was a just reflection, was still a very natural one; for he knew what his own feelings were, though not how weak and absurd they were; and of course judged of others by himself. If the Marquis of Whigborough, with his £200,000 a-year, and 5,000 independent voters at his command, had been on his way down to the House, absorbed with anxiety as to the effect of the final threat he was going to make to the Minister, that, unless he had a few strawberry leaves promised him, he should feel it his duty to record his vote against the great BILL for "*Giving Everybody Everything*," which stood for a third reading that evening; or the great Duke of —, a glance of whose eye, or a wave of whose hand, was sufficient to have lit up an European war, and who might at that moment have been balancing in his mind the fate of millions of mankind, as depending upon his *fiat* for peace or war:—I say, that if both, or either of these personages, had passed or met Mr. Titmouse, in their cabs, (which they were mechanically urging onward, so absorbed the while with their own thoughts, that they scarce knew whether they were in a cab or a handbarrow, in which latter, had it been

before their gates, either of them might, in his abstraction, have seated himself;) Titmouse's superior acquaintance with human nature assured him, that the sight of his tip-top turn-out, could not fail of attracting their attention, and nettling their pride. Whether Milton, if cast on a desolate island, but with the means of writing *Paradise Lost*, would have done so, had he been certain that no human eye would ever peruse a line of it; or whether Mr. Titmouse, had he been suddenly deposited in his splendid cab, in the midst of the desert of Sahara, with not one of his species to fix an envying eye upon him, would nevertheless have experienced a great measure of satisfaction, I am not prepared to say. As, however, every condition of life has its mixture of good and evil, so, if Titmouse had been placed in the midst of the aforesaid desert at the time when he was last before the reader, instead of dashing along Oxford Street, he would have escaped certain difficulties and dangers which he presently encountered. Had an ape, not acquainted with the science of driving, been put into Titmouse's place, he would probably have driven much in the same style, though he would have had greatly the advantage over his rival in respect of his simple and natural appearance; being, to the eye of correct taste, "when unadorned, adorned the most." Mr. Titmouse, in spite of the assistance to his sight which he derived from his *neutral*^[21] glass, was continually coming into collision with the vehicles which met and passed him, on his way to Cumberland Gate. He got into no fewer than four distinct *rows* (to say nothing of the flying curses which he received in passing) between the point which I have named, and Mr. Tag-rag's premises. But as he was by no means destitute of spirit, he sat in his cab, on these four occasions, cursing and blaspheming like a little fiend; till he almost brought tears of vexation into the eyes of one or two of his opponents, (cads, cab-drivers, watermen, hackney-coachmen, carters, stage-coachmen, market-gardeners, and draymen,) who unexpectedly found their own weapon—*i. e. slang*—wielded with such superior power and effect, for once in a way, by a swell—an aristocrat. The more manly of his opponents were filled with secret respect for the possessor of such unsuspected powers. Still it was unpleasant for a person of Mr. Titmouse's distinction to be engaged in these conflicts; and he would have given the world to have conquered his conceit so far as to summon his little tiger within, and surrender to him the reins. Such a ridiculous confession of his own incapacity, however, he could not think of, and he got into several little disturbances in the Park; after which

he drove home: the battered cab had to be taken to the maker's, where the injuries it had sustained were repaired, however, for the trifling sum of forty pounds.

The position obtained for Titmouse by the masterly genius of Mr. Bladdery Pip, was secured and strengthened by much more substantial claims upon the respect of society than those derived from literary genius. Rumor is a dame always looking at objects through very strong magnifying-glasses; and who, guided by what she saw, soon gave out that Titmouse was patron of three boroughs; had a clear rent-roll of thirty thousand a-year; and had already received nearly a hundred thousand pounds in hard cash from the previous proprietor of his estates, as a compensation for the back rents, which that usurper had been for so many years in the receipt of. Then he was—in truth and fact—very near in succession to the ancient and distinguished Barony of Drelincourt, and the extensive estates thereto annexed. He was young; by no means ill-looking; and was—unmarried. Under the mask of *naïveté* and eccentricity, it was believed that he concealed great natural acuteness, for the purpose of ascertaining who were his real and who only his pretended friends and well-wishers, and that his noble relatives had given in to his little scheme, for the purpose of aiding him in the important discovery upon which he was bent. Infinite effect was thus given to the earl's introductions. Wherever Titmouse went, he found new and delightful acquaintances; and invitations to dinners, balls, routs, soirées, came showering daily into his rooms at the Albany, where also were left innumerable cards, bearing names of very high fashion. All who had daughters or sisters in the market, paid eager and persevering court to Mr. Titmouse, and still more so to the Earl of Dreddlington and Lady Cecilia, his august *sponsors*; so that—such being the will of that merry jade Fortune—they who had once regarded him as an object only of shuddering disgust and ineffable contempt, and had been disposed to order their servants to show him out again into the streets, were now, in a manner, *magnified and made honorable* by means of their connection with him; or rather, society, through his means, had become suddenly sensible of the commanding qualities and pretensions of the Earl of Dreddlington and the Lady Cecilia. In the ball-room—at Almack's even—how many young men, handsome, accomplished, and of the highest personal consequence and rank, applied in vain for the hand of haughty beauty, which Mr. Titmouse had only to ask for, and obtain! Whose was the opera-box into which he

might not drop as a welcome visitor, and be seen lounging in envied familiarity with its fair and brilliant inmates? Were there not mothers of high fashion, of stately pride, of sounding rank, who would have humbled themselves before Titmouse, if thereby he could have been brought a suitor to the feet of one of their delicate and beautiful daughters? But it was not over the fair sex alone that the magic of Mr. Titmouse's name and pretensions had obtained this great and sudden ascendancy; he excited no small attention among men of fashion—great numbers of whom quickly recognized in him one very fit to become their butt and their dupe. What signified it to men secure of their own position in society, that they were seen openly associating with one so outrageously absurd in his dress—and vulgar and ignorant beyond all example? So long as he bled freely, and "*trotted out*," briskly and willingly, his eccentricities could be not merely tolerated, but humored. Take, for instance, the gay and popular MARQUIS GANTS-JAUNES DE MILLEFLEURS; but he is worth a word or two of description, because of the position he had contrived to acquire and retain, and the influence which he managed to exercise over a considerable portion of London society. The post he was anxious to secure was that of the leader of *ton*; and he wished it to appear that that was the sole object of his ambition. While, however, he affected to be entirely engrossed by such matters as devising new and exquisite variations of dress, equipage, and cookery, he was, in reality, bent upon graver pursuits—upon gratifying his own licentious tastes and inclinations, with secrecy and impunity. He really despised *folly*, cultivating and practising only *vice*; in which he was, in a manner, an epicure. He was now about his forty-second year; had been handsome; was of bland and fascinating address; variously accomplished; of exquisite tact; of most refined taste. There was, however, a slight fulness and puffiness about his features—an expression in his eye which spoke of *satiety*—and spoke truly. He was a very proud, selfish, heartless person; but these qualities he contrived to disguise from many of even his most intimate associates. An object of constant anxiety to him, was to ingratiate himself with the younger and weaker branches of the aristocracy, in order to secure a distinguished *status* in society, and he succeeded. To gain this point, he taxed all his resources; never were so exquisitely blended, as in his instance, with a view to securing his *influence*, the qualities of dictator and parasite: he always appeared the *agreeable equal* of those whom, for his life, he dared not seriously have offended. He had no fortune; no visible

means of making money—did not sensibly sponge upon his friends, nor fall into conspicuous embarrassments; yet he always lived in luxury.—Without money, he in some inconceivable manner always contrived to be in the possession of money's worth. He had a magical power of soothing querulous tradesmen. He had a knack of always keeping himself, his *clique*, his sayings and doings, before the eye of the public, in such a manner as to satisfy it that he was the acknowledged leader of fashion. Yet was it in truth no such thing—but only a *false* fashion; there being all the difference between him, and a man of real consequence, in society, that there is between mock and real pearl—between paste and diamond. It was true that young men of sounding name and title were ever to be found in his train, thereby giving real countenance to one from whom they fancied (till they found out their mistake) that they themselves derived celebrity; thus enabling him to effect a lodgement in the outskirts of aristocracy; but he could not penetrate inland, so to speak, any more than foreign merchants can advance farther than to Canton, in the dominions of the Emperor of China.^[22] He was only tolerated in the regions of real rank and fashion—a fact of which he had a very galling consciousness; though it did not, apparently, disturb his equanimity, or interrupt the systematic and refined sycophancy by which alone he could secure his precarious position.

With some sad exceptions, I think that Great Britain has reason to be proud of her aristocracy. I do not speak now of those gaudy flaunting personages, of either sex, who, by their excesses or eccentricities, are eternally obtruding themselves, their manners, dress, and equipage, upon the offended ear and eye of the public; but of those who occupy their exalted sphere in simplicity, in calmness, and in unobtrusive dignity and virtue. I am no flatterer or idolater of the nobility. I have a profound sense of the necessity and advantage of the *institution*: but I shall ever pay its *members*, personally, an honest homage only, after a stern and keen scrutiny into their personal pretensions; thinking of them ever in the spirit of those memorable words of Scripture—"*Unto whomsoever much is given, of him shall be much required,*" and that not hereafter only, but *HERE* also. No one would visit their faults and follies with a more unsparing severity than I; yet making all just allowances for their peculiar perils and temptations, exposed, as they are, especially at the period of their entrance upon life, to sedulous and systematic sycophancy, too often also to artful and designing profligacy. Can, however, anything excite greater indignation and disgust in

the mind of a thoughtful and independent observer than the instances occasionally exhibited of persons of rank presumptuously imagining that they enjoy a sort of prescriptive immunity from the consequences of misconduct? An insolent or profligate nobleman is a spectacle becoming every day more dangerous to exhibit in this country; of that he may be assured.

Such are *my* sentiments—those of a contented member of the middle classes, with whom are all his best and dearest sympathies, and who feels as stern a pride in his "Order," and determination to "*stand by it*" too, as ever was felt or avowed by the haughtiest aristocrat for *his*; of one who, with very little personal acquaintance with the aristocracy, has yet had opportunities of observing their conduct; and sincerely and cheerfully expresses his belief, that very, very many of them are worthy of all that they enjoy—are bright patterns of honor, generosity, loyalty, and virtue; that, indeed, of by far the greater proportion of them it may be said that they

"Have borne their faculties so meek—have
been
So clear in their great office, that their virtues
Will plead like angels."

And finally, I say these are the sentiments of one who, if that Order were in jeopardy, would, with the immense majority of his brethren of the middle classes, freely shed his blood in defence of it: for its preservation is essential to the well-being of society, and its privileges are really ours.

To return, however, to the marquis. The means to which, as I have above explained, he resorted for the purpose, secured him a certain species of permanent popularity. In matters of dress and equipage, he could really set the fashion; and being something of a practical humorist, and desirous of frequent exhibitions of his influence in order to enhance his pretensions with his patrons—and being also greatly applauded and indulged by the tradespeople profiting by the vagaries of fashion, he was very capricious in the exercise of his influence. He seized the opportunity of the advent of my little hero, to display his powers very advantageously. He waved his wand over Titmouse, and instantly transformed a little ass into a great lion. 'Twas the marquis, who with his own hand had sketched off, from fancy, the

portrait of Titmouse, causing it to be exhibited in almost every bookseller's shop-window. Well knew the marquis, that had he chosen to make his appearance once or twice in the parks, and leading streets and squares, in—for instance—the full and imposing evening costume of the clown at the theatre, with cunningly colored countenance, capacious white inexpressibles, and tasteful cap and jacket—within a few days' time several thousands of clowns would make their appearance about town, turning it into a vast pantomime. Could a more striking instance of the marquis's power in such matters have been exhibited, than that which had actually occurred in the case of Titmouse? Soon after the novel of Tippetiwink had rendered our friend an object of public interest, the marquis happened, somewhere or other, to catch a glimpse of the preposterous little ape. His keen eye caught all Titmouse's personal peculiarities at a glance; and a day or two afterwards he appeared in public, a sort of splendid edition of Titmouse—with quizzing-glass stuck in his eye and cigar in his mouth; taper ebony cane; tight surtout, with the snowy corner of a white handkerchief peeping out of the outside breast-pocket; hat with scarce any rim perched slantingly on his head; satin stock bespangled with inwrought gold flowers; shirt-collar turned down; and that inimitable strut of his!—"Twas enough; the thoughtful young men about town were staggered for a moment; but their senses soon returned. *The marquis* had stamped the thing with his fiat; and within three days' time, that bitter wag had called forth a flight of *Titmice* which would have reminded you, for a moment, of the visitation of locusts brought upon Egypt by Moses. Thus had been effected the state of things, recorded towards the close of the preceding chapter of this history. As soon as the marquis had seen a few of the leading fools about town fairly in the fashion, he resumed his former rigid simplicity of attire; and, accompanied by a friend or two in his confidence, walked about the town enjoying his triumph; witnessing his trophies—"Tittlebats" and "Titmouseties" filling the shop-windows on the week-days, and peopling the streets on Sundays. The marquis was not long in obtaining an introduction to the quaint little *millionaire*, whose reputation he had, conjointly with his distinguished friend Mr. Bladdery Pip, contributed so greatly to extend. Titmouse, who had often heard of him, looked upon him with inconceivable reverence, and accepted an invitation to one of the marquis's *recherche* Sunday dinners, with a sort of tremulous ecstasy. Thither on the appointed day he went accordingly, and, by his original

humor, afforded infinite amusement to the marquis's other guests. 'Twas lucky for Titmouse that, getting dreadfully drunk very early in the evening, he was utterly incapacitated from accompanying his brilliant and good-natured host to one or two scenes of fashionable entertainment, in St. James's Street, as had been arranged between the marquis and a few of his friends!

Let us pause now to ask whether this poor little creature was not to be pitied? Did he not seem to have been plucked out of his own sphere of safe and comparatively happy obscurity, only in order to become every one's game—an object of everybody's cupidity and cruelty? May he not be compared to the flying-fish, who, springing out of the water to avoid his deadly pursuer there, is instantly pounced upon by his ravenous assailants in the air? In the lower, and in the upper regions of society, was not this the condition of poor Tittlebat Titmouse? Was not his long-coveted advancement merely a transition from scenes of vulgar to refined rapacity? Had he, ever since "*luck* had happened to him," had one single *friend* to whisper in his ear one word of pity and of disinterested counsel? In the splendid regions which he had entered, who regarded him otherwise than as a legitimate object for plunder or ridicule, the latter disguised by the *designing* only? Was not even his dignified and exemplary old kinsman, the Earl of Dreddlington, Right Honorable as he was, influenced solely by considerations of paltry self-interest? Had he not his own ridiculous and mercenary designs to accomplish, amid all the attentions he vouchsafed to bestow upon Titmouse? 'Twas, I think, old Hobbes of Malmesbury who held, that the natural state of mankind was one of war with each other. One really sees a good deal in life, especially after tracing the progress of society, that would seem to give some color to so strange a notion. 'Twas, of course, at first a matter of downright fisticuffs—of physical strife, occasioned, in a great measure, by our natural tendencies, according to him of Malmesbury; and aggravated by the desire which everybody had, to take away from everybody else what he had. In process of time we have, in a measure, dropped the physical part of the business; and instead of punching, scratching, kicking, biting, and knocking down one another, still true to the original principles of our nature, we are all endeavoring to circumvent one another: everybody is trying to take everybody in; the moment that one of us has got together a thing or two, he is pounced upon by his neighbor, who in his turn falls a prey to another, and so on in endless succession. We

cannot effectually help ourselves, though we are splitting our heads to discover devices by way of laws, to restrain this propensity of our nature: it will not do; we are all overreaching, cheating, swindling, robbing one another, and, if necessary, are ready to ruin, maim, and murder one another in the prosecution of our designs. So is it with nations as with individuals, and minor collections of individuals. Truly, truly, we are a precious set, whether the sage of Malmesbury be right or wrong in his speculations!—

The more that the earl and Lady Cecilia perceived of Titmouse's popularity, the more eager were they in parading their connection with him, and openly investing him with the character of a protégé. In addition to this, the Lady Cecilia had begun to have now and then a glimmering notion of the objects which the earl was contemplating. If the earl, having taken him down to the House of Lords, and secured him a place at the bar, would, immediately on entering, walk up to him, and be seen for some time—august instructor!—condescendingly pointing out to him the different peers by name, as they entered, and explaining to his intelligent auditor the period, and mode, and cause, of the creation and accession of many of them to their honors, and also the forms, ceremonies, and routine of business in the House; so Lady Cecilia was not remiss in availing herself, in her way, of the little opportunities which presented themselves. She invited him, for instance, one day early in the week, to accompany them to church on the ensuing Sunday, and during the interval gave out among her intimate friends that they might expect to see Mr. Titmouse in her papa's pew. The lion accepted the invitation; and, on the arrival of the appointed hour, might have been seen in the earl's carriage, driving to attend the afternoon's service, at the Reverend MORPHINE VELVET'S chapel—*Rosemary Chapel*, near St. James's Square. 'Twas a fashionable chapel; a chapel of *Ease*: rightly so called, for it was a very *easy* mode of worship, discipline, and doctrine that was there practised and inculcated. If I may adopt without irreverence the language of Scripture, but apply it very differently, I should say that Mr. Morphine Velvet's yoke was very "easy," his burden very "light." He was a popular preacher; middle-aged; sleek, serene, solemn in his person and demeanor. He had a very gentlemanlike appearance in the pulpit and reading-desk. There was a sort of soothing, winning elegance and tenderness in the tone and manner in which he "*prayed*" and "*besought*" his "dearly beloved brethren, as many as were there present, to accompany him," their bland and graceful pastor, "to the throne of the heavenly grace!" Fit leader was he

of such a flock. He read the prayers remarkably well, in a quiet and subdued tone, very distinctly, and with marked emphasis and intonation—in fact, in a most gentlemanly manner—having sedulously studied under a crack theatrical teacher of elocution, who had given him several "points"—in fact, a new reading entirely of one of the clauses in the Lord's Prayer; and which, he had the gratification of perceiving, produced a striking, if not, indeed, a startling effect. On the little finger of the hand which he used most, was to be observed the sparkle of a diamond ring; and there was a sort of careless grace in the curl of his hair, which it had taken his hairdresser at least half an hour, before Mr. Velvet's leaving home for his chapel, to secure. In the pulpit he was calm and fluent. *That*, he rightly considered, ought not to be the scene for attempting intellectual display. He took care, therefore, that there should be nothing in his sermons to arrest the *understanding*, or unprofitably occupy it; addressing himself entirely to the feelings and fancy of his cultivated audience, in frequently interesting and even charming imaginative compositions. On the occasion I am speaking of, he took for his text a fearful passage of Scripture, 2 Cor. iv. 3,—"*But if our gospel be hid, it is hid to them that are lost.*" If any words were calculated to startle such a congregation as was arrayed before Mr. Velvet, out of their guilty and fatal apathy, were not these? Ought not their minister to have looked round him and trembled? So one would have thought; but "*dear* Mr. Velvet" knew his mission and his flock better. He presented them with an elegant description of heaven, with its crystal battlements, its jasper walls, its buildings of pure gold, its foundations of precious stones; its balmy air, its sounds of mysterious melody, its overflowing fulness of everlasting happiness—amid which friends, parted upon earth by the cruel stroke of death, recognize and are reunited to each other, never more to pronounce the agonizing word "*adieu!*" And would his dear hearers be content to lose all this—content to *enjoy the pleasures of sin for a season*? Forbid it, eternal mercy!—But lest a strain like this should disturb or distress his hearers, he took the opportunity to enforce and illustrate the consolatory truth that—

"Religion never was design'd
To make our pleasures less;"

and presently resuming the thread of his discourse, went on to speak of the unquestionably serious consequences attending a persevering indifference

to religion; and proceeded to give striking instances of it in—the merchant in his counting-house, and on 'change; the lawyer in his office; the tradesman in his shop; the operative in the manufactory; showing how each was absorbed in his calling—*laboring for the meat which perisheth*, till he had lost all appetite and relish for spiritual food, and never once troubled himself about "the momentous concerns of hereafter!" Upon these topics he dwelt with such force and feeling, that he sent his distinguished congregation away—those of them, at least, who could retain any recollection of what they had heard for five minutes after entering their carriages—with lively fears that there was a very black look-out, indeed, for—the kind of persons whom Mr. Velvet had mentioned—viz. tailors, milliners, mercers, jewellers, and so forth; and who added graver offences, and of a more positive character, to the misconduct which he had pointed out—in their extortion and their rapacity! Would that some of them had been present!—Thus was it that dear Mr. Velvet sent away his hearers overflowing with Christian sympathy; very well pleased with Mr. Velvet, but infinitely better pleased with themselves! The deep impression he had made, was evidenced by a note which he received that evening from the Duchess of Broadacre; most earnestly begging permission to copy his "beautiful sermon," in order to send it to her sister, Lady Belle Almacks, who (through early dissipation) was ill of a decline at Naples. I may as well here mention, that about the time of which I am speaking, there came out an engraved portrait of "the Rev. Morphine Velvet, M. A., Minister of Rosemary Chapel, St. James," and a very charming picture it was, representing the aforesaid Mr. Velvet in pulpit costume and attitude, with hands gracefully outstretched, and his face directed upward, with a heavenly expression; suggesting to you the possibility that some fine day, when his hearers least expected it, he might gently rise out of his pulpit into the air, like Stephen, with heaven open before him, and *be no more seen of men!*

Four or five carriages had to set down before that containing the Earl of Dreddlington, Lady Cecilia, and Mr. Titmouse, could draw up; by which time there had accumulated as many in its rear, so eager were the pious aristocrats to get into this *holy retreat*. As Titmouse, holding his hat and cane in one hand, while with the other he arranged his hair, strutted up the centre aisle, following the earl and Lady Cecilia, he could hardly repress the exultation with which he thought of a former visit of his to that very fabric

some two years before. *Then*, on attempting to enter the body of the chapel, the vergers had politely but firmly repulsed him; on which, swelling with vexation, he had ascended to the gallery, where, after having been kept standing for ten minutes at least, he had been beckoned by the pew-opener towards, and squeezed into, the furthestmost pew, close at the back of the organ, and in which said pew were two powdered footmen. If disgusted with his mere contiguity, guess what must have been his feelings when his nearest companion good-naturedly forced upon him a part of his prayer-book; which Titmouse, ready to spit in his face, held with his finger and thumb, as though it had been the tail of a snake! Now, how changed was all! He had become an aristocrat; in his veins ran some of the richest and oldest blood in the country; his brow might ere long be graced by the coronet which King Henry II. had placed upon the brow of the founder of his family, some seven hundred years before; and a tall footman, with powdered head, glistening silver shoulder-knot, and sky-blue livery, and carrying in a bag the gilded implements of devotion, was humbly following behind him! What a remarkable and vivid contrast between his present and his former circumstances, was present at that moment to his reflecting mind! As he stood, his hat covering his face, in an attitude of devotion—"I wonder," thought he, "what all these nobles and swells would say, if they knew the sort of figure I had cut here on the last time?" and again—"Pon my life, what would I give for—say Huckaback—to see me just now!" What an elegant and fashionable air the congregation wore! Surely there *must* be something in religion, when people such as were around him came so punctually to church, and behaved so seriously! The members of that congregation were, indeed, exemplary in their strict discharge of their public religious duties! Scarce one of them was there who had not been at the opera till twelve o'clock over-night; the dulcet notes of the singers were still thrilling in their ears, the graceful attitudes of the dancers still present to their eyes. Every previous night of the week had they been engaged in the brilliant ball-room, and whirled in the mazes of the voluptuous waltz, or glittering in the picturesque splendor of fancy dress, till three, four, and five o'clock in the morning: yet here they were in the house of God, in spite of all their exhaustion, testified by the heavy eye, the ill-suppressed yawn, the languor and ennui visible in their countenances, prepared to accompany their polite pastor, "with a pure heart and humble voice, unto the throne of the heavenly grace," to acknowledge, with lively emotion, that they "had

followed too much the devices and desires of their own hearts;" praying for "mercy upon them, miserable offenders," that God would "restore them, being penitent," so that "they might thereafter lead a godly, righteous, and sober life." Here they were, punctual to their time, decorous in manner, devout in spirit, earnest and sincere in repentance and good resolutions—knowing, nevertheless the while, how would be spent the remainder of the season—of their *lives*; and yet resolving to attend to the respectfully affectionate entreaties of Mr. Velvet, to be "*not hearers only, but doers of the word*." Generally, I should say, that the state of mind of most, if not all of those present, was analogous to that of persons who sit in the pump-room, to drink the Bath or Cheltenham waters. Everybody did the same thing; and each hoped that, while sitting in his pew, what he heard would, like what he drank at the pump-room, in some secret mode of operation, insensibly benefit the hearer, without subjecting him to any unpleasant restraint or discipline—without requiring active exertion, or inconvenience, or sacrifice. This will give you a pretty accurate notion of Lord Dreddlington's state of mind upon the present occasion. With his gold glasses on, he followed with his eye, and also with his voice, every word of the prayers, with rigid accuracy and unwavering earnestness; but as soon as Mr. Velvet had mounted the pulpit, and risen to deliver his discourse, the earl quietly folded his arms, closed his eyes, and, in an attentive posture, dignifiedly composed himself to sleep. Lady Cecilia sat beside him perfectly motionless during the whole sermon, her eyes fixed languidly upon the preacher. As for Titmouse, he bore it pretty well for about five minutes; then he pulled his gloves off and on at least twenty times; then he twisted his handkerchief round his fingers; then he looked with a vexed air at his watch; then he stuck his glass in his eye, and stared about him. By the time that Mr. Velvet had ceased, Titmouse had conceived a very great dislike to him, and was indeed in a fretful humor. But when the organ struck up, and they rose to go; when he mingled with the soft, crushing, fluttering, rustling, satin-clad throng—nodding to one, bowing to another, and shaking hands with a third, he felt "*himself again*." The only difference between him and those around him was, that *they* had learned to bear with calm fortitude what had so severely tried *his* temper. All were glad to get out: the crash of carriages at the door was music in their ears—the throng of servants delightful objects to their eyes—they were, in short, in the dear world again, and breathed as freely as ever!

Mr. Titmouse took leave of the earl and Lady Cecilia at their carriage-door, having ordered his cab to be in waiting—as it was; and entering it, he drove about leisurely till it was time to think of dressing for dinner. He had accepted an invitation to dine with a party of officers in the Guards, and a merry time they had on't. Titmouse in due time got blind drunk; and then one of his companions, rapidly advancing towards the same happy state, seized the opportunity, with a burned cork, to blacken poor Titmouse's face all over—who thereupon was pronounced to bear a very close resemblance to one of the black boys belonging to the band of the regiment; and thus, when dead drunk, afforded nearly as much fun to his companions as when sober. As he was quite incapable of taking care of himself, they put a servant with him into his cab, (judging his little tiger to be unequal to the responsibility.)

Titmouse passed a sad night, but got better towards the middle of the ensuing day; when he was sufficiently recovered to receive two visitors. One of them was young Lord Frederic Feather, (accompanied by a friend,) both of whom had dined in company with Titmouse over-night; and his Lordship it was, who, having decorated Titmouse's countenance in the way I have described—so as to throw his valet almost into fits on seeing him brought home—imagining it might possibly come to his ears who it was that had done him such a favor, had come to acknowledge and apologize for it frankly and promptly. When, however, he perceived what a fool he had got to deal with, he suddenly changed his course—declared that Titmouse had not only done it himself, but had then presumed to act similarly towards his Lordship, whose friend corroborated the charge—and they had called to receive, in private, *an apology*! Titmouse's breath seemed taken away on first hearing this astounding version of the affair. He swore that he had done nothing of the sort, but had *suffered* a good deal; dropping, however, from the tight rope, on observing the stern looks of his companions, he protested that at all events "he did not recollect" anything of the kind; on which they smiled good-naturedly, and said that *that* was very possible. Then Titmouse made the requisite apology; and thus this "awkward affair" ended. Lord Frederic continued for some time with Titmouse in pleasant chat; for he foresaw that, "hard up" as he frequently was, Mr. Titmouse was a friend who might be exceedingly serviceable. In fact, poor Lord Frederic could, on that very occasion, have almost gone on his knees for a check of Mr. Titmouse upon his bankers for a couple of hundred pounds. Oh, thought

that "noble" young spark—what would *he* have given to be in Titmouse's position, with his twenty thousand a-year, and a hundred thousand pounds of hard cash! But, as the reader well knows, poor Titmouse's resources, ample as they were, were upon a far less splendid scale than was supposed. Partly from inclination, and partly through a temporary sense of embarrassment, occasioned by the want of ready money, Titmouse did not spend a tenth part of the sum which it had been everywhere supposed he could disburse freely on all hands: and this occasioned him to be given credit for possessing all that rumor assigned to him; and, moreover, for a disposition not to squander it. He had several times been induced to try his hand at *écarté*, *rouge et noir*, and *hazard*; and had, on the first occasion or two, been a little hurried away, through deference to his distinguished associates, and bled rather freely; but when he found that it was a matter of *business*—that he must *pay*—and felt his purse growing lighter, and his pocket-book, in which he kept his bank-notes, rapidly shrinking in dimensions as the evening wore on, he experienced vivid alarm and disgust, and an increasing disinclination to be "victimized;" and his aversion to play was infinitely strengthened by the frequent cautions of his distinguished and disinterested monitor, the Earl of Dreddlington.

But there was one step in Mr. Titmouse's upward progress which he presently took, and which is worthy of special mention; I mean his presentation at court by the Earl of Dreddlington. The necessity for such a move was explained to Titmouse by his illustrious kinsman, a day or two after the appearance of the ordinary official announcement of the next levee. This momentous affair was broached by the earl, one day after dinner, with an air of almost mysterious anxiety and interest. Had, indeed, that stately and solemn old simpleton been instructing his gaping protégé, in the minutely-awful etiquettes requisite for the due discharge of his duties, as an ambassador sent upon a delicate and embarrassing mission to the court of his Sacred Majesty the King of Sulkypunctilio, he could not have appeared more penetrated by a sense of the responsibility he was incurring. He commenced by giving Titmouse a very long history of the origin and progress of such ceremonies, and a minute account of the practical manner of their observance, all of which, however, was to Titmouse only like breathing upon a mirror—passing as quickly out of one ear as it had entered into the other. When, however, the earl came to the point of dress, Titmouse was indeed "a thing all ear, all eye," his little faculties being stimulated to

their utmost. The next morning he hurried off to his tailor, to order a court dress. When it had been brought home for trial, and he had put it on, upon returning to his room in his new and imposing costume, and glancing at his figure in the glass, his face fell; and he felt infinitely disappointed. It is to be remembered in candor, however, that he had not on lace ruffles at his coat-cuffs, nor on his shirt-front. After gazing at himself for a few moments in silence, he suddenly snapped his fingers, and exclaimed to the tailor, who, with the valet, was standing beside him, "Curse me if I like this thing at all!"

"Not like it, sir!" exclaimed Mr. Clipclose, with astonishment.

"No, I don't, *demme!* Is *this* a court dress? It's a quaker's made into a footman's! 'Pon my soul, I look the exact image of a footman; and a devilish vulgar one too!" The two individuals beside him turned suddenly away—looking in different directions—and from their noses there issued the sounds of ill-suppressed laughter.

"Oh, sir—I beg a thousand pardons!"—quickly exclaimed Mr. Clipclose, "what can I have been thinking about? There's the sword—we've quite forgot it!"

"Ah—'pon my life, I thought there was *something* wrong!" quoth Titmouse, as Mr. Clipclose, having brought the sword from the table at the other end of the room, where he had laid it upon entering, buckled it upon his distinguished customer.

"I flatter myself that *now*, sir"—commenced he.

"Ya—as—Quite the correct thing! 'Pon my soul—must say—most uncommon striking!"—exclaimed Titmouse, glancing at his figure in the glass, with a triumphant smile. "Isn't it odd, now, that this sword should make all the difference between me and a footman, by Jove?" Here his two companions were seized with a simultaneous fit of coughing.

"Ah, ha—it's so, a'n't it?" continued Titmouse, his eyes glued to the glass.

"Certainly, sir," replied Mr. Clipclose, "it undoubtedly gives—what shall I call it? a grace—a finish—a sort of commanding appearance—especially to a figure that becomes it"—he continued with cool assurance, observing that the valet understood him. "But—may I, sir, take so great a liberty? If you are not accustomed to wear a sword—as I think you said you had not been

at court before—I beg to remind you that it will require particular care to manage it, and prevent it from getting between"——

"Demme, sir!" exclaimed Titmouse, turning round with an offended air—"d'ye think I don't know how to manage a sword? By all that's tremendous"—and plucking the taper weapon out of its scabbard, he waved it over his head; and throwing himself into the first position—he had latterly paid a good deal of attention to fencing—with rather an excited air, he went through several of the preliminary movements. 'Twas a subject for a painter, and exhibited a very striking spectacle—as an instance of power silently concentrated, and ready to be put forth upon an adequate occasion. The tailor and the valet, who stood separate from each other, and at a safe and respectful distance from Mr. Titmouse, gazed at him with silent admiration.

When the great day arrived—Titmouse having thought of scarce anything else in the interval, and teased every one whom he had met with his endless questions and childish observations on the subject—he drove up, at the appointed hour, to the Earl of Dreddlington's; whose carriage, with an appearance of greater state than usual about it, was standing at the door. On alighting from his cab, he skipped so nimbly up-stairs, that he could not have had time to observe the amusement which his figure occasioned even to the well-disciplined servants of the Earl of Dreddlington. Much allowance ought to have been made for them. Think of Mr. Titmouse's little knee-breeches, white silks, silver shoe-buckles, shirt ruffles and frills, coat, bag, and sword; and his hair, plastered up with bear's grease, parted down the middle of his head, and curling out boldly over each temple; and his open countenance irradiated with a subdued smile of triumph and excitement! On entering the drawing-room he beheld a really striking object—the earl in court costume, wearing his general's uniform, with all his glistening orders, standing in readiness to set off, and holding in his hand his hat, with its snowy plume. His posture was at once easy and commanding. Had he been standing to Sir Thomas Lawrence, he could not have disposed himself more effectively. Lady Cecilia was sitting on the sofa, leaning back, and languidly talking to him; and, from the start which they both gave on Titmouse's entrance, it was plain that they could not have calculated upon the extraordinary transmogrification he must have undergone, in assuming court costume. For a moment or two, each was as

severely shocked as when his absurd figure had first presented itself in that drawing-room. "Oh, heavens!" murmured Lady Cecilia: while the earl seemed struck dumb by the approaching figure of Titmouse. That gentleman, however, was totally changed from the Titmouse of a former day. He had now acquired a due sense of his personal importance, a just confidence in himself. Greatness had lost its former petrifying influence over him. And, as for his appearance on the present occasion, *he* had grown so familiar with it, as reflected in his glass, that it never occurred to him that the case might be different with others who beheld him for the first time. The candor upon which I pride myself urges me to state, however, that when Titmouse beheld the military air and superb equipments of the earl—notwithstanding that Titmouse, too, wore a sword—he felt himself *done*. He advanced, nevertheless, pretty confidently—bobbing about, first to Lady Cecilia, and then to the earl; and after a hasty salutation, observed,—"*Pon my life, my Lord, I hope it's no offence, but your Lordship does look most remarkable fine.*" The earl made no reply, but inclined towards him magnificently—not seeing the meaning and intention of Titmouse, but being affronted by his words.

"May I ask what your Lordship thinks of *me*? First time I ever appeared in this kind of thing, my Lord—ha! ha, your Lordship sees!" As he spoke, his look and voice betrayed the overawing effects of the earl's splendid appearance, which was rapidly freezing up the springs of familiarity, if not, indeed, of flippancy, which were bubbling up within the little bosom of Titmouse, on his entering the room. His manner became involuntarily subdued and reverential. The Earl of Dreddlington in plain clothes, and in full court costume, were two very different persons; though his Lordship would have been terribly mortified if he had known that any one thought so. However much he now regretted having offered to take Titmouse to the levee, there was no escape from the calamity; so, after a few minutes' pause, his Lordship rang the bell, and announced his readiness to set off. Followed by Mr. Titmouse, the earl slowly descended the stairs; and when he was within two or three steps of the hall floor, it distresses me to relate, that his Lordship suddenly fell nearly flat upon his face, and, but for his servants' rushing up, would have been seriously hurt. Poor Titmouse had been the occasion of this dismal disaster; for his sword getting between his legs, down he went against the earl, who went naturally down upon the floor, as I have mentioned. Titmouse was not much hurt, but terribly frightened, and

became as pale as death when he looked at the earl; who appeared a little agitated, but, not having been really injured, soon recovered a considerable measure of self-possession. Profuse were poor Titmouse's apologies, as may be supposed; but much as he was distressed at what had taken place, a glance at the angry countenances with which the servants regarded him, as if inwardly cursing his stupidity and clumsiness, stirred up his spirit a little with a feeling of resentment. He would have given a hundred pounds to have been able to discharge every one of them on the spot!—

"Sir—enough has been said," quoth the earl, rather coldly and haughtily, tired of the multiplied apologies and excuses of Titmouse. "I thank God, sir, that I am not hurt, though at my time of life a fall is not a slight matter. Sir," continued the earl, bitterly—again interrupting Titmouse—"you are not so much to blame as your tailor; he should have explained to you how to wear your sword!" With this, having cut Titmouse to the very quick, the earl motioned him towards the door. They soon entered the carriage; the door was closed; and, with a brace of footmen behind, away rolled these two truly distinguished subjects to pay their homage to Majesty—which might well be proud of such homage!—They both sat in silence for some time. At length—"Beg your Lordship's pardon," quoth Titmouse, with some energy; "but I wish your Lordship only knew how I *hate* this cursed skewer that's pinned to me:" and he looked at his sword, as if he could have snapped it into halves, and thrown them through the window.

"Sir, I can appreciate your feelings. The sword was not to blame; and *you* have my forgiveness," replied the still ruffled earl.

"Much obliged to your Lordship," replied Titmouse, in a somewhat different tone from any in which he had ever ventured to address his august companion; for he was beginning to feel confoundedly nettled at the bitter contemptuous manner which the earl observed towards him. He was also not a little enraged with himself; for he knew he had been in fault, and thought of the neglected advice of his tailor. So his natural insolence, like a reptile just beginning to recover from its long torpor, made a faint struggle to show itself—but in vain; he was quite cowed and overpowered by the Presence in which he was, and he wished heartily that he could have recalled even the few last words he had ventured to utter. The earl had observed his presumptuous flippancy of manner, though without appearing to do so. His Lordship was accustomed to control his feelings; and on the

present occasion made some effort to do so, for fear of alienating Titmouse from him by any display of offended dignity.

"Sir, it is a very fine day," he observed in a kind manner, after a stern silence of at least five minutes.

"Remarkable fine, my Lord. I was just going to say so," replied Titmouse, greatly relieved; and presently they fell into their usual strain of conversation.

"We must learn to bear these little annoyances calmly," said the earl, graciously, on Titmouse's again alluding to his mishap;—"as for me, sir, a person in the station to which it has pleased Heaven to call me, for purposes of its own, has his peculiar and very grave anxieties—substantial anx"—

He ceased suddenly. The carriage of his old rival, the Earl of Fitz-Walter, passed him; the latter waved his hand courteously; the former, with a bitter smile, was forced to do the same; and then relapsing into silence, showed that *the iron was entering his soul*. Thus the earl in his own person afforded a striking illustration of the truth of the observation which he had been making to Titmouse. Soon, however, they had entered the scene of splendid hubbub, which at once occupied and excited both their little minds. Without, was the eager crowd, gazing with admiration and awe at each equipage, with its brilliant occupants, that dashed past them:—then the life-guardsmen, in glittering and formidable array, their long gleaming swords and polished helmets glancing and flashing in the sunlight. Within, were the tall yeomen of the guard, in black velvet caps and scarlet uniforms, and with ponderous partisans, lining each side of the staircase—and who, being in the exact military costume of the time of Henry the Eighth, forcibly recalled those days of pomp and pageantry to the well-informed mind of Mr. Titmouse. In short, for the first time in his life, he beheld, and was overwhelmed by, the grandeur, state, and ceremony which fence in the dread approaches to MAJESTY. He was, fortunately, far too much bewildered and flustered, to be aware of the ill-concealed tittering and even laughter which his appearance excited, wherever he went. In due course he was borne on, and issued in due form into the presence chamber—into the immediate presence of Majesty. His heart palpitated; his dazzled eye caught a hasty glimpse of a tall magnificent figure and a throne. Advancing—scarce aware whether on his head or his heels—he reverently paid his

homage—then rising, was promptly ushered out through a different door; with no distinct impression of anything that he had witnessed!—'twas all a dazzling blaze of glory—a dim vision of awe! Little was he aware, poor soul, that the king had required him to be pointed out upon his approach, having heard of his celebrity in society; and that he had had the distinguished honor of occasioning to Majesty a very great effort to keep its countenance. It was not till after he had quitted the palace for some time, that he breathed freely again. Then he began to feel as if a vast change had been effected in him by some mysterious and awful agency—that he was penetrated and pervaded, as it were, by the subtle essence of royalty—like one having experienced the sudden, strange, thrilling, potent influence of electricity. He imagined that now the stamp of greatness had been impressed upon him; that his pretensions had been ratified by the highest authority upon earth. 'Twas as if wine had been poured into a stream, intoxicating the *tittlebats* swimming about in it!—As for me, however, seriously speaking, I question whether anything more than an *imaginary* change had come over my friend. Though I should be sorry to quote against him language with which I have reason to believe he was not *critically* acquainted, I cannot help expressing an opinion that Horace must have had in his eye a ROMAN TITMOUSE, when he penned those bitter lines —

"Licèt superbus ambules pecuniâ
FORTUNA NON MUTAT GENUS.
—Videsne Sacram metiente te Viam
Cum bis ter ulnaram togâ,
Ut ora vertat huc et huc euntium,
Liberrima indignatio?
—'Sectus flagellis hic triumviralibus
Præconis ad fastidium,
Arat Falerni mille fundi jugera,
Et Appiam mannīs terit!'"[23]

While Titmouse was making this splendid figure in the upper regions of society, and forming there every hour new and brilliant connections and associations—in a perfect whirl of pleasure from morning to night—he did not ungratefully manifest a total forgetfulness of the amiable persons with whom he had been so familiar, and from whom he had received so many

good offices, in his earlier days and humbler circumstances. Had it not, however—to give the devil his due—been for Gammon, (who was ever beside him, like a mysterious pilot, secretly steering his little bark amid the strange, splendid, but dangerous seas which it had now to navigate,) I fear that, with Titmouse, it would have been—out of sight out of mind. But Gammon, ever watchful over the real interests of his charge, and also delighted, through the native goodness of his heart, to become the medium of conferring favors upon others, conveyed from time to time, to the interesting family of the Tag-rags, special marks of Mr. Titmouse's courtesy and gratitude. At one time, a haunch of *doe* venison would find its way to Mr. Tag-rag, to whom Gammon justly considered that the distinction between buck and doe was unknown; at another, a fine work-box and a beautifully bound Bible found its way to good Mrs. Tag-rag; and lastly, a gay guitar to Miss Tag-rag, who forthwith began twang-twang, tang-a-tang-tanging it, from morning to night, thinking with ecstasy of its dear distinguished donor; who, together with Mr. Gammon, had, some time afterwards, the unspeakable gratification, on the occasion of their being invited to dine at Satin Lodge, of hearing her accompany herself with her beautiful instrument while singing the following exquisite composition, for both the words and air of which she had been indebted to her music-master, a youth with black mustaches, long dark hair parted on his head, shirt-collars à-la-Byron, and eyes full of inspiration!

TO HIM I LOVE.

1.

Affettuosamente.	Ah me! I feel the smart Of Cupid's cruel dart Quivering in my heart, Heigho, ah! whew!
------------------	---

2.

With him I love
Swiftly time would move;

Allegro.

With his cigar,
And my guitar,
We'd smoke and

play

The livelong day,

Merrily, merrily!

Puff—puff—puff,

Tang-a-tang, tang-a-tang?

3.

When he's not near me,

Adagio, et con molto espressione.

O! of life I'm
weary—
The world is

dreary—

Mystic spirits of song,

Wreathed with cypress, come along!

And hear me! hear me!

Singing,

Teneramente.

Heigho, heigho—
Tootle, tootle, too,
A—lackaday!

Such were the tender and melting strains which this fair creature (her voice a *little* reedy and squeaking, it must be owned) poured into the sensitive ear of Titmouse; and such are the strains by means of which, many and many a Miss Tag-rag has captivated many and many a Titmouse; so that sentimental compositions of this sort have become deservedly popular, and do honor to our musical and poetical character as a nation. I said that it was on the occasion of a dinner at Satin Lodge, that Mr. Titmouse and Mr. Gammon were favored by hearing Miss Tag-rag's voice, accompanying her guitar; for when Mr. Tag-rag had sounded Mr. Gammon, and found that both he and Titmouse would be only too proud and happy to partake of his hospitality, they were invited. A very crack affair it was, (though I have not time to describe it)—given on a far more splendid scale than Mr. Tag-rag had ever ventured upon before. He brought a bottle of *champagne* all the

way from town with his own hands, and kept it nice and cool in the kitchen cistern for three days beforehand; and there was fish, soup, roast mutton, and roast ducks, roast fowls, peas, cabbage, cauliflowers, potatoes, vegetable marrows; there was an apple-pie, a plum-pudding, custards, creams, jelly, and a man to wait, hired from the tavern at the corner of the hill. It had not occurred to them to provide themselves with champagne glasses, so they managed as well as they could with the common ones—all but Titmouse, who with a sort of fashionable recklessness, to show how little he thought of champagne, poured it out into his *tumbler*, which he two-thirds filled, and then drank off its contents at a draught! Mr. Tag-rag trying to disguise the inward spasm it occasioned him, by a very grievous smile. He and Mrs. Tag-rag exchanged anxious looks; the whole of their sole bottle of champagne was gone already—almost as soon as it had been opened!

"I always drink this sort of stuff out of a tumbler; I do—'pon my life," said Titmouse, carelessly; "it's a devilish deal more pleasant than sipping it out of wine glasses!"

"Ye-e-s—of course it is, sir," said Mr. Tag-rag, rather faintly. Shortly afterwards, Titmouse offered to take a glass of champagne with Miss Tag-rag!—Her father's face flushed; and at length, with a bold effort, "Why, Mr. Titmouse," said he, trying desperately to look unconcerned—"the—the fact is, I never keep more than a dozen or so in my cellar—and most unfortunately I found this afternoon that six bottles had—burst—I assure you."

"'Pon my soul, sorry to hear it," quoth Titmouse, in a patronizing way; "must send you a dozen of my own—I always keep about fifty or a hundred dozen. Oh, I'll send you half a dozen!"

Tag-rag scarcely knew, for a moment, whether he felt pleased or mortified at this stroke of delicate generosity. Thus it was that Titmouse evinced a disposition to shower marks of his favor and attachment upon the Tag-rags, in obedience to the injunctions of Gammon, who assured him that it continued to be of very great importance for him to secure the good graces of Mr. Tag-rag. So Mr. Titmouse now drove up to Satin Lodge in his cab, and then rode thither, followed by his stylish groom; and on one occasion, artful little scamp! happening to find no one at home but Miss Tag-rag, he

nevertheless alighted, and stayed for nearly ten minutes, behaving precisely in the manner of an accepted suitor, aware that he might do so with impunity since there was no witness present; a little matter which had been suggested to him by Mr. Gammon. Poor Miss Tag-rag's cheek he kissed with every appearance of ardor, protesting that she was a monstrous lovely creature; and he left her in a state of delighted excitement, imagining herself the destined mistress of ten thousand a-year—the blooming bride of the gay and fashionable Mr. Titmouse. When her excellent parents heard of what had that day occurred between Mr. Titmouse and their daughter, they also looked upon the thing as quite settled, and were eager in their expressions of gratitude to Providence. In the mean while, the stream of prosperity flowed steadily in upon Mr. Tag-rag, his shop continuing crowded; his shopmen doubled in number:—in fact, he at length actually received, instead of giving payment, for allowing young men to serve a short time in so celebrated an establishment, in order that they might learn the first-rate style of doing business, and when established on their own account, write up over their doors—"Timothy Tape, *late from Tag-rag & Co., Oxford Street.*"

Determined to make hay while the sun shone, he resorted to several little devices for that purpose, such as a shirt-front with frills in the shape of a capital "T," and of which, under the name of "*Titties*," he sold immense numbers among the Eastern *swells* of London. At length it occurred to Gammon to suggest to Titmouse a mode of conferring upon his old friend and master a mark of permanent, public, and substantial distinction; and this was, the obtaining for him, through the Earl of Dreddlington, an appointment as one of the *royal tradesmen*—namely, draper and hosier to the king. When Mr. Tag-rag's disinterested and indefatigable benefactor, Gammon, called one day in Oxford Street, and, motioning him for a moment out of the bustle of his crowded shop, mentioned the honor which Mr. Titmouse was bent upon doing his utmost, at Mr. Gammon's instance, to procure for Mr. Tag-rag, that respectable person was quite at a loss for terms in which adequately to express his gratitude. Titmouse readily consented to name the thing to the great man, and urge it in the best way he could; and he performed his promise. The earl listened to his application with an air of anxiety. "Sir," said he, "the world is acquainted with my reluctance to ask favors of those in office. When I was in office myself, I felt the inconvenience of such applications abundantly. Besides, the

appointment you have named, happens to be one of considerable importance, and requiring great influence to procure it. Consider, sir, the immense number of tradesmen there are of every description, of whom drapers and hosiers (according to the last returns laid before Parliament at the instance of my friend Lord Goose) are by far the most numerous. All of them are naturally ambitious of so high a distinction: yet, sir, observe, that there is only one king and one royal family to serve. My Lord Chamberlain is, I have no doubt, harassed by applicants for such honors as you have mentioned."

Hereat Titmouse got startled at the unexpected magnitude of the favor he had applied for; and, declaring that he did not care a curse for Tag-rag, begged to withdraw his application. But the earl, with a mighty fine air, interrupted him—"Sir, you are not in the least presuming upon your relationship with me, nor do I think you overrate the influence I may happen—in short, sir, I will make it my business to see my Lord Ko-too this very day, and sound him upon the subject."

That same afternoon an interview took place between the two distinguished noblemen, Lord Dreddlington and Lord Ko-too. Each approached the other upon stilts. After a display of the most delicate tact on the part of Lord Dreddlington, Lord Ko-too, who made a mighty piece of work of it, promised to consider the application.

CHAPTER X.

Within a day or two afterwards, Mr. Tag-rag received a letter from the Lord Chamberlain's office, notifying him that his Majesty had been graciously pleased to appoint him draper and hosier to his Majesty! It occasioned him feelings of tumultuous pride and pleasure, similar to those with which the Earl of Dreddlington would have received tidings of his long-coveted marquisate having been conferred upon him. He started off, within a quarter of an hour after the receipt of the letter, to a carver and gilder a few doors off, and gave orders for the immediate preparation of a first-rate cast, gilded, of the royal arms; which, in about a week's time, might be seen, a truly resplendent object, dazzlingly conspicuous over the central door of Mr. Tag-rag's establishment, inspiring awe into the minds of passers-by, and envy into Mr. Tag-rag's neighbors and rivals. He immediately sent off letters of gratitude to Mr. Titmouse, and to "the Right Honorable, the Most Noble the Earl of Dreddlington;" to the latter personage, at the same time, forwarding a most splendid crimson satin flowered dressing-gown, as "an humble token of his gratitude for his Lordship's mark of particular condescension."

Both the letter and the dressing-gown gave great satisfaction to the earl's valet, (than whom they never got any farther,) and who, having tried on the glistening addition to his wardrobe, forthwith sat down and wrote a very fine reply, in his Lordship's name, to the note which had accompanied it, taking an opportunity to satisfy his conscience, by stating to the earl the next morning that a Mr. Tag-rag had "*called*" to express his humble thanks for his Lordship's goodness. He was, moreover, so well satisfied with this specimen of Mr. Tag-rag's articles, that he forthwith opened an account with him, and sent a very liberal order to start with. The same thing occurred with several of the subordinate functionaries at the palace; and—to let my reader, a little prematurely, however, into a secret—this was the extent of the additional custom which Mr. Tag-rag's appointment secured him; and, even for these supplies, I never heard of his getting paid. But it did wonders with him in the estimation of the world. 'Twas evident that he was in a fair way of becoming the head house in the trade. His appointment caused no

little ferment in that nook of the city with which he was connected. The worshipful Company of Squirt-Makers elected him a member; and on a vacancy suddenly occurring in the ward to which he belonged, for he had a considerable shop in the city also, he was made a common council-man. Mr. Tag-rag soon made a great stir as a champion of civil and religious liberty. As for church and county rates, in particular, he demonstrated the gross injustice and absurdity of calling upon one who had no *personal* occasion for the use of a church, of a county bridge, a county jail, or a lunatic asylum, to be called upon to contribute to the support of them. A few speeches in this strain attracted so much attention to him, that several leading men in the ward (a very "liberal" one) intimated to him that he stood the best chance of succeeding to the honor of alderman on the next vacancy; and when he and Mrs. Tag-rag were alone together, he would start the subject of the expenses of the mayoralty with no little anxiety. He went to the chapel no longer on foot, but in a stylish sort of covered gig, with a kind of coal-scuttle shaped box screwed on behind, into which was squeezed his footboy, (who, by the way, had a thin stripe of crimson let into each leg of his trousers, upon Mr. Tag-rag's appointment to an office under the Crown;) he was, also, always a trifle later in arriving at the chapel, than he had been accustomed to be. He had a crimson velvet cushion running along the front of his pew, and the Bibles and hymn-books very smartly gilded. He was presently advanced to the honored post of chief deacon; and on one occasion, in the unexpected absence of the central luminary of the system, was asked to occupy the chair at a "great meeting" of the SOCIETY FOR THE PROMOTION OF CIVIL AND RELIGIOUS DISCORD; when he took the opportunity of declaring his opinion, which was enthusiastically cheered, that the principles of free trade ought to be applied to religion; and that the voluntary system was that which was designed by God to secure the free blessings of competition in spiritual teaching. As for Satan Lodge, he stuck two little wings to it; and had one of the portraits of Tittlebat Titmouse (as Tippetiwink) hung over his drawing-room mantel-piece, splendidly framed and glazed.

Some little time after Tag-rag had obtained the royal appointment, which I have been so particular in recording, Gammon, *happening* to be passing his shop, stepped in, and observing Mr. Tag-rag, very cordially greeted him; and then, as if it had been a thought of the moment only, without taking him from the shop, intimated that he had been westward, engaged in completing

the formal details of a rearrangement of the greater portion of Mr. Titmouse's extensive estates, upon which that gentleman had recently determined, and the sight of Mr. Tag-rag's establishment had suggested to Mr. Gammon, that possibly Mr. Tag-rag would feel gratified at being made a party—for form's sake—to the transaction; as Mr. Gammon was sure that Mr. Titmouse would feel delighted at having associated with the Earl of Dreddlington, and one or two other persons of distinction, in the meditated arrangement, the name of so early and sincere a friend as Mr. Tag-rag; "one who, moreover"—here Gammon paused, and gave a smile of inexpressible significance, "but it was not for *him* to hint his suspicions"——

"Sir—I—I—*will* you come into my room?" interrupted Tag-rag, rather eagerly, anxious to have a more definite indication of Mr. Gammon's opinion; but that gentleman, looking at his watch, pleaded want of time, and suddenly shaking Mr. Tag-rag by the hand, moved towards the door.

"You were talking of signing, sir—Have you got with you what you want signed? I'll sign anything!—anything for Mr. Titmouse; only too proud—it's quite an honor to be in any way connected with him!" Gammon, on hearing this, felt in his pockets, as if he supposed that he should find there what he perfectly well knew had been lying ready, cut and dried, in his safe at Saffron Hill for months.

"I find I have not got the little document with me," said he, carelessly; "I suppose it's lying about, with other loose papers, at the office, or I may have left it at the earl's"—[though Gammon's objects required him here to allude to the Earl of Dreddlington, I think it only fair to say that he had never been, for one instant in his life, in that great man's company.]

"I'll tell you what, Mr. Gammon." said Tag-rag, considering—"Your office is at Saffron Hill? Well, I shall be passing in your direction to-morrow, on my way to my city establishment, about noon, and will look in and do all you wish."

"Could you arrange to meet the earl there?—or, as his Lordship's movements are—ah, ha!—not very"——

"Should be most proud to meet his Lordship, sir, to express my personal gratitude"——

"Oh, the earl never likes to be reminded, Mr. Tag-rag, of any little courtesy or kindness he may have conferred! But if you will be with us about twelve, we can wait a little while; and if his Lordship should not be punctual, we must even let you sign first, ah, ha!—and explain it to his Lordship on his arrival, for I know your time is very precious, Mr. Tag-rag! Gracious! Mr. Tag-rag, what a constant stream of customers you have!—I heard it said, the other day, that you were rapidly absorbing all the leading business in your line in Oxford Street."

"You're very polite, Mr. Gammon! Certainly, I've no reason to complain. I always keep the best of everything, both here and in the city, and sell at the lowest prices, and spare no pains to please; and it's hard if"——

"Ah, how do you do?" quoth Gammon, suddenly starting, and bowing to some one on the other side of the way, whom he did *not* see. "Well, good-day, Mr. Tag-rag—good-day! To-morrow at twelve, by the way?"

"I'm yours to command, Mr. Gammon," replied Tag-rag; and so they parted. Just about twelve o'clock the next day, the latter, in a great bustle, saying he had fifty places to call at in the city, made his appearance at Saffron Hill.

"His Lordship a'n't here, I suppose?" quoth he, after shaking hands with Mr. Quirk and Mr. Gammon. The latter gentleman pulled out his watch, and, shrugging his shoulders, said with a smile, "No—we'll give him half an hour's grace."

"Half an hour, my dear sir!" exclaimed Tag-rag, "I couldn't stay so long, even for the high honor of meeting his Lordship. I am a man of business, he isn't; first come first served, you know, eh? All fair that!" There were a good many recently engrossed parchments and writings scattered over the table, and from among them Gammon, after tossing them about for some time, at length drew out a sheet of foolscap. It was stamped, and there was writing upon the first and second pages.

"Now, gentlemen, quick's the word—time's precious!" said Tag-rag, taking up a pen and dipping it into the inkstand. Gammon, with an unconcerned air, placed before him the document he had been looking for. "Ah, how well I know the handwriting! That flourish of his—a sort of boldness about it, a'n't there?" said Tag-rag, observing the signature of Titmouse immediately above the spot on which he was going to place his own; there being written

in pencil, underneath, the word "Dreddlington," evidently for the intended signature of the earl. "I'm between two good ones, at any rate, eh?" said Tag-rag. Gammon or Quirk said something about a "term to attend the inheritance"—"trustee of an outstanding term"—"legal estate vested in the trustees"—"too great power to be put in the hands of any but those of the highest honor."

"Stay!" quoth Gammon, ringing his little hand-bell—"nothing like regularity, even in trifles." He was answered by one of the clerks, a very dashing person—"We only wish you to witness a signature," said Gammon. "Now, we shall release you, Mr. Tag-rag, in a moment. Say 'I deliver this as my act and deed'—putting your finger on the little wafer there."

So said and so did Mr. Tag-rag as he had been directed; the clerk wrote his name under the witnessing clause, "Abominable Amminadab;" and from that moment Mr. Tag-rag had unconsciously acquired an interest in the future stability of Mr. Titmouse's fortunes, to the extent of some FORTY THOUSAND POUNDS.

"Now, gentlemen, you'll make my compliments to his Lordship, and if he asks how I came to sign before him, explain the hurry I was in. Time and tide wait for no man. Good-morning, gentlemen; good-morning; best regards to our friend, Mr. Titmouse." Gammon attended him to the door, cordially shaking him by the hand, and presently returned to the room he had just quitted, where he found Mr. Quirk holding in his hand the document just signed by Tag-rag; which was, in fact, a joint and several bond, conditioned in a penalty of forty thousand pounds, for the due repayment, by Titmouse, of twenty thousand pounds, and interest at five per cent, about to be advanced to him on mortgage of a portion of the Yatton property. Gammon, sitting down, gently took the instrument from Mr. Quirk, and with a bit of India-rubber calmly effaced the pencilled signature of "*Dreddlington*."

"You're a ve—ry clever fellow, Gammon!" exclaimed Mr. Quirk, presently, with a sort of sigh, and after, as it were, holding his breath for some time. Gammon made no reply. His face was slightly pale, and wore an anxious expression. "It will do *now*," continued Mr. Quirk, rubbing his hands, and with a gleeful expression of countenance.

"That remains to be seen," replied Gammon, in a low tone.

"Eh? What? Does anything occur—eh? By Jove, no screw loose, I hope?"

"No—but we're in *very deep water* now, Mr. Quirk"——

"Well—devil only cares, so long as *you* keep a sharp look-out, Gammon. I'll trust the helm to you! I'll pit you against Old Nick any day, friend Gammon!"

As Gammon did not seem in a talkative mood, Quirk shortly afterwards left him.

Now, though Mr. Tag-rag is no favorite of mine, I begin to feel a good deal of anxiety on his behalf. I wish he had not been in so vast a "hurry," in a matter which required such grave deliberation, as "signing, sealing, and delivering." When a man is called on to go through so serious a ceremony, it would be well if he could be apprised of the significance of the formula—"I deliver this as my act and deed." Thus hath expressed himself upon this point, a great authority in the law, old Master Plowden. 'T is a passage somewhat quaint in form, but not the less forcible and important in substance:—

"Words are oft *spoken* unadvisedly, and pass from men lightly and inconsiderately; but, where the agreement is by *deed*, there is more time for deliberation; for when a man passes a thing by deed, first, there is the determination of the mind to do it, and upon that he causes it to be *written*, which is one part of deliberation; and, afterwards, he *puts his seal to it*, which is another part of deliberation; and, lastly, he *delivers the writing as his deed*, which is the consummation of his resolution. So that there is great deliberation used in the making of deeds, for which reason they are received as a *lien*, final to the party, and are adjudged to bind the party, without examining upon what cause or consideration they were made."[\[24\]](#)

Possibly some one now reading these pages hath had most dismal experience in the matter above mentioned; and I hope that such dismal experience, a due reflection will avert from many a reader. As for Tag-rag, it may turn out that our fears for him are groundless: nevertheless *one hates to see men do important things in a hurry*:—and, as we shall lose sight of Mr.

Tag-rag for some time, there can be no harm in wishing him well out of what he has just done.

"If it were *done* when 't is done, then 't were
well
It were done *quickly*"—

and not otherwise.

The London season was now advancing towards its close. Fine ladies were sated and exhausted with operas, concerts, balls, routs, soirées, assemblies, bazaars, fêtes, and the Park. Their lords were getting tired of their clubs during the day, and hurried dinners, late hours, foul air, and long speeches, at the two Houses; where, however they might doze away the time, they could seldom get the luxury of a downright nap for more than an hour or two together—always waking, and fancying themselves in the tower of Babel, and that it was on fire, so strange and startling were the lights and the hubbub! The very whippers-in were looking jaded and done—each being like a Smithfield drover's dog on a Monday night, which at length can neither bark nor bite in return for a kick or a blow, and, hoarse and wearied, falls asleep on his way home—a regular somnambulist. Where the Earl of Dreddlington and Lady Cecilia were to pass their autumn, was a question which they were beginning to discuss rather anxiously. Any one glancing over their flourishing list of residences in England, Scotland, Wales, and Ireland, which were paraded in the Peerages and Court Guides, would have supposed that they had an ample choice before them: but the reader of this history knows better. The mortifying explanation—mortifying to the poor earl—having been once given by me, I shall not again do so. Suffice it to say, that Poppleton Hall, Hertfordshire, had its disadvantages; there they must keep up a full establishment, and receive county company and other visitors—being in arrear with much hospitality. 'Twas expensive work, also, at the watering-places; and expensive and also troublesome to go abroad at the earl's advanced period of life. Pensively ruminating on these matters one evening, they were interrupted by a servant bringing in a note, which proved to be from Titmouse—inviting them, in terms of profound courtesy and great cordiality, to honor Yatton, by making a stay there during as great a portion of the autumn as they could not better occupy. Mr. Titmouse frankly added, that he could not avoid acknowledging some little degree of

selfishness in giving the invitation—namely, in expressing a hope that the earl's presence would afford him, if so disposed, an opportunity of introducing his host to any of the leading members of the county who might be honored by the earl's acquaintance; that, situated as Titmouse was, he owned to an increasing anxiety on that point. He added, that he trusted the earl and Lady Cecilia would consider Yatton, while they were there, as in all respects their own residence, and that no exertion should be wanting to render their stay as agreeable as possible. The humble appeal of Titmouse prevailed with his august kinsman; who, on the next day, sent him a letter saying that his Lordship fully recognized the claims which Mr. Titmouse had upon him as the head of the family, and that his Lordship should feel very glad in availing himself of the opportunity which offered itself, of placing Mr. Titmouse on a proper footing of intercourse with the people of the county. That, for this purpose, His Lordship should decline any invitations they might receive to pass their autumn elsewhere, &c. &c. &c. In plain English, they jumped (but as decorously as possible) at the invitation. It had emanated originally from Gammon, who, from motives of his own, had suggested it to Titmouse, bade him act upon it, and had drawn up the letter conveying it. I say, from motives of his own, Gammon was bent upon becoming personally acquainted with the earl, and fixing himself, if possible, thoroughly in his Lordship's confidence. He had contrived to ascertain from Titmouse, without that gentleman's being, however, aware of it, that the few occasions on which his (Gammon's) name had been mentioned by the earl, it had been accompanied by slighting expressions—by indications of even dislike and suspicion. Give him, however, thought he, but the opportunity, and he could very soon change the nature of the earl's feelings towards him. As soon, therefore, as the earl's acceptance of the invitation had been communicated to Gammon, he resolved to be one of the guests at Yatton during the time of the earl's stay—a step, into the propriety of which he easily brought Mr. Quirk to enter, but which he did not, for the present, communicate to Titmouse, lest he should, by prematurely disclosing it to the earl, raise any obstacle, arising out of an objection on the part of his Lordship; who, if he but found Gammon actually *there*, must submit to the infliction with what grace he might. In due time it was notified on the part of the earl, by his man of business, to Mr. Titmouse, (who had gone down to Yatton,) through *his* man of business, that the earl, and a formidable portion of his establishment, would make

their appearance at Yatton by a named day. The earl had chosen to extend the invitation to Miss Macspleuchan and also to as many attendants as he thought fit to take with him, instead of letting them consume their board wages in entire idleness in town or at Poppleton. Heavens! what accommodation was required, for the earl, for the Lady Cecilia, each of their personal attendants, Miss Macspleuchan, and five servants! Then there were two other guests invited, in order to form company and amusement for the earl—the Marquis Gants-Jaunes de Millefleurs, and a Mr. Tuft. Accommodation must be had for these; and, to secure it, Mr. Titmouse and Mr. Gammon were driven to almost the extremities of the house. Four servants, in a sort of baggage-wagon, preceded the arrival of the earl and Lady Cecilia by a day or two, in order to "arrange everything;" and, somehow or another, one of the first things that was done with this view, was to install his Lordship's chief servants in the quarters of Mr. Titmouse's servants, who, it was suggested, should endeavor to make themselves as comfortable as they could in some little unfurnished rooms over the stables! And, in a word, before Mr. Titmouse's grand guests had been at the Hall four-and-twenty hours, there was established there the same freezing state and solemn ceremony which prevailed in the earl's own establishment. Down came at length, thundering through the village, the earl's dusty travelling-carriage and four; himself, Lady Cecilia, and Miss Macspleuchan within, his valet and Lady Cecilia's maid behind: presently it wound round the park road, crashing and flashing through the gravel, and rattling under the old gateway, and at length stood before the Hall door—the reeking horses pulled up with a sudden jerk, which almost threw them all upon their haunches. Mr. Titmouse was in readiness to receive his distinguished visitors; the carriage-door was opened—down went the steps—and in a few moments' time the proud old Earl of Dreddlington and his proud daughter, having entered the Hall, had become the guests of its flustered and ambitious little proprietor. While all the visitors—great and small—are occupied in their dressing-rooms, recovering themselves from the cramp and fatigue of a long journey, and are preparing to make their appearance at dinner, let me take the opportunity to give you a sketch of the only one of them, of the smaller sort, to whom you are at present a stranger: I mean Mr. Tuft—Mr. VENOM TUFT.

Oft hath an inexperienced mushroom-hunter, deceived at a distance, run up to secure what seemed to be a fine cluster of mushrooms, growing under the

shade of a stately tree, but which, on stooping down to gather them, he discovers with disappointment and disgust to be no mushrooms at all, but vile, unwholesome—even poisonous funguses: which, to prevent their similarly deluding others, he kicks up and crushes under foot. And is not this a type of what often happens in society? Under the "cold shade of aristocracy," how often is to be met with—the SYCOPHANT?—Mr. Venom Tuft was one of them. His character was written in his face. Disagreeable to look at—though *he* thought far otherwise—he yet contrived to make himself pleasant to be listened to, for a while, by the languid and *ennuyé* fashionable. He spoke ever—

"In a *toady's* key,
With bated breath and whispering
humbleness."

His person was at once effeminate and coarse; his gesture and address were cringing—there was an intolerable calmness and gentleness about them at all times, but especially while laboring in his vocation. He had the art of administering appropriate and acceptable flattery by a look only, deferential and insinuating—as well as by words. He had always at command a copious store of gossip, highly seasoned with scandal; which he collected and prepared with industry and judgment. Clever toadies are generally bitter ones. With sense enough to perceive, but not spirit enough to abandon their odious propensities, they are aware of the ignominious spectacle they exhibit before the eyes of men of the least degree of independence and discernment, and whose open contempt they have not power or manliness enough to resent. Then their smothered rage takes an inward turn; it tends to, and centres in the tongue, from which it falls in drops of scalding virus; and thus it is, that the functions of sycophant and slanderer are so often found united in the same miserable individual. Does a sycophant fancy that his patron—if one may use such a term—is not aware of his degrading character and position? Would that he could but hear himself spoken of by those in whose presence he has last been prostrating himself! If he could but for one moment "see himself as others see him"—surely he would instantly wriggle out of the withering sight of man! But Mr. Tuft was not an everyday toady. Being a clever man, it occurred to him as calculated infinitely to enhance the value of his attentions, if he could get them to be regarded as

those of a man of some ability and reputation. So reasonable a wish, as thus to rise to eminence in the calling in life to which he had devoted himself—viz. toadyism—stimulated him to considerable exertion, which was in time rewarded by a measure of success; for he began to be looked on as *something* of a literary man. Then he would spend his mornings in reading up, in those quarters whence he might cull materials for display in society at a later period of the day; when he would watch his opportunity, or, if none presented itself, make one, by diverting the current of conversation into the channel on which was the gay and varied bordering of his very recent acquisitions. All his knowledge was of this gossiping *pro hâc vice* character. —He was very skilful in administering his flattery. Did he dine with his Grace, or his Lordship, whose speech in the House appeared in that or the preceding day's newspapers? Mr. Tuft got it up carefully, and also the speech in answer to it, with a double view—to show himself at home in the question! and then to differ a little with his Grace, or his Lordship, in order to be presently convinced, and set right by them! Or when conversation turned upon the topics which had, over-night, called up his Grace or his Lordship on his legs, Mr. Tuft would softly break in by observing that such and such a point had been "admirably put in the debate by *some one* of the speakers—he did not recollect whom;" and on being apprised of, and receiving a courteous bow from, the great man entitled to the undesigned compliment, look so surprised—almost, indeed, piqued! Carefully, however, as he managed matters, he was soon found out by *men*, and compelled to betake himself, with ten-fold ardor, to the women, with whom he lasted a little longer. *They* considered him a great literary man; for he could quote and criticise a good deal of poetry, and abuse many novels. He could show that what everybody else admired was full of faults; what all condemned was admirable: so that the fair creatures were forced to distrust their own judgment, in proportion as they deferred to his. He would allow no one to be entitled to the praise of literary excellence except individuals of rank, and one or two men of established literary reputation, who had not thought it worth their while to repel his obsequious advances, or convenient not to do so. Then he would polish the poetry of fine ladies, touch up their little tales, and secure their insertion in fashionable periodicals. On these accounts, and of his piquant tittle-tattle, no *soirée* or *conversazione* was complete without him, any more than without tea, coffee, ice, or lemonade. All toadies hate one another; but his brethren both hated and feared Mr.

Tuft; for he was not only so successful himself, but possessed and used such engines for *depressing them*. Mr. Tuft had hoped to succeed in being popped in by one of his patrons for a snug little borough; but the great man got tired of him, and turned him off, though the ladies of the family still secured him occasional access to the dinner-table. He did not, however, make a very grateful return for such good-natured condescensions. Ugly and ungainly as he was, he yet imagined himself possessed of personal attractions for the ladies, and converted their innocent and unsuspecting familiarities, which had emanated from those confident in their purity and their elevation, into tokens of the ascendancy he had gained over them; and of which, with equal cruelty, folly, and presumption, he would afterwards boast pretty freely. Till this came, however, to be suspected and discovered, Mr. Tuft visited a good many leading houses in town, and spent no inconsiderable portion of each autumn at some one or other of the country mansions of his patrons—from whose "castles," "halls," "abbeys," "priories," and "seats," he took great pride in dating his letters to his friends. I must not forget to mention that he kept a book, very gorgeously bound and embellished, with silver-gilt clasps, and bearing on the back the words—"Book of Autographs;" but I should have written it—"Trophies of Toadyism." This book contained autograph notes of the leading nobility, addressed familiarly to himself, thus:—

"The Duke of Walworth presents his compliments to Mr. Tuft, and feels particularly obliged by," &c.

"The Duchess of Diamond hopes Mr. Tuft will not forget to bring with him this evening," &c.

"The Marquis of M—— has the honor to assure Mr. Tuft that," &c.

"Dear Mr. Tuft,

"Why were you not at —— House last night? We were dreadfully dull without you! X —— just as stupid as you always say he *is*."

[This was from a very pretty and fashionable countess, whose initials it bore.]

"If Mr. Tuft is dead, Lady Dulcimer requests to be informed when his funeral will take place, as she, together with a host of mourners, intends to show him a last mark of respect."

"Dear Mr. Tuft,

"The poodle you brought me has got the mange, or some horrid complaint or other, which is making all his hair fall off. Do come and tell me what is to be done. Where can I send the sweet suffering angel?
—Yours,

ARABELLA D——."

[This was from the eldest and loveliest daughter of a very great duke.]

"The Lord Chancellor presents his compliments, and begs to acknowledge the receipt of Mr. Venom Tuft's obliging present of his little '*Essay on Greatness*.'"

These are samples, taken at random, of the contents of Mr. Tuft's book of autographs, evidencing abundantly the satisfactory terms of intimacy upon which he lived with the great; and it was ecstasy to him, to see this glittering record of his triumphs glanced over by the envious admiring eyes of those in his own station in society. How he delighted to be asked about the sayings and doings of the exclusive circles! How confidentially would he intimate the desperate condition of a sick peer—an expected *éclaircissement* of some fashionable folly and crime—or a move to be made in the Upper House that evening! Poor Tuft little suspecting (lying so snug in his shell of self-conceit) how frequently he fell, on these occasions, among the Philistines—and was, unconsciously to himself, being trotted out by a calm sarcastic hypocrite, for the amusement of the standers-by, just as a little monkey is poked with a stick to get up and exhibit himself and his tricks. Such was Mr. Tuft, a great friend and admirer of "the marquis," through whose influence he had procured the invitation from Titmouse, in virtue of which he was now dressing in a nice little room at the back of the Hall, overlooking the stables; being bent upon improving his already tolerably familiar acquaintance with the Earl of Dreddlington and Lady Cecilia, and also extracting from the man whose hospitality he was enjoying, materials for merriment among his great friends against the next season.

When the party had collected in the drawing-room in readiness for dinner, you might have seen Mr. Tuft in earnestly respectful conversation with the Lady Cecilia; Mr. Gammon standing talking to Miss Macspleuchan, with an

air of courteous ease and frankness—having observed her sitting neglected by everybody; the earl conversing now with the marquis, then with Titmouse, and anon with Tuft, with whom he appeared to be particularly pleased. Happening at length to be standing near Gammon—a calm, gentlemanlike person of whom he knew nothing, nor suspected that his keen eye had taken in his Lordship's true character and capacity at a glance; nor that he would, in a few hours' time, acquire as complete a mastery over his said Lordship, as ever the present famous *hippodamist* at Windsor, ^[25] by touching a nerve in the mouth of a horse, reduces him to helpless docility and submission—the earl and he fell into casual conversation for a moment or two. The air of deference with which Gammon received the slight advances of the great man, was exquisite and indescribable. It gave him clearly to understand that his lofty pretensions were known to, and profoundly appreciated by, the individual whom he was addressing. Gammon said but little: that little, however, how significant and decisive! He knew that the earl would presently inquire of Titmouse who the unknown visitor was; and that on being told, in the conceited and probably disparaging manner which Gammon knew Titmouse would adopt, if he supposed it would please the earl, that "it was only Mr. Gammon, one of his solicitors," he would sink at once and forever beneath the notice of the earl. He resolved, therefore, to anticipate—to contrive that it should ooze out easily and advantageously from himself, so that he could see the effect it had upon the earl, and regulate his movements accordingly. Gammon sat down before the fortress of the earl's pride, resolved that, for all it appeared so inaccessible and impregnable, it should fall, however his skill and patience might be taxed in the siege. Till he had cast his piercing eye upon the earl, Gammon had felt a little of the nervousness which one may imagine would be experienced by Van Amburgh, who, on being called into the presence of majesty to give a specimen of his skill upon an animal concealed from him, of whose name and qualities he was ignorant—should summon all his terrors into his eye, and string his muscles to their highest tension; and, on the door being opened, turn with smiling scorn—if not indignation—from a sucking pig, a calf, an ass, or a chicken. Something similar were the feelings experienced by Gammon, as soon as he had scanned the countenance and figure of the Earl of Dreddlington. He quickly perceived that the dash of awe which he had thrown into his manner was producing its due effect upon that most magnificent simpleton. Watching

his opportunity, he gently introduced the topic of the recent change of ownership which Yatton had undergone; and in speaking of the manner in which Mr. Titmouse had borne his sudden prosperity—"Yes, my Lord," continued Gammon, with apparent carelessness, "I recollect making some such observation to him, and he replied, 'Very true, *Mr. Gammon*'"—Gammon finished his sentence calmly; but he perceived that the earl had withdrawn himself into his earldom. He had given a very slight start; a little color had mounted into his cheek; a sensible hauteur had been assumed, and by the time that Gammon had done speaking, the space between them had been—as Lord Dreddlington imagined, unobservedly—increased by two or three inches. Gammon was a *man*—an able and a proud man—and he felt galled; but, "let it pass," he presently reflected—"let it pass, you pompous old idiot; I will one day repay it with interest." The earl separated from him, Gammon regarding him as a gaudy craft sheering off for a while, but doomed to be soon sunk. Mr. Tuft, (who was the son of a respectable retired tobacconist,) having ascertained that Gammon was only Mr. Titmouse's attorney, conducted himself for a while as though there were no such person in the room; but being a quick observer, and catching once or twice the faint sarcastic smile with which Gammon's eye was settled on him, he experienced a very galling and uneasy consciousness of his presence. The marquis's superior tact and perception of character led him to treat Gammon very differently—with a deference and anxiety to please him, which Gammon understood thoroughly—in fact, he and the marquis had many qualities in common, but Gammon was the man of *power*. During dinner he sat beside Miss Macspleuchan, and was almost the only person who spoke to her—in fact, he said but little to any one else. He took wine with Titmouse with a marked, but guarded, air of *confidence*. The marquis took wine with Gammon with an air of studied courtesy. The earl's attention was almost entirely engrossed by Mr. Tuft, who sat next to him, chattering in his ear like a little magpie perched upon his shoulder. The marquis sat next to the Lady Cecilia; for whose amusement, as far as his cautious tact would allow him, he from time to time drew out their little host. At length, in answer to a question by the marquis, the earl let fall some pompous observation, from which the marquis, who was getting very tired of the vapid monotony which pervaded the table, ventured to differ pretty decisively. Tuft instantly sided with the earl, and spoke with infinite fluency for some minutes: Gammon saw in a moment that he was an absurd

pretender; and watching his opportunity, for the first time that he had interchanged a syllable with him, with one word exposing a palpable historical blunder of poor Tuft's, overthrew him as completely as a bullet from a crossbow dislodges a tomtit from the wall on which he is hopping about, unconscious of his danger. 'Twas a thing that there could be no mistake about whatever.

"That's a *settler*, Tuft," said the marquis, after a pause: Tuft reddened violently, and gulped down a glass of wine; and presently, with the slightly staggered earl, became a silent listener to the discussion into which the marquis and Gammon had entered. Obtuse as was the earl, Gammon contrived to let him see how effectually he was supporting his Lordship's opinion, which Mr. Tuft had so ridiculously failed in. The marquis got slightly the worst of the encounter with Gammon, whose object he saw, and whose tact he admired; and with much judgment permitted Gammon to appear to the earl as his successful defender, in order that he might himself make a friend of Gammon. Moreover, he was not at all annoyed at witnessing the complete and unexpected discomfiture of poor Tuft, whom, for all his intimacy with that gentleman, the marquis thoroughly despised.

However it might possibly be that his grand visitors enjoyed themselves, it was far otherwise with Mr. Titmouse; who, being compelled to keep sober, was quite miserable. None of those around him were drinking men:—and the consequence was, that he would retire early to his bedroom, and amuse himself with brandy and water, and cigars, leaving his guests to amuse themselves with cards, billiards, or otherwise, as best they might. He did, indeed, "stand like a cipher in the great account;" instead of feeling himself the Earl of Dreddlington's host, he felt himself as one of his Lordship's inferior guests, struggling in vain against the freezing state and etiquette which the earl carried with him wherever he went, like a sort of atmosphere. In this extremity he secretly clung to Gammon, and reposed upon his powerful support and sympathy more implicitly than ever he had done before. As the shooting season had commenced, and game was plentiful at Yatton, the marquis and Tuft found full occupation during the day, as occasionally did Mr. Gammon. Mr. Titmouse once accompanied them; but having contrived very nearly to blow his own hand off, and also to blow out the eyes of the marquis, it was intimated to him that he had better go out alone for the future—as he did accordingly, but soon got tired of such

solitary sport. Besides—hares, pheasants, partridges—old and young, cock or hen—'twas all one—none of them seemed to care one straw for him or his gun, let him pop and blaze away as loud and as long, as near or as far off, as he liked. The only thing he hit—and that plump—was one of his unfortunate dogs, which he killed on the spot; and then coming up with it, stamped upon the poor creature's bleeding carcass, saying with a furious oath—"Why didn't you keep out of the way, then, you brute?"

The earl was really anxious to perform his promise of introducing, or procuring introduction for Titmouse, to the leading nobility and gentry of the county; but it proved a more difficult task than his Lordship had anticipated—for Titmouse's early doings at Yatton had not yet been forgotten. Some of the haughty Whig gentry joined with their Tory neighbors in manifesting their open contempt and dislike, for one who could so disgrace the name and station to which he had been elevated in the county; and the earl had to encounter one or two somewhat mortifying rebuffs, in the course of his efforts for the establishment of his young kinsman. There were some, however, whom mere political considerations—others, whom deference for the earl's rank, and unwillingness to hurt his feelings—induced to receive the new Squire of Yatton on a footing of formal intimacy and equality; so that his Lordship's dignified exertions were not entirely useless. The whole party at the Hall attended the earl to church on the Sundays—entirely filling the squire's pew and the adjoining one; their decorous conduct presenting a very edifying spectacle to the humble congregation, and suggesting a striking contrast between the present, and the former, visitors of Mr. Titmouse. Worthy Dr. Tatham was asked several times to dinner, at the earl's instance; by whom he was treated on such occasions with great, though stately, courtesy. The only persons with whom the little doctor felt at his ease, were Mr. Gammon and Miss Macspleuchan, who treated him with the utmost cordiality and respect. What became during the day of the two ladies, I hardly know. There was no instrument at Yatton: bagatelle-board, and novels from a circulating library at York, frequent rides and drives through the grounds and about the country, and occasional visits to and from one or two families with whom Lady Cecilia had a town acquaintance, occupied their day; and in the evening, a rubber at whist, or *écarté*, with the earl—sometimes, too, with the marquis and Mr. Tuft, both of whom lost no opportunity of paying marked attention to Lady Cecilia, with a view of dissipating as far as

possible the inevitable ennui of her situation—would while away the short evenings, very early hours being now kept at the Hall. 'Twas wonderful that two such men as the marquis and Mr. Tuft could stay so long as they did at so very dull a place, and with such dull people. Inwardly they both voted the earl an insufferable old twaddler; his daughter a piece of languid insipidity; and one would have thought it daily more irksome for them to keep up their courtly attentions. They had, however, as may presently be seen, objects of their own in view.

As Gammon, a little to the earl's surprise, continued apparently a permanent guest at the Hall, where he seemed ever engaged in superintending and getting into order the important affairs of Mr. Titmouse, it could hardly be but that he and the earl should be occasionally thrown together; for as the earl did not shoot, and never read books, even had there been any to read, he had little to do, when not engaged upon the expeditions I have alluded to, but saunter about the house and grounds, and enter into frivolous, but solemn and formal conversation with almost any one he met. The assistance which Gammon had rendered the earl on the occasion of their first meeting at dinner, had not been forgotten by his Lordship, but had served to take off the edge from his preconceived contemptuous dislike for that gentleman. Gammon, however, steadily kept in the background, resolved that all advances should come from the earl. When, once or twice, his Lordship inquired, with what Gammon saw to be only an affected carelessness, into the state of Mr. Titmouse's affairs, Mr. Gammon evinced a courteous readiness to give him *general* information; but with an evident caution and anxiety, not unduly to expose, even to the earl—to Mr. Titmouse's distinguished kinsman, the state of his property. He would, however, disclose sufficient to demonstrate his zeal and ability on behalf of Mr. Titmouse's interests, his consummate qualifications as a man of business; and from time to time perceived that his display was not lost upon the earl. Mr. Gammon's anxiety, in particular, to prevent the borough of Yatton from being a second time wrested out of the hands of its proprietor, and returning, by a corrupt and profligate arrangement with Ministers, a Tory to Parliament, gave the earl peculiar satisfaction. He was led by the mention of this topic into a long conversation with Mr. Gammon upon political matters; and, at its close, was greatly struck with the soundness of his views, the decision and strength of his liberal opinions, and the vigor and acuteness with which he had throughout agreed with everything the earl had said, and

fortified every position he had taken; evincing, at the same time, a profound appreciation of his Lordship's luminous exposition of political principles. The earl was forced to own to himself, that he had never before met with a man of Mr. Gammon's strength of intellect, whose views and opinions had so intimately and entirely coincided—were, indeed, identical with his own. 'Twas delightful to witness them upon these occasions—to observe the air of reverence and admiration with which Gammon listened to the lessons of political wisdom which fell, with increasing length and frequency, from the lips of his Lordship.

"Του καί ἀπό γλώσσης μέλιτος γλυκίων ῥέεν αὐδή."

Nor was it only when they were alone together, that Gammon would thus sit at the feet of Gamaliel; he was not ashamed to do so openly at the dinner-table; but, ah! how delicately and dexterously did he conceal from the spectators the game he was playing—more difficult to do so, though it daily became—because, the more willing Gammon was to receive, the more eager the earl was to communicate instruction! If, on any of these occasions, oppressed by the multifariousness of his knowledge, and its sudden overpowering confluence, he would pause in the midst of a little series of half-formed sentences, Gammon would be, at hand, to glide in easily, and finish what the earl had begun, out of the earl's ample and rich materials, of which Gammon had caught a glimpse, and only worked out the earl's own, somewhat numerous, half-formed illustrations. The marquis and Mr. Tuft began, however, at length to feel a little impatient at observing the way which Gammon was making with the earl; but of what use was it for them to interfere? Gammon was an exceedingly awkward person to meddle with; for having once got fair play, by gaining the earl's ear, his accuracy, readiness, extent of information upon political topics, and admirable temper, told very powerfully against his two opponents, who at length interfered less and less with him; the marquis only *feeling* pique, but Tuft also *showing* it. Had it been otherwise, indeed, with the latter gentleman, it would have been odd; for Gammon seemed to feel a peculiar pleasure in demolishing him. The marquis, however, once resolved to show Gammon how distinctly he perceived his plan of operations, by waiting till he had accompanied the poor earl up to a climax of absurdity; and then, with his eye on Gammon, bursting into laughter. Seldom had Gammon been more ruffled than by that well-timed laugh; for he felt *found out*!

When the earl and his astute companion were alone, the latter would listen with lively interest, over and over again, never wearied, to his Lordship's magnificent accounts of what he had intended to do, had he only continued in office, in the important department over which he had presided, viz. the Board of Green Cloth; and more than once put his Lordship into a soft flutter of excitement, by hinting at rumors which, he said, were rife—that in the event of a change of ministers, which was looked for, his Lordship was to be President of the Council. "Sir," the earl would say, "I should not shrink from the performance of my duty to my sovereign, to whatever post he might be pleased to call me. The one you mention, sir, has its peculiar difficulties; and if I know anything of myself, sir, it is one for which—I should say—I am peculiarly qualified. Sir, the duty of presiding over the deliberations of powerful minds, requires signal discretion and dignity, because, in short, especially in affairs of state—Do you comprehend me, Mr. Gammon?"

"I understand your Lordship to say, that where the occasion is one of such magnitude, and the disturbing forces are upon so vast a scale, to moderate and guide conflicting interests and opinions"——

"Sir, it is so; *tantas componere lites, hic labor, hoc opus*," interrupted the earl, with a desperate attempt to fish up a fragment or two of his early scholarship; and his features wore for a moment a solemn commanding expression, which satisfied Gammon of the sway which his Lordship would have had when presiding at the council-board. Gammon would also occasionally introduce the subject of heraldry, asking many anxious questions concerning that exalted science, and also respecting the genealogies of leading members of the peerage, with which he safely presumed that the earl would be, as also he proved, perfectly familiar; and his Lordship would go on for an hour at once upon these interesting and most instructive subjects.

Shortly after luncheon one day, of which only Gammon, the earl, and the two ladies, were in the Hall to partake, Mr. Gammon had occasion to enter the drawing-room, where he found the earl sitting upon the sofa, with his massive gold spectacles on, leaning over the table, engaged in the perusal of a portion of a work then in course of periodical publication, and which had only that morning been delivered at the Hall. The earl asked Gammon if he had seen it, and was answered in the negative.

"Sir," said the earl, rising and removing his glasses, "it is a remarkably interesting publication, showing considerable knowledge of a very difficult and all-important subject, and one, in respect of which the lower orders of the people in this country—nay, I lament to be obliged to add, the great bulk of the middle classes also, are wofully deficient—I mean heraldry, and the history of the origin, progress, and present state of the families of the old nobility and gentry of this country." The work which had been so fortunate as thus to meet with the approbation of the earl, was the last monthly number of a History of the County of York, of which, as yet, only thirty-eight seven-and-sixpenny quarto numbers had made their appearance. It formed an admirable and instructive publication, every number of which had contained a glorification of some different Yorkshire family. The discriminating patronage of Mr. Titmouse for this inestimable performance, had been secured by a most obsequious letter from the learned editor, but more especially by a device of his in the last number, which it would have been strange indeed if it could have failed to catch the eye, and interest the feelings of the new aristocratical owner of Yatton. Opposite to an engraving of the Hall, was placed a magnificent genealogical tree, surmounted by a many-quartered shield of armorial bearings, both of which purported to be an accurate record of the ancestral glories of the house of "TITMOUSE of YATTON!" A minute investigation might indeed have detected that the recent flight of *Titmice* which were perched on the lower branches of this imposing pedigree, bore nearly as small a proportion to the long array of chivalrous Drelincourts and Dreddlingtons which constituted the massive trunk, as did the paternal coat^[26] (to which the profound research and ingenuity of Sir GORGEOUS TINTACK, the Garter king-at-arms, had succeeded in demonstrating the inalienable right of Titmouse) to the interminable series of quarterings, derived from the same source, which occupied the remainder of the escutcheon. At these mysteriously significant symbols, however, Mr. Titmouse, though quite ready to believe that they indicated some just cause or other of family pride, had looked with the same appreciating intelligence which you may fancy you see a chicken displaying, while hesitatingly clapping its foot upon, and quaintly cocking its eye at, a slip of paper lying in a yard, covered over with algebraic characters and calculations. Far otherwise, however, was it with the earl, in whose eyes the complex and recondite character of the production infinitely enhanced its value, and struck in his bosom several deep chords of

genealogical feeling, as he proceeded, in answer to various anxious inquiries of Gammon, to give him a very full and minute account of the unrivalled splendor and antiquity of his Lordship's ancestry. Now be it understood that Gammon—while prosecuting the researches which had preceded the elevation of Mr. Titmouse to that rank and fortune of which the united voice of the fashionable world had now pronounced him so eminently worthy—had made himself pretty well acquainted with the previous history and connections of that ancient and illustrious house, of which the Earl of Dreddlington was the head; and his familiarity with this topic, though it did not *surprise* the earl, because he conceived it to be every one's duty to acquaint himself with such momentous matters, rapidly raised Gammon in the good opinion of his Lordship; to whom at length, it occurred to view him in quite a new light; viz. as the chosen instrument by whose means (under Providence) the perverse and self-willed Aubrey had been righteously cast down from that high place, which his rebellious opposition to the wishes and political views of his liege lord had rendered him unworthy to occupy; while a more loyal branch had been raised from obscurity to his forfeited rank and estates. In fact, the earl began to look upon Gammon as one, whose just regard for his Lordship's transcendent position in the aristocracy of England had led even to anticipate his Lordship's possible wishes; and proceeded accordingly to rivet this spontaneous allegiance, by discoursing with the most condescending affability on the successive noble and princely alliances which had, during a long series of generations, refined the ancient blood of the Drelincourts into the sort of super-sublimated ichor which at present flowed in his own veins. The progress of the earl's feelings was watched with the greatest interest by Mr. Gammon, who perceived the increasing extent to which respect for him was mingling with his Lordship's sublime self-satisfaction; and, watching the opportunity, struck a spark into the dry tinder of his Lordship's vain imagination, blew it gently—and saw that it caught and spread. Confident in his knowledge of the state of affairs, and that his Lordship had reached the highest point of credulity, Gammon had the almost incredible audacity to intimate, in a hesitating but highly significant manner, his impression, that the recent failure in the male line of the princely house of HOCH-STIFFELHAUSEN NARRENSTEIN DUMMLEINBERG^[27] had placed his Lordship, in right of the marriage of one of his ancestors, during the Thirty Years' War, with a princess of that august line, in a situation to claim, if such should be

his Lordship's pleasure, the dormant honors and sovereign rank attached to the possession of that important principality. The earl appeared for a few moments transfixed with awe! The bare possibility of such an event seemed too much for him to realize; but when further conversation with Gammon had familiarized his Lordship with the notion, his mind's eye involuntarily and naturally glanced to his old rival, the Earl of Fitz-Walter: what would *he* say to all this? How would *his* little honors pale beside the splendors of his Serene Highness the Prince of Hoch-Stiffelhausen Narrenstein Dummleinberg! He was not sorry when Mr. Gammon, soon afterwards, left him to follow out unrestrainedly the swelling current of his thoughts, and yield himself up to the transporting ecstasies of anticipated sovereignty. To such a pitch did his excitement carry him, that he might shortly afterwards have been seen walking up and down the Elm Avenue, with the feelings and air of an old KING.

Not satisfied, however, with the success of his daring experiment upon the credulity and inflammable imagination of the aspiring old nobleman—whom his suggestion had set upon instituting extensive inquiries into the position of the Dreddlington family with reference to the foreign alliances which it had formed in times past, and of which so dazzling an incident might really be in existence—it occurred to Mr. Gammon, on another occasion of his being left alone with the earl, and who, he saw, was growing manifestly more pleased with the frequent recurrence of them, to sink a shaft into a new mine. He therefore, on mere speculation, introduced, as a subject of casual conversation, the imprudence of persons of rank and large fortune devolving the management of their pecuniary affairs so entirely upon others—and thus leaving themselves exposed to all the serious consequences of employing incompetent, indolent, or mercenary agents. Mr. Gammon proceeded to observe that he had recently known an instance of a distinguished nobleman, (whose name—oh, Gammon!—he for very obvious reasons suppressed,) who, having occasion to raise a large sum of money by way of mortgage, left the sole negotiation of the affair to an agent, who was afterwards proved to have been in league with the lender, (the mortgagee,) and had permitted his employer to pay, for ten or twelve years, an excess of interest over that for which he might, had he chosen, have obtained the requisite loan, which actually made a difference in the distinguished borrower's income of a thousand a-year! Here, looking out of the northeast corner of his eye, the placid speaker, continuing unmoved,

observed the earl start a little, glance somewhat anxiously at him, but in silence, and slightly quicken the pace at which he had been walking. Gammon presently added, in a careless sort of way, that accident had brought him into professional intercourse with that nobleman—[Oh, Gammon! Gammon!]
—whom he was ultimately instrumental in saving from the annual robbery which was being inflicted upon him. It was enough; Gammon saw that what he had been saying had sunk like lead into the mind of his noble and acute companion, who, for the rest of the day, seemed burdened and oppressed with either it or some other cause of anxiety; and, from an occasional uneasy and wistful eye which the earl fixed upon him at dinner, he felt conscious that not long would elapse, before he should hear something from the earl connected with the topic in question—and he was not mistaken. The very next day they met in the park; and after one or two casual observations, the earl remarked that, by the way, with reference to their yesterday's conversation, it "*did so happen*"—very singularly—that the earl had a friend who was placed in a situation very similar to that which had been mentioned by Mr. Gammon to the earl; it was a *very intimate* friend—and therefore the earl would like to hear what was Mr. Gammon's opinion of the case. Gammon was scarcely able to refrain from a smile, as the earl went on, evincing every moment a more vivid interest in behalf of his mysterious "*friend*," who at last stood suddenly confessed as the Earl of Dreddlington himself; for in answer to a question of Mr. Gammon, his Lordship unwittingly spoke *in the first person*! On perceiving this, he got much confused; but Gammon passed it off very easily; and by his earnest confidential tone and manner, soon soothed and reconciled the earl to the vexatious disclosure he had made—vexatious only because the earl had thought fit, so very unnecessarily, to make a mystery of an everyday matter. He rather loftily enjoined Mr. Gammon to secrecy upon the subject, to which Gammon readily pledged himself, and then they entered upon an unrestrained discussion of the matter. Suffice it to say, that in the end Gammon assured the earl that he would, without any difficulty, undertake to procure a transfer of the mortgage at present existing on his Lordship's property, which should lower his annual payments by at least one and a half per cent: and which, on a rough calculation, would make a difference of very nearly five hundred a-year in the earl's favor. But Gammon explicitly informed the earl that he was not to suppose that he had been overreached, or his interests been in

any way neglected, in the original transaction; that it had been conducted on his Lordship's behalf, by his solicitor, Mr. Mudge, one of the most respectable men in the profession; and that a few years made all the difference in matters of this description; and before he, Mr. Gammon, would interfere any further in the business, he requested his Lordship to write to Mr. Mudge, enclosing a draft of the arrangement proposed by Mr. Gammon, and desiring Mr. Mudge to say what he thought of it. This the earl did; and in a few days' time received an answer from Mr. Mudge, to the effect that he was happy that there was a prospect of so favorable an arrangement as that proposed, to which he could see no objection whatever; and would co-operate with Mr. Gammon in any way, and at any time, which his Lordship might point out. Mr. Gammon was, in fact, rendering here a real and very important service to the earl; being an able, acute, and energetic man of business—while Mr. Mudge was very nearly superannuated—had grown rich and indolent, no longer attending to his practice with pristine energy; but *pottering* and dozing over it, as it were, from day to day; unable, from his antiquated style of doing business, and the constantly narrowing circle of his connections, to avail himself of those resources which were open to younger and more energetic practitioners, with more varied resources. Thus, though money was now much more plentiful, and consequently to be got for a less sum than when, some ten years before, the earl had been compelled to borrow to a large amount upon mortgage, old Mr. Mudge had suffered matters to remain all the while as they were; and so they *would* have remained, but for Gammon's accidental interference: the earl being not a man of business—one who could not bear to allude to the fact of his property being mortgaged—who did not like even to *think* of it; and concluded that good old Mr. Mudge kept a sufficiently sharp eye upon his noble client's interest. The earl gave Mr. Mudge's letter to Mr. Gammon, and requested him to lose no time in putting himself into communication with Mr. Mudge, for the purpose of effecting the suggested transfer. This Gammon undertook to do; and perceiving that he had fortunately made so strong a lodgement in the earl's good opinion, whose interests now bound him, in a measure, to Mr. Gammon, that gentleman thought that he might safely quit Yatton and return to town, in order to attend to divers matters of pressing exigency. Before his departure, however, he had a very long interview with Titmouse, in the course of which he gave that now submissive personage a few simple, perspicuous,

and decisive directions, as to the line of conduct he was to pursue, and which alone could conduce to his permanent interests: enjoining him, moreover, to pursue that line, on terror of the consequences of failing to do so. The Earl of Dreddlington, in taking leave of Mr. Gammon, evinced the utmost degree of cordiality consistent with the stateliness of his demeanor. He felt, in fact, real regret at parting with a man of such superior intellect—one evincing such a fascinating deference towards himself, (the earl:) and it glanced across his Lordship's mind, that such a man as Mr. Gammon would be the very fittest man who could be thought of, in respect of tact, energy, and knowledge, to become prime minister to—his Serene Highness the Prince of Hoch-Stiffelhausen Narrenstein Dummleinberg!

The longer that the earl continued at Yatton—in which he could not have more thoroughly established himself if he had in the ordinary way engaged it for the autumn—the more he was struck with its beauties; and the oftener they presented themselves to his mind's eye, the keener became his regrets at the split in the family interests which had so long existed, and his desire to take advantage of what seemed almost an opportunity, specially afforded by Providence, for reuniting them. As the earl took his solitary walks, he thought with deep anxiety of his own advanced age, and sensibly increasing feebleness. The position of his affairs was not satisfactory. When he died, he would leave behind him an only child—and that a daughter—on whom would devolve the splendid responsibility of sustaining, alone, the honors of her ancient family. Then there was his newly discovered kinsman, Mr. Titmouse, sole and unembarrassed proprietor of this fine old family property; simple-minded and confiding, with a truly reverential feeling towards them, the heads of the family; also the undoubted, undisputed proprietor of the borough of Yatton; who entertained and avowed the same liberal and enlightened political opinions, which the earl had ever maintained with dignified consistency and determination; and who, by a rare conjunction of personal merit and of circumstance, had been elevated to an unprecedented pitch of popularity, in the highest regions of society; and who was, moreover, already next in succession, after himself and the Lady Cecilia, to the ancient barony of Drelincourt and the estates annexed to it. How little was there, in reality, to set against all this? An eccentricity of manner, for which nature only, if any one, was to blame; a tendency to extreme modishness in dress, and a slight deficiency in the knowledge of the etiquette of society, but which daily experience and intercourse were

rapidly supplying; and a slight disposition towards the pleasures of the table, which no doubt would disappear on the instant of his having an object of permanent and elevating attachment. Such was Mr. Titmouse. He had as yet, undoubtedly, made no advances to Lady Cecilia, nor evinced any disposition to do so, though numerous and favorable had been, and continued to be, the opportunities for his doing so. Might not this, however, be set down entirely to the score of his excessive diffidence—distrust of his pretensions to aspire after so august an alliance as that with the Lady Cecilia? Yet there certainly was another way of accounting for his conduct: had he got already entangled with an attachment elsewhere?—Run after in society, as he had been, in a manner totally unprecedented during his very first season—had his affections been inveigled?—When the earl dwelt upon this dismal possibility, if it were when he was lying awake in bed, he would be seized with a fit of intolerable restlessness—and getting up, wrap himself in his dressing-gown, and pace his chamber for an hour together, running over, in his mind, the names of all the women he knew who would be likely to lay snares for Titmouse, in order to secure him for a daughter. Then there was the Lady Cecilia—but she, he knew, would not run counter to his wishes, and he had, therefore, no difficulty to apprehend on *that* score. She had ever been calmly submissive to his will; had the same lofty sense of family dignity that he enjoyed; and had often concurred in his deep regrets on account of the separation of the family interests. She was still unmarried—and yet, on her father's decease, would be a peeress in her own right, and possessed of the family estates. The fastidiousness which alone, thought the earl, had kept her hitherto single, would not, he felt persuaded, be allowed by her to interfere, for the purpose of preventing so excellent a family arrangement as would be effected by her union with Titmouse. Once married—and being secured suitable settlements from Titmouse—if there should prove to be any incompatibility of temper or discrepancy of disposition, come the worst to the worst, there was the shelter of a separation and separate maintenance to look to; a thing which was becoming of daily occurrence—which implied no real reproach to either party—and left them always at liberty to return to each other's society—when so disposed. And as for the dress and manners of Titmouse, granting them to be a little extravagant, would not, in all probability, a word from her suffice to dispel his fantastic vulgarity—to elevate him into a gentleman? Thus thought her fond and enlightened parent, and thus—in point of fact—

thought also she; from which it is evident, that Titmouse, once brought to the point—made sensible where his duty and his privilege converged—it would be a straightforward plain-sailing business. To bring about so desirable a state of things as this—to give the young people an opportunity of thoroughly knowing and endearing themselves to each other, were among the objects which the earl had proposed to himself, in accepting the invitation to Yatton. Time was wearing on, however, and yet no decisive step had been taken. Lady Cecilia's icy coldness—her petrifying indifference of manner, her phlegmatic temperament and lofty pride, were qualities, all of which were calculated rather to check than encourage the advances of a suitor, especially of such an one as Titmouse; but, though the earl did not know it, there were others whose ardor and impatience to possess themselves of such superior loveliness, could not be similarly restrained or discouraged. Will not the reader find it difficult to believe, that Mr. Venom Tuft, having been long on the look-out for—Heaven save the mark!—an aristocratic wife, had conceived it not impossible to engage the affections of Lady Cecilia—to fascinate her by the display of his brilliant acquirements; and that the comparative seclusion of Yatton would afford him the requisite opportunity for effecting his wishes? Yet even so it really was: intoxicated with vanity, which led him to believe himself peculiarly agreeable to women, he at length had the inconceivable folly and presumption, on the morning after an evening in which he fancied that he had displayed peculiar brilliance, to intimate to her that his affections were no longer under his own control, having been taken captive by her irresistible charms. Vain thought! as well might a cock-sparrow have sought to mate himself with the stately swan! It was for some time rather difficult for the Lady Cecilia to understand that he was seriously making her a proposal. At length, however, she comprehended him: evincing the utmost degree of astonishment which her drooping eyelids and languid hauteur of manner would permit her to manifest. When poor Tuft found that such was the case, his face burned like fire, and he felt in a fierce fluster within.

"You haven't mistaken me for Miss Macspleuchan, Mr. Tuft, have you?" said Lady Cecilia, with a faint smile. "You and Mr. Titmouse and the marquis, I hear, sat much longer after dinner last night than usual!" Tuft was utterly confounded. Was her Ladyship insinuating that he was under the influence of wine? He was for a while speechless.

"I assure you, Lady Cecilia"——at length stammered he.

"Oh—now I understand!—You are rehearsing for Lady Tawdry's private theatricals? Do you play there next month? Well, I dare say you'll make a delicious Romeo." Here the earl happening to enter, Lady Cecilia, with a languid smile, apprised him that Mr. Tuft had been rehearsing, to admiration, a love-scene which he was studying for Lady Tawdry's theatricals; on which the earl, in a good-natured way, said that he should like to witness it, if not too much trouble to Mr. Tuft. If that gentleman could have crept up the chimney without being observed, he would have employed the first moment of sooty repose and security, in praying that the Lady Cecilia might bring herself to believe, that he had really been doing what at present he feared she only affected to believe, viz. that he had been only playing at love-making. He resolved to outstay the earl, who, indeed, withdrew in a few minutes' time, having entered only for the purpose of asking Lady Cecilia a question; and on her Ladyship and her would-be lover being again alone—

"If I have been guilty of presumption, Lady Cecilia"——commenced Tuft, with tremulous earnestness, looking a truly piteous object.

"Not the least, Mr. Tuft," said she, calmly smiling; "or, even if you *have*, I'll forgive it on one condition"——

"Your Ladyship has only to intimate"——

"That you will go through it all with Miss Macspleuchan; or, couldn't we get up a sweet scene with my maid? Annette is a pretty little thing, and her broken English"——

"Your Ladyship is pleased to be exceedingly severe; but I feel that I deserve it. Still, knowing your Ladyship's good-nature, I will venture to ask one great favor, which, if you refuse, I will within an hour quit Yatton; that your Ladyship will, in mercy to my feelings, mention this little scene to no one."

"If you wish it, Mr. Tuft, I will preserve your secret," she replied in a kinder and more serious manner than he had ever witnessed in her; and, when he had escaped into solitude, he could hardly tell whom he hated most—himself, or the Lady Cecilia. Several days afterwards, the Marquis Gants-Jaunes de Millefleurs, purposing to quit Yatton on his way northward, sought a favorable opportunity to lay himself—the brilliant, irresistible

marquis—at the feet of the all-conquering Lady Cecilia, the future Lady Drelincourt, peeress in her own right, and mistress of the family estates. He had done the same kind of thing half a dozen times to as many women—all of them of ample fortune, and most of them also of rank. His manner was exquisitely delicate and winning; but Lady Cecilia, with a slight blush, (for she was really pleased,) calmly refused him. He saw it was utterly in vain; and for a few moments felt in an unutterably foolish position. Quickly recovering himself, however, he assumed an air of delicate raillery, and put her into such good humor, that, forgetful in the moment of her promise to poor Tuft, she, in the "strictest confidence in the world," communicated to the marquis the offer which Mr. Tuft had been beforehand with him in making to her! The marquis's cheek flushed and tingled; and, without being able to analyze what passed through his mind, the result may be stated as an intolerable feeling, that he and Tuft were a couple of sneaking adventurers, and worse—of ridiculous and exposed adventurers. For almost the first time in his life, he felt such an embarrassment amid the momentary conflict of his thoughts and feelings, as kept him silent. At length, "I presume, Lady Cecilia," said he, in a low tone, with an air of distress, and a glance which did more in his behalf with Lady Cecilia than a thousand of his most flattering and eloquent speeches, "that I shall, in like manner, afford amusement to your Ladyship and Mr. Tuft?"

"Sir," said she, haughtily, and coloring—"Mr. Tuft and the Marquis Gants-Jaunes de Millefleurs, are two very different persons. I am surprised, Monsieur le Marquis, that you should have made such an observation!"

Hereupon he felt greatly consoled, and perfectly secure against being exposed to Tuft, as Tuft had been exposed to him. Yet he was mistaken. How can the reader forgive Lady Cecilia for her double breach of promise, when he is informed, that only a day or two afterwards, Tuft and she being thrown together, partly out of pity to her rejected and bitterly mortified suitor, partly from an impulse of womanly vanity, and partly from a sort of glimpse of even-handed justice requiring such a step, as a kind of reparation to Tuft for her exposure of him to the marquis—she ("in the strictest confidence," however) informed him that his example had been followed by the marquis; utterly forgetful of that excellent maxim, "begin nothing of which you have not well considered the end." It had not occurred to her Ladyship as being a thing almost certain to ensue upon her breach of faith,

that Tuft would ask her whether she had violated *his* confidence. He did so: she blushed scarlet—and though, like her august papa, she could have *equivocated* when she could not have *lied*, here she was in a dilemma from which nothing but a fib could possibly extricate her; and in a confident tone, but with a burning cheek, she told a falsehood, and had, moreover, the pain of being conscious, by Mr. Tuft's look, that he did not believe her.—Nothing could exceed the comical air of embarrassment of the marquis and Mr. Tuft, whenever, after this, they were alone together! How fearful lest—how doubtful whether—each knew as much as the other!

To return, however, to the Earl of Dreddlington, (who was utterly in ignorance of the marquis and Mr. Tuft's proposals to Lady Cecilia,) the difficulty which at present harassed his Lordship was, how he could, without compromising his own dignity, or injuring his darling scheme by a premature development of his purpose, sound Titmouse upon the subject. How to break the ice—to broach the affair—was the great problem which the earl turned over and over again in his mind. Now, be it observed, that when a muddle-headed man is called upon at length *to act*—however long beforehand he may have had notice of it—however assured he may have been of the necessity for eventually taking one course or another, and consequently, however ample the opportunity had for consideration, he remains confused and irresolute up to the very *last instant*—when he acts, after all, merely as the creature of caprice and impulse! 'Twas thus with Lord Dreddlington. He had thought of half a dozen different ways of commencing with Titmouse, and decided upon adopting each; yet, on the arrival of the anxiously looked for moment, he had lost sight of them all, in his inward fluster and nervousness.

'Twas noon, and Titmouse, smoking a cigar, was walking slowly up and down, his hands stuck into his surtout pockets, and resting on his hips, in the fir-tree walk at the end of the garden—the spot to which he seemed, during the stay of his grand guests, to have been tacitly restricted for the enjoyment of the luxury in question. As soon as Titmouse was aware of the earl's approach, he hastily tossed aside his cigar. The earl "begged" he would take another; and tried to calm and steady himself, by a moment's reflection upon his overwhelming superiority over Titmouse in every respect; but it was in vain.

Now—to pause for a moment—what anxiety and embarrassment would not his Lordship have been spared, had he been aware of one little fact; viz. that Mr. Gammon was unconsciously, secretly, and potently, his friend, in the great matter which lay so near to his heart? For so, in truth, it was. He had used all the art he was master of, and availed himself of all his mysterious power over Titmouse, to get him to make, at all events, an *advance* to his distinguished kinswoman. Considering, however, how necessary it was "to be off with the old love before he was on with the new," he had commenced operations by satisfying Titmouse how vain and hopeless, and, indeed, unworthy of him, was his passion for poor Miss Aubrey. Here, however, Gammon had not so much difficulty to contend with as he had anticipated; for Miss Aubrey's image had been long ago jostled out of Titmouse's recollection, by the innumerable brilliant and fashionable women among whom he had been latterly thrown. When, therefore, Gammon veraciously informed him that Miss Aubrey had *fallen into a decline!* and that, moreover, when he (Gammon) had, according to his promise to Titmouse, taken an opportunity of pressing his wishes upon her, she had scornfully scouted the bare notion of such a thing!

"'Pon—my soul! The—devil—she did!" said Titmouse, with an air of insolent astonishment. "The gal's a devilish pretty gal, no doubt," he presently continued, knocking the ashes off his cigar with an indifferent air; "but—it's too good a joke—'pon my soul it is; but d' ye think, Gammon, she ever supposed I *meant* marriage? By Jove!" Here he winked his eye at Gammon, and then slowly expelled a mouthful of smoke. Gammon had grown pale with the conflict excited within him, by the last words of the execrable little miscreant. He controlled his feelings, however, and succeeded in preserving silence.

"Ah—well!" continued Titmouse, after another whiff or two, with an air of commiseration, "if the poor gal's *booked* for kingdom come—eh? it's no use; there's no harm done. Deuced poor, all of 'em, I hear! It's devilish hard, by the way, Gammon, that the prettiest gals are always the soonest picked off for the churchyard!" As soon as Gammon had completely mastered his feelings, he proceeded to excite the pride and ambition of Titmouse, by expatiating upon the splendor of an alliance with the last representative of the elder branch of so ancient and illustrious a house; in fact, when Gammon came, he said, to think of it, he feared it was *too grand* a stroke,

and that Lady Cecilia would not entertain the notion for a moment. He told Titmouse that she had refused crowds of young lords: that she would be a peeress of the realm in her own right, with an independent income of £5,000 a-year; and have mansions, seats, and castles, in each of the four quarters of the kingdom! Topics such as these excited and inflated Titmouse to the full extent desired by Mr. Gammon; who, moreover, with great solemnity of manner, gave him distinctly to understand, that on his being able to effect an alliance with the Lady Cecilia, absolutely depended his continuance in, or expulsion from, the possession of the whole Yatton property. Thus it came to pass, that Titmouse was penetrated by a far keener desire to ally himself to the Lady Cecilia, than ever the earl had experienced to bring about such an auspicious event; and at the very moment of Titmouse's catching sight of the earl, while pacing up and down the fir-tree walk, inhaling the soothing influence of his cigar—as I a short time ago presented him to the reader—he was tormenting himself with apprehensions that such a prize was too splendid for *him* to draw, and asking himself the constantly recurring question, how, in the name of all that was funny, could he set the thing a-going? When Greek met Greek, *then* came—it was said—the tug of war: and when the Earl of Dreddlington and Titmouse—a great fool and a little fool?—came to meet each other, impelled by the same wishes, and restrained by similar apprehensions, it was like the encounter of two wily diplomatists, sitting down with the intention of outwitting each other, in obtaining an object, in respect of which their aim was, in fact—unknown to each other—precisely coincident; this hidden coincidence being the exact point which their exquisite manœuvres had succeeded in reciprocally masking: it being quite possible for Talleyrand and Pozzo di Borgo, thus pitted against each other, to have separated, after a dozen long conferences, each having failed to secure their common object—peace.

"Well, Mr. Titmouse"—commenced the earl, blandly, stepping at once, with graceful boldness, out of the mist, confusion, and perplexity which prevailed among his Lordship's ideas, few as they were—"what are you thinking about?—For you *seem* to be thinking!" and a courteous little laugh accompanied the last words.

"'Pon—'pon my life—I—I—*beg* your Lordship's pardon—but it's—monstrous odd your Lordship should have known it"—stammered Titmouse; and his face suddenly grew of a scarlet color.

"Sir," replied the earl, with greater skill than he had ever evinced in his whole life before—(such is the effect of any one's being intensely *in earnest*)—"it is not at all odd, when it happens that—the probability is—that—we are, perhaps—mind, sir, I mean possibly—thinking *about the same thing!*" Titmouse grew more and more confused, gazing in silence, with a strange simpering stare, at his noble companion, who, with his hands joined behind him, was walking slowly along with Titmouse.

"Sir," continued the earl, in a low tone—breaking a very awkward pause—"it gives me sincere satisfaction to assure you, that I can fully appreciate the delicate embarrassment which I perceive you are now"——

"My Lord—your Lordship's most *uncommon* polite"—quoth Titmouse, suddenly taking off his hat, and bowing very low. The earl moved his hat also, and slightly bowed, with a proudly gratified air; and again occurred a pause, which was broken by Titmouse.

"Then your Lordship thinks—a—a—that—*it will do?*" he inquired very sheepishly, but anxiously.

"Sir, I have the honor to assure you, that as far as I am concerned, I see no obst"——

"Yes—but excuse me, my Lord—your Lordship sees—I mean—my Lord, your Lordship sees——doesn't your Lordship?"

"Sir, I think—nay, I believe I *do*"—interrupted the earl, wishing to relieve the evident embarrassment of his companion—"but—I see—nothing that should—alarm you."

[How interesting to watch the mysterious process by which these two powerful minds were gradually approximating towards understanding each other! 'Twas a sort of *equation* with an unknown quantity, in due course of elimination!]

"Doesn't your Lordship, indeed?" inquired Titmouse, rather briskly.

"Sir, it was a saying of one of the great—I mean, sir, it is—you must often have heard, sir—in short, *nothing venture, nothing have!*"

"I'd venture a precious deal, my Lord, if I only thought I could get what *I'm* after!"

"Sir?" exclaimed the earl, condescendingly.

"If your Lordship would only be so particular—so uncommon kind—as to name the thing to her Ladyship—by way of—eh, my Lord? A sort of breaking the ice, and all that"——

"Sir, I feel and have a just pride in assuring you, that the Lady Cecilia is a young lady of that superior delicacy of"——

"*Does* your Lordship really think I've a *ghost* of a chance?" interrupted Titmouse, anxiously. "*She* must have named the thing to your Lordship, no doubt—eh, my Lord?"

This queer notion of the young lady's delicacy a little staggered her distinguished father for a moment or two. What was he to say? She and he had really often named the thing to each other; and here the question was put to him plumply. The earl scorned a flat lie, and never condescended to equivocation except when it was absolutely necessary.

"Sir," he said hesitatingly; "undoubtedly—If I were to say—that now and then, when your attentions have been so pointed"——

"Pon my life, my Lord, I never meant it; if your Lordship will only believe me," interrupted Titmouse, earnestly; "I beg a thousand pardons—I mean no harm, my Lord."

"Sir, there is no harm done," said the earl, kindly. "Sir, I know human nature too well, or I have lived thus long to little purpose, not to be aware that we are not always master of our own feelings."

"That's exactly it, my Lord! Excuse me, but your Lordship's hit the thing off to a T, as folks say!"

"Do not imagine, Mr. Titmouse, that I think your attentions may have been *unpleasant* to the Lady Cecilia—by no means; I cannot, with truth, say any such thing!"

"Oh, my Lord!" exclaimed Titmouse, taking off his hat, bowing, and placing his hand upon his breast, where his little heart was palpitating with unusual force and distinctness.

"*Faint heart*, says the proverb, Mr. Titmouse, ah, ha!" quoth the earl, with gentle gayety.

"Yes, my Lord, it's enough to make one faint indeed! Now, if your Lordship—(I'm not used to this sort of thing, my Lord)—would just make a sort of beginning for me, my Lord, with the Lady Cicely, to set us going, my Lord—the least shove would do, my Lord—because, my Lord, *courtship's* a very—a—a"——

"Well, Mr. Titmouse," said the earl, with a gracious smile, "since your modesty is so overpowering—I'll try—to become your ambassador to the Lady Cecilia. If, Mr. Titmouse," his Lordship presently added in a serious tone, "you are fortunate enough to succeed in engaging the affections of the Lady Cecilia, you will discover that you have secured indeed an invaluable prize."

"To be sure, my Lord! And consider, too, her Ladyship's uncommon high rank—it's so particular condescending.—By the way, my Lord, will she—if she and I can hit it off, so as to marry one another—be called *Mrs. Titmouse*, or shall I be called *Lord Titmouse*? I wonder how that will be, my Lord? 'Tis only, your Lordship understands, on Lady Cicely's account I ask, because it's, in course, all one to *me* when once we're married."

The earl was gazing at him as he went on, with an expression of mingled surprise and concern: presently, however, he added with calm seriousness, "Sir, it is not an unreasonable question, though I should have imagined that you could hardly—be—but—in short, the Lady Cecilia will retain her rank, and become the Lady Cecilia Titmouse—that is, during my life; but on my demise, she succeeds to the barony of Drelincourt, and then will be called, of course, Lady Drelincourt."

"And what shall *I* be then, my Lord?" inquired Titmouse, eagerly.

"Sir, you will of course continue Mr. Titmouse."

"Pon my life, my Lord—shall I indeed?" he interrupted with a crestfallen air, "must we be called *Mr. Titmouse and Lady Drelincourt*? Excuse me, my Lord, but it don't sound at all like man and wife."

"Sir, so it always has been, and will be, and so it ever ought to be," replied the earl, gravely.

"Well but, my Lord, (excuse me, my Lord)—but marriage is a very serious thing, my Lord, your Lordship knows"——

"It is, sir, indeed," replied the earl, gloom visibly overspreading his features.

"Suppose," continued Titmouse, "Lady Cicely should die before me?"

The earl, remaining silent, fixed on Titmouse the eye of a FATHER—a father, though a very foolish one; and presently, with a sensible tremor in his voice, replied, "Sir, these are rather singular questions—but," he paused for some moments—"in such a mournful contingency as the one you have hinted at"——

"Oh, my Lord! I humbly beg pardon—of course, I should be, 'pon my soul, my Lord, most uncommon sorry"—interrupted Titmouse, with a little alarm in his manner.

"I was saying, sir—that in such an event, if Lady Drelincourt left no issue, you would succeed to the barony; but should she leave issue, they will be called Honorable"——

"What!—'the Honorable Tittlebat Titmouse,' if it's a boy, and the 'Honorable Cecilia Titmouse,' if it's a girl?"

"Sir, it will be so—unless you should choose to take the name and arms of Dreddlington, on marrying the sole heiress"——

"Oh! indeed, my Lord? 'Pon my life, my Lord, *that's* worth considering—because—betwixt your Lordship and I, I a'n't over and above pleased with my own name. What will it cost to change it, now, my Lord?"

"Sir," said the earl, struck with the idea, "that is really a thing worth considering. But as for the *expense*—in an affair of such magnitude, sir, I presume it would not be a matter of serious consideration."

After some further conversation, the earl came plump upon the great pivot upon which the whole arrangement was to turn—settlements and jointures—oh, as to them, Titmouse, who was recovering from the shock of the discovery that his marriage, however it might degrade the Lady Cecilia, would not ennoble him—promised everything—would leave everything in the hands of his Lordship. Soon afterwards they separated; the earl suggesting to him, that probably in a matter of infinite delicacy, like that on which they had been conversing, he would keep his own counsel—to which also Titmouse pledged himself. Soon afterwards, and before seeing his daughter, with an anxious, but not an excited air, he ordered his horse, and

took a long ride, accompanied only by his groom: and if ever in his whole life he had attempted serious REFLECTION, it was on the occasion of that same long, slow, and solitary ride; then, for the first time, he forgot his peerage, and thought only of the *man*—and the father.

But to what purpose? Shortly after his return, he sought the Lady Cecilia, and performed his promise, by preparing her to receive, probably on the ensuing day, the proposals of TITTLEBAT TITMOUSE.

The desired opportunity occurred the next day. Titmouse had slept like a top all night, after smoking in his bedroom a great many cigars, and drinking several tumblers of brandy and water. Lady Cecilia, however, had passed a very uneasy, and almost a sleepless night, and did not make her appearance at the breakfast-table. Understanding that her Ladyship was in the drawing-room, and alone, about noon, Titmouse, who had bestowed during the interval more than usual pains upon his dress, gently opened the door, and observing her reclining alone on the sofa, he closed the door behind him, with a sudden beating of the heart, and approached her, bowing profoundly. Poor Lady Cecilia immediately sat up, very pale and trembling.

"Good-morning, good-morning, Lady Cicely," commenced Titmouse, with evident agitation, taking a chair and sitting down in it, plump opposite to her.

"You aren't well this morning, are you, Lady Cicely?" he continued, observing how pale she looked, and that she did not seem disposed to speak.

"I am quite well," she replied in a low tone: and then each was silent.

"It's beginning to look like winter a little, eh, Lady Cicely?" said he, after an embarrassing pause, looking through the windows—and his words diffused an icy coldness over Lady Cecilia. 'Twas an overcast day; and a strong wind was stripping the sere and yellow leaves in great numbers from the lofty trees which were not far distant, and gave forth a melancholy, rushing, moaning sound.

"Certainly it is getting rather cheerless," replied Lady Cecilia, after several moments' pause. Titmouse turned pale; and twirling his fingers in his hair, fixed upon her a stupid and most embarrassing look, under which her eyes fell towards the ground, and remained looking in that direction.

"I—I—hope his Lordship's been saying a good word for me, Lady Cicely?" he inquired with an absurdly sheepish air.

"My father mentioned your name to me yesterday," she replied, trembling excessively.

"'Pon my soul, monstrous kind!" said Titmouse, trying desperately to look at his ease. "*Said* he'd break the ice for me." Here ensued another pause. "Everybody must have a beginning, you know. 'Pon my solemn honor, Lady Cicely, all he said about me is quite true." Profoundly as was Lady Cecilia depressed, she looked up at Titmouse for a moment with evident surprise. "Now, Lady Cicely, just as between friends, didn't he tell you something *very* particular about me? Didn't he? Eh?" She made him no answer.

"I dare say, Lady Cicely, though somehow you look sad enough, you a'n't *vexed* to see me here? Eh? There's many and many a woman in London that would—but it's no use now. 'Pon my soul, I love you, I do, Lady Cicely;" she trembled violently, for he was drawing his chair nearer to her. She felt sick—sick almost to death; and a mist came for a moment over her eyes.

"I know it's—it's a monstrous unpleasant piece of—I mean, it's an awkward thing to do; but I hope you love *me*, Lady Cicely, eh! a little?" Her head hung down, and a very scalding tear oozed out and trickled down her cheek. "Hope you aren't sorry, dear Lady Cicely? *I'm* most uncommon proud and happy! Come, Lady Cicely." He took the thin white hand that was nearest him, and raised it to his lips. Had his perceptions been only a trifle keener, he could not have failed to observe a faint thrill pervade Lady Cecilia as he performed this act of gallantry, and an expression of features which looked very much like disgust. He had, however, seen love made on the stage, frequently; and, as he had seen lovers do there, he now dropped down on one knee, still holding Lady Cecilia's hand in his, and pressing it a second time to his lips.

"If your Ladyship will only make me—so happy—as to be—my wife—'pon my life you're welcome to all I have; and you may consider this place entirely your own! Do you understand me, dearest Lady Cicely? Come! 'Pon my life—I'm quite distracted—do you love me, Lady Cicely? Only say the word." A faint—a very faint sound issued from her lips—'twas—blush for her, my lady reader—"YES." [Oh, poor Lady Cecilia! Oh, fatal—fatal falsehood!]

"Then, as true as God's in heaven, dear gal, I love you," said he, with ardor and energy; and rising from his knee, he sat down beside her upon the sofa—placed an arm round her waist; with his other hand grasped hers—and—imprinted a kiss upon the pale cheek which had been so haughtily withdrawn from the presumptuous advances of the Marquis de Millefleurs, and from some half dozen others; several of whom had been men of commanding pretensions—elegant in person and manners—of great accomplishments—of intellect—of considerable fortune—of good family; but in her opinion, and that of the earl her father, not of family good *enough*, nor fortune considerable *enough*, to entitle any of them to an alliance with her.

"Pon my life, Lady Cicely, you *are* a most lovely gal," quoth Titmouse, with increasing energy—"and now you're all my own! Though I *am* only plain Mr. Titmouse, and you'll be Lady Cicely still—I'll make you a good husband!" and again he pressed her hand and kissed her cold cheek. But slow and dull as were the Lady Cecilia's feelings, they were becoming too much excited to admit of her continuing much longer in the room.

"I'm sure—you'll—excuse—me, Mr. Titmouse," said she, rising, and speaking quickly and faintly. When she had regained her room, she wept bitterly for upwards of an hour; and Miss Macspleuchan, well aware of the cause of it, knew not how to console one who had so deliberately immolated herself before the hideous little image of Mammon; who, in degrading herself, had also—and Miss Macspleuchan, a true lady, when alone, shed bitter and scalding tears, and her bosom swelled with wounded pride and indignation at the thought—degraded her whole sex. In due time, however, the *Aurora*, a fashionable morning London newspaper, thus announced to the public, as an *auspicious* event, the one which I have so faithfully, feeling much pain the while, described to the reader:—

"It is rumored that Mr. Titmouse, who so lately recovered the very large estates of Yatton, in Yorkshire, and whose appearance in the fashionable world has created so great a sensation, and who is already connected, by consanguinity, with the ancient and noble family of Dreddlington, is about to form a closer alliance with it, and is now the accepted suitor of the lovely and accomplished Lady Cecilia Philippa Leopoldina Plantagenet, sole daughter and heiress of the Right Hon.

the Earl of Dreddlington, and next in succession to the barony of Drelincourt, the most ancient, we believe, in the kingdom."

CHAPTER XI.

Behold now, thoughtful reader—for in your eyes it is anxiously desired that this history may find favor—the dreadful—the desperate reverse in Mr. Aubrey's circumstances. He has suddenly fallen from a very commanding position in society: from that of a high-born English gentleman, possessed of a fine unencumbered income, and all of luxury and splendor, and of opportunity for gratifying a disposition of noble munificence, that it can secure—and whose qualifications and prospects justified him in aspiring to the highest senatorial distinction:—behold him, I say, with his beloved and helpless family, sunk—lower than into straitened circumstances—beneath even poverty—into the palsyng atmosphere of *debt*—and debt, too, inextricable and hopeless. Seeing that no one can be so secure, but that all this, or something of the like kind, may one day or other happen to him, 'tis hoped that it will be found neither uninteresting nor uninstructive to watch carefully and closely the present condition and *conduct* of the Aubreys.

Bound hand and foot—so to speak—as Mr. Aubrey felt himself, and entirely at the mercy of Mr. Titmouse and his solicitors, Messrs. Quirk, Gammon, and Snap, what could he do but submit to almost any terms on which they chose to insist? It will be recollected that Mr. Gammon's proposal was,^[28] that Mr. Aubrey should forthwith discharge, without scrutiny, their bill of £3,946, 14s. 6d.; give sufficient security for the payment of the sum of £10,000 to Mr. Titmouse, within twelve or eighteen months' time, and two promissory notes for the sum of £5,000 each, payable at some future period, as to which he had to rely solely on the sincerity and forbearance of Mr. Gammon, and the ratification of his acts by Mr. Titmouse. This proposal was duly communicated by the unfortunate Aubrey to Messrs. Runnington, who obtained from Messrs. Quirk, Gammon, and Snap, a fortnight's time in which to deliberate upon it. Messrs. Runnington almost immediately advised him to accept the proposed terms as unquestionably fair, and, under the circumstances, much more lenient than could have been expected. This might be so; but yet, how dismaying and hopeless to *him* the idea of carrying them into effect! *How, indeed, was it to be done?* First of all, how were Messrs. Runnington's and

Mr. Parkinson's bills to be got rid of—the former amounting to £1,670, 12s., the latter to £756? And how were Mr. Aubrey and his family to *live* in the mean while, and how, moreover, were to be met the expenses of his legal education? As was intimated in a former part of this history, all that Mr. Aubrey had, on settling in London, was £3,000 stock (equal to £2,640 of money) and £423 in his banker's hands:—so that all his cash in hand was £3,063! and if he were to devote the whole of it to the discharge of the three attorneys' bills which he owed, he would still leave a gross balance unpaid of £3,310, 6s. 6d.! And yet for *him* to talk of *giving security* for the payment of £10,000 within eighteen months, and his own notes of hand for £10,000 more! It was really almost maddening to sit down and contemplate all this. But he must not fold his arms in impotence and despair—he must look his difficulties straight in the face, and do the best that was in his power. He resolved to devote every farthing he had, except £200, to the liquidation of Messrs. Quirk, Gammon, and Snap's account, and (in smaller proportion) of those also of Messrs. Runnington and Mr. Parkinson; if necessary he resolved, though his heart thrilled with anguish at the thought, to sell his books, and the remnant of old family plate that he had preserved. Then he would strain every nerve to contribute towards the support of himself and of his family—poor oppressed soul!—by his literary exertions, in every moment that he could spare from his legal studies; and practise the severest economy that was consistent with health, and the preservation of a respectable exterior. He resolved also, though with a shudder, to commit himself to Gammon and Titmouse's mercy, by handing to them (though a fearful farce it seemed) his two notes of hand for £10,000—*payable on demand*—for such Gammon intimated was usual in such a case, and would be required in the present one. But whither was he to look for security for the payment of £10,000 within eighteen months' time? This was a matter which indeed staggered him, and almost prostrated his energies whenever he directed them to the subject; it occasioned him inexpressible agitation and anguish. Individuals there were, he believed—he knew—who would cheerfully enter into the desired security on his behalf; but what a mockery! For them to be asked to secure *his* payment of the sum, at the time mentioned, was, in effect, palpably asking them to pay the money for him; and in that light they could not but view such an application. The reader will easily understand the potency of such considerations upon so sensitive and high-minded a person as Mr. Aubrey. While revolving these distracting

and harassing topics in his mind, the name of Lord De la Zouch always presented itself to him. Had he not solemnly—repeatedly—*pledged* himself to communicate with that kind, and wealthy, and generous nobleman, in such an emergency as the present? His Lordship's income was at least eighty or a hundred thousand pounds a-year; his habits were simple and unostentatious, though he was of a truly munificent disposition; and he had not a large and expensive family—his only child being Mr. Delamere. He had ever professed, and, as far as he had hitherto had an opportunity, proved himself to be a devoted, a most affectionate friend to Mr. Aubrey:—did not Providence, then, seem to point him out distinctly as one who should be applied to, to rescue from destruction a fallen friend? And why should Aubrey conjure up an array of imaginary obstacles, arising out of a diseased delicacy? And whom were such scruples reducing to destitution along with him!—his wife, his children, his devoted and noble-minded sister! But, alas! the thought of sweet Kate suggested another source of exquisite pain and embarrassment to Aubrey, who well knew the ardent and inextinguishable passion for her entertained by young Delamere. 'Twas true that, to pacify his father, and also not to grieve or harass Miss Aubrey by the constant attentions with which he would have otherwise followed her, he had consented to devote himself with great assiduity and ardor to his last year's studies at Oxford; yet was he by no means an infrequent visitor at Vivian Street, resolutely regardless of the earnest entreaties of Miss Aubrey, and even of her brother. Not that there was ever anything indelicate or obtrusive in his attentions;—how could it be? Alas! Kate really loved him, and it required no very great acuteness in Delamere to discover it. He was as fine, handsome a young fellow as you could see anywhere; frank, high-spirited, accomplished, with an exceedingly elegant deportment, and simple, winning manners—and could she but be touched with a lively sense of the noble disinterestedness of his attachment to her! I declare that Kate wrote him several letters, in *bonâ fide* dissuasion of his addresses, and which wore such a genuine and determined air of repulsion, as would have staggered most men; but young Delamere cared not one straw for any of them: let Kate vary her tone as she pleased, he told her simply that he had sent them to his mother, who said they were very good letters indeed; so he would make a point of reading all she would send him, and so forth. When Kate, with too solemn an emphasis to be mistaken or encountered with raillery, assured him that nothing upon earth should prevail upon her to quit

her present station in her brother's family, at all events until he had completely surmounted all his troubles, Delamere, with looks of fond admiration, would reply that it signified nothing, as he was prepared to wait her pleasure, and submit to any caprice or unkindness in which her heart would allow her to indulge. I must own that poor Kate was, on more than one occasion of his exhibiting traits of delicate generosity towards her brother, so moved and melted towards her lover, that she could—shall I say it?—have sunk into his arms in silent and passionate acquiescence; for her heart had, indeed, long been really his.—But whither am I wandering?—To return, then—I say, that when Mr. Aubrey adverted for a moment to this state of things, was it not calculated a thousand-fold to enhance the difficulty of his applying *to the father of Delamere*? So indeed it was; and, torn with conflicting emotions and considerations of this kind, nearly the whole of the fortnight granted to him for deliberation had elapsed, before he could make up his mind to apply to Lord De la Zouch. At length, however, with a sort of calm desperation, he determined to do so; and when he had deposited in the Post-Office his letter—one in every line of which the noble and generous person to whom it was addressed might easily detect the writhings of its writer's wounded spirit—the quiverings of a broken heart—he looked indeed a melancholy object. The instant that, by dropping his letter into the box, he had irrecoverably parted with all control over it, and to Lord De la Zouch it must go, Aubrey felt as if he would have given the world to recall it. Never had he heaved so many profound sighs, and felt so utterly miserable and destitute, as during his walk homeward that afternoon. Those dear beings did not know of the step he had intended to take; nor did he tell them that he had taken it. When he saw his sister he felt sick at heart; and during the whole of the evening was so oppressed and subdued, that the faint anxious raillery of lovely Mrs. Aubrey and Kate, and the unconscious sportiveness of his children, served only to deepen the gloom which was around his spirit!—He had requested Lord De la Zouch to address his answer to him at the Temple; and sure enough, by return of post, Mr. Aubrey found lying on his desk, on reaching the Temple three or four mornings afterwards, a letter addressed, "Charles Aubrey, Esq., at ——— Weasel's, Esq., No. 3, Pomegranate Court, Temple, London;" and franked, "DE LA ZOUCH."

"I shall return presently," said Mr. Aubrey to the clerk, with as much calmness as he could assume, having put the letter into his pocket, resolving

to go into the Temple gardens and there read it, where any emotion which it might excite, would be unobserved. Having at length seated himself on a bench, under one of the old trees near the river, with a somewhat tremulous hand he took out, and opened the letter, and read as follows:—

"*Fotheringham Castle, 18th July 18—.*

"MY VERY DEAR AUBREY,

"If you really value my friendship, never pain my feelings again by expressions, such as are contained in your letter, of distrust as to the issue of *any* application of yours to me. Has anything that has ever hitherto passed between us, justified them? For Heaven's sake, tell your solicitors not to lose a moment in procuring the necessary instruments, and forwarding them to me through Messrs. Framlingham, *my* solicitors. I will execute immediately all that are sent, and return them by the next post, or mail. If you will but at once set about this in a business-like way, I will forgive and forget all the absurd and *unkind* scruples with which your letter abounds. Since you would probably make a mighty stir about it, I shall not at present dwell upon the *inexpressible pleasure* it would give me to be allowed to emancipate you at once from the vulgar and grasping wretches who are now harassing you, my very dear Aubrey, and to constitute myself your creditor instead of them. But on further consideration, I suppose you would distress yourself on the ground of *my restricted* means rendering it so much more difficult for me, than for them, to give you time for the payment of your debt!! Or will you PLAY THE MAN, and act at once in the way in which, I assure you, upon my honor, I would act by you, on a similar solicitation, were our situations reversed? By the way, I intend to insist on being your *sole surety*; unless, indeed, your creditors doubt my solvency, in which case I hope we shall be able, among our common friends, to find a sufficient co-surety!—

"And now, dear Aubrey, how get you on with law? Does she smile, or scowl upon you? I wonder why you did not go to the fountain-head, and become at once a pupil to your friend, the Attorney-General. Who is the gentleman whom you are reading with? He certainly has rather a curious name! Well, my dear Aubrey, may Heaven in its own good time crown your virtuous efforts—your unconquerable resolution—

with success! Won't it be odd if, when I am dead and gone, and my son is occupying my present place on the benches of the House of Lords, you should be sitting on the woolsack? More unlikely things than this have come to pass: look at——!

"How are dear Mrs. Aubrey and Miss Aubrey, and your darling little ones? Though we are going in a fortnight's time to fill this old place, (the ——s, the ——s, and the ——s, and others, are coming,) we shall be, till then, quite deserted, and so, after they are gone. Would that we could insist on all of you taking up your abode with us! Have you seen Geoffrey lately? He tells me that he is working very hard indeed at Oxford; and so says his tutor. But I have my doubts; for it is more than ever I did. Pray write me by return. I am ever, my dear Aubrey, yours, faithfully and affectionately,

"DE LA ZOUCH."

"CHARLES AUBREY, Esq.

"P. S. On further consideration, let *your* people send the deeds, &c., at once on to me, direct from themselves;—'tis a private matter, which is of no consequence to any one but ourselves. No one else, indeed, except your own solicitors, and your opponents, need know anything about it. Neither Lady De la Zouch nor my son will have the least inkling of the matter."

No language of mine can do justice to the feelings with which Mr. Aubrey, after many pauses, occasioned by absolutely irrepressible emotion, perused the foregoing letter. Its generosity was infinitely enhanced by its delicacy; and both were exquisitely appreciated by a man of his susceptibility, and in his circumstances. His eyes—his heart, overflowed with unutterable gratitude towards the Almighty, and the noble instrument of his mercy. He could have flown on the wings of the wind to the dear beings in Vivian Street, with joyous face and light elastic step, to make them participators in his joy. He rose and walked to and fro by the river side with most exhilarated spirits. The sky was cloudless: the sun shone brilliantly; and innumerable brisk and busy craft were moving to and fro upon the swelling bosom of the magnificent Thames. Gladness was in his soul. The light without was typical of that within. Several times he was on the point of

starting off to Vivian Street; but, on consideration, he resolved to go to Messrs. Runnington, and put them into instant communication with Messrs. Quirk, Gammon, and Snap; and matters having been set in train for the speediest possible settlement, Mr. Aubrey returned to chambers; but quitted them an hour earlier than usual, to brighten the countenances of those he loved, by the joyous intelligence he bore. But he found that they also had cheering news to communicate; so that this was indeed a memorable day to them.

Lady Stratton, not only a relative, but a devoted bosom friend of the late Mrs. Aubrey, had, it may easily be believed, never ceased to take a lively interest in the fortunes of the unhappy Aubreys. She was now far advanced in years, and childless; and though she enjoyed an ample life income, derived from the liberality of her husband, Sir Beryl Stratton, Baronet, who had died some twenty or thirty years before; yet, seeing no necessity for saving money, she had followed the noble example of her deceased friend Mrs. Aubrey, and bestowed annually all her surplus income in the most liberal and systematic charity. Many years before, however, she had resolved upon making a provision for Miss Aubrey, whom she loved as if she had been her mother; and the expedient she had resorted to (quite unknown to the Aubreys) was to insure her life for the sum of £15,000, the whole of which sum she had intended to bequeath to Miss Aubrey. The premiums on so large an insurance, were heavy annual drains upon her purse; and, together with her long-continued charities, and the expenditure necessary to support her station, left her but stinted means for contributing to the relief of the ruined Aubreys. With some difficulty, however, the old lady, in one way or another, principally by effecting a loan from the insurance company upon her policy, had contrived to raise a sum of £2,000; and Miss Aubrey had that morning received a letter from her, full of tenderness, begging her to present the sum in question (for which Lady Stratton had lodged a credit with her bankers in London) to her brother Mr. Aubrey, to dispose of as he pleased—trusting that it might be effectual in relieving him from the difficulties which were more immediately pressing upon him. Never had they spent so happy an evening together since they had quitted Yatton. In the excitement of the hour, even Aubrey felt for a while as if they now saw their way through all their embarrassments and dangers. Can the reader imagine what must have been the feelings of Miss Aubrey when she first heard of, and afterwards reflected upon, the princely

munificence of Lord De la Zouch? If he can, it is well—it is more than I am equal to describing. Her agitation kept her awake more than half the night; and when she appeared at breakfast, her brother's quick eye detected in her countenance the traces of a severe conflict of feelings. With him also much of the excitement occasioned by the two occurrences above mentioned, had disappeared by the time that he took his seat in his little study at his usual early hour. First of all, he felt very uneasy in receiving so large a sum from Lady Stratton, whom he knew to be by no means rich—at all events, not rich enough to part with so considerable an amount without inconvenience; and he resolved not to accept of her proffered kindness, unless she would allow him to transmit to her his bond for the repayment, together with interest on what he might borrow. Surely this was an unnecessary step; yet where is the man who, on all occasions, acts precisely as a calm and reflecting observer of his conduct, *long afterwards*, could have wished him to act? One must make allowance for the feelings which prompted him—those of a highly honorable and independent and over-sensitive man, who felt himself oppressed already by the weight of pecuniary obligation which he had incurred, and sought for the semblance of relief to his feelings by receiving that as a *loan*, only, which had been nobly proffered as a gift; and thus, as it were, in point of fact destroying all the grace and courtesy of the benefaction; but it is useless discussing the matter. I regret that Mr. Aubrey should have allowed himself to be influenced by such considerations; but so it was—and worthy Lady Stratton was informed by him in a letter certainly abounding in expressions of heartfelt gratitude and affection, that he had availed himself of her generous assistance, but only on the terms of his being allowed to deposit his bond for the repayment of it, with interest, with her solicitors; expressing his hope that ere long he should be enabled to fulfil every engagement into which he might have entered.

This seasonable assistance enabled him to make the following arrangement for liquidating the sums due on account of his sickening attorney's bills:—

Messrs. Quirk, Gammon, and Snap's bill was	£3,946 14 6
Messrs. Runnington's	1,670 12 0
Mr. Parkinson's	756 0 0
	£6,373 6 6

These were his liabilities. Then his assets were:—

Money in the funds	£2,640
Money at his banker's	423
Advanced by Lady Stratton	2,000
	£5,063

Therefore, from	£6,373 6 6
Deduct	5,063 0 0

And there remained	£1,310 6 6
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As soon as he had made the foregoing statement on a slip of paper early in the morning in his study, (as already intimated,) he averted his eye from it, for a moment, with a sort of cold shudder. Were he to devote every farthing of assets that he had, he still could not come within £1,310 odd of his mere attorney's bills. What was he to do? The result of a long and anxious morning's calculation and scheming was to appropriate £4,000 of his assets thus—(if he could prevail upon his creditors to be for the present content with it:)—

To Messrs. Quirk, Gammon, and Snap	£2,500
Messrs. Runnington	1,000
Mr. Parkinson	500
	£4,000

If this arrangement could be effected, then he would be able to reserve in his own hands £1,063, and retain liabilities as under:—

Messrs. Quirk, Gammon, and Snap's (balance)	£1,446 14 6
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Messrs. Runnington's (ditto)	670 12 0
Mr. Parkinson's (ditto)	256 0 0
	£2,373 6 6

Heavy was his heart at beholding this result of even the most favorable mode of putting his case: but he placed the memoranda in his pocket-book, and repaired to his dressing-room; and having completed his toilet, appeared at breakfast with as cheerful a countenance as he could assume. Each of the three assembled, perceived, however, that the others were *striving* to look gay and happy. Suffice it to say, that within a week's time, Messrs. Runnington received the necessary security from Lord De la Zouch, who had thereby bound himself in the penal sum of £20,000 that Mr. Aubrey should, on or before the 24th day of January 18—, (that is, in eighteen months' time from the date of the bond,) pay the principal sum of £10,000, with interest at 5 per cent; and this instrument, together with Mr. Aubrey's two promissory-notes for £5,000 each, and also cash to the amount of £2,500 in part payment of their bill, having been delivered to Messrs. Quirk, Gammon, and Snap—who, after a great deal of reluctance on the part of Mr. Quirk, finally consented to allow the balance of £1,446, 14s. 6d. to stand over—they gave him, first, a receipt for so much on account of their own bill; and secondly, an instrument by which Tittlebat Titmouse, for the considerations therein expressed, did "*remise, release, and forever quit claim,*" unto Charles Aubrey, his heirs, executors, and administrators, all other demands whatsoever, [*i. e.* other than the said sum of £20,000.] By this arrangement Mr. Aubrey was absolutely exonerated from the sum of £40,000, in which he stood indubitably indebted to Mr. Titmouse; and so far he had just cause for congratulation. But was not his situation still one calculated to depress and alarm him more and more every time that he contemplated it? Where was he to find the sum requisite to release Lord De la Zouch from any part of his enormous liability? For with such a surety in their power as that great and opulent peer, was it likely that Messrs. Quirk, Gammon, and Snap, would be otherwise than peremptory and inflexible when the day of payment arrived? And if so, with what feelings must Mr. Aubrey see his noble and generous friend called upon to pay down nearly £11,000 for him? And was he not liable at any moment upon his own two notes for £5,000 each? And were they not likely to insist

speedily on the discharge of their own serious balance of £1,446 odd? What more probable, than that persons such as they and their client were represented to be, would, as soon as they decently could, proceed to extremities with him, in the confidence that the sight and the sound of his agonies would call in powerful and affluent friends to his assistance?

Still pressed, as indeed he was, his spirit had by no means lost its elasticity, supported as he was by a powerful, an unconquerable WILL—and also by a devout reliance upon the protection of Providence. Though law is indeed an exhausting and absorbing study, and it was pursued by Mr. Aubrey with unflagging energy, yet he found time (those who choose may find time enough for everything) to contribute sensibly to the support of himself and his family by literary labors, expended principally upon compositions of an historical and political character, and which were forwarded from time to time to the distinguished Review which has been already mentioned. To produce, as he produced, articles of this description—of considerable length and frequency—requiring ready, extensive, and accurate knowledge, and careful composition; original and vigorous in their conception and their execution, and by their intrinsic merit arresting, immediately on their appearance, the attention of the public; I say, to do such things—and only in those precious intervals which ought to have been given to the relaxation of his strained mental and physical powers—and under the pressure, too, of such overpowering anxieties as were his—argued surely the possession of superior energies—of an indomitable resolution. All this while, moreover, he contrived to preserve an unruffled *temper*—which, with a man of such sensibilities as his, afforded indeed a signal instance of self-control; and in short, on all these grounds, Mr. Aubrey appears really entitled to our deepest sympathy and respect. I spoke of his anxieties. Suppose, thought he, health should fail him, what was to become of him, and of those absolutely dependent upon him? Suppose illness should invade the dear members of his family, what was in prospect but destitution—or surrendering them up—bitter and heart-breaking contingency!—to the precarious *charity* of others. What would avail all his exhausting labors in the acquisition of professional knowledge, while his liberty was entirely at the command of Mr. Titmouse, and Messrs. Quirk, Gammon, and Snap, who might, at any moment, actuated by mercenary motives, or impelled by caprice, blight all his prospects, and incarcerate him in a prison! Yet, under this burden—to adopt the language of Sir Henry Spelman on an analogous occasion, "*non*

ingentem solum, sed perpetuis humeris sustinendum"—Mr. Aubrey stood firmly. He felt that he was called upon to sustain it; a blessed spirit ever, as it were, beside him, whispering the consolatory assurance, that all this was ordered and designed by the Supreme Disposer of events, as a *trial* of his constancy, and of his faith, and that the *issue* was with HIM. It is mercifully ordained, that "hope springs eternal in the human breast," and that, too, in every turn and variety of mortal misery. It was so with Aubrey. So long as he felt his health unimpaired, and his mental energies in full vigor, he looked on these blessings as a sort of guarantee from Heaven that he should be able to carry on a successful, though it might be a long and wearisome, struggle with adverse circumstances. Still it cost him a very painful effort to assume and preserve that exterior of tranquillity, which should calm and assure the beloved beings associated with him in this hour of peril and suffering; and oftener than they chose to let him know of it, did the keen eye of a wife's, and sister's love, detect the gloom and oppression which darkened his countenance, and saddened his manner. Theirs was, notwithstanding all I have said, a happy little home. He was generally punctual to his dinner-hour, to a moment; knowing the thousand fears on his account which would otherwise assail the fond beings who were counting the minutes till his arrival. When they had once thus met, they seldom separated till bed-time. Sometimes Miss Aubrey would sit down to her piano, and accompany herself in some song or air, which equally, whether merry or mournful, revived innumerable touching and tender recollections of former days; and she often ceased, tremulously and in tears, in which she was not unfrequently joined by both of those who had been listening to her. Then he would betake himself to his labors for the rest of the evening (not quitting the room), they either assisting him—fair and eager amanuenses! or themselves reading, or engaged at needlework. Oh! it was ecstasy, too, to that poor oppressed father to enter into the wild sports and gambols of his light-hearted little ones, Charles and Agnes, who always made their appearance for about a couple of hours after dinner; to tell them "stories;" to listen to theirs; to show them pictures; to hear Charles read; and to join heartily in their frolics, even rolling about on the floor with them! But when he paused for a moment, and his wife and Kate succeeded him as their playmates, for a short interval; when his eye followed their movements—what sudden and sharp pangs would pass through his heart, as he thought of the future, and what was to become of them!—And when their maid arrived

at the appointed hour, causing all sport instantly to cease, and longing looks to be directed to papa and mamma, saying as plainly as could be said, "only a few minutes more," how fondly would he embrace them! and when he felt their tiny arms clasping his neck and caressing him, and their kisses "all over" his face, feelings were excited within him, which were too deep for utterance—which defy description. 'Tis said—I know not with what truth—of Robespierre, as an instance of his fearful refinement in cruelty, that a person of distinction who had become obnoxious to him he formally condemned to death, but allowed to remain in the torturing, the excruciating presence of his lovely family; he and they aware, all the while, that his doom was *irrevocable*, inevitable; and he momentarily liable to the summons to the guillotine, and which in fact—oh, horror!—came at length, when they were all seated together, one day, at the breakfast-table! Oh, the feelings with which that unfortunate person must have daily regarded the countenances of those around him! How applicable to his condition the heart-breaking strains of Medea—

Φεῦ, φεῦ, τί προσδέρκεσθέ μ' ὁμμασιν, τέκνα
;
Τί προσγεῶτε τὸν πανύστατον γέλων ;
Αἶ, αἶ, τί δράσο ; Καρδία γὰρ οἴχεται,
Γυναιῖκες, ὅμμα φαιδρὸν ὥς εἶδον τέκνων. ^[29]

The above passage was one which very frequently, on the occasions I have alluded to, occurred to the mind of Mr. Aubrey; for he felt himself indeed every moment at the mercy of those to whom he owed such a fearful amount of money, and for which he was liable, at any moment selected by malice or rapacity, to be plucked from his little home, and cast into prison!

Oh, happy ye, now reading these pages, *unto whom the lines are fallen in pleasant places! yea, who have a goodly heritage*; who live, as it were, in a *land flowing with milk and honey*; with whom life glides away like a tranquil and pleasant dream; who are not sternly bidden *to eat your bread with quaking, and drink your water with trembling and with carefulness*, ^[30] nor *in vain to rise up early, to sit up late, to eat the bread of sorrows*; who have, indeed, *no thought for the morrow*;—oh, ye who have leisure and ample means to pursue the objects of an honorable ambition, undisturbed by daily fears for daily bread—by terror, lest implacable creditors should at

length frustrate all your efforts, drive you from your position in society, and precipitate you and yours into ruin;—I say, oh ye! do I appeal to you in vain? Do you turn from this painful portion of my narrative with indifference, or contempt, or wearisomeness? If the mere *description*, brief though it may be, of the sufferings of the Aubreys be trying and unpleasing to you, what must have been to them the actual *endurance*? Poor Aubrey! As he walked along the crowded thoroughfares, morning and evening, between the Temple and Vivian Street, what a disheartening consciousness he felt of his personal insignificance! Which of the passengers, patrician or plebeian, who met or passed him, cared—if personally unknown to him—one straw for him, or *would* have cared a straw for him, had they even known the load of misery and misfortune under which he staggered past them? Every time that he thus passed between the scene of his absorbing labors at the Temple, and that green spot—his house in Vivian Street—in the world's wide desert, where only his heart was refreshed by the never-failing spring of domestic love and tenderness, he felt, as it were, but a prisoner out upon parole! It is easy to understand that, when a man walks along the streets of London, depressed in spirit, and alarmed by the consciousness of increasing pecuniary embarrassment, his temper is likely to become irritable, his deportment forbidding, his spirit stern and soured, particularly against those who appeal to his charity; which then, indeed, he might be pardoned for feeling, and bitterly—to *begin at home*. It was not so, however, with Aubrey, whose constant feeling was—*Haud ignarus mali, miseris succurrere disco*; and though it may appear a small thing to mention, I feel gratification in recording of him, that, desperate as were his circumstances, infinitely enhanced to him as was the value of money, he went seldom unprovided with the means of relieving the humbler applicants for charity whom he passed in the streets—of dropping some small token of his love and pity into the trembling and feeble hand of *want*—of those whose necessities he felt to be greater even than his own. Never, indeed, did the timid eye of the most tattered, starved, and emaciated object suffered to crawl along the streets, catch that of Mr. Aubrey, without making his heart acknowledge the secret bond of misery which bound them together—that he beheld a brother in bondage, and on whom he cheerfully bestowed the humble pittance which he believed that Providence had yet left at his disposal!—Prosperity and adversity have equally the effect, upon an inferior mind and heart, of generating *selfishness*. The one encourages, the

other forces it. Misery is apt to think its own sufferings greater than those of any one else—and naturally. The eye, as it were, is filled with the object—that is to say, of distress and danger—which is nearest—which is in such fearful contiguity, obscuring from view all remoter objects, at once scaring away presence of mind, and centring its hopes and fears upon *self*. Not so, however, is it when a noble nature is the sufferer—and more especially when that nature is strengthened and brightened by the support and consolation derived from philosophy—and, above all, religion. To many a strong spirit, destitute of such assistance, alas! how often, under similar circumstances, have come—ghastly visitants!—*Despair* and *Madness*, with their hideous attendant SUICIDE, to do their bidding?

To Mr. Aubrey the Sabbath was indeed not only a day for performing the public services of religion, but also a day of real rest from the labors of life. It was not one, to him, of puritanical gloom or excitement, but of sincere, cheerful, fervent, enlightened devotion. It would have been to the reader, I think, not an uninteresting sight to behold this unfortunate and harassed family at church. They took almost the only pew which was vacant in the gallery—in a church not far distant from Vivian Street—a pew just holding themselves and little Charles; who, since their arrival in town, had begun to accompany them to the morning service. There was something in their appearance—punctual as they were in both the morning and evening—which could hardly fail to have interested any one who observed them. There were two very elegant and lovely women, dressed in simple half-mourning: a man of calm, gentlemanly manners, and an intellectual countenance, but overshadowed with deep seriousness, if not melancholy—as, indeed, was the case with the whole of the little group, except the beautiful child, Charles. If their mere appearance was thus calculated to interest those around, who beheld them so punctual in their attendance, how much would that interest have been increased, had the beholder known their singular and melancholy history? Here were individuals, whose condition was testing the reality of the consolations of religion, exhibiting humility, resignation, faith, a deep delight in attending the house of HIM who had permitted such dreadful disasters to befall them, and whose will it yet seemed to be that they should pass through deeper sufferings than they had yet experienced. His temple seemed, indeed, to them, a refuge and shelter from the storm. To Mr. Aubrey every portion of the church service was precious, for its purity, its simplicity, its solemnity, its fervor, its truly

scriptural character, its adaptation to every imaginable condition of feeling and of circumstance, indeed, "to all sorts and conditions of men." A little incident fraught with much interest, occurred to them shortly after they commenced their attendance at the church. An occasional sermon was preached one evening by a stranger, from the words "*Though he slay me, yet will I trust in him,*" on behalf of a neighboring dispensary. Mr. Aubrey was soon struck by the unusual strength and beauty of the sermon, in point of composition—the fervor and simplicity of the preacher. Its language was at once chaste and forcible; its reasoning clear and cogent; its illustration apt and vivid; its pathos genuine. As he went on, Mr. Aubrey became more and more convinced that he had seen or heard the preacher before; and on inquiring, afterwards, his name, his impressions proved to be correct;—the clergyman had been at Oxford, at the very same college with him, and this was the first time that they had since come within sight of each other. Mr. Aubrey very soon afterwards had an opportunity of introducing himself to the clergyman, and was recognized, and they renewed their early friendship. Mr. Neville—for that was his name—poor soul, had nothing upon earth to support himself with, but an afternoon lectureship in one of the city churches, from which he derived about £75 a-year; and on this sum alone he had contrived, for the last four or five years, to support both himself and his wife—a very amiable and fond woman. Fortunately, they had no children; but they had seen much affliction, each of them being in but precarious health, and a sad proportion of his little income was, consequently, devoted to doctors' bills. He was an admirable scholar; a man of very powerful understanding, and deeply read in metaphysics and divinity. Yet this wretched pittance was all he could procure for his support; and pinching work for them, poor souls, it was indeed, to "make ends meet." They lived in very small but creditable lodgings; and amid all their privations, and with all the gloom of the future before them, they were as cheerful a little couple as the world ever saw. They dearly loved, and would have sacrificed everything for each other; and so long as they could but keep their chins above water, and he realize the stern and noble feeling, "*pauper, sed in meo ære,*" they cared not for their exclusion from most of the comforts and all the elegancies of life. They were, both of them, entirely resigned to the will of Heaven as to their position—nay, in all things. She generally accompanied him whithersoever he went; but on the occasion to which I have been alluding, the good little creature was lying at home in

bed, enduring great suffering; and the thought of it made the preacher's heart very heavy, and his voice to falter a little, several times during his sermon. He was perfectly delighted when Mr. Aubrey introduced himself; and when the latter had heard all his friend's little history—who had indeed a child-like simplicity and frankness, and told Mr. Aubrey everything he knew about himself—Mr. Aubrey wrung his hand with great emotion, almost, indeed, too great for expression. It seemed that a bishop, before whom poor Neville had accidentally preached seven years before, had sent for him, and expressed such a very high opinion of his sermon, as led him reasonably to look for some little preferment at his Lordship's hands; but in vain. Poor Neville had no powerful friends, and the bishop was overwhelmed with applicants for everything he had to give away; so it is not much to be wondered at, that, in time, he totally lost sight of Mr. Neville, and of the hopes which had blossomed, but to be blighted. What touched Mr. Aubrey to the soul, was the unaffected cheerfulness with which poor Mr. Neville—now in his fortieth year—reconciled himself to his unpromising circumstances; the calmness with which he witnessed the door of preferment evidently *shut upon him forever*. Mr. Aubrey obtained from him his address; and resolved that, though, for reasons long ago explained, he had withdrawn from almost every one of his former friends and associates, yet with this poor, this neglected, but happy clergyman, he would endeavor to renew and cement firmly their early-formed but long-suspended friendship. And when, on his return to Vivian Street, (whither Mrs. and Miss Aubrey had proceeded alone, at his request, while he walked on with Mr. Neville,) he told them the little history which I have above indicated to the reader, how the hearts of all of them went forth towards one who was in many respects a fellow-sufferer with themselves, and, *practising what he preached*, was really a pattern of resignation to the will of God; of humble but hearty faith in His mercy and loving-kindness!

Mr. Aubrey was not long in paying his promised visit to Mr. Neville, accompanied by Mrs. Aubrey. 'Twas a long and not very agreeable walk for them towards St. George's in the East; and on reaching a small row of neat houses, only one story high, and being shown into Mr. Neville's very little sitting-room, they found Mrs. Neville lying on a little rickety sofa near the fire, looking very ill, and Mr. Neville sitting before her, with a number of books on the table, and pen, ink, and paper, with which he was occupied preparing his next Sunday's sermon; but there was also a slip of paper on

the table of a different description, and which had occasioned both of them great distress; viz. a rather peremptory note from their medical man, touching the payment of his "trifling account" of £14 odd. Where poor Neville was to obtain such a sum, neither he nor his wife knew: they had already almost deprived themselves of necessary food and clothing to enable them to appease another urgent creditor; and this new and sudden demand of an old claim, had indeed grievously disquieted them. They said nothing about it to Mr. and Mrs. Aubrey, who soon made themselves at home, and by their unaffected simplicity and cordiality of manner, relieved their humble hosts from all anxiety. They partook of tea, in a sufficiently homely and frugal style; and before they rose to go they exacted a promise, that, as soon as Mrs. Neville should have recovered, they would both come and spend a long day in Vivian Street. They soon became very intimate; and, Mrs. Neville's health at length being such as to preclude her from attending at all to her needle, the reader will possibly think none the less of Mrs. Aubrey and Kate, when he hears that they insisted on taking that task upon themselves, (a matter in which they were becoming somewhat expert,) and many and many an hour did these two charming women spend, both in Vivian Street and at Mrs. Neville's, in relieving her from her labors—particularly in preparing her slight stock of winter clothing. And now that I am on this point, I may as well mention another not less amiable trait in Kate; that, hearing of a girl's school about to be founded in connection with the church which they attended, and in support of which several ladies had undertaken to prepare various little matters, such as embroidery, lace, pictures, and articles of fancy and ornament, Kate also set to work with her pencil and brushes. She was a very tasteful draughtswoman, and produced four or five such delicate and beautiful sketches, in water color, of scenes in and about Yatton, as made her a very distinguished contributor to the undertaking; each of her sketches producing upwards of two guineas. She also drew a remarkably spirited crayon sketch of the pretty little head of Charles—who accompanied her to the place where her contributions were deposited, and delivered it in with his own hand.—Thus, in short, were this sweet and amiable family rapidly reconciling themselves to their altered circumstances—taking real pleasure in the new scenes which surrounded them, and the novel duties devolving upon them; and as their feelings became calmer, they felt how true it is that happiness in this world depends not upon mere external circumstances, but upon THE MIND—which,

contented and well regulated, can turn everything around it into a source of enjoyment and thankfulness—making indeed *the wilderness to bloom and blossom as the rose*.

They kept up—especially Kate—a constant correspondence with good old Dr. Tatham; who, judging from the frequency and the length of his letters, which were written with a truly old-fashioned distinctness and uniformity of character, must have found infinite pleasure in his task. So also was it with Kate, who, if she had even been writing to her lover—nay, between ourselves, what would Mr. Delamere have given to have had addressed to himself one of the long letters, crossed down to the very postscript, full of sparkling delicacy, good nature, and good sense, which so often found their way to the "Rev. Dr. Tatham, Vicarage, Yatton, Yorkshire!" They were thus apprised of everything of moment that transpired at Yatton, to which their feelings clung with unalienable affection. Dr. Tatham's letters had indeed almost always a painful degree of interest attached to them. From his frequent mention of Mr. Gammon's name—and almost equally *favorable* as frequent—it appeared that he possessed a vast ascendancy over Mr. Titmouse, and was, whenever he was at Yatton, in a manner, its moving spirit. The doctor represented Titmouse as a truly wretched creature, with no more sense of religion than a monkey; equally silly, selfish, and vulgar—unfeeling and tyrannical wherever he had an opportunity of exhibiting his real character.

It exquisitely pained them, moreover, to find pretty distinct indications of a sterner and stricter rule being apparent at Yatton, than had ever been known there before, so far as the tenants and villagers were concerned. Rents were now required to be paid with the utmost punctuality; many of them were raised, and harsher terms introduced into their leases and agreements. In Mr. Aubrey's time a distress or an action for rent was a thing literally unheard of in any part of the estate; but nearly a dozen had occurred since the accession of Mr. Titmouse. If this had been at the instance of the ruling spirit, Mr. Gammon personally had certainly got none of the odium of the proceeding; every letter announcing a resort to hostile measures expressly purporting to be authorized by Mr. Titmouse himself; Mr. Gammon on most of such occasions, putting in a faint word or two in favor of the tenant, but ineffectually. The legal proceedings were always conducted in the name of "Bloodsuck and Son," whose town agents were, "Quirk, Gammon, and

Snap;" but *their* names never came under the eye of the defendants! No longer could the poor villagers, and poorer tenants, reckon on their former assistance from the Hall in the hour of sickness and distress: cowslip wine, currant wine, elderberry wine, if made, were consumed in the Hall. In short, there was a discontinuance of all those innumerable little endearing courtesies, and charities, and hospitalities, which render a good old country mansion the very *heart* of the neighborhood. The doctor in one of his letters, intimated, with a sort of agony, that he had heard it mentioned by the people at the Hall as probable, that Mr. Titmouse—the little Goth—would pull down that noble old relic, the turreted gateway; but that Mr. Gammon was vehemently opposed to such a measure; and that, if it were preserved after all, it would be entirely owing to the taste and the influence of that gentleman. Had Dr. Tatham chosen, he could have added a fact which would indeed have saddened his friends—viz. that the old sycamore, which had been preserved at the fond entreaties of Kate, and which was hallowed by so many sad and tender associations, had been long ago removed, as a sort of eyesore: Mr. Gammon had, in fact, directed it to be done; but he repeatedly expressed to Dr. Tatham, confidentially, his regret at such an act on the part of Titmouse. The doctor could also have told them that there had been a dog-fight in the village, at which Mr. Titmouse was present! Persons were beginning to make their appearance too, at Yatton, of a very different description from any who had been seen there in the time of the Aubreys—persons, now and then, of loose, and wild, and reckless characters. Mr. Titmouse would often get up a fight in the village, and reward the victor with five or ten shillings! Then the snug and quiet little "Aubrey Arms" was metamorphosed into the "Titmouse Arms" and another set up in opposition to it, and called "The Toper's Arms;" and it was really painful to see the increasing trade driven by each of them. They were both full every night, and often during the day also; and the vigilant, and affectionate, and grieved eye of the good vicar noticed several seats in the church, which had formerly been occupied every Sunday morning and afternoon, to be—empty! In his letters, he considerably sank the grosser features of Titmouse's conduct, which would have only uselessly grieved and disgusted his beloved correspondents. He informed them, however, from time to time, of the different visitors at the Hall, particularly of the arrival and movements of their magnificent kinsfolk, the Earl of Dreddlington and Lady Cecilia, the Marquis Gants-Jaunes de Millefleurs and Mr. Tuft—the

novel state and ceremony which had been suddenly introduced there—at which they all ceased reading for a moment, and laughed, well knowing the character of Lord Dreddlington. At length, some considerable time after Mr. Titmouse's grand visitors had been at the Hall, there came a letter from Dr. Tatham, sent by a private hand, and not reaching Vivian Street till the evening, when they were sitting together, after dinner, as usual, and which contained intelligence that was received in sudden silence, and with looks of astonishment; viz. *that Mr. Titmouse had become the acknowledged suitor of the Lady Cecilia!!* Mr. Aubrey, after a moment's pause, laughed more heartily than they had heard him laugh for many months—getting up, at the same time, and walking once or twice across the room—Mrs. Aubrey and Miss Aubrey gazed at each other for a few moments, without speaking a word; and you could not have told whether their fair countenances showed more of amusement or of disgust at the intelligence. "Well! it is as I have often told you, Kate," commenced Mr. Aubrey, after a while resuming his seat, and addressing his sister with an air of good-humored raillery; "you've lost your chance—you've held your head so high. Ah, 'tis all over now—and our fair cousin is mistress of Yatton!"

"Indeed, Charles," quoth Kate, earnestly, "I do think it's too painful a subject for a joke."

"Why, Kate!—You must bear it as well"——

"Pho, pho—nonsense, Charles! To be serious—did you ever hear anything so shocking as"——

"Do you mean to tell me, Kate," commenced her brother, assuming suddenly such a serious air as for a moment imposed on his sister, "that to become mistress of dear old Yatton—which was *offered* to you, you know—you would not have consented, when it came to the point, to become—Mrs. *Titmouse*?" For an instant, Kate looked as if she would have made, in the eye of the statuary, an exquisite model of beautiful disdain—provoked by the bare idea even, and put forward, as she knew, in raillery only. "You know, Charles," said she at length, calmly, her features relaxing into a smile, "that if such a wretch had ten thousand Yattons, I would, rather than marry him—oh!"—she shuddered—"spring from Dover cliff into the sea!"

"Ah, Kate, Kate!" exclaimed her brother, with a look of infinite pride and fondness. "Even supposing for a moment that you had no prev"——

"Come, Charles, no more nonsense," said Kate, patting his cheek, and slightly coloring.

"I say, that even if"——

"Only fancy," interrupted Kate, "*Lady Cecilia*—TITMOUSE! I see her before me now. Well, I protest it is positively insufferable; I could not have thought that there was a woman in the whole world—why"—she paused, and added laughingly, "how I should like to see their correspondence!"

"What!" said Mrs. Aubrey, with a sly smile, first at her husband, and then at Kate, "as a model for a certain *other* correspondence that I can imagine—eh, Kate!"

"Nonsense, nonsense, Agnes!—what a provoking humor you are both in this evening," interrupted Kate, with a slight pettishness; "what we've heard makes *me* melancholy enough, I assure you!"

"I suppose that about the same time that Lady Cecilia Titmouse goes to court," said her brother, "so will the Honorable Mrs. Dela"——

"If you choose to tease me, Charles, of course I cannot help it," quoth Kate, coloring still more; but it required no *very* great acuteness to detect that the topic was not excessively offensive.

"Mrs. De"——

"Have done, Charles!" said she, rising; and, putting her arm round his neck, she pressed her fair hand on his mouth; but he pushed it aside laughingly.

"Mrs. De—Dela—Delamere," he continued.

"I will finish it for you, Charles," said Mrs. Aubrey, "the Honorable Mr. and Mrs. Delamere"——

"What! do *you* turn against me too?" inquired Kate, laughing very good-humoredly.

"I wonder what her stately Ladyship's feelings were," said Aubrey, after a pause, "the first time that her elegant and accomplished lover *saluted* her!!"

"Eugh!" exclaimed both Kate and Mrs. Aubrey, in a breath, and with a simultaneous shudder of disgust.

"I dare say poor old Lord Dreddlinton's notion is, that this will be a fine opportunity for bringing about his favorite scheme of *reuniting the families*—Heaven save the mark!" said Mr. Aubrey, just as the twopenny postman's knock at the door was heard; and within a few moments' time the servant brought up-stairs a letter addressed to Mr. Aubrey. The very first glance at its contents expelled the smile from his countenance, and the color from his cheek: he turned, in fact, so pale, that Mrs. Aubrey and Kate also changed color—and came and stood with beating hearts, and suddenly suspended breath, one on each side of him, looking over the letter while he was reading it. As I intend presently to lay a copy of it before the reader, I shall first state a few circumstances, which will make it appear that this same letter may be compared to a shell thrown into a peaceful little citadel, by a skilful, though distant and unseen engineer—in short, I mean Mr. Gammon.

CHAPTER XII.

The astute and determined person mentioned at the close of our last chapter, had long been bent upon securing one object—namely, access to Mr. Aubrey's family circle, for reasons which have been already communicated to the reader. That Mr. Aubrey was, at all events, by no means *anxious* for such a favor, had been long before abundantly manifest to Gammon, and yet not in a way to give him any legitimate, or excusable, grounds of offence. The Aubreys had, he acknowledged, and especially in their present circumstances, an unquestionable right to receive or reject, as they thought fit, any overtures to acquaintance. Nothing, he felt, could be more unexceptionably courteous than Mr. Aubrey's demeanor; yet had it been such as to satisfy him, that unless he resorted to some means of unusual efficacy, he never could get upon visiting terms with the Aubreys. The impression which Miss Aubrey had originally produced in his mind, remained as distinct and vivid as ever. Her beauty, her grace, her elevated character, (of which he had heard much on all hands,) her accomplishments, her high birth—all were exquisitely appreciated by him, and conspired to constitute a prize, for the gaining of which he deemed no exertion too great, no sacrifice too serious, no enterprise too hazardous. He had, moreover, other most important objects in view, to which a union with Miss Aubrey was in fact essential. She was, again, the only person, the sight of whom had in any measure given vitality to his marble heart, exciting totally new thoughts and desires, such as stimulated him to a fierce and inflexible determination to succeed in his purposes. He was, in short, prepared to make almost any sacrifice, to wait any length of time, to do or suffer anything that man could do or suffer, whether derogatory to his personal honor or not—in order either to secure the affections of Miss Aubrey, or, at all events, her consent to a union with him. Having early discovered the spot where Mr. Aubrey had fixed his residence, Mr. Gammon had made a point of lying in wait on a Sunday morning, for the purpose of ascertaining the church to which they went; and having succeeded, he became a constant, an impassioned, though an unseen observer of Miss Aubrey, from whom he seldom removed his eyes during the service. But this was to him a

highly unsatisfactory state of things: he seemed, in fact, not to have made, nor to be likely to make, the least progress towards the accomplishment of his wishes, though much time had already passed away. He was so deeply engrossed with the affairs of Titmouse—which required his presence very frequently at Yatton, and a great deal of his attention in town—as to prevent his taking any decisive steps for some time in the matter nearest his heart. At length, not having seen or heard anything of Mr. Aubrey for some weeks, during which he—Gammon—had been in town, he resolved on a new stroke of policy.

"Mr. Quirk," said he one day to his excellent senior partner, "I fancy you will say that I am come to flatter you; but, Heaven knows!—if there is a man on the earth with whom I lay aside disguise, that man is my friend Mr. Quirk. Really, it does seem, and mortifying enough it is to own it, as if events invariably showed that you are right—that I am wrong"—(Here Mr. Quirk's appearance might have suggested the idea of a great old tom-cat who is rubbed down the right way of the fur, and does everything he can to testify the delight it gives him, by pressing against the person who affords him such gratification,)—"especially in financial matters"——

"Ah, Gammon, Gammon! you're really past finding out!—Sometimes, now, I declare I fancy you the very keenest dog going in such matters, and at other times, eh?—not *particularly* brilliant. When you've seen as much of this world's villany, Gammon, as I have, you'll find it as necessary as I have found it, to lay aside one's—one's—I say—to lay aside all scrup—that is—I mean—one's *fine feelings*, and so forth; you understand, Gammon?"

"Perfectly, Mr. Quirk"——

"Well—and may I ask, Gammon, what is the particular occasion of that screwed-up forehead of yours? Something in the wind?"

"Only this, Mr. Quirk—I begin to suspect that I did very wrong in recommending you to give an indefinite time to that Mr. Aubrey for payment of the heavy balance he owes us—by Heavens!—see how coolly he treats us!"

"Indeed, Gammon, I think so!—Besides—'tis an uncommon heavy balance to owe so long, eh?—Fifteen hundred pounds, or thereabouts?—Gad, it's

that, at least!"—Gammon shrugged his shoulders and bowed, as if resigned to any step which Mr. Quirk might think proper to take.

"He's a villanous proud fellow, that Aubrey, eh?—Your tip-top debtors generally *are*, though—when they've got a bit of a hardship to harp upon"——

"Certainly we ought, when we had him in our power"——

"Ah!—D'ye recollect, Gammon? the *thumbscrew*? eh? whose fault was it that it wasn't put on? eh? Tell me that, friend Gammon! Are you coming round to old Caleb Quirk's matter-of-fact way of doing business? Depend on't, the old boy has got a trick or two left in him yet, gray as his hair's grown."

"I bow, my dear sir—I own myself worsted—and all through that absurd weakness I have, which some choose to call"——

"Oh Lord, Gammon! Bubble, bubble and botheration—ah, ha!—Come, there's nobody here but you and me—and eh? *old Bogy* perhaps—so, why that little bit of blarney?"

"Oh! my dear Mr. Quirk, spare me that cutting irony of yours. Surely when I have made the sincere and humiliating submission to which you have been listening—but, to return to business. I assure you that I think we ought to lose not a moment in getting in our balance, or at least coming to some satisfactory and definite arrangement concerning it. Only pinch him, and he'll bleed freely, depend on it."

"Ah, ha! Pinch him, and he'll bleed! That's *my* thunder, Gammon, ah, ha, ha!—By Jove! that's it to a T!—I always thought the fellow had blood enough in him if we only squeezed him a little. So let Snap be off and have a writ out against Master Aubrey."

"Forgive me, my dear Mr. Quirk," interrupted Gammon, blandly—"we must go very cautiously to work, or we shall only injure ourselves, and prejudice our most important—and *permanent* interests. We must take care not to drive him desperate, poor devil, or he may take the benefit of the act, and"——

"What a cursed scamp he would be to"——

"Certainly; but we should suffer more than he"——

"Surely, Gammon, they'd *remand* him! Eighteen months at the very least."

"Not an hour—not a minute, Mr. Quirk," said Gammon, very earnestly.

"The deuce they wouldn't? Well, Law's come to a pretty point! And so lenient as we've been!"

"What occurs to *me* as the best method of procedure," said Gammon, after musing for a moment—"is, for you to write a letter to him immediately—civil but peremptory—just one of those letters of yours, my dear sir, in which no living man can excel you—*suaviter in modo, fortiter in re*, Mr. Quirk."

"Gammon, you're a gentleman, every inch of you—you are, upon my soul! If there *is* one thing in which I—but *you're* a hand at a letter of that sort, too! And *you* have managed these people hitherto; why not go on to the end of the chapter?"

"Mr. Quirk, I look upon this letter as rather an important one—it ought to come from the head of the firm, and to be decisively and skilfully expressed, so as at once to——eh? but you know exactly what ought to be done."

"Well—leave it to me,—leave it to me, Gammon: I think I *do* know how to draw up a teaser—egad! You can just cast your eye over it as soon as"——

"If I return in time from Clerkenwell, I will, Mr. Quirk," replied Gammon, who had, however, determined not to disable himself from saying with literal truth that he had not seen one line of the letter which might be sent! and, moreover, resolving to make his appearance at Mr. Aubrey's almost immediately after he should, in the course of the post, have received Mr. Quirk's communication:—with every appearance and *expression* of distress, agitation, and even disgust; indignantly assuring Mr. Aubrey that the letter had been sent without Mr. Gammon's knowledge—against his will—and was entirely repudiated by him; and that he would take care, at all hazards to himself, to frustrate any designs on the part of his coarse and hard-hearted senior partner to harass or oppress Mr. Aubrey. With this explanation of precedent circumstances, I proceed to lay before the reader an exact copy of the elegant letter of that old cat's-paw, Mr. Quirk, to Mr. Aubrey, the arrival of which had produced the sensation to which I have already alluded.

"*Saffron Hill, 30th September 18—.*

"SIR,—We trust you will excuse our reminding you of the very large balance (£1,446, 14s. 6d.) still remaining due upon our account—and which we understood, at the time when the very favorable arrangement to you, with respect to Mr. Titmouse, was made, was to have been long before this liquidated. Whatever allowances we might have felt disposed, on account of your peculiar situation, to have made, (and which we *have* made,) we cannot but feel a little surprised at your having allowed several months to elapse without making any allusion thereto. We are satisfied, however, that you require only to be reminded thereof, to have your immediate attention directed thereto, and to act in that way that will conduce to liquidate our very heavy balance against you. We are sorry to have to press you; but being much pressed ourselves with serious outlays, we are obliged to throw ourselves (however reluctantly) upon our resources; and it gives us pleasure to anticipate, that you must by this time have made those arrangements that will admit of your immediate attention to our overdue account, and that will render unnecessary our resorting to hostile and compulsory proceedings of that extremely painful description that we have always felt extremely reluctant to, particularly with those gentlemen that would feel it very disagreeable. We trust that in a week's time we shall hear from you to that effect, that will render unnecessary our proceeding to extremities against you, which would be extremely painful to us.—We remain, sir, yours, most obediently,

"QUIRK, GAMMON, & SNAP.

"CHARLES AUBREY, ESQ.

"P. S.—We should have no objection, if it would materially relieve you, to take your note of hand for the aforesaid balance (£1,446, 14s. 6d.) at two months, with interest, and good security. Or say, £800 down in two months, and a *warrant of attorney* for the remainder, at two months more."

As soon as they had finished reading the above letter, in the way I have described, Mrs. Aubrey threw her arms round her silent and oppressed husband's neck, and Kate, her bosom heaving with agitation, returned to her seat without uttering a word.

"My own poor Charles!" faltered Mrs. Aubrey, and wept.

"Never mind, Charles—let us hope that we shall get through even *this*," commenced Kate; when her emotion prevented her proceeding. Mr. Aubrey appeared to cast his eye again, but mechanically only, over the dry, civil, heart-breaking letter.

"Don't distress yourself, my Agnes," said he, tenderly, placing her beside him, with his arm round her—"it is only reasonable that these people should ask for what is their own; and if their manner is a little coarse"——

"Oh, I've no patience, Charles!—it's the letter of a vulgar, hard-hearted fellow," sobbed Mrs. Aubrey.

"Yes—they are wretches!—cruel harpies!" quoth Kate, passionately—"they know that you have almost beggared yourself to pay off by far the greater part of their abominable bill; and that you are slaving day and night to enable you to"——here her agitation was so excessive as to prevent her uttering another word.

"I must write and tell them," said Aubrey, calmly but with a countenance laden with gloom—"it is all I can do—that if they will *have patience with me, I will pay them all*."

"Oh, they'll put you in prison, Charles, directly"—said Kate, almost frantically; and rising, she threw herself into his arms, and kissed him with a sort of frenzied energy. "We're *very* miserable, Charles—are we not? It's hard to bear indeed," she continued, gazing with agonizing intensity on his troubled features. Mrs. Aubrey wept in silence.

"Are you giving way, my brave Kate, beneath this sudden and momentary gust on the midnight sea of our trouble?" inquired her brother, proudly but kindly gazing at her, and with his hand gently pushing from her pale cheeks her disordered hair.

"Human nature, Charles, must not be tried too far—look at Agnes, and the darling little loves"——

"I am not likely to consult their interests, Kate, by yielding to unmanly emotion—am I, sweet Agnes?" She made him no reply, but shook her head, sobbing bitterly.

"Pray what do you think, Charles, of your friend *Mr. Gammon*, now?" inquired Kate, suddenly and scornfully. "Oh, the smooth-tongued villain! I've always hated him!"

"I must say there's something about his eye that is anything but pleasing," said Mrs. Aubrey; "and so I thought when I saw him at York for a moment."

"He's a hypocrite, Charles—depend upon it, and in this letter he has thrown off the mask"—interrupted Kate.

"But *is* it *his* letter? How do we know that he has had anything to do with it?" inquired her brother, calmly—"It is much more probable that it is the production of old Mr. Quirk alone, for whom Mr. Gammon has, I know, a profound contempt. The handwriting is Mr. Quirk's; the style is assuredly not Mr. Gammon's; and the whole tone of the communication is such as satisfies me that neither was the composition of the letter, nor the idea of sending it, his; besides, he has really shown on every occasion a straightforward and disinterested"——

"Oh, Charles, it is very weak of you to be so hood-winked by such a fellow; I shudder to think of him! One of these days, Charles, you will be of my opinion, and recollect what I now say!"—While she thus spoke, and Mrs. Aubrey was, with a trembling hand, preparing tea, a double knock was heard at the street door.

"Heavens, Charles! who can that possibly be, and at this time of night?" exclaimed Kate, with alarmed energy.

"I really cannot conjecture"—replied Mr. Aubrey, with an agitation of manner which he found it impossible to conceal—"we've certainly but very few visitors—and it is so late." The servant in a few minutes terminated their suspense, and occasioned them nearly equal alarm and amazement, by laying down on the table a card bearing the name of MR. GAMMON.

"Mr. Gammon!" exclaimed all three, in a breath, looking apprehensively at each other—"Is he *alone*?" inquired Mr. Aubrey, with forced calmness.

"Yes, sir."

"Show him into the study, then," replied Mr. Aubrey, "and say I will be with him in a few moments' time."

"Dear Charles, don't, dearest, think of going down," said his wife and sister, with excessive alarm and agitation; "desire him to send up his message."

"No, I shall go and see him, and at once," replied Mr. Aubrey, taking one of the candles.

"For Heaven's sake, Charles, mind what you say to the man: he will watch every word you utter. And, dearest, don't stay long; consider what tortures we shall be in!" said poor Mrs. Aubrey, accompanying him to the door, and trembling from head to foot.

"Rely on my prudence, and also that I shall not stop long," he replied; and descending the stairs, he entered the study. In a chair near the little book-strewn table sat his dreaded visitor—suggesting to his disturbed vision the idea of a deadly snake coiled up before him. Instantly, on seeing Mr. Aubrey, Gammon rose, with distress and agitation visible in his countenance and deportment. Mr. Aubrey, with calmness and dignity, begged him to resume his seat; and when he had done so, sat down opposite to him, with a sternly inquisitive look, awaiting his visitor's errand. He was not kept long in suspense.

"Oh, Mr. Aubrey!" commenced Mr. Gammon, with a somewhat tremulous voice, "I perceive, from your manner, that my fears are justified, and that I am an intruder—a dishonorable and hypocritical one I must indeed appear; but, as I have done nothing to forfeit my right to be treated as should be one gentleman by another, I request you to hear me. This visit appears indeed unseasonable; but, late this afternoon, I made a discovery which has shocked me severely, nay, I may say, disgusted me beyond expression. Am I right, Mr. Aubrey, in supposing that this evening you have received a letter from Mr. Quirk, and about the balance due on our account?"

"I have, sir," replied Mr. Aubrey, coldly.

"I thought as much," muttered Gammon, with suppressed vehemence—"execrable, heartless, sordid old——And he *knew*," continued Gammon, addressing Mr. Aubrey in an indignant tone, "that my word was solemnly pledged to you."

"I have no intention of making any complaint, or uttering any reproaches, sir," said Mr. Aubrey, eyeing his agitated companion searchingly.

"But *I* have, Mr. Aubrey," said Gammon, haughtily. "My senior partner has broken faith with me. Sir, you have already paid more than will cover what is justly due to us; and I recommend you, after this, to *have the bill taxed*. You will thereby get rid of every farthing of the balance now demanded; and I give you this recommendation *bonâ fide*, and upon the honor of a gentleman." Notwithstanding the air of sincerity with which this was uttered, a cold thrill of apprehension and suspicion passed through Mr. Aubrey's heart, and he felt confident that some subtle and dangerous manœuvre was being practised upon him—that he was urged to take some hostile step for instance—which would be unsuccessful, and yet afford a pretext to Messrs. Quirk, Gammon, and Snap, to treat him as one guilty of a breach of faith, and *warrant them in proceeding to extremities*. He regarded Mr. Gammon's words as the hissing of a serpent, and shuddered.

"I have no intention, sir, to do anything of the kind," said Mr. Aubrey. "The original agreement between us was, that your bill should not be taxed. I adhere to it; and whatever course you may feel disposed to adopt, I shall take no steps whatever of the kind you mention. At the same time it is utterly impossible for me to pay"——

"Mr. Aubrey!" interrupted Gammon, imploringly.

"And what you do intend to do, for Heaven's sake, sir, do quickly, and keep me not in suspense."

"I perceive, Mr. Aubrey, that notwithstanding what I have said, I am distrusted," replied Gammon, with a somewhat proud and peremptory tone and manner.—"I excuse it; you are justly irritated, and have been insulted: so have I, too, sir; and I choose to repeat to you, upon my sacred word of honor as a gentleman, and in the sight of Heaven, that I entirely disown and scout this whole procedure; that I never knew anything about it till, accidentally, I discovered lying on Mr. Quirk's desk, after his departure this evening from the office, a rough draft of a letter which I presumed you had received; especially as, on a strict inquiry of the clerks, I found that a letter had been put into the post, addressed to you. Nay, more; Mr. Quirk, whose rapacity increases—I grieve to own—with his years, has been for many weeks harassing me about this detestable business, and urging me to consent, but in vain, to such an application as he has now meanly made behind my back, regardless of the injury it was calculated to do my feelings,

and, indeed, the doubt it must throw over my sincerity and honor, which I prize infinitely beyond life itself. Only a fortnight ago, Mr. Aubrey, this old man solemnly pledged himself," continued Gammon, with suppressed fury, "never to mention the matter to either me or you, again, for at least a couple of years, unless something extraordinary should intervene!—If the letter which you have received be a transcript of the rough draft which I have read, it is a vulgar, unfeeling, brutal letter, and contains, moreover—for why should I keep faith with even my senior partner, who has so outrageously broken faith with me?—two or three wilfully false statements. I therefore feel it due to myself to disavow all participation in this miserable product of fraud and extortion—and if you still distrust me, I can only regret it, but shall not presume to find fault with you for it. I am half disposed, on account of this, and one or two other things which have happened, to close my connection with Mr. Quirk from this day—forever. He and I have nothing in common; and the species of business which he and Mr. Snap chiefly court and relish, is perfectly odious to me. But if I should continue in the firm, I will undertake to supply you with one pretty conclusive evidence of my sincerity and truth in what I have been saying to you—namely, that on the faith and honor of a gentleman, you may depend upon hearing no more of this matter from any member of our firm, except from me, and that at a very remote period. Let the *event*, Mr. Aubrey, speak for itself."—While Gammon was speaking with eloquent earnestness and fervor, he had felt Mr. Aubrey's eye fixed on him with an expression of stern incredulity—which, however, he at length perceived, with infinite inward relief and pleasure, to be giving way as he went on.

"Certainly, Mr. Gammon"—said Mr. Aubrey, in a very different tone and manner from that which he had till then adopted—"I will not disguise from you that the letter you have mentioned, has occasioned me—and my family—deep distress and dismay; for it is utterly out of my power to comply with its requisitions: and if it be intended to be really acted on, and followed up"—he paused, and with difficulty repressed his emotions, "all my little plans are forever frustrated—and I am at your mercy—to go to prison, if you choose, and there end my days."—He paused—his lip trembled, and his eyes were for a moment obscured with starting tears. So also was it with Mr. Gammon, who looked for some time aside. "But,"—resumed Mr. Aubrey,— "after the explicit and voluntary assurance which you have given me, I feel it impossible not to give you implicit credence. I can imagine no

motive for what would be otherwise such elaborate and dreadful deception!"

"*Motive*, Mr. Aubrey! The only motive I am conscious of, is one supplied by profound sympathy for your misfortunes—admiration of your character—and my sole object is, your speedy extrication from your very serious embarrassments. I am in the habit, Mr. Aubrey," he continued in a lower tone, "of concealing and checking my feelings—but there *are* occasions"—he paused, and added with a somewhat faltering voice—"Mr. Aubrey, it pains me inexpressibly to observe that your anxieties—your severe exertions—I trust in God I may not rightly add, your *privations*—are telling on your appearance. You are certainly much thinner." It was impossible any longer to distrust the sincerity of Mr. Gammon—to withstand the arts of this consummate actor. Mr. Aubrey held out long, but at length surrendered entirely, and fully believed all that Gammon had said:—entertaining, moreover, commensurate feelings of *gratitude*, towards one who had done so much to protect him from rapacious avarice, and the ruin into which it would have precipitated him; and of *respect*, for one who had evinced such an anxious, scrupulous, and sensitive jealousy for his own honor and reputation, and resolute determination to vindicate it against suspicion. Subsequent conversation served to strengthen his favorable disposition towards Gammon, and the same effect was also produced when he adverted to his previous and unwarrantable distrust and disbelief of that gentleman. He looked fatigued and harassed; it was growing late; he had come, on his errand of courtesy and kindness, a great distance: why should not Mr. Aubrey ask him up-stairs, to join them at tea? To be sure, Mr. Aubrey had hitherto felt a disinclination—he scarce knew why—to have any more than mere business intercourse with Mr. Gammon, a member of such a firm as Quirk, Gammon, and Snap—and, moreover, Mr. Runnington had more than once let fall expressions indicative of vehement suspicion of Mr. Gammon; so had the Attorney-General; but what had Gammon's *conduct* been? Had it not practically given the lie to such insinuations and distrust, unless Mr. Aubrey was to own himself incapable of forming a judgment on a man's line of conduct which had been so closely watched as that of Gammon, by himself, Aubrey? Then Miss Aubrey had ever, and especially that very evening—expressed an intense dislike of Mr. Gammon—had avowed, also, her early and uniform disgust—'twould be extremely embarrassing to her suddenly to introduce into her presence such an individual as Gammon:

again, he had promised to return quickly, in order to relieve their anxiety: why should he not have the inexpressible gratification of letting Mr. Gammon himself, in his own pointed and impressive manner, dispel all their fears? He would, probably, not stay long.

"Mr. Gammon," said he, having balanced for some moments these conflicting considerations in his mind, "there are only Mrs. Aubrey, and my sister, Miss Aubrey, up-stairs. I am sure they will be happy to see me return to them in time for tea, accompanied by the bearer of such agreeable tidings as yours. Mr. Quirk's letter, to be frank, reached me when in their presence, and we all read it together, and were distressed and confounded at its contents." After a faint show of reluctance to trespass on the ladies so suddenly, and at so late an hour, Mr. Gammon slipped off his great-coat, and with intense but suppressed feelings of exultation at the success of his scheme, followed Mr. Aubrey up-stairs. He was not a little flustered on entering the room and catching a first glimpse of the two lovely women—and one of them *Miss Aubrey*—sitting in it, their faces turned with eager interest and apprehension towards the door, as he made his appearance. He observed that both of them started, and turned excessively pale.

"Let me introduce to you," said Mr. Aubrey, quickly, and with a bright assuring smile, "a gentleman who has kindly called to relieve us all from great anxiety—Mr. Gammon: Mr. Gammon, Mrs. Aubrey—Miss Aubrey." Mr. Gammon bowed with an air of deep deference, but with easy self-possession; his soul thrilling within him at the sight of her whose image had never been from before his eyes since they had first seen her.

"I shall trespass on you for only a few minutes, ladies," said he, diffidently, approaching the chair towards which he was motioned. "I could not resist the opportunity so politely afforded me by Mr. Aubrey of paying my compliments here, and personally assuring you of my utter abhorrence of the mercenary and oppressive conduct of a person with whom, alas! I am closely connected in business, and whose letter to you of this evening I only casually became acquainted with, a few moments before starting off hither. Forget it, ladies; I pledge my honor that it shall *never be acted on!*" This he said with a fervor of manner that could not but make an impression on those whom he addressed.

"I'm sure we are happy to see you, Mr. Gammon, and very much obliged to you, indeed," said Mrs. Aubrey, with a sweet smile, and a face from which alarm was vanishing fast. Miss Aubrey said nothing; her brilliant eyes glanced with piercing anxiety, now at her brother, then at his companion. Gammon felt that he was distrusted. Nothing could be more prepossessing—more bland and insinuating, without a trace of fulsomeness, than his manner and address, as he took his seat between these two agitated but lovely women. Miss Aubrey's paleness rather suddenly gave way to a vivid and beautiful flush; and her eyes presently sparkled with delighted surprise on perceiving the relieved air of her brother, and the apparent cordiality and sincerity of Mr. Gammon. When she reflected, moreover, on her expressions of harshness and severity concerning him that very evening, and of which he now appeared so undeserving, it threw into her manner towards him a sort of delicate and charming embarrassment. Her ear drank in eagerly every word he uttered, so pointed, so significant, so full of earnest good-will towards her brother. Their visitor's manner was that of a gentleman; his countenance and conversation were those of a man of intellect. Was *this* the keen and cruel pettifogger whom she had learned at once to dread and to despise? They and he were, in a word, completely at their ease with one another, within a few minutes after he had taken his seat at the tea-table. Miss Aubrey's beauty shone that evening with even unwonted lustre, and appeared as if it had not been in the least impaired by the anguish of mind which she had so long suffered. 'Tis quite impossible for me to do justice to the expression of her full beaming blue eyes—an expression of mingled passion and intellect—of blended softness and spirit—such as, especially in conjunction with the rich tones of her voice, shed something like madness into the breast of Gammon. She, as well as her lovely sister-in-law, was dressed in mourning, which infinitely set off her dazzling complexion, and, simple and elegant in its drapery, displayed her exquisite proportions to the greatest possible advantage. "Oh, my God!" thought Gammon, with a momentary thrill of disgust and horror: "and this is the transcendent creature of whom that little miscreant, Titmouse, spoke to me in terms of such presumptuous and revolting license!" What would he not have given to kiss the fair and delicate white hand which passed to him his antique tea-cup! Then Gammon's thoughts turned for a moment inward—*why, what a scoundrel was he!* At that instant he was, as it were, reeking with his recent lie. He was there on cruel, false pretences, which alone had

secured him access into that little drawing-room, and brought him into contiguity with the dazzling beauty beside him—pure, and innocent as beautiful;—he was a fiend beside an angel. What an execrable hypocrite was he! He caught, on that memorable occasion, a sudden glimpse even of his own real inner man—of his infernal SELFISHNESS and HYPOCRISY—and involuntarily shuddered! Yes—he was striving to fascinate his *victims*!—those whom he was fast pressing on to the verge of destruction—against whom he was, at that moment, meditating profound and subtle schemes of mischief! At length they all got into animated conversation.

Though infinitely charmed by the unaffected simplicity and frankness of their manners, he experienced a sad and painful consciousness at not having made the least *way* with them. Though physically near to them, he seemed yet really at an unapproachable distance—and particularly from Miss Aubrey. He felt that the courtesy bestowed upon him was accidental, the result merely of his present position, and of the intelligence which he had come to communicate. It was not *personal*—'twas nothing to *Gammon himself*; it would never be renewed, unless he should renew his device! There was not the faintest semblance of *sympathy* between them and him. Fallen as they were into a lower sphere, they had yet about them, so to speak, a certain atmosphere of conscious personal consequence, derived from high birth and breeding—from superior feelings and associations—from a native frankness and dignity of character, which was indestructible and inalienable; and which chilled and checked undue advances of any sort. They were still the Aubreys of Yatton, and he in their presence, still Mr. Gammon of the firm of Quirk, Gammon, and Snap, of Saffron Hill—and all this, too, without—on the part of the Aubreys—the least effort, the least intention, or even consciousness. No, there had not been exhibited towards him the faintest indication of hauteur. On the contrary, he had been treated with perfect cordiality and frankness. Yet, dissatisfaction and vexation were, he scarce knew at the moment why, pervading his whole soul. Had he accurately analyzed his own feelings he would have discovered the real clause—in *his own unreasonable, unjustifiable wishes and intentions*! But to return, they talked of Titmouse, and his mode of life and conduct—of his expected alliance with the Lady Cecilia, at the mention of which Gammon's quick eye detected a passing smile of scorn on Miss Aubrey's fine countenance, that was *death to all his own fond and ambitious hopes*. After he had been sitting with them for scarcely an hour, he detected Miss Aubrey

stealthily glancing at her watch, and at once arose to take his departure with a very easy and graceful air, expressing an apprehension that he had trespassed upon their kindness. He was cordially assured to the contrary; but at the same time was not invited either to prolong his stay, or renew his visit. Miss Aubrey made him, he thought, as he inclined towards her, *rather* a formal courtesy; and the tone of voice—soft and silvery—in which she said "good-night, Mr. Gammon," fell on his eager ear, and sank into his vexed heart, like music. On quitting the house, a deep sigh of disappointment escaped him. As he gazed for a moment with longing eyes at the windows of the room in which Miss Aubrey was sitting, he felt profound depression of spirit. He had altogether *failed*; and he had a sort of insupportable consciousness that he deserved to fail, on every account. Her image was before his mind's eye every moment while he was threading his way back to his chambers in Thavies' Inn. He sat for an hour or two before the remnant of his fire, lost in a reverie; and sleep came not to his eyes till a very late hour in the morning.

Just as the tortuous mind of Gammon was loosing hold of its sinister purposes in sleep, Mr. Aubrey might have been seen taking his seat in his little study, having himself spent a restless night. 'Twas little more than half-past four o'clock when he entered, candle in hand, the scene of his early and cheerful labors, and sat down before his table, which was covered with loose manuscripts and books. His face was certainly overcast with anxiety, but his soul was calm and resolute. Having lit his fire, he placed his shaded candle upon the table, and leaning back for a moment in his chair, while the flickering increasing light of his crackling fire and of the candle, revealed to him, with a sense of indescribable snugness, his shelves crammed with books, and the window covered with an ample crimson curtain, effectually excluding the chill morning air—he reflected with a heavy sigh upon the precarious tenure by which he held the little comforts yet thus left to him. Oh, thought he—if Providence saw fit to relieve me from the frightful pressure of liability under which I am bound to the earth, at what labor, at what privation would I repine! What gladness would not spring up in my heart!—But rousing himself from vain thoughts of this kind, he began to arrange his manuscripts; when his ear caught a sound on the stair—'twas the light stealthy step of his sister, coming down to perform her promised undertaking—not an unusual one by any means—to transcribe for the press the manuscript which he expected to complete that morning. "My sweet

Kate," said he, tenderly, as she entered with her little chamber light, extinguishing it as she entered,—“I am really grieved to see you stirring so early—do, dearest Kate—go back to bed.” But she kissed his cheek affectionately, and refused to do any such thing; and telling him of the restless night she had passed, of which indeed her pale and depressed features bore but too legible evidence, she sat herself down in her accustomed place, nearly opposite to him; gently cleared away space enough for her little desk, and then opening it, was presently engaged in her delightful task—for to her it was indeed delightful—of copying out her brother's composition. Thus she sat, silent and industrious—scarce opening her lips, except to ask him to explain an illegible word or so—opposite to her doting brother, till the hour had arrived—eight o'clock—for the close of their morning toil. The reader will be pleased to hear that the article on which they had been thus engaged—and which was the discussion of a question of foreign politics, of great difficulty and importance—produced him a check for sixty guineas, and excited general attention and admiration. Oh, how precious was this reward of his honorable and severe toil! How it cheered him who had earned it, and those who were, alas! entirely dependent upon his exertions! And how sensibly, too, it augmented their little means! Grateful, indeed, were all of them for the success which had attended his labors!

As I do not intend to occupy the reader with any details relating to Mr. Aubrey's Temple avocations, I shall content myself with saying that the more Mr. Weasel and Mr. Aubrey came to know of each other, the more Aubrey respected his legal knowledge and ability, and he, Aubrey's intellectual energy and successful application; which, indeed, consciously brought home to Aubrey its own reward, in the daily acquisition of solid learning, and increasing facility in the use of it. His mind was formed for THINGS, and was not apt to occupy itself with mere *words*, or technicalities. He was ever in quest of the principles of law—of its reason, and spirit. He quickly began to appreciate the sound practical good sense on which almost all its chief rules are founded, and the effectual manner in which they are accommodated to the innumerable and ever-varying exigencies of human affairs. The mere forms and technicalities of the law, Mr. Aubrey often thought might be compared to short-hand, whose characters to the uninitiated appear quaint and useless, but are perfectly invaluable to him who has seen the object, and patiently acquired the use of them. Whatever

Mr. Aubrey's hand found to do, while studying the law, he did it, indeed, *with his might*—which is the grand secret of the difference in the success of different persons addressing themselves to legal studies. Great or small, easy or difficult, simple or complicated, interesting or uninteresting, as might be the affair submitted to him, he made a point of mastering it thoroughly, and, as far as possible, *by his own efforts*; which generated, early, a habit of self-reliance which no one better than he knew the value of—how inestimable, how indispensable, not to the lawyer merely, but to any one intrusted with the responsible management of affairs. In short, he secured that satisfaction and success which are sure to attend the exertions of a man of superior sense and spirit, who is in earnest about that which he has undertaken. He frequently surprised Mr. Weasel with the exactness and extent of his legal information—with his acuteness, clear-headedness, and tenacity in dealing with matters of downright difficulty: and Mr. Weasel had once or twice an opportunity of expressing his very flattering opinion concerning Mr. Aubrey to the Attorney-General. The mention of that eminent person reminds me of an observation which I intended to have made some time ago. The reader is not to imagine, from my silence upon the subject, that Mr. Aubrey, in his fallen fortunes, was heartlessly forgotten or neglected by the distinguished friends and associates of former and more prosperous days. It was not they who withdrew from him, but he who withdrew from them; and that, too, of set purpose, resolutely adhered to, on the ground that it could not be otherwise, without seriously interfering with the due prosecution of those plans of life on which depended not only his *all*, and that of those connected with him—but his fond hopes of yet extricating himself, by his own personal exertions, from the direful difficulties and dangers which at present environed him—of achieving, with his own right hand, independence. Let me not forget here to state a fact which I conceive infinitely to redound to poor Aubrey's honor—viz. that he thrice refused offers made him from very high quarters, of considerable *sinecures*, *i. e.* handsome salaries for purely nominal services—which he was earnestly and repeatedly reminded would at once afford him a liberal maintenance, and leave the whole of his time at his own disposal, to follow any pursuit or profession which he chose. Mr. Aubrey justly considered that it was very difficult, if not indeed impossible, for any honorable and high-minded man to be a sinecurist.—He who holds a sinecure, is, in my opinion, plundering the public; and how it can be more contrary to the

dictates of honor and justice, deliberately to defraud an individual, than deliberately and audaciously to defraud that collection of individuals called the public, let casuists determine. As for Mr. Aubrey, *he* saw stretching before him the clear, straight, bright line of honor, and resolved to follow it, without faltering or wavering, come what come might. He resolved that, with the blessing of Providence, his own exertions should procure his bread, and, if such was the will of Heaven, lead him to distinction among mankind. He had formed this determination, and resolved to work it out—never to pause, nor give way, but to die in the struggle. Such a spirit must conquer whatever is opposed to it. What is *difficulty*? Only a word indicating the degree of strength requisite for accomplishing particular objects; a mere notice of the necessity for exertion; a bugbear to children and fools; an effective stimulus to men.

Mr. Gammon experienced little trouble in wheedling Mr. Quirk out of his purpose of enforcing payment, by Mr. Aubrey, of the balance of his account; demonstrating to the old gentleman the policy of waiting a little longer. He pledged himself, when the proper time came, to adopt measures of undoubted efficacy—assuring his for some time sullen senior, in a low tone, that since his letter had reached Mr. Aubrey, circumstances had occurred which would render it in the last degree dangerous to press that gentleman upon the subject. What that was, which had happened, Mr. Gammon, as usual, refused to state. This was a considerable source of vexation to Mr. Quirk: but he had a far greater one, in the decisive and final overthrow of his fondly-cherished hopes concerning his daughter's alliance with Titmouse. The paragraph in the *Aurora*, announcing Mr. Titmouse's engagement to his brilliant relative, the Lady Cecilia, had emanated from the pen of Mr. Gammon; who had had several objects in view in giving early publicity to the event. *Happening(!)* on the morning on which it appeared, to be glancing over the fascinating columns of the *Aurora* at a public office, (the paper taken in at their own establishment being the *Morning Grawl*,) he made a point of purchasing that day's *Aurora*; and on returning to Saffron Hill, he inquired whether Mr. Quirk were at home. Hearing that he was sitting alone, in his room—in rushed Mr. Gammon, breathless with surprise and haste, and plucking the newspaper out of his pocket,—“By Heavens, Mr. Quirk!”—he almost gasped as he doubled down the paper to the place where stood the announcement in question, and put it

into Mr. Quirk's hands,—“this young fellow's given you the slip, after all! See!—The moment that my back is turned”——

Mr. Quirk having, with a little trepidation, adjusted his spectacles, perused the paragraph with a somewhat flushed face. He had, in fact, for some time had grievous misgivings on the subject of his chance of becoming the father-in-law of his distinguished client, Mr. Titmouse; but now his faintest glimmering of hope was suddenly and completely extinguished, and the old gentleman felt quite desolate. He looked up, as soon as he had finished reading, and gazed ruefully at his indignant and sympathizing companion.

“It seems all up, Gammon, certainly—don't it?” said he, faintly, with a flustered air.

“Indeed, my dear Mr. Quirk, it does! You have my sincerest”——

“Now comes t'other end of the thing, Gammon! You know every promise of marriage has two ends—one joins the heart, and t'other the pocket; *out* heart, *in* pocket—so *have at him*, Gammon—have at him, by Jove!” He rose up and rubbed his hands as he stood before the fire. “Breach of promise—thundering damages—devilish deep purse—special jury—broken heart, and all that! I wish he'd written her—by the way—more letters! Adad, I'll have a shot at him by next assizes—a writ on the file this very day! What d'ye think on't, friend Gammon, between ourselves?” quoth Mr. Quirk, heatedly.

“Why, my dear sir—to tell you the truth—aren't you really well out of it? He's a miserable little upstart—he'd have made a wretched husband for so superior a girl as Miss Quirk.”

“Ay—ay! ay! She *is* a good girl, Gammon—there you're right; would have made the best of wives—my eyes, (between ourselves!) how that'll go to the jury! Gad, I fancy I see'em—perhaps all of'em daughters of their own.”

“Looking at the thing calmly, Mr. Quirk,” said Gammon, gravely—apprehensive of Mr. Quirk's carrying too far so very absurd an affair—“where's the *evidence* of the promise?—Because, you know, there's certainly *something* depends on that—eh?”

“Evidence? Deuce take you, Gammon! where are your wits? Evidence? Lots—lots of it! A'n't there I—her father? A'n't I a competent^[31] witness?

Wait and see old Caleb Quirk get into the box. I'll settle his hash in half a minute."

"Yes—if you're believed, perhaps."

"*Believe* be——! Who's to be believed, if her own father isn't?"

"Why, you may be too much swayed by your own feelings!"

"*Feelings* be——! It's past all that; he has none—so he must pay, for he *has* cash! He ought to be made an example of!"

"Still, to come to the point, Mr. Quirk, I vow it quite *teases* me—this matter of the evidence"——

"Evidence? Why, Lord bless my soul, Gammon," quoth Quirk, testily, "haven't *you* had your eyes and ears open all this while? Gad, what a crack witness you'd make! A man of your—your intellect—serve a friend at a pinch—and in a matter about his daughter? Ah, how often you've seen'em together—walking, talking, laughing, dancing, riding—writ in her album—made her presents, and she him. *Evidence?* Oceans of it, and to spare! Secure Subtle—and I wouldn't take £5,000 for my verdict!"

"Why, you see, Mr. Quirk," said Gammon, very seriously—"though I've striven my utmost these six months to bring it about, the artful little scamp has never given me the least thing that I could lay hold of, and *swear* to."

"Oh, you'll *recollect* enough, in due time, friend Gammon, if you'll only turn your attention to it; and if you'll bear in mind it's life and death to my poor girl. Oh Lord! I must get my sister to break it to her, and I'll send sealed instructions to Mr. —— Weasel, shall we say? or Lynx? ay, Lynx; for he'll then have to fight for his own pleadings; and can't turn round at the trial and say, 'this is not right,' and 'that's wrong,' and, '*why* didn't you have such and such evidence?' Lynx is the man; and I'll lay the venue in Yorkshire, for Titmouse is devilish disliked down there; and a special jury will be only too glad to give him a desperate slap in the chops! We'll lay the damages at twenty thousand pounds! Ah, ha! I'll teach the young villain to break the hearts of an old man and his daughter. But, egad," he pulled out his watch, "half-past two; and Nicky Crowbar sure to be put up at three! By Jove! it won't do to be out of the way; he's head of the gang, and they always come down very liberally when they're in trouble. Snap!

Amminadab! hollo! who's there? Drat them all, why don't they speak?" The old gentleman was soon, however, attended to.

"Are they here?" he inquired, as Mr. Amminadab entered.

"Yes, sir, all three; and the coach is at the door, too. Nicky Crowbar's to be up at three, sir"——

"I see—I know—I'm ready," replied Mr. Quirk, who was presently seated in the coach with three gentlemen, to whom he minutely explained the person of Mr. Nicky Crowbar, and the place at which it was quite certain that Mr. Crowbar could *not* have been at half-past eleven o'clock on Tuesday night the 9th of July, seeing that it did so happen that at that precise time he was elsewhere, in company with these very three gentlemen—to wit, at Chelsea, and *not at Clapham*! In short, this was a first-rate ALIBI.

Though Mr. Gammon thus sympathized with one of the gentle beings who had been "rifled of all their sweetness," I grieve to say that the other, Miss Tag-rag, never occupied his thoughts for one moment. He neither knew nor cared whether or not she was apprised of the destruction of all *her* fond hopes, by the paragraph which had appeared in the *Aurora*. He felt, in fact, that he had really done enough, on the part of Mr. Titmouse, for his early friend and patron, Mr. Tag-rag, on whom the stream of fortune had set in strong and steady; and, in short, Mr. Gammon knew that Mr. Tag-rag had received a substantial memento of his connection with Tittlebat Titmouse. How truly disinterested a man was Mr. Gammon towards all with whom he came in contact! What had he not done, as I have been saying, for the Tag-rags? What for Mr. Titmouse? What for the Earl of Dreddlington? What for Mr. Quirk, and even Snap? As for Mr. Quirk, had he not been put in possession of his long-coveted bond for £10,000? of which, by the way, he allotted £1,000 only to the man—Mr. Gammon—by whose unwearying exertions and consummate ability he had obtained so splendid a prize, and £300 to Mr. Snap! Then, had not Mr. Quirk also been paid his bill against Titmouse of £5,000 and upwards, and £2,500 by Mr. Aubrey? And, governed by the articles of their partnership, what a *lion's half* of this spoil had not been appropriated to the respectable old head of the firm? Mr. Gammon did undoubtedly complain indignantly of the trifling portion allotted to him, but he was encountered by such a desperate pertinacity on the part of Mr. Quirk as baffled him entirely, and caused him to abandon his

further claim in disgust and despair. Thus, the £20,000 obtained by Mr. Titmouse, on mortgage of the Yatton property, was reduced at once to the sum of £5,000;—but out of this handsome balance had yet to come, first, £800, with interest, due to Mr. Quirk for subsistence-money advanced to Titmouse; secondly, £500 due to Mr. Snap, for moneys alleged to have been also lent by him to his friend Titmouse at different times, in the manner which has been already explained to the reader—Snap's demand for repayment being accompanied by *verbatim* copies—such he stated them to be—of between forty and fifty memoranda—many of them in pencil—notes of hand, receipts, I. O. U.'s, &c., in whose handwriting the figures representing *the sums lent*, and the times when, could not be ascertained, and did not signify: it being, in point of law, good *primâ facie* evidence for Snap, in the event of a trial, simply to produce the documents and prove the signature of his friend Mr. Titmouse.^[32] That gentleman discharged a volley of imprecations at Snap's head, on receiving this unexpected claim, and referred it to Mr. Gammon; who, after subjecting it to a *bonâ fide* and very rigorous examination, found it in vain to attempt to resist, or even diminish it; such perfect method and accuracy had Snap observed in his accounts, that they secured him a clear gain of £350; the difference between that sum and £500, being the amount actually and *bonâ fide* advanced by him to Titmouse. Deducting, therefore, £1,300, (the amount of the two minor demands of £800 and £500 above specified,) there remained to Mr. Titmouse out of the £20,000 the sum of £3,700; and he ought to have been thankful; for he *might* have got *nothing*—or even have been brought in debtor to Messrs. Quirk, Gammon, and Snap. I say that Mr. Gammon would seem, from the above statement of accounts, not to have been dealt with in any degree adequately to his merits. He felt such to be his case; but soon reconciled himself to it, occupied as he was with arduous and extensive speculations, amid all the complication of which he never for a moment lost sight of one object, viz.—*himself*. His schemes were boldly conceived, and he went about the accomplishment of them with equal patience and sagacity. Almost everything was at present going on as he could have wished. He had contrived to place himself in a very convenient fast-and-loose sort of position with reference to his fellow-partners—one which admitted of his easily disengaging himself from them, whenever the proper time should have arrived for taking such a step. He was absolute and paramount over Titmouse, and could always secure his instant submission,

by virtue of the fearful and mysterious talisman which he occasionally flashed before his startled eyes. He had acquired great influence, also, over the Earl of Dreddlington—an influence which was constantly on the increase; and had seen come to pass an event which he judged to be of great importance to him—namely, the engagement between Titmouse and the Lady Cecilia. Yet was there one object which he had proposed to himself as incalculably valuable and supremely desirable—as the consummation of all his designs and wishes; I mean the obtaining the hand of Miss Aubrey—and in which he had yet a fearful misgiving of failure. But he was a man whose courage rose with every obstacle; and he fixedly resolved within himself, to succeed, at any cost. 'Twas not alone his exquisite appreciation of her personal beauty, her grace, her accomplishments, her lovely temper, her lofty spirit, her high birth—objects all of them dazzling enough to a man of such a powerful and ambitious mind, and placed in such circumstances in life as Gammon. There were certain other considerations, intimately involved in all his calculations, which—as may possibly become apparent hereafter—rendered success in this affair a matter of vital consequence—nay, indispensable. Knowing, as I do, what had passed at different times between that proud and determined girl and her constant and enthusiastic lover, Mr. Delamere, I am as certain as a man can be of anything that has not actually happened, that, though she may possibly not be fated to become Mrs. Delamere, she will certainly NEVER become—MRS. GAMMON!—Loving Kate as I do, and being thoroughly acquainted with Gammon, I feel deep interest in his movements, and am watching them with great apprehension:—she, lovely, innocent, unsuspecting; he, subtle, selfish, unscrupulous, desperate! And he has great power in his hands: is he not silently surrounding his destined prey with unperceived, but apparently inextricable meshes? God guard thee, my Kate, and reward thy noble devotion to thy brother and his fallen fortunes! Do we chide thee for clinging to them with fond tenacity in their extremity, when thou art daily importuned to enter into that station which thou wouldst so adorn?

Gammon's reception by the Aubreys, in Vivian Street—kind and courteous though it had surely been—had ever since rankled in his heart. Their abstaining from a request to him to prolong his stay, or to renew his visit, he had noted at the time, and had ever since reflected upon it with pique and discouragement. Nevertheless, he was resolved at all hazards to become at least an occasional visitor in Vivian Street. When a fortnight had elapsed

without any further intimation to Mr. Aubrey concerning the dreaded balance due to the firm, Gammon ventured to call upon him, for the purpose of assuring Mr. Aubrey that it was no mere temporary lull; that he might divest his mind of all uneasiness on the subject; and of asking whether he (Gammon) had not told Mr. Aubrey truly that he both could and would restrain the hand of Mr. Quirk. Could Mr. Aubrey be otherwise than grateful for such active, effectual, and manifestly disinterested kindness? Again Gammon made his appearance at Mrs. Aubrey's tea-table—and was again received with all the sweetness and frankness of manner which he had formerly experienced from her and Miss Aubrey. Again he called, on some adroit pretext or another—and once heard Miss Aubrey's rich voice and exquisite performance on the piano. He became subject to emotions and impulses of such a sort as he had never before experienced; yet, whenever he retired from their fascinating society, he was conscious of an aching void, as it were, within—he perceived the absence of all sympathy towards him; he felt *indignant*—but that did not quench the ardor of his aspirations. 'Tis hardly necessary to say, that on every occasion, Gammon effectually concealed the profound and agitating feelings which the sight of Miss Aubrey called forth in him; and what a tax was this upon his powers of self-control! How he laid himself out to amuse and interest them all! With what racy humor would he describe the vulgar absurdities of Titmouse—the stately eccentricities of the Dreddlingtons! With what eager and breathless interest was he listened to! Few men could make themselves more completely agreeable than Gammon; and the ladies really took pleasure in his society; Kate being, all the while, about as far from any notion of the real state of his feelings, as is my fair reader of what is at this moment going on in the dog-star. Her reserve towards him sensibly lessened; why, indeed, should she feel it, towards one of whom Dr. Tatham spoke so highly, and who appeared to justify his eulogium? Moreover, Mr. Gammon took special care to speak in the most unreserved and unqualified manner of the mean and mercenary character of Mr. Quirk—of the miserable style of business in which he, Mr. Gammon, was compelled, for only a short time longer, he trusted, to participate, and which was really revolting to his own feelings. He did his best, in short, to cause himself to appear a sensitive and high-minded man, whose unhappy fate it had been to be yoked with those who were the reverse. Mr. Aubrey regarded him from time to time with silent anxiety and interest, as one who had it in his power, at any instant he

might choose, to cause the suspended sword to fall upon him; at whose will and pleasure he continued in the enjoyment of his present domestic happiness, instead of being incarcerated in prison; but who had hitherto evinced a disposition of signal forbearance, sincere good-nature, and disinterestedness. They often used to speak of him, and compare the impression which his person and conduct had produced in their minds; and in two points they agreed—that he certainly exhibited anxiety to render himself agreeable; and that there was a certain *something* about his eye which none of them liked. It seemed as though he had in a manner two natures; and that one of them was watching the effect of the efforts made by the other to beguile!

CHAPTER XIII.

While, however, the Fates thus seemed to frown upon the aspiring attempts of Gammon towards Miss Aubrey, they smiled benignantly enough upon Titmouse, and his suit with the Lady Cecilia. The first shock over—which no lively sensibilities or strong feelings of her Ladyship tended to protract, she began to get familiar with the person, manners, and character of her future lord, and in a measure reconciled to her fate. "When people understand that they *must* live together," said a very great man, "they learn to soften, by mutual accommodation, that yoke which they know that they cannot shake off; they become good husbands and wives, from the necessity of remaining husbands and wives, for necessity is a powerful master in teaching the duties which it imposes."^[33] The serene intelligence of Lady Cecilia having satisfied her that "IT WAS HER FATE" to be married to Titmouse, she resigned herself to it tranquilly, calling in to her assistance divers co-operative reasons for the step which she had agreed to take. She could thereby accomplish at all events one darling object of her papa's—the reunion of the long and unhappily-severed family interests. Then Yatton was certainly a delightful estate to be mistress of—a charming residence, and one which she might in all probability calculate on having pretty nearly to herself. The rent-roll was large and unencumbered, and would admit of a handsome jointure. On her accession to her own independent rank, the odious name of Titmouse would disappear in the noble one of Lady Drelincourt, peeress in her own right, and representative of the oldest barony in the kingdom. Her husband would then become a mere cipher—no one would ever hear of him, or inquire after him, or think or care about him—a mere mote in the sunbeam of her own splendor. But, above all, thank Heaven! there were many ways in which a *separation* might be brought about—never mind how soon after marriage: and a separation was becoming almost a matter of course, implying nothing derogatory to the character, or lessening to the personal consequence of the lady—who indeed was almost, as of course, recognized as an object of sympathy, rather than of suspicion or scorn. These were powerful forces, all impelling her in one direction—and irresistibly. How could it be otherwise with one like *her*

—a mere creature of circumstance? Notwithstanding all this, however, there were occasions when Titmouse was presented to her in a somewhat startling and sickening aspect. It sometimes almost choked her to see him—ridiculous object!—in the company of gentlemen—to witness their treatment of him, and then reflect that he was about to become her—lord and master. One day, for instance, she accompanied the earl in the carriage to witness the hounds throw off, not far from Yatton, and where a very brilliant field was expected. There were, in fact, about two hundred of the leading gentlemen of the county assembled—and, dear reader, do try to picture to yourself the figure which Titmouse must have presented among them—his quizzing-glass screwed into his eye, and clad in his little pink and leathers!—What a *seat* was his! How many significant and scornful smiles, and winks, and shrugs of the shoulders did his appearance occasion among his bold and high-bred companions! And only about four or five minutes after they had "gone away"—on the occasion in question, this unhappy little sinner was thoroughly found out by the noble animal he rode; and who equally well knew *his own business*, and what he had *on*! In trying to take a dwarf wall, on the opposite side of an old green horsepond by the road-side, he urged his horse with that weak and indecisive impulse which only disgusted him; so he suddenly drew back at the margin of the pond—and over head and heels flew Titmouse, descending plump on his head into the deep mud, where he remained for a moment or two, up to his shoulders, his little legs kicking about in the air—

"Who's that?" cried one—and another—and another—without stopping, any more than the Life Guards would have stopped for a sudden individual casualty in the midst of their tremendous charge at Waterloo—till the very last of them, who happened to be no less a person than Lord De la Zouch, seeing, as he came up, the desperate position of the fallen rider, reined up, dismounted, and with much effort and inconvenience aided in extricating Titmouse from his fearful yet ludicrous position—and thus fortunately preserved to society one of its brightest ornaments. As soon as he was safe—a dismal spectacle to gods and men—his preserver, not disposed, by discovering who Titmouse was, to supererogatory courtesy, mounted his horse, leaving Titmouse in the care of an old woman whose cottage was not far off, and where Titmouse, having had a good deal of the filth detached from him, remounted his horse and turned its head homewards—heartily disposed, had he but *dared*, cruelly to spur, and kick, and flog it; and in this

pickle—stupid, and sullen, and crestfallen—he was overtaken and recognized by Lord Dreddlington and Lady Cecilia, returning from the field!

This was her future husband——

Then again—poor Lady Cecilia!—what thought you of the following, which was one of the letters he addressed to you?—Well might Miss Aubrey exclaim, "how I should like to see their correspondence!"

"The Albanny, Picadilly, London, 12th Oct. 18—.

"MY DEAR CECILIA,

"I take Up My pen To Inform you of Arriving safe Here, where Am sorry how^r. To say There Is No One which one knows except Tradespeople Going About and so Dull on Acc^t. of Customers Out of Town, Dearest love You Are the Girl of my Heart As I am of Your's, and am particular Lonely Alone Here and wish to be There *where she Is* how I Long to Fold My dearest girl in My Arms hope You Don't Forget Me As soon As I am Absent do You often Think of *me* w^h. I do indeed of *you*, and looking Forward to The Happy Days When We are United in the Happy bonds of Hymmen, never To part Again dearest I Was Driving yesterday In my New Cabb In the park, where whom Sh^d. I Meet but That Miss Aubrey W^h. they say (Between you And I and The post) is Truly in a Gallopping Consumption on Acc^t. Of my Not Having Her A likely thing indeed that I ever car'd for Such an individule w^h. Never Did Only of you, Dearest What shall I Send you As A Gift Shall it Be In The cloathing Line, For there Is a Wonderful Fine and Choice Assortm^t. of Cashmere Shawls and Most Remarkable Handsome Cloaks, All Newly arrived fr. Paris, Never Think Of The price w^h. Betwixt Lovers Goes For Nothing. However *Large the Figure* Only Say what You Shall have and Down It shall Come And Now dearest Girl Adieu.

'Those Can't meet Again, who Never Part.'

dearest Your's to command till death. T. TITMOUSE.

"P. T. O.—Love and Duty To My Lord (of Course) who shall Feel only Too happy to Call My Father-In-Law, the Sooner The better."

When poor Lady Cecilia received this exquisite epistle, and had read over only half a dozen lines of it, she flung it on the floor; threw herself down on the sofa in her dressing-room; and remained silent and motionless for more than an hour. When she heard Miss Macspleuchan knock at her door for admittance, Lady Cecilia started up, snatched the letter from the floor, and thrust it into her dressing-case, before admitting her "humble companion."

A succession of such letters as the above might have had the effect upon Lady Cecilia's "*attachment*" to Titmouse, which the repeated affusion of cold water would have upon the thermometer; but the crack-brained Fates still favored Mr. Titmouse, by presently investing him with a character, and placing him in a position, calculated to give him personal dignity, and thereby redeem and elevate him in the estimation of his fastidious and lofty mistress—I mean that of candidate for a seat in Parliament—for the representation of a borough in which he had a commanding influence:—but this brings me to topics which must not be lightly handled.

After a national commotion commensurate with the magnitude of the boon which had been sought for, the great BILL FOR GIVING EVERYBODY EVERYTHING had passed into a law, and the people were frantic with joy. Its blooming first fruits were of a sort calculated to satisfy the public expectation, viz.—two or three earls were turned into marquises, and one or two marquises into dukes, and deservedly; for these great men had far higher titles to the gratitude and admiration of the country, in exacting this second Magna Charta from King ——, than the stern old barons in extorting the first from King John—namely, they parted with vast substantial political power, for only a nominal *quid pro quo*, in the shape of a bit of ribbon or a strawberry leaf. Its next immediate effect was to cleanse the Augean stable of the House of Commons, by opening upon it the floodgates of popular will and popular opinion; and having utterly expelled the herd of ignorant and mercenary wretches which had so long occupied and defiled it, their places were to be supplied by a band of patriots and statesmen, as gifted as disinterested—the people's own enlightened, unbiased, and deliberate choice. Once put the government of the country—it was said—the administration of affairs—into hands such as these, and the

inevitable result would be, the immediate regeneration of society, and the securing the greatest happiness to the greatest number. It was fearfully apparent that, under the old system, we had sunk into irredeemable contempt abroad, and were on the very verge of ruin and anarchy at home. So blessedly true is it, that when things come to the worst, they begin to mend! In short, the enlightened and enlarged constituencies began forthwith to look out for fit objects of their choice—for the best men; men of independent fortune; of deep stake in the welfare of the country; of spotless private and consistent public character; who, having had adequate leisure, opportunity, inclination, and capacity, had fitted themselves to undertake, with advantage to the nation, the grave responsibilities of statesmen and legislators. Such candidates, therefore, as Mr. Tittlebat Titmouse, became naturally in universal request; and the consequence was, such a prodigious flight of Titmice into the House of Commons—but whither am I wandering? I have to do with only one little borough—that of Yatton in Yorkshire. The Great Charter operated upon it, by *first*, in a manner, *amputating* it of one of its members; *secondly*, extending its boundary—Grilston, and one or two of the adjacent places, being incorporated into the new borough; *thirdly*, by the introduction of the new qualification of voters. I have ascertained from a very high quarter—in fact, from a Cabinet Minister, *since deceased*^[34]—a curious and important fact; viz. that had Mr. Titmouse failed in recovering the Yatton property, or been of different political opinions, in either of these cases, the little borough of Yatton was doomed to utter extinction: a circumstance which shows the signal vigilance, the accurate and comprehensive knowledge of local interest and capabilities, evinced by those great and good men who were remodelling the representation of the country. How little did my hero suspect that his political opinions, as newly-installed owner of Yatton, formed a topic of anxious discussion at more than one Cabinet council, previous to the passing of the Great Bill! Upon such considerations did it—in fact—depend whether Yatton should be at once deposited in the sepulchre of "*Schedule A*;" or added to the dismal rank of surviving, but *maimed* ones in "*Schedule B*." As its boundary was extended, so the constituency of Yatton was, as I have said, enlarged; the invaluable elective franchise being wisely given to those most in need of the advantages it could *immediately* procure; and the fleeting nature of whose interest naturally enhanced their desire to consult the welfare of those who had a permanent and deep stake in its prosperity.

Though, however, the change effected by the new act had so considerably added to the roll of electors, it had not given ground for serious apprehension as to the security of the seat of the owner of the Yatton property. After a very long and private interview between Gammon and Titmouse, in which something transpired which may be referred to hereafter, it was agreed that—(the New Writs having been issued within one week after the calmed and sobered new constituencies had been organized—which organization, again, had been wisely effected within a week or two after the passing of the act which had created them)—Mr. Titmouse should instantly scare away all competition, by announcing his determination to start for the borough. As soon as this was known, a deputation from a club of the new electors in Grilston waited upon Mr. Titmouse—to propose the pecuniary terms on which their support was to be obtained. Hereat he was somewhat startled—but Gammon saw in it the legitimate working of the new system; and—nothing was ever better managed!—nobody was in any mischievous secret—neither party compromised; and yet the happy result was—that *one hundred and nine* votes were in a trice secured in Grilston alone for Mr. Titmouse. Then Gammon appointed Messrs. Bloodsuck and Son the local agents of Titmouse; for whom he wrote an address to the electors—and, Titmouse promising to have it printed forthwith, Mr. Gammon returned to town for a day or two. Nothing could have been more skilful than the document which he had prepared—at once terse, comprehensive, and showy; meaning everything, or nothing—(*dolusus semper versatur in generalibus*, was an observation of Lord Coke's on which Gammon had kept his eye fixed in drawing up his "Address.") Yet it came to pass, that on the evening of the day of Gammon's departure, a Mr. Phelim O'Doodle, a splendid billiard-player, (in fact he had commenced life in the capacity of *marker* to a billiard-table near Leicester Square,) and also one of the first members returned—only a few days before—for an Irish borough in the Liberal interest, chanced to take Yatton in his way to Scotland, (where he was going to officiate professionally at a grand match at billiards, at the house of an early patron, Sir Archibald M'Cannon,) from London; and being intimate with Mr. Titmouse, from whom (to conceal nothing from the reader) he had borrowed a little money a few months before, to enable him to present himself to his intelligent and enthusiastic constituency—they sat down to canvass the merits of the Address which the astute but *absent* Gammon had prepared for Titmouse. Mr. O'Doodle

pronounced it "divilish tame, and *maiger*;" comparing it to toddy, with the *whiskey omitted*: and availing himself of Gammon's draft as far as he approved of it, he drew up the following, which put Titmouse into an ecstasy; and he sent it off the very next morning for insertion in the *Yorkshire Stingo*. Here is an exact copy of that judicious and able performance—which I must own I consider quite a model in its way.

"To the worthy and independent Electors of Yatton.

"GENTLEMEN,—His Majesty having been pleased to dissolve the late Parliament, under very remarkable and exciting circumstances, and, in the midst of the transports of enthusiasm arising out of the passing of that second Great Charter of our Liberties, *the Act for Giving Everybody Everything*, with kindly wisdom, to call upon you to exercise immediately the high and glorious privilege of choosing your representative in the New Parliament, I beg leave to announce myself as a candidate for that distinguished honor. Gentlemen, long before I succeeded in establishing my right to reside among you in my present capacity, I felt a deep interest in the welfare of the tenants of the property, and especially of those residing in the parts adjacent, and who are now so happily introduced into the constituency of this ancient and loyal borough. I trust that the circumstance of my ancestors having resided for ages within it, will not indispose you to a favorable reception of their descendant and representative. Gentlemen, my political opinions are those which led to the passing of the Great Measure I have alluded to, and which are bound up in it. Without going into details, which are too multifarious for the limits of such an Address as the present, let me assure you, that though firmly resolved to uphold the agricultural interests of this great country, I am equally anxious to sustain the commercial and manufacturing interests; and whenever they are unhappily in fatal conflict with each other, I shall be found at my post, zealously supporting *both*, to the utmost of my ability. Though a sincere and firm member and friend of the Established Church, I am not insensible to the fearful abuses which at present prevail in it; particularly in its revenues, which I am disposed to lessen and equalize—devoting the surplus capital to useful purposes

connected with the State, from which she derived them, as history testifies.

I am bent upon securing the utmost possible latitude to every species of Dissent. In fact, I greatly doubt whether any form of religion ought to be '*established*' in a free country. While I am resolved to uphold Protestantism, I think I best do so, by seeking to remove all restrictions from the Catholics, who, I am persuaded, will sacredly abstain from endeavoring to promote their own interests at the expense of ours. The infallible page of history establishes their humility, meekness, and moderation. Gentlemen, depend upon it, the established religion is most likely to flourish when surrounded by danger, and threatened by persecution; it has an inherent vitality which will defy, in the long run, all competition, and there *must* be competition, or there can be no triumph. Gentlemen, I am for Peace, Retrenchment, and Reform, which are in fact the Three Polar Stars of my political conduct. I am an advocate for quarterly Parliaments, convinced that we cannot too often be summoned to give an account of our stewardship—and that the frequency of elections will occasion a wholesome agitation, and stimulus to trade. I am for extending the elective franchise to all, except those who are actually the inmates of a prison or a poor-house on the day of election; and for affording to electors the inviolable secrecy and protection of the Ballot. I am an uncompromising advocate of civil and religious liberty all over the globe; and, in short, of giving the greatest happiness to the greatest number. Gentlemen, before concluding, I wish to state explicitly, as the result of long and deep inquiry and reflection, that I am of opinion that every constituency is entitled, nay, bound, to exact from a candidate for its suffrages the most strict and minute pledges as to his future conduct in Parliament, in every matter, great or small, that can come before it; in order to prevent his judgment being influenced and warped by the dangerous sophistries and fallacies which are broached in Parliament, and protect his integrity from the base, sinister, and corrupt influences which are invariably brought to bear on public men. I am ready, therefore, to pledge myself to anything that may be required of me by any elector who may honor me with his support.

Gentlemen, such are my political principles, and I humbly hope that they will prove to be those of the electors of this ancient and loyal borough, so as to warrant the legislature in having preserved it in existence, amid the wholesale havoc which it has just made in property of this description. Though it is not probable that we shall be harassed by a contest, I shall make a point of waiting upon you all personally, and humbly answering all questions that may be put to me: and should I be returned, rely upon it, that I will never give you occasion to regret your display of so signal an evidence of your confidence in me.—I have the honor to be, Gentlemen, your most obedient and humble servant,

"T. TITMOUSE.

"Yatton, 3d December, 18—."

"Upon my soul, if that don't carry the election hollow," said Mr. O'Doodle, laying down his pen, and mixing himself a fresh tumbler of half-and-half brandy and water, "you may call me bog-trotter to the end of my days, and be —— to me!"!!!

"Why—a—ya—as! 'pon my life it's quite a superior article, and no mistake"—quoth Titmouse; "but—eh? d'ye think they'll ever believe I writ it all? Egad, my fine fellow, to compose a piece of composition like that, by Jove!—requires—and besides, suppose those dem fellows begin asking me all sorts of questions and thingembobs, eh? You *couldn't* stay and go about with one a bit? Eh, Phelim?"

"Fait, Titty, an' it's mighty little awake to the way of *doing business*, that ye are! ah, ha! Murder and thieves! what does it signify what you choose to say or write to them? they're only *pisintry*: and—the real point to be looked at is this—all those that you can *command*—d'ye see—of course you will, or send 'em to the right about; and those that you can't—that's the *new* blackguards round about—*buy*, if it's necessary, fait!"

"Oh, that's *done*!—It is, 'pon my soul!" whispered Titmouse.

"Oh? Is it in earnest you are? Then you're M. P. for the borough; and on the strength of it, I'll replenish!" and so he did, Titmouse following his example; and in a pretty state were they, some hour or two afterwards, conducted to their apartments.

It is difficult to describe the rage of Gammon on seeing the Address which had been substituted for that which he had prepared, with so much caution and tact: but the thing was done, and he was obliged to submit. The Address duly appeared in the *Yorkshire Stingo*. It was also placarded liberally all over the borough, and distributed about, exciting a good deal of interest, and also much approbation among the new electors. It was thought, however, that it was a piece of supererogation, inasmuch as there could be no possible doubt that Mr. Titmouse would *walk over the course*.

In this, however, it presently proved that the *quidnuncs* of Yatton were terribly mistaken. A copy of the *Yorkshire Stingo*, containing the foregoing "Address," was sent, on the day of its publication, by Dr. Tatham to Mr. Aubrey, who had read it aloud, with feelings of mingled sorrow and contempt, on the evening of its arrival, in the presence of Mrs. Aubrey, Miss Aubrey, and also of one who was by no means an unfrequent visitor, Mr. Delamere. The Aubreys were sad enough; and he endeavored to dissipate the gloom which hung over them, by ridiculing, very bitterly and humorously, the pretensions of the would-be member for Yatton—the presumed writer (who, however, Kate protested, without giving her reasons, could never have been Mr. Titmouse) of the precious "Address." He partially succeeded. Both Aubrey and he laughed heartily as they went more deliberately over it; but Kate and Mrs. Aubrey spoke very gravely and indignantly about that part of it which related to the Established Church and the Protestant Religion.

"Oh dear, dear!" quoth Kate at length, with a sudden burst of impetuosity, after a considerable and rather melancholy pause in the conversation; "only to think that such an odious little wretch is to represent the dear old—— What would I not give to see him defeated!"

"Pho, Kate," replied her brother, rather sadly, "who is there to oppose him? Pickering told me, you know, that he should not go into the House again; and even if he felt disposed to contest Yatton, what chance could he have against Mr. Titmouse's influence?"

"Oh, I'm sure all the old tenants hate the little monkey, to a man—and that *you* know, Charles, right well!"

"That may be, Kate, but they must vote for him, or be turned out of"——

"Oh, I've no *patience*, Charles, to hear of such things!" interrupted his sister, with not a little petulance in her manner.

"Do you mean to say, that you should like to see a rival start to contest your dear old borough with Mr. Titmouse?" inquired Mr. Delamere, who had been listening to the foregoing brief colloquy in silence, his eyes fixed with eager delight on the animated and beautiful countenance of Miss Aubrey.

"*Indeed* I should, Mr. Delamere," cried Kate, eagerly—"I would give five guineas, if I had it"—adding, however, with a sudden sigh, looking at her brother; "but—heigh-ho!—as Charles says, how absurd it is to fret one's self about it—about a thing we can't help—and—a place one has no longer—alas!—any concern with!" As she said this, her voice fell a little, and her eyes filled with tears. But her little sally had been attended with consequences she never could have dreamed of.

Mr. Delamere took leave of them shortly afterwards, without communicating a word of any intentions he might have conceived upon the subject to any of them. But the first place he went to, in the morning, was a great banker's, who had been appointed the principal acting executor of the Marquis of Fallowfield, a very recently deceased uncle of Delamere's, to whom his Lordship had left a legacy of £3,000; and 'twas to get at this same legacy that was the object of Delamere's visit to Sir Omnium Bullion's. For some time the worthy baronet—who had not then even proved the will—would not listen to the entreaties of the eager young legatee: but the moment that he heard of the purpose for which it was wanted, Sir Omnium being a very fierce Tory, and who had *lost* his own snug borough by the Bill for *Giving Everybody Everything*, instantly relented. "There, my fine fellow, that's a piece of pluck I vastly admire! Sign *that*," said Sir Omnium, tossing to him an "I. O. U. £3,000," and drawing him a check for the amount: wishing him, with all imaginable zeal and energy, good speed. Delamere's excitement would not allow him to wait till the evening, for the mail; so, within a couple of hours' time of effecting this delightful arrangement with Sir Omnium, he was seated in a post-chaise and four, rattling at top-speed on his way to Yorkshire.

Sufficiently astonished were Lord and Lady De la Zouch, when he presented himself to them at Fotheringham; but infinitely more so, when he named the object of his coming down, and with desperate entreaties

besought his father's sanction for the enterprise. 'Twas very hard for Lord De la Zouch to deny anything to one on whom he doted as he did upon this, his only child. His Lordship, moreover, was one of the keenest politicians living; and as for elections, he was an old campaigner, and had stood several desperate contests, and spent immense sums upon them. And here was his son, to use a well-known phrase, indeed a *chip of the old block*!—Lord De la Zouch, in short, really felt a secret pleasure in contemplating the resemblance to his early self—and after a little demur he began to give way. He shook his head, however, discouragingly; spoke of Delamere's youth—barely two-and-twenty; the certainty of defeat, and the annoyance of being beaten by such a creature as Titmouse; the suddenness and lateness of the move—and so forth.

More and more impetuous, however, became his son.

"I'll tell you what, sir," said Lord De la Zouch, scarce able to speak with the gravity he wished, "it strikes me that this extraordinary, expensive, absurd, and hopeless scheme of yours, is all the result of—eh? I see—I understand! It's done to please—Come, now, be frank, sir! how long, before you left town, had you seen Miss"——

"I pledge my word, sir," replied Delamere, emphatically, "that neither Miss Aubrey, nor Mr. nor Mrs. Aubrey—whom, however, I certainly saw the very night before I quitted town, and even conversed with on the subject of Mr. Titmouse's Address—has interchanged one syllable with me on the subject of my starting for the borough; and I believe them to be at this moment as ignorant of what I am about as you, sir, were, the moment before you saw me here."

"It is enough," said his father, seriously, who knew that his son, equally with himself, had a rigorous regard for truth on all occasions, great and small—"and had it even been otherwise, I—I—eh? I don't think there's anything *very* monstrous in it!" He paused, and smiled kindly at his son—and added, "Well—I—I—we certainly shall be laughed at for our pains; it's really a madcap sort of business, Geoffrey; but"—Lord De la Zouch had given way—"I own that I should not like to have been thwarted by *my* father on an occasion like the present; so, let it be done, as you've set your heart upon it. And," he added with a smile, "pray, Mr. Delamere, have you considered what I shall have to pay for your sport?"

"Not one penny, sir!" replied his son, with a certain swell of manner.

"Ay, ay!" exclaimed his Lordship, briskly—"How's that, sir?"

Then Delamere told him of what he had done; at which Lord De la Zouch first looked serious, and then burst into laughter at the eagerness of old Sir Omnium to aid the affair. Lord De la Zouch well knew that the old baronet was infinitely exasperated against those who had robbed him of his borough! Never was "*Schedule A*" mentioned in his presence without a kind of spasm passing over his features! as though it were the burial-ground where lay one long and fondly loved! "No, no," said his Lordship, "that must not stand; I won't have *any* risk of Sir Omnium's getting into a scrape, and shall write off to request him to annul the transaction—with many thanks for what he has done—and I'll try whether I have credit enough with my bankers—eh, Geoffrey?"

"You are very kind to me, sir, but really I would rather"——

"Pho, pho—let it be as I say; and now, go and dress for dinner, and, after that, the sooner you get about *your* 'Address,' the better. Let me see a draft of it as soon as it is finished. Let Mr. Parkinson be sent for immediately from Grilston, to see how the land lies; and, in short, if we *do* go into the thing, let us dash into it with spirit—I'll write off and have down from town—a-hem!" his Lordship suddenly paused—and then added—"And hark 'ee, sir—as to that Address of yours, I'll have no despicable trimming, and trying to catch votes by vague and flattering"——

"Trust me, sir!" said Delamere, with a proud smile, "mine shall be, at all events, a contrast to that of my '*honorable opponent*.'"

"Go straight a-head, sir," continued Lord De la Zouch, with a lofty and determined air; "nail your colors to the mast. Speak out in a plain, manly way, so that no one can misunderstand you. I'd rather a thousand times over see you beaten out of the field—lose the election like a gentleman—than win it by any sort of *trickery*, especially as far as the profession of your political sentiments and opinions is concerned. Bear yourself so, Geoffrey, in this your maiden struggle, that when it is over, you may be able to lay your hand on your heart, and say, 'I have *won* honorably'—or 'I have *lost* honorably.' So long as you can feel and say *this*, laugh at election bills—at

the long faces of your friends—the exulting faces of your enemies.—Will you bear all this in mind, Geoffrey?"

"I will, I will, sir," replied his eager son; and added, with an excited air, "won't it come on them like"——

"Do you hear that bell, sir?" said Lord De la Zouch, laughing, and moving away. Delamere bowed, and with a brisk step, a flushed cheek, and an elated air, betook himself to his dressing-room, to prepare for dinner.

Shortly afterwards, Mr. Parkinson made his appearance, and to his infinite amazement was invested instantly with the character of agent for Mr. Delamere, as candidate for the borough! After he and the earl had heard the following Address read by Delamere, they very heartily approved of it. Mr. Parkinson took it home with him; it was in the printer's hands that very night, and by seven o'clock in the morning, was being stuck up plentifully on all the walls in Grilston, and in fact, all over the borough:—

"To the Independent Electors of the Borough of Yatton.

"GENTLEMEN—I hope you will not consider me presumptuous, in venturing to offer myself to your notice as a candidate for the honor of representing you in Parliament. In point of years, I am, I have reason to believe, even younger than the gentleman whom I have come forward to oppose. But, indeed, for the fact of his being personally a comparative stranger to you, I should have paused long before contesting with him the representation of a borough on which he has unquestionably certain legitimate claims. The moment, however, that I had read his Address, I resolved to come forward and oppose him. Gentlemen, the chief ground on which I am induced to take this step, is, that I disapprove of the tone and spirit of that Address, and hold opinions entirely opposed to all those which it expresses, and which I have no hesitation in saying I consider to be unworthy of any one seeking so grave a trust as that of representing you in Parliament. As for my own opinions, they are in all essential respects identical with those of the gentlemen who have, during a long series of years, represented you, and especially with those of my highly honored and gifted friend, Mr. Aubrey. Gentlemen, my own family is not unknown

to you, nor are the opinions and principles which for centuries they have consistently supported, and which are also mine.

"I am an affectionate and uncompromising friend of our glorious and venerable Established Church, and of its union with the State; which it is my inflexible determination to support by every means in my power, as the most effectual mode of securing civil and religious liberty. I am disposed to resist any further concessions either to Roman Catholics or Dissenters, because I think that they cannot be made safely or advantageously. Gentlemen, there *is* a point at which toleration becomes anarchy; and I am desirous to keep as far from that point as possible.

"I earnestly deprecate putting our Agricultural or Commercial and Manufacturing interests into *competition* with each other, as needless and mischievous. Both are essential elements in the national welfare; both should be upheld to the utmost: but if circumstances *should* unhappily bring them into inevitable conflict, I avow myself heart and soul a friend to the Agricultural interest.

"Gentlemen, I know not whether it would be more derogatory to your character, or to mine, to exact or give *pledges* as to my conduct on any particular measure, great or small, which may come before Parliament. It appears to me both absurd and ignominious, and inconsistent with every true principle of representation. One, however, I willingly give you—that I will endeavor to do my duty, by consulting your interests as a part of the general interests of the nation. I trust that I shall never be found uncourteous or inaccessible; and I am confident that none of you will entertain unreasonable expectations concerning my power to serve you individually or collectively.

"Gentlemen, having entered into this contest, I pledge myself to fight it out to the last; and, if I fail, to retire with good humor. My friends and I will keep a vigilant eye on any attempts which may be made to resort to undue influence or coercion; which, however, I cannot suppose will be the case.

"Gentlemen, this is the best account I can give you, within the limits of such an Address as the present, of my political opinions, and of the

motives which have induced me to come forward; and I shall, within a day or two, proceed to call upon you personally. In the mean while I remain, Gentlemen, your faithful servant,

"GEOFFREY LOVEL DELAMERE.

"Fotheringham Castle, 7th Dec. 18—."

Two or three days afterwards there arrived at Mr. Aubrey's, in Vivian Street, two large packets, franked "DE LA ZOUCH," and addressed to Mr. Aubrey, containing four copies of the foregoing "Address," accompanied by the following hurried note:—

"Fotheringham, 8th Dec. 18—.

"MY DEAR AUBREY—What think you of this sudden and somewhat Quixotic enterprise of my son? I fear it is quite hopeless—but there was no resisting his importunities. I must say he is going into the affair (which has already made a prodigious stir down here) in a very fine spirit. His *Address* is good, is it not? The only thing I regret is, his entering the lists with such a creature as that fellow Titmouse—and, moreover, being *beaten* by him.—Yours ever faithfully and affectionately,

"DE LA ZOUCH.

"P. S.—You should only see little Dr. Tatham since he has heard of it. He spins about the village like a humming-top! I hope that, as far as his worldly interests are concerned, he is not acting imprudently: but *I* will take care of that, for I love and reverence the little doctor. Our dear love to the ladies. (In great haste.)"

This letter was read with almost suspended breath, by Mr. Aubrey, and then by Mrs. and Miss Aubrey. With still greater emotion were the printed enclosures opened and read. Each was held in a trembling hand, its reader's color going and coming. Miss Aubrey's heart beat faster and faster; she turned very pale—but with a strong effort recovered herself. Then taking the candle, she withdrew with a hasty and excited air, taking her copy of the

Address with her to her own room; and there burst into tears, and wept for some time. She felt her heart dissolving in tenderness towards Delamere! It was some time before she could summon resolution enough to return. When she did, Mrs. Aubrey made a faint effort to rally her; but each, on observing the traces of the other's recent and strong emotion, was silent, and with difficulty preserved any semblance of a calm demeanor.

Equally strong emotions, but of a very different description, were excited in the bosoms of certain persons at Yatton Hall, by the appearance of Mr. Delamere's Address. 'Twas Mr. Barnabas Bloodsuck, (junior,)—a middle-sized, square-set young man, of about thirty, with a broad face, a very flat nose, light frizzly hair, and deep-set gray eyes—a bustling, confident, hard-mouthed fellow—who, happening to be stirring in the main street of Grilston early in the morning of the 8th December 18—, beheld a man in the act of sticking up Mr. Delamere's Address against a wall. Having prevailed on the man to part with one, Mr. Bloodsuck was within a quarter of an hour on horseback, galloping down to Yatton—almost imagining himself to be carrying with him a sort of hand-grenade, which might explode in his pocket as he went on. He was ushered into the breakfast-room, where sat Mr. Gammon and Mr. Titmouse, just finishing their morning meal.

"My stars—good-morning! gents,—but here's a kettle of fish!" quoth Mr. Bloodsuck, with an excited air, wiping the perspiration from his forehead; and then plucking out of his pocket the damp and crumpled Address of Mr. Delamere, he handed it to Mr. Gammon, who changed color on seeing it, and read it over in silence.

Mr. Titmouse looked at him with a disturbed air; and having finished his mixture of tea and brandy, "Eh—e—eh, Gammon!—I say"—he stammered—"what's in the wind? 'Pon my soul, you look—eh?"

"Nothing but a piece of good fortune, for which you are indebted to your distinguished friend, Mr. Phelim O'Something," replied Gammon, bitterly, "whose precious Address has called forth for you an opponent whom you would not otherwise have had."

"Hang Mr. O'Doodle!" exclaimed Titmouse; "I—'pon my precious soul—I always thought him a-a fool and a knave. I'll make him pay me the money

he owes me!" and he strode up and down the room, with his hands thrust furiously into his pockets.

"You had perhaps better direct your powerful mind to this Address," quoth Mr. Gammon, with a blighting smile, "as it slightly concerns you;" and handing it to Titmouse, the latter sat down to try and obey him.

"That cock won't *really* fight, though, eh?" inquired Mr. Bloodsuck, as he resumed his seat after helping himself to an enormous slice of cold beef at the side table.

"I think it *will*," replied Mr. Gammon, thoughtfully: and presently continued after a pause, with a visible effort to speak calmly, "it is useless to say anything about the haughty intolerant Toryism it displays; that is all fair; but is it not hard, Mr. Bloodsuck, that when I had written an Address which would have effectually"——

"Mr. Phelim O'Doodle owes me three hundred pounds, Gammon, and I hope you'll get it for me at once; 'pon my soul, he's a most cursed scamp," quoth Titmouse, furiously, looking up with an air of desperate chagrin, on hearing Gammon's last words. That gentleman, however, took no notice of him, and proceeded, addressing Mr. Bloodsuck, "I have weighed every word in that Address. *It means mischief*. It has evidently been well considered; it is calm and determined—and we shall have a desperate contest, or I am grievously mistaken."

"E—e—eh? E—h? What, Gammon?" inquired Titmouse, who, though his eye appeared, in obedience to Gammon, to have been travelling over the all-important document which he held in his hand, had been listening with trembling anxiety to what was said by his companions.

"I say that we are to have a contested election: that you won't walk over the course, as you might have done. Here's a most formidable opponent started against you!"

"What? 'Pon my soul—for *my* borough? For Yatton?"

"Yes, and one who will fight you tooth and nail."

"'Pon—my—precious soul! What a cursed scamp! What a most infernal black——Who is it?"

"No *blackguard*, sir," interrupted Gammon, very sternly; "but—a gentleman, perhaps, even, every way equal to yourself," he added with a cruel smile, "the Honorable Mr. Delamere, the son and heir of Lord De la Zouch."

"By jingo! you don't say so! Why, he's a hundred thousand a-year," interrupted Titmouse, turning very pale.

"Oh, *that* he has, at least," interposed Mr. Bloodsuck, who had nearly finished a rapid and most disgusting breakfast; "and two such bitter Tories you never saw or heard of before—for, like father, like son."

"Egad! is it?" inquired Titmouse, completely crestfallen. "Well! and what if—eh, Gammon? Isn't it?"

"It is a very serious business, sir, indeed," quoth Gammon, gravely.

"By Jove—isn't it a cursed piece of—impudence! What? Come into *my borough*? He might as well come into my house! Isn't one as much mine, as the other? It's as bad as housebreaking—but we're beforehand with him, anyhow, with those prime chaps at Gr——" Mr. Bloodsuck's teeth chattered; he glanced towards the door; and Gammon gave Titmouse a look which almost paralyzed, and at all events silenced him.

"They'll bleed freely?" said Bloodsuck, by-and-by, with a desperate effort to look concerned—whereas he was in a secret ecstasy at the profitable work in prospect for their house.

"Lord De la Zouch would not have entered into this thing if he had not some end in view which he considers attainable—and as for money"——

"Oh, as for that," said Bloodsuck, with a matter-of-fact air, "ten thousand pounds to him is a mere drop in the bucket."

"O Lord! O Lord! and must *I* spend money too?" inquired Titmouse, with a look of ludicrous alarm.

"We must talk this matter over alone, Mr. Bloodsuck," said Gammon, anxiously—"shall we go to Grilston, or will you fetch your father hither?"

"Pon my soul, Gammon," quoth Titmouse, desperately, and snapping his finger and thumb, "those cursed Aubreys, you may depend on 't, are at the bottom of all this"——

"*That* there's not the least doubt of," quoth Bloodsuck, as he buttoned up his coat with a matter-of-fact air; but the words of Titmouse caused Mr. Gammon suddenly to dart first at one, and then at the other of the speakers, a keen penetrating glance; and presently his expressive countenance showed that *surprise* had been succeeded by deep chagrin, which soon settled into gloomy thoughtfulness.

NOTES.

[1] NOTE 1. Page 1.

See *post*, Chapter V., Preliminary Note.

[2] NOTE 2. Page 5.

An important and salutary improvement in the law of libel, especially in the case of newspapers, was effected in 1843, by statute 6 and 7 Vict. c. 96. Till then the TRUTH was inadmissible as a *justification* on a criminal prosecution for libel—the rule being that the greater the truth the greater was the libel—by which was meant its greater tendency to a breach of the peace. Now, however, the defendant may *defend* himself against an indictment or information, by pleading that the charge was true, and that it was for the public benefit that it should have been published; but he must specially state in his plea the particular facts by reason of which it was for the public benefit. If such plea, or evidence in support of it, should be false or malicious, the act allows that circumstance to be taken into consideration in awarding punishment. A serious amount of fine, imprisonment, and hard labor, may be inflicted for publishing, or threatening (with intent to extort money) to publish, a false and malicious libel. In *civil* proceedings a defendant may plead that he was not guilty of *actual* malice or *gross* negligence; and offered to publish, or published, a full apology, in which case he may pay money into court by way of amends; and in all actions of defamation he may show an apology, or offer of one, in mitigation of damages. This statute does not extend to Scotland.

[3] NOTE 3. Page 32.

Troilus and Cressida, i. 3.

[4] NOTE 4. Page 40.

The great increase of business alone, is the cause of the accumulation of arrears—especially in the Queen's Bench, which is almost overpowered by the enormous pressure of its criminal business. All the three superior courts have recently adopted post-terminal fittings, to enable them to despatch their arrears; an act of Parliament having been passed (stat. 1 and 2 Vict. c. 32) for that purpose.

[5] NOTE 5. Page 42.

If the reader will refer to vol. i. p. 490, he may see how the *disabilities* here alluded to arose, and affected the case. The doctrine of "adverse possession" is founded on the anxiety of our law to secure quietude of title. It gives every reasonable facility for the assertion of just rights against wrongful possessors of property; but with equal reasonableness fixes a limit to immunity from the consequences of negligent acquiescence under usurpation, considering it, in a word, better policy to protect a person in possession, than to encourage a struggle for it among strangers. *Vigilantibus non dormientibus jura subveniunt*, is the maxim of the common law, on which also the statute law has often acted, and recently with great effect, by stat. 3 and 4 Will. 4, c. 27, (passed on the 24th July 1833.) By its provisions, many of the most subtle and difficult questions concerning the nature of "possession" are got rid of; and the period of twenty years from the commencement of the rights of possession, fixed as that within which alone an action or suit in equity for the recovery of lands must be brought—unless a party was, when his right accrued, laboring under the *disability* of infancy, coverture, insanity, or absence beyond seas: in any of which cases an extension of *ten* years is allowed: but it is expressly provided, that however numerous such disabilities may have been—however long and uninterruptedly they may have lasted—*forty* years shall be absolutely the limit within which the action or suit must be brought from the time of the *right first accruing*. If the statute

"once begin to run," as the lawyers say, "nothing can stop it." The above constitute some of the boldest and best of the great alterations recently effected in our English system of real property law. A far longer period than the present one was requisite to constitute "adverse possession" at the time mentioned in the text.

[6] NOTE 6. Page 43.

See *post*, Chapter V., Preliminary Note.

[7] NOTE 7. Page 49.

"[Greek: 'Anthropinos]," signifies in this place, (1 Corinth. x. 13,) says a commentator on this memorable passage of Scripture, "such as is suited to the nature and circumstances of man; such as every man may reasonably expect, if he consider the nature of his body and soul, and his situation in the present world."

[8] NOTE 8. Page 54.

It might be inferred, from a somewhat loose statement in an English law treatise, that in a case like that of Mr. Aubrey—viz. of possession of property in entire ignorance that it belonged to another—a Court of Equity would protect against the rightful owner's claim for the mesne profits. Such, however, is by no means the case. Mr. Titmouse had recovered at law—by the superior strength of his title, and without requiring any assistance whatever from a Court of Equity; the mesne profits, therefore, were absolutely his—and any interference, by a Court of Equity, to deprive him of them, would have been an act of direct spoliation. Such a notion, therefore, is utterly destitute of foundation. If Mr. Titmouse had been compelled to seek the assistance of a Court of Equity in order to prosecute his claim, and had clearly been guilty of negligence or fraud; it is possible that some terms might have been imposed upon him, with reference to the mesne profits to be wrung from his comparatively-speaking innocent opponent—but even then, it is conceived that Equity would be very slow and jealous in exercising such a stretch of power. The Roman law took a different view of the subject, regarding him—*qui justas causas habuisset quare bona ad se pertinere existimasset*, (Dig. Lib. v. Tit. iii. 1, 20, &c.)—with great leniency, and exempting him from payment of mesne profits accrued previous to the action. According to the law of Scotland, a *bonâ fide* possessor evicted (i. e. turned out) by a person having a better right, is entitled to retain the fruits or profits (called "*violent profits*") which he may have reaped or received during his *bonâ fide* possession. It would seem, however, that this doctrine is based not solely upon the *bonâ fide* ignorance of the ousted party, but upon the concurring *negligence* and *delay* of his victorious opponent.

[9] NOTE 9. Page 58.

It is by no means a matter of course, to apply for and obtain this nominal appointment, which occasions *ipso facto* the vacating a seat in Parliament. It is a matter of discretion with the Chancellor of the Exchequer; and he has *refused* it during the present session [1844] to several applicants.

[10] NOTE 10. Page 75.

This species of sport has recently, alas! been seriously interfered with, by the increased power given, in such cases, to the police magistrates.

[11] NOTE 11. Page 91.

See Dr. Bubble's "Account of the late Landslips, and of the Remains of Subterranean Castles."—Quarto Edition, Vol. III. pp. 2000-2008.

[12] NOTE 12. Page 91.

Ante, Vol. 1., p. 441.

[13] NOTE 13. Page 93.

Horace, Carm. 1. 34, *ad finem*.

[14] NOTE 14. Page 96.

Troilus and Cressida, i. 3.

[15] NOTE 15. Page 224.

1 Samuel, ch. ii., v. 36.

[16] NOTE 16. Page 234.

It may be as well to apprise the reader, that this strange mode of pleading has been lately superseded by one more reasonable and intelligible.

[17] NOTE 17. Page 281.

"*Mayhem*," saith Blackstone, "is a battery attended with this aggravating circumstance: that thereby the party injured is forever disabled from making so good a defence against future external injuries, as before he might have done. Among these defensive members are reckoned not only arms and legs, but a finger, an eye, and a *fore-tooth*; but the loss of one of the *jaw-teeth*, is no *mayhem* at common law, for they can be of no use in fighting."—3 *Black. Comm.* p. 121.

[18] NOTE 18. Page 282.

In the year 1838, arrest on mesne process was abolished by statute 1 and 2 Vict. c. 110, (which recited that "the power of arrest upon mesne process was unnecessarily extensive and severe, and ought to be relaxed,") except in cases where a debtor may be arrested by order of a judge, to prevent his quitting the kingdom. In the year 1844, the legislature went so far (stat. 7 and 8 Vict. c. 96, § 58) as to abolish arrest on *final* process, in all cases of debts not exceeding £20, independently of costs. The policy of this measure is gravely questionable.

[19] NOTE 19. Page 283.

A *detainer* signifies a writ, by means of which a prisoner, once arrested, may be detained at the suit of any *other* creditor.

[20] NOTE 20. Page 285.

The last acts of the kind are those for abolishing Arrest on Mesne Process (see *ante*, p. 282, note) and amending the Insolvent Laws, (stat. 1 and 2 Vict. c. 110, § 78, and 7 and 8 Vict. c. 96, § 59.)

[21] NOTE 21. Page 312.

For a really *short*-sighted person a concave glass, and for a too *long*-sighted man a convex glass, is requisite: but simpletons who wear a glass for mere appearance' sake, have one through which they can really see—*i. e.* a piece of common window-glass. Three-fourths of the young men about town wear the last kind of glass.

[22] NOTE 22. Page 316.

Since this was written, Great Britain has, by the demonstration of her irresistible naval and military power, and by the wisdom of her diplomacy, totally changed our relations with China—which has opened to us five of her ports, ceded to us a great island, and entered into a commercial treaty with us!

[23] NOTE 23. Page 339.

Hor. Carm. V., iv.

[24] NOTE 24. Page 352.

Plowden's *Commentaries*, 308, a, (*Sharrington v. Strotton.*)

[25] NOTE 25. Page 362.

About the time when this was originally written, there was a person who, chiefly at Windsor, occasioned much surprise and curiosity by the power which he appeared to exercise over horses, by touching, as he alleged, a particular nerve within the mouth.

[26] NOTE 26. Page 372.

Per bend Ermine and Pean, two lions rampant combatant, counter-changed, armed and langued Gules; surmounted by three bendlets undee Argent, on each three fleurs-de-lis Azure; on a chief Or, three TITMICE volant proper; all within a bordure gobonated Argent and Sable.

CREST.—On a cap of maintenance a Titmouse proper, ducally gorged Or, holding in his beak a woodlouse embowed Azure. Motto—"Je le tiens."

Note.—The Author was favored, on the first appearance of this portion of the work, with several complimentary communications on the subject of Sir Gorgeous Tintack's feats in heraldry: and one gentleman eminent in that science, and to whom the author is indebted for the annexed spirited drawing, has requested the author to annex to the separate edition, as he now does, the two following very curious extracts from old heraldic writers:—the first, supporting the author's ridicule of the prevalent folly of devising complicated coats of arms; and the second being a very remarkable specimen of the extent to which an enthusiast in the science was carried on its behalf.

First—"An other thing that is amisse, as I take it, and hath great neede to be reformed, is the quartering of many markes in one shield, coate, or banner; for sithence it is true that such markes serue to no other vse, but for a commander to lead by, or to be known by, it is of necessitie that the same should be *apparent, faire, and easie to be understoode*: so that the quartering of many of them together, doth hinder the vse for which they are provided.—As how is it possible for a plaine unlearned man to discover and know a sunder, six or eight—sometimes thirty or forty several marks clustered altogether in one shield or banner, nay, though he had as good skill as *Robert Glower*, late Somerset that dead is, and the eies of an egle, amongst such a confusion of things, yet should he never be able to decipher the errors that are dalie committed in this one point, nor discover or know

one banner or standard from an other, be the same neuer so large?"—*Treatise on the True Use of Armes*—by Mr. Sampson Erdswicke, [a famous antiquary in the reign of Queen Elizabeth.]

[Secondly.—An extract from the *Book of St. Alban's*, written late in the fifteenth century, by Dame Juliana Berners, Abbess of St. Alban's]—

"Cain and all his offspring became *churls* both by the curse of God, and his own father. Seth was made a *gentleman*, through his father and mother's blessing, from whose loins issued Noah, a *gentleman* by kind and lineage. Of Noah's sons, Chem became a churl by his father's curse, on account of his gross barbarism towards his father. Japhet and Shem, Noah made gentlemen. From the offspring of gentlemanly Japhet came Abraham, Moyses, and the Prophets, and also the King of the right line of Mary, of whom that only absolute gentleman [X] Jesus was borne; perfite God and perfite man according to his manhood, King of the land of Juda, and the Jewes, and *gentleman* by his Mother Mary, princess of coate Armour."

[X] One of our oldest dramatists speaks of our Saviour in an earnest sense as "the *first true gentleman* that ever lived."

[27] NOTE 27. Page 374.

I vehemently suspect myself guilty of a slight anachronism here; this ancient and illustrious monarchy having been mediatized by the congress of Vienna in 1815—its territories now forming part of the parish of Hahnroost, in the kingdom of —.

[28] NOTE 28. Page 399.

Ante, p. 265.

[29] NOTE 29. Page 415.

Μήδεια, 1036-9. *Anglicé*: Alas, alas, my children! why do you fondly fix your eyes upon me? Why beams upon me *that last smile* of yours? Oh, woe! woe! is me! What shall I do? For now that I have seen the bright eyes of my little ones, my heart is broken!

[30] NOTE 30. Page 415.

Ezek. xii. 18.

[31] NOTE 31. Page 453.

Since this work was published, a very important statute (6 and 7 Vict. c. 85) was passed, in the year 1843, for removing the incompetency to give evidence, by reason of any crime, or *interest*.

[32] NOTE 32. Page 456.

When once a man's necessities have compelled him to subscribe his name to the three magical letters "I. O. U.," he is liable for the sum specified in it to any one simply producing it, though it be addressed to no one, and no proof be given that "U" means the plaintiff, (see *Curtis v. Rickards*, Manning and Grainger, 46; and *Douglas v. Hone*, 12 Adolphus and Ellis, 641,) unless the defendant be able to adduce clear evidence impeaching the plaintiff's right to recover.

[33] NOTE 33. Page 461.

The late venerable and gifted Lord Stowell, in the case of *Evans v. Evans*, 1 Consistory Reports, p. 36.

[\[34\]](#) NOTE 34. Page 466.

Some have imagined this to be an allusion to a disclosure pretended by M. Thiers, a few years ago, *after the death of Lord Holland*, to have been made to him by that nobleman, of what had passed at a Cabinet council!!

END OF VOL. II.

*** END OF THE PROJECT GUTENBERG EBOOK TEN THOUSAND
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